



Competition and Consumer Act 2010

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This compilation is in 4 volumes

- Volume 1: Chapter 1, Part I to Chapter 4, Part IVBB
sections 1 to 53ZZC
- Volume 2: Chapter 4, Part IVC to Chapter 6, Part IX
sections 55 to 113
- Volume 3: Chapter 6, Part X to Chapter 8, Part XIII
sections 10.01 to 193
- Volume 4: Schedules
Endnotes**

Each volume has its own contents

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About this compilation

This compilation

This is a compilation of the *Competition and Consumer Act 2010* that shows the text of the law as amended and in force on 27 August 2026 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au).

Application, saving and transitional provisions

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Presentational changes

The *Legislation Act 2003* provides for First Parliamentary Counsel to make presentational changes to a compilation. Presentational changes are applied to give a more consistent look and feel to legislation published on the Register, and enable the user to more easily navigate those documents.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. Any modifications affecting the law are accessible on the Register.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

Contents

Schedule 1—The Schedule version of Part IV	1
Part 1—Schedule version of Part IV	1
Division 1—Cartel conduct	1
Subdivision A—Introduction	1
45AA Simplified outline	1
45AB Definitions	1
45AC Extended meaning of <i>party</i>	2
45AD Cartel provisions	2
45AE Meaning of expressions in other provisions of this Act	9
Subdivision B—Offences etc.	9
45AF Making a contract etc. containing a cartel provision	9
45AG Giving effect to a cartel provision	10
45AH Determining guilt	11
45AI Court may make related civil orders	12
45AIA Section 4AB of the Crimes Act does not apply	12
Subdivision C—Civil penalty provisions	12
45AJ Making a contract etc. containing a cartel provision	12
45AK Giving effect to a cartel provision	12
Subdivision D—Exceptions	13
45AL Conduct notified	13
45AM Cartel provision subject to grant of authorisation	13
45AMA Acquisition subject to notification	14
45AN Contracts, arrangements or understandings between related bodies corporate	14
45AO Joint ventures—prosecution	14
45AP Joint ventures—civil penalty proceedings	15
45AQ Resale price maintenance	16
45AR Exclusive dealing	17
45AS Dual listed company arrangement	17
45AT Acquisition of shares or assets	18
45AU Collective acquisition of goods or services by the parties to a contract, arrangement or understanding	19

Division 1A—Acquisitions	20
Subdivision A—Preliminary	20
45AV Purportedly putting acquisitions into effect.....	20
Subdivision B—Obligations	20
45AW Commission must be notified of acquisitions.....	20
45AX Commission must be notified of material changes of fact in relation to notified acquisitions.....	21
45AY Stayed acquisitions must not be put into effect	22
45AZ Conditions must be complied with	23
Subdivision C—Acquisitions void if put into effect while stayed	23
45AZA Acquisitions void if put into effect while stayed	23
Subdivision D—Miscellaneous	23
45AZB Providing false or misleading information	23
Division 2—Other provisions	24
45 Contracts, arrangements or understandings that restrict dealings or affect competition.....	24
45D Secondary boycotts for the purpose of causing substantial loss or damage	28
45DA Secondary boycotts for the purpose of causing substantial lessening of competition	29
45DC Involvement and liability of employee organisations.....	29
45DD Situations in which boycotts permitted.....	31
45E Prohibition of contracts, arrangements or understandings affecting the supply or acquisition of goods or services.....	34
45EA Provisions contravening section 45E not to be given effect.....	38
45EB Sections 45D to 45EA do not affect operation of other provisions of Part.....	38
46 Misuse of market power	38
47 Exclusive dealing.....	40
48 Resale price maintenance.....	47
49 Dual listed company arrangements that affect competition.....	47
50 Prohibition of acquisitions that would result in a substantial lessening of competition	49
51 Exceptions.....	51
Schedule 2—The Australian Consumer Law	55
Chapter 1—Introduction	71
1 Application of this Schedule.....	71

2	Definitions	71
3	Meaning of <i>consumer</i>	87
4	Misleading representations with respect to future matters	91
5	When donations are treated as supplies or acquisitions.....	92
6	Related bodies corporate.....	92
7	Meaning of <i>manufacturer</i>	92
8	Goods affixed to land or premises	94
9	Meaning of <i>safety defect</i> in relation to goods	94
10	Asserting a right to payment.....	95
11	References to acquisition, supply and re-supply	95
12	Application of Schedule in relation to leases and licences of land and buildings.....	96
13	Loss or damage to include injury.....	97
14	Meaning of <i>continuing credit contract</i>	97
15	Contraventions of this Schedule	98
16	Severability	98
17	References to provisions in this Schedule	99
Chapter 2—General protections		100
Part 2-1—Misleading or deceptive conduct		100
18	Misleading or deceptive conduct	100
19	Application of this Part to information providers	100
Part 2-2—Unconscionable conduct		103
20	Unconscionable conduct within the meaning of the unwritten law.....	103
21	Unconscionable conduct in connection with goods or services.....	103
22	Matters the court may have regard to for the purposes of section 21	104
22A	Presumptions relating to whether representations are misleading.....	107
Part 2-3—Unfair contract terms		108
23	Unfair terms of consumer contracts and small business contracts	108
24	Meaning of <i>unfair</i>	110
25	Examples of unfair terms.....	111
26	Terms that define main subject matter of consumer contracts or small business contracts etc. are unaffected.....	112
27	Standard form contracts	113
28	Contracts to which this Part does not apply.....	114

28A	This Part does not apply to certain contracts connected with financial markets.....	115
Chapter 3—Specific protections		116
Part 3-1—Unfair practices		116
Division 1—False or misleading representations etc.		116
29	False or misleading representations about goods or services	116
30	False or misleading representations about sale etc. of land	118
31	Misleading conduct relating to employment	118
32	Offering rebates, gifts, prizes etc.	119
33	Misleading conduct as to the nature etc. of goods.....	120
34	Misleading conduct as to the nature etc. of services.....	120
35	Bait advertising	120
36	Wrongly accepting payment	121
37	Misleading representations about certain business activities	123
38	Application of provisions of this Division to information providers	124
Division 2—Unsolicited supplies		126
39	Unsolicited cards etc.	126
40	Assertion of right to payment for unsolicited goods or services.....	127
41	Liability etc. of recipient for unsolicited goods.....	128
42	Liability of recipient for unsolicited services	129
43	Assertion of right to payment for unauthorised entries or advertisements	129
Division 3—Pyramid schemes		132
44	Participation in pyramid schemes	132
45	Meaning of <i>pyramid scheme</i>	132
46	Marketing schemes as pyramid schemes	133
Division 4—Pricing		135
47	Multiple pricing	135
48	Single price to be specified in certain circumstances	136
Division 5—Other unfair practices		140
49	Referral selling.....	140
50	Harassment and coercion	140

Part 3-2—Consumer transactions	141
Division 1—Consumer guarantees	141
Subdivision A—Guarantees relating to the supply of goods	141
51 Guarantee as to title	141
52 Guarantee as to undisturbed possession.....	141
53 Guarantee as to undisclosed securities etc.	142
54 Guarantee as to acceptable quality.....	143
55 Guarantee as to fitness for any disclosed purpose etc.	145
56 Guarantee relating to the supply of goods by description	145
57 Guarantees relating to the supply of goods by sample or demonstration model.....	146
58 Guarantee as to repairs and spare parts.....	146
59 Guarantee as to express warranties.....	147
Subdivision B—Guarantees relating to the supply of services	148
60 Guarantee as to due care and skill	148
61 Guarantees as to fitness for a particular purpose etc.	148
62 Guarantee as to reasonable time for supply	149
63 Services to which this Subdivision does not apply	149
Subdivision C—Guarantees not to be excluded etc. by contract	150
64 Guarantees not to be excluded etc. by contract	150
64A Limitation of liability for failures to comply with guarantees.....	150
Subdivision D—Miscellaneous	152
65 Application of this Division to supplies of gas, electricity and telecommunications	152
66 Display notices.....	152
67 Conflict of laws.....	153
68 Convention on Contracts for the International Sale of Goods.....	153
Division 2—Unsolicited consumer agreements	154
Subdivision A—Introduction	154
69 Meaning of <i>unsolicited consumer agreement</i>	154
70 Presumption that agreements are unsolicited consumer agreements	155
71 Meaning of <i>dealer</i>	156
72 Meaning of <i>negotiation</i>	156
Subdivision B—Negotiating unsolicited consumer agreements	156
73 Permitted hours for negotiating an unsolicited consumer agreement.....	156
74 Disclosing purpose and identity.....	157

75	Ceasing to negotiate on request	157
76	Informing person of termination period etc.....	158
77	Liability of suppliers for contraventions by dealers	159
Subdivision C—Requirements for unsolicited consumer agreements etc.		159
78	Requirement to give document to the consumer	159
79	Requirements for all unsolicited consumer agreements etc.....	160
80	Additional requirements for unsolicited consumer agreements not negotiated by telephone	161
81	Requirements for amendments of unsolicited consumer agreements	162
Subdivision D—Terminating unsolicited consumer agreements		162
82	Terminating an unsolicited consumer agreement during the termination period.....	162
83	Effect of termination.....	164
84	Obligations of suppliers on termination.....	165
85	Obligations and rights of consumers on termination	165
86	Prohibition on supplies etc.....	167
87	Repayment of payments received after termination	168
88	Prohibition on recovering amounts after termination	168
Subdivision E—Miscellaneous		169
89	Certain provisions of unsolicited consumer agreements void	169
90	Waiver of rights	170
91	Application of this Division to persons to whom rights of consumers and suppliers are assigned etc.....	170
92	Application of this Division to supplies to third parties	170
93	Effect of contravening this Division.....	171
94	Regulations may limit the application of this Division	171
95	Application of this Division to certain conduct covered by the Corporations Act.....	171
Division 3—Lay-by agreements		172
96	Lay-by agreements must be in writing etc.....	172
97	Termination of lay-by agreements by consumers.....	172
98	Termination of lay-by agreements by suppliers	173
99	Effect of termination.....	173
Division 3A—Gift cards		175
Subdivision A—Introduction		175
99A	Meaning of <i>gift card</i>	175

Subdivision B—Requirements relating to gift cards	175
99B Gift cards to be redeemable for at least 3 years	175
99C When gift card ceases to be redeemable to appear prominently on gift card	176
99D Terms and conditions not to allow post-supply fees.....	176
99E Post-supply fees not to be demanded or received.....	176
99F Certain terms and conditions of gift card void	177
Subdivision C—Miscellaneous	177
99G Regulations may limit application of this Division	177
Division 4—Miscellaneous	179
100 Supplier must provide proof of transaction etc.....	179
101 Consumer may request an itemised bill.....	180
102 Prescribed requirements for warranties against defects.....	181
103 Repairers must comply with prescribed requirements.....	181
Part 3-3—Safety of consumer goods and product related services	183
Division 1—Safety standards	183
104 Making safety standards for consumer goods and product related services.....	183
106 Supplying etc. consumer goods that do not comply with safety standards.....	184
107 Supplying etc. product related services that do not comply with safety standards.....	186
108 Requirements relating to alternative methods of complying.....	187
108A Requirement to give information or documents	188
Division 2—Bans on consumer goods and product related services	189
Subdivision A—Interim bans	189
109 Interim bans on consumer goods or product related services that will or may cause injury to any person etc.	189
110 Places in which interim bans apply.....	190
111 Ban period for interim bans	190
112 Interaction of multiple interim bans.....	191
113 Revocation of interim bans	192
Subdivision B—Permanent bans	192
114 Permanent bans on consumer goods or product related services.....	192
115 Places in which permanent bans apply	193
116 When permanent bans come into force.....	193
117 Revocation of permanent bans.....	193

Subdivision C—Compliance with interim bans and permanent bans	194
118 Supplying etc. consumer goods covered by a ban	194
119 Supplying etc. product related services covered by a ban	195
Subdivision D—Temporary exemption from mutual recognition principles	196
120 Temporary exemption under the <i>Trans-Tasman Mutual Recognition Act 1997</i>	196
121 Temporary exemption under the <i>Mutual Recognition Act 1992</i>	196
Division 3—Recall of consumer goods	198
Subdivision A—Compulsory recall of consumer goods	198
122 Compulsory recall of consumer goods	198
123 Contents of a recall notice	198
124 Obligations of a supplier in relation to a recall notice	200
125 Notification by persons who supply consumer goods outside Australia if there is compulsory recall	201
126 Interaction of multiple recall notices	201
127 Compliance with recall notices	202
Subdivision B—Voluntary recall of consumer goods	203
128 Notification requirements for a voluntary recall of consumer goods	203
Division 4—Safety warning notices	205
129 Safety warning notices about consumer goods and product related services	205
130 Announcement of the results of an investigation etc	205
Division 5—Consumer goods, or product related services, associated with death or serious injury or illness	207
131 Suppliers to report consumer goods associated with the death or serious injury or illness of any person	207
132 Suppliers to report product related services associated with the death or serious injury or illness of any person	209
132A Confidentiality of notices given under this Division	211
Division 6—Miscellaneous	213
133 Liability under a contract of insurance	213
Part 3-4—Information standards	214
134 Making information standards for goods and services	214

136	Supplying etc. goods that do not comply with information standards	215
137	Supplying etc. services that do not comply with information standards	217
137AA	Other non-compliance with information standards	217
137A	Safe harbour for complying with information standards about free range eggs	218
137B	Requirement to give information or documents	219
Part 3-5—Liability of manufacturers for goods with safety defects		220
Division 1—Actions against manufacturers for goods with safety defects		220
138	Liability for loss or damage suffered by an injured individual.....	220
139	Liability for loss or damage suffered by a person other than an injured individual.....	220
140	Liability for loss or damage suffered by a person if other goods are destroyed or damaged.....	221
141	Liability for loss or damage suffered by a person if land, buildings or fixtures are destroyed or damaged.....	221
142	Defences to defective goods actions.....	222
Division 2—Defective goods actions		223
143	Time for commencing defective goods actions	223
144	Liability joint and several	223
145	Survival of actions	223
146	No defective goods action where workers' compensation law etc. applies	223
147	Unidentified manufacturer	224
148	Commonwealth liability for goods that are defective only because of compliance with Commonwealth mandatory standard	224
149	Representative actions by the regulator	225
Division 3—Miscellaneous		226
150	Application of all or any provisions of this Part etc. not to be excluded or modified	226
Chapter 4—Offences		227
Part 4-1—Offences relating to unfair practices		227
Division 1—False or misleading representations etc.		227
151	False or misleading representations about goods or services	227

152	False or misleading representations about sale etc. of land	229
153	Misleading conduct relating to employment	230
154	Offering rebates, gifts, prizes etc.	231
155	Misleading conduct as to the nature etc. of goods	233
156	Misleading conduct as to the nature etc. of services	234
157	Bait advertising	235
158	Wrongly accepting payment	236
159	Misleading representations about certain business activities	239
160	Application of provisions of this Division to information providers	240
Division 2—Unsolicited supplies		242
161	Unsolicited cards etc.	242
162	Assertion of right to payment for unsolicited goods or services	243
163	Assertion of right to payment for unauthorised entries or advertisements	244
Division 3—Pyramid schemes		247
164	Participation in pyramid schemes	247
Division 4—Pricing		248
165	Multiple pricing	248
166	Single price to be specified in certain circumstances	248
Division 5—Other unfair practices		251
167	Referral selling	251
168	Harassment and coercion	252
Part 4-2—Offences relating to consumer transactions		254
Division 1—Consumer guarantees		254
169	Display notices	254
Division 2—Unsolicited consumer agreements		255
Subdivision A—Negotiating unsolicited consumer agreements		255
170	Permitted hours for negotiating an unsolicited consumer agreement	255
171	Disclosing purpose and identity	255
172	Ceasing to negotiate on request	256
173	Informing person of termination period etc.	257
Subdivision B—Requirements for unsolicited consumer agreements etc.		258
174	Requirement to give document to the consumer	258

175	Requirements for all unsolicited consumer agreements etc.....	259
176	Additional requirements for unsolicited consumer agreements not negotiated by telephone.....	260
177	Requirements for amendments of unsolicited consumer agreements	261
Subdivision C—Terminating unsolicited consumer agreements		262
178	Obligations of suppliers on termination.....	262
179	Prohibition on supplies etc.....	262
180	Repayment of payments received after termination	263
181	Prohibition on recovering amounts after termination	263
Subdivision D—Miscellaneous		264
182	Certain provisions of unsolicited consumer agreements void	264
183	Waiver of rights	265
184	Application of this Division to persons to whom rights of consumers and suppliers are assigned etc.....	265
185	Application of this Division to supplies to third parties	266
186	Regulations may limit the application of this Division	266
187	Application of this Division to certain conduct covered by the Corporations Act.....	266
Division 3—Lay-by agreements		267
188	Lay-by agreements must be in writing etc.....	267
189	Termination charges	267
190	Termination of lay-by agreements by suppliers	268
191	Refund of amounts.....	268
Division 3A—Gift cards		269
191A	Gift cards to be redeemable for at least 3 years.....	269
191B	When gift card ceases to be redeemable to appear prominently on gift card	269
191C	Terms and conditions not to allow post-supply fees.....	270
191D	Post-supply fees not to be demanded or received.....	270
191E	Regulations may limit the application of this Division	270
Division 4—Miscellaneous		272
192	Prescribed requirements for warranties against defects.....	272
193	Repairers must comply with prescribed requirements.....	272

Part 4-3—Offences relating to safety of consumer goods and product related services	273
Division 1—Safety standards	273
194 Supplying etc. consumer goods that do not comply with safety standards.....	273
195 Supplying etc. product related services that do not comply with safety standards.....	274
196 Requirement to nominate a safety standard.....	275
Division 2—Bans on consumer goods and product related services	276
197 Supplying etc. consumer goods covered by a ban.....	276
198 Supplying etc. product related services covered by a ban.....	277
Division 3—Recall of consumer goods	279
199 Compliance with recall orders.....	279
200 Notification by persons who supply consumer goods outside Australia if there is compulsory recall.....	280
201 Notification requirements for a voluntary recall of consumer goods.....	280
Division 4—Consumer goods, or product related services, associated with death or serious injury or illness	282
202 Suppliers to report consumer goods etc. associated with the death or serious injury or illness of any person.....	282
Part 4-4—Offences relating to information standards	283
203 Supplying etc. goods that do not comply with information standards.....	283
204 Supplying etc. services that do not comply with information standards.....	285
Part 4-5—Offences relating to substantiation notices	287
205 Compliance with substantiation notices.....	287
206 False or misleading information etc.....	287
Part 4-6—Defences	289
207 Reasonable mistake of fact.....	289
208 Act or default of another person etc.....	289
209 Publication of advertisements in the ordinary course of business.....	290
210 Supplying goods acquired for the purpose of re-supply.....	290
211 Supplying services acquired for the purpose of re-supply.....	292
Part 4-7—Miscellaneous	293
212 Prosecutions to be commenced within 3 years.....	293

213	Preference must be given to compensation for victims	293
214	Penalties for contraventions of the same nature etc.....	294
215	Penalties for previous contraventions of the same nature etc.	294
216	Granting of injunctions etc.	295
217	Criminal proceedings not to be brought for contraventions of Chapter 2 or 3	295
Chapter 5—Enforcement and remedies		297
Part 5-1—Enforcement		297
Division 1—Undertakings		297
218	Regulator may accept undertakings	297
Division 2—Substantiation notices		298
219	Regulator may require claims to be substantiated etc.....	298
220	Extending periods for complying with substantiation notices.....	299
221	Compliance with substantiation notices	300
222	False or misleading information etc.....	300
Division 3—Public warning notices		302
223	Regulator may issue a public warning notice	302
Part 5-2—Remedies		303
Division 1—Pecuniary penalties		303
224	Pecuniary penalties	303
225	Pecuniary penalties and offences.....	307
226	Defence	308
227	Preference must be given to compensation for victims	308
228	Civil action for recovery of pecuniary penalties.....	309
229	Indemnification of officers	309
230	Certain indemnities not authorised and certain documents void	309
Division 2—Injunctions		310
232	Injunctions	310
233	Consent injunctions.....	311
234	Interim injunctions.....	311
235	Variation and discharge of injunctions	312
Division 3—Damages		313
236	Actions for damages	313

Division 4—Compensation orders etc. for injured persons and orders for non-parties	314
237 Compensation orders etc. on application by an injured person or the regulator	314
238 Compensation orders etc. arising out of other proceedings	314
239 Orders to redress etc. loss or damage suffered by non-parties	315
240 Determining whether to make a redress order etc. for non-parties	316
241 When a non-party is bound by a redress order etc.	317
243 Kinds of orders that may be made	317
243A Orders made in favour of party to contract containing unfair term	319
243B Orders made on application of the regulator to prevent and remedy unfair contract terms	320
245 Interaction with other provisions	321
Division 5—Other remedies	323
246 Non-punitive orders	323
247 Adverse publicity orders	324
248 Order disqualifying a person from managing corporations	325
249 Privilege against exposure to penalty or forfeiture—disqualification from managing corporations	326
250 Declarations relating to consumer contracts and small business contracts	327
Division 6—Defences	328
251 Publication of advertisement in the ordinary course of business	328
252 Supplying consumer goods for the purpose of re-supply	328
253 Supplying product related services for the purpose of re-supply	329
Part 5-3—Country of origin representations	331
254 Overview	331
255 Country of origin representations do not contravene certain provisions	331
258 Proceedings relating to false, misleading or deceptive conduct or representations	333
Part 5-4—Remedies relating to guarantees	334
Division 1—Action against suppliers	334
Subdivision A—Action against suppliers of goods	334
259 Action against suppliers of goods	334

260	When a failure to comply with a guarantee is a major failure	335
261	How suppliers may remedy a failure to comply with a guarantee	336
262	When consumers are not entitled to reject goods	337
263	Consequences of rejecting goods.....	337
264	Replaced goods	338
265	Termination of contracts for the supply of services that are connected with rejected goods	339
266	Rights of gift recipients.....	339
Subdivision B—Action against suppliers of services		340
267	Action against suppliers of services.....	340
268	When a failure to comply with a guarantee is a major failure	341
269	Termination of contracts for the supply of services	342
270	Termination of contracts for the supply of goods that are connected with terminated services	343
Division 2—Action for damages against manufacturers of goods		344
271	Action for damages against manufacturers of goods	344
272	Damages that may be recovered by action against manufacturers of goods.....	345
273	Time limit for actions against manufacturers of goods	346
Division 3—Miscellaneous		347
274	Indemnification of suppliers by manufacturers	347
275	Limitation of liability etc.	348
276	This Part not to be excluded etc. by contract.....	348
276A	Limitation in certain circumstances of liability of manufacturer to seller	349
277	Representative actions by the regulator.....	350
Part 5-5—Liability of suppliers and credit providers		351
Division 1—Linked credit contracts		351
278	Liability of suppliers and linked credit providers relating to linked credit contracts	351
279	Action by consumer to recover amount of loss or damage.....	352
280	Cases where a linked credit provider is not liable	352
281	Amount of liability of linked credit providers	354
282	Counter-claims and offsets	355
283	Enforcement of judgments etc.	355
284	Award of interest to consumers	357
285	Liability of suppliers to linked credit providers, and of linked credit providers to suppliers.....	358

286	Joint liability proceedings and recovery under section 135 of the National Credit Code	358
Division 2—Non-linked credit contracts		360
287	Liability of suppliers and credit providers relating to non-linked credit contracts.....	360
Chapter 6—Application and transitional provisions		362
Part 1—Application and transitional provisions relating to the Consumer Credit Legislation Amendment (Enhancements) Act 2012		362
288	Application of amendments relating to lay-by agreements	362
289	Application of amendment relating to repairs	362
290	Saving of regulations relating to repairs	362
Part 1A—Application provision relating to the Treasury Legislation Amendment (Small Business and Unfair Contract Terms) Act 2015		363
290A	Application.....	363
Part 2—Application and transitional provisions relating to the Competition and Consumer Amendment (Competition Policy Review) Act 2017		364
291	Application of amendments relating to confidentiality of notices	364
292	Application of amendments relating to prohibition on supplies	364
Part 3—Application provision relating to the Treasury Laws Amendment (2018 Measures No. 3) Act 2018		365
295	Application of amendments.....	365
Part 4—Application provisions relating to the Treasury Laws Amendment (Australian Consumer Law Review) Act 2018		366
296	Application—listed public companies.....	366
297	Application—unsolicited supplies.....	366
298	Application—unsolicited consumer agreements	366
299	Application—single price	366
300	Application—non-punitive orders	366
301	Application—guarantees relating to the supply of services	367

Part 5—Application and transitional provisions relating to the Treasury Laws Amendment (Gift Cards) Act 2018	368
302 Application of amendments relating to gift cards.....	368
Part 6—Application and transitional provisions relating to the Treasury Laws Amendment (2020 Measures No. 6) Act 2020	369
303 Application of amendments relating to multiple non-major consumer guarantee failures	369
Part 7—Application provision relating to the Treasury Laws Amendment (More Competition, Better Prices) Act 2022	370
304 Application of amendments relating to penalties	370
305 Application of amendments relating to unfair contract terms	370
Part 8—Application and saving provisions relating to the Treasury Laws Amendment (Fairer for Families and Farmers and Other Measures) Act 2024	372
306 Definitions	372
307 Saving—safety standards declared by the Minister.....	372
308 Application—nomination and compliance with safety standards	372
309 Application—requests for information or documents	373
Part 9—Application provision relating to the Treasury Laws Amendment (Doubling Penalties for ACCC Enforcement) Act 2026	374
310 Application of amendments relating to penalties	374
Endnotes	375
Endnote 1—About the endnotes	375
Endnote 2—Abbreviation key	377
Endnote 3—Legislation history	378
Endnote 4—Amendment history	412

Schedule 1—The Schedule version of Part IV

Part 1—Schedule version of Part IV

Note: See section 150A.

Division 1—Cartel conduct

Subdivision A—Introduction

45AA Simplified outline

The following is a simplified outline of this Division:

- This Division sets out parallel offences and civil penalty provisions relating to cartel conduct.
- A person must not make, or give effect to, a contract, arrangement or understanding that contains a cartel provision.
- A cartel provision is a provision relating to:
 - (a) price-fixing; or
 - (b) restricting outputs in the production and supply chain; or
 - (c) allocating customers, suppliers or territories; or
 - (d) bid-rigging;by parties that are, or would otherwise be, in competition with each other.

45AB Definitions

In this Division:

benefit includes any advantage and is not limited to property.

bid includes:

- (a) tender; and

Section 45AC

- (b) the taking, by a potential bidder or tenderer, of a preliminary step in a bidding or tendering process.

evidential burden, in relation to a matter, means the burden of adducing or pointing to evidence that suggests a reasonable possibility that the matter exists or does not exist.

knowledge has the same meaning as in the *Criminal Code*.

likely, in relation to any of the following:

- (a) a supply of goods or services;
 - (b) an acquisition of goods or services;
 - (c) the production of goods;
 - (d) the capacity to supply services;
- includes a possibility that is not remote.

obtaining includes:

- (a) obtaining for another person; and
- (b) inducing a third person to do something that results in another person obtaining.

party has a meaning affected by section 45AC.

production includes manufacture, processing, treatment, assembly, disassembly, renovation, restoration, growing, raising, mining, extraction, harvesting, fishing, capturing and gathering.

45AC Extended meaning of *party*

For the purposes of this Division, if a body corporate is a party to a contract, arrangement or understanding (otherwise than because of this section), each body corporate related to that body corporate is taken to be a **party** to that contract, arrangement or understanding.

45AD Cartel provisions

- (1) For the purposes of this Act, a provision of a contract, arrangement or understanding is a **cartel provision** if:

Section 45AD

- (a) either of the following conditions is satisfied in relation to the provision:
 - (i) the purpose/effect condition set out in subsection (2);
 - (ii) the purpose condition set out in subsection (3); and
- (b) the competition condition set out in subsection (4) is satisfied in relation to the provision.

Purpose/effect condition

- (2) The purpose/effect condition is satisfied if the provision has the purpose, or has or is likely to have the effect, of directly or indirectly:
 - (a) fixing, controlling or maintaining; or
 - (b) providing for the fixing, controlling or maintaining of; the price for, or a discount, allowance, rebate or credit in relation to:
 - (c) goods or services supplied, or likely to be supplied, by any or all of the parties to the contract, arrangement or understanding; or
 - (d) goods or services acquired, or likely to be acquired, by any or all of the parties to the contract, arrangement or understanding; or
 - (e) goods or services re-supplied, or likely to be re-supplied, by persons or classes of persons to whom those goods or services were supplied by any or all of the parties to the contract, arrangement or understanding; or
 - (f) goods or services likely to be re-supplied by persons or classes of persons to whom those goods or services are likely to be supplied by any or all of the parties to the contract, arrangement or understanding.

Note 1: The purpose/effect condition can be satisfied when a provision is considered with related provisions—see subsection (8).

Note 2: **Party** has an extended meaning—see section 45AC.

Section 45AD

Purpose condition

- (3) The purpose condition is satisfied if the provision has the purpose of directly or indirectly:
- (a) preventing, restricting or limiting:
 - (i) the production, or likely production, of goods by any or all of the parties to the contract, arrangement or understanding; or
 - (ii) the capacity, or likely capacity, of any or all of the parties to the contract, arrangement or understanding to supply services; or
 - (iii) the supply, or likely supply, of goods or services to persons or classes of persons by any or all of the parties to the contract, arrangement or understanding; or
 - (iv) the acquisition, or likely acquisition, of goods or services from persons or classes of persons by any or all of the parties to the contract, arrangement or understanding; or
 - (b) allocating between any or all of the parties to the contract, arrangement or understanding:
 - (i) the persons or classes of persons who have acquired, or who are likely to acquire, goods or services from any or all of the parties to the contract, arrangement or understanding; or
 - (ii) the persons or classes of persons who have supplied, or who are likely to supply, goods or services to any or all of the parties to the contract, arrangement or understanding; or
 - (iii) the geographical areas in which goods or services are supplied, or likely to be supplied, by any or all of the parties to the contract, arrangement or understanding; or
 - (iv) the geographical areas in which goods or services are acquired, or likely to be acquired, by any or all of the parties to the contract, arrangement or understanding; or

Section 45AD

- (c) ensuring that in the event of a request for bids in relation to the supply or acquisition of goods or services:
- (i) one or more parties to the contract, arrangement or understanding bid, but one or more other parties do not; or
 - (ii) 2 or more parties to the contract, arrangement or understanding bid, but at least 2 of them do so on the basis that one of those bids is more likely to be successful than the others; or
 - (iii) 2 or more parties to the contract, arrangement or understanding bid, but not all of those parties proceed with their bids until the suspension or finalisation of the request for bids process; or
 - (iv) 2 or more parties to the contract, arrangement or understanding bid and proceed with their bids, but at least 2 of them proceed with their bids on the basis that one of those bids is more likely to be successful than the others; or
 - (v) 2 or more parties to the contract, arrangement or understanding bid, but a material component of at least one of those bids is worked out in accordance with the contract, arrangement or understanding.

Note 1: For example, subparagraph (3)(a)(iii) will not apply in relation to a roster for the supply of after-hours medical services if the roster does not prevent, restrict or limit the supply of services.

Note 2: The purpose condition can be satisfied when a provision is considered with related provisions—see subsection (9).

Note 3: **Party** has an extended meaning—see section 45AC.

Competition condition

- (4) The competition condition is satisfied if at least 2 of the parties to the contract, arrangement or understanding:
- (a) are or are likely to be; or
 - (b) but for any contract, arrangement or understanding, would be or would be likely to be;
- in competition with each other in relation to:

Schedule 1 The Schedule version of Part IV

Part 1 Schedule version of Part IV

Division 1 Cartel conduct

Section 45AD

- (c) if paragraph (2)(c) or (3)(b) applies in relation to a supply, or likely supply, of goods or services—the supply of those goods or services in trade or commerce; or
- (d) if paragraph (2)(d) or (3)(b) applies in relation to an acquisition, or likely acquisition, of goods or services—the acquisition of those goods or services in trade or commerce; or
- (e) if paragraph (2)(e) or (f) applies in relation to a re-supply, or likely re-supply, of goods or services—the supply of those goods or services in trade or commerce to that re-supplier; or
- (f) if subparagraph (3)(a)(i) applies in relation to preventing, restricting or limiting the production, or likely production, of goods—the production of those goods in trade or commerce; or
- (g) if subparagraph (3)(a)(ii) applies in relation to preventing, restricting or limiting the capacity, or likely capacity, to supply services—the supply of those services in trade or commerce; or
- (h) if subparagraph (3)(a)(iii) applies in relation to preventing, restricting or limiting the supply, or likely supply, of goods or services—the supply of those goods or services in trade or commerce; or
- (i) if subparagraph (3)(a)(iv) applies in relation to preventing, restricting or limiting the acquisition, or likely acquisition, of goods or services—the acquisition of those goods or services in trade or commerce; or
- (j) if paragraph (3)(c) applies in relation to a supply of goods or services—the supply of those goods or services in trade or commerce; or
- (k) if paragraph (3)(c) applies in relation to an acquisition of goods or services—the acquisition of those goods or services in trade or commerce.

Note 1: **Party** has an extended meaning—see section 45AC.

Note 2: **Trade or commerce** is defined in section 4 to mean trade or commerce within Australia or between Australia and places outside Australia.

Section 45AD

Immaterial whether identities of persons can be ascertained

- (5) It is immaterial whether the identities of the persons referred to in paragraph (2)(e) or (f) or subparagraph (3)(a)(iii) or (iv) or (b)(i) or (ii) can be ascertained.

Recommending prices etc.

- (6) For the purposes of this Division, a provision of a contract, arrangement or understanding is not taken:
- (a) to have the purpose mentioned in subsection (2); or
 - (b) to have, or be likely to have, the effect mentioned in subsection (2);
- by reason only that it recommends, or provides for the recommending of, a price, discount, allowance, rebate or credit.

Immaterial whether particular circumstances or particular conditions

- (7) It is immaterial whether:
- (a) for the purposes of subsection (2), subparagraphs (3)(a)(iii) and (iv) and paragraphs (3)(b) and (c)—a supply or acquisition happens, or a likely supply or likely acquisition is to happen, in particular circumstances or on particular conditions; and
 - (b) for the purposes of subparagraph (3)(a)(i)—the production happens, or the likely production is to happen, in particular circumstances or on particular conditions; and
 - (c) for the purposes of subparagraph (3)(a)(ii)—the capacity exists, or the likely capacity is to exist, in particular circumstances or on particular conditions.

Considering related provisions—purpose/effect condition

- (8) For the purposes of this Division, a provision of a contract, arrangement or understanding is taken to have the purpose, or to have or be likely to have the effect, mentioned in subsection (2) if

Section 45AD

the provision, when considered together with any or all of the following provisions:

- (a) the other provisions of the contract, arrangement or understanding;
- (b) the provisions of another contract, arrangement or understanding, if the parties to that other contract, arrangement or understanding consist of or include at least one of the parties to the first-mentioned contract, arrangement or understanding;

has that purpose, or has or is likely to have that effect.

Considering related provisions—purpose condition

- (9) For the purposes of this Division, a provision of a contract, arrangement or understanding is taken to have the purpose mentioned in a paragraph of subsection (3) if the provision, when considered together with any or all of the following provisions:

- (a) the other provisions of the contract, arrangement or understanding;
- (b) the provisions of another contract, arrangement or understanding, if the parties to that other contract, arrangement or understanding consist of or include at least one of the parties to the first-mentioned contract, arrangement or understanding;

has that purpose.

Purpose/effect of a provision

- (10) For the purposes of this Division, a provision of a contract, arrangement or understanding is not to be taken not to have the purpose, or not to have or to be likely to have the effect, mentioned in subsection (2) by reason only of:

- (a) the form of the provision; or
- (b) the form of the contract, arrangement or understanding; or
- (c) any description given to the provision, or to the contract, arrangement or understanding, by the parties.

Section 45AE

Purpose of a provision

- (11) For the purposes of this Division, a provision of a contract, arrangement or understanding is not to be taken not to have the purpose mentioned in a paragraph of subsection (3) by reason only of:
- (a) the form of the provision; or
 - (b) the form of the contract, arrangement or understanding; or
 - (c) any description given to the provision, or to the contract, arrangement or understanding, by the parties.

45AE Meaning of expressions in other provisions of this Act

In determining the meaning of an expression used in a provision of this Act (other than this Division, subsection 6(2C), paragraph 76(1B)(b) or subsection 93AB(1A)), this Division is to be disregarded.

Subdivision B—Offences etc.

45AF Making a contract etc. containing a cartel provision

Offence

- (1) A person commits an offence if:
- (a) the person makes a contract or arrangement, or arrives at an understanding; and
 - (b) the contract, arrangement or understanding contains a cartel provision.
- (2) The fault element for paragraph (1)(b) is knowledge or belief.

Penalty

- (3) An offence against subsection (1) committed by a body corporate is punishable on conviction by a fine not exceeding the greater of the following:
- (a) \$100,000,000;

Section 45AG

- (b) if the court can determine the total value of the benefits that:
 - (i) have been obtained by one or more persons; and
 - (ii) are reasonably attributable to the commission of the offence;3 times that total value;
 - (c) if the court cannot determine the total value of those benefits—30% of the corporation's adjusted turnover during the breach turnover period for the offence.
- (4) An offence against subsection (1) committed by a person other than a body corporate is punishable on conviction by a term of imprisonment not exceeding 10 years or a fine not exceeding 2,000 penalty units, or both.

Indictable offence

- (5) An offence against subsection (1) is an indictable offence.

45AG Giving effect to a cartel provision

Offence

- (1) A person commits an offence if:
- (a) a contract, arrangement or understanding contains a cartel provision; and
 - (b) the person gives effect to the cartel provision.
- (2) The fault element for paragraph (1)(a) is knowledge or belief.

Penalty

- (3) An offence against subsection (1) committed by a body corporate is punishable on conviction by a fine not exceeding the greater of the following:
- (a) \$100,000,000;
 - (b) if the court can determine the total value of the benefits that:
 - (i) have been obtained by one or more persons; and

Section 45AH

- (ii) are reasonably attributable to the commission of the offence;
3 times that total value;
 - (c) if the court cannot determine the total value of those benefits—30% of the corporation's adjusted turnover during the breach turnover period for the offence.
- (4) An offence against subsection (1) committed by a person other than a body corporate is punishable on conviction by a term of imprisonment not exceeding 10 years or a fine not exceeding 2,000 penalty units, or both.

Pre-commencement contracts etc.

- (5) Paragraph (1)(a) applies to contracts or arrangements made, or understandings arrived at, before, at or after the commencement of this section.

Indictable offence

- (6) An offence against subsection (1) is an indictable offence.

45AH Determining guilt

- (1) A person may be found guilty of an offence against section 45AF or 45AG even if:
 - (a) each other party to the contract, arrangement or understanding is a person who is not criminally responsible; or
 - (b) subject to subsection (2), all other parties to the contract, arrangement or understanding have been acquitted of the offence.

Note: **Party** has an extended meaning—see section 45AC.

- (2) A person cannot be found guilty of an offence against section 45AF or 45AG if:
 - (a) all other parties to the contract, arrangement or understanding have been acquitted of such an offence; and

Section 45AI

- (b) a finding of guilt would be inconsistent with their acquittal.

45AI Court may make related civil orders

If a prosecution against a person for an offence against section 45AF or 45AG is being, or has been, heard by a court, the court may:

- (a) grant an injunction under section 80 against the person in relation to:
 - (i) the conduct that constitutes, or is alleged to constitute, the offence; or
 - (ii) other conduct of that kind; or
- (b) make an order under section 86C, 86D, 86E or 87 in relation to the offence.

45AIA Section 4AB of the Crimes Act does not apply

Section 4AB of the *Crimes Act 1914* does not apply to any provision of this Subdivision.

Subdivision C—Civil penalty provisions

45AJ Making a contract etc. containing a cartel provision

A person contravenes this section if:

- (a) the person makes a contract or arrangement, or arrives at an understanding; and
- (b) the contract, arrangement or understanding contains a cartel provision.

Note: For enforcement, see Part VI.

45AK Giving effect to a cartel provision

- (1) A person contravenes this section if:
 - (a) a contract, arrangement or understanding contains a cartel provision; and
 - (b) the person gives effect to the cartel provision.
-

Section 45AL

Note: For enforcement, see Part VI.

- (2) Paragraph (1)(a) applies to contracts or arrangements made, or understandings arrived at, before, at or after the commencement of this section.

Subdivision D—Exceptions

45AL Conduct notified

- (1) Sections 45AF, 45AG, 45AJ and 45AK do not apply to a person in relation to a contract, arrangement or understanding containing a cartel provision, in so far as:
- (a) the cartel provision:
 - (i) has the purpose, or has or is likely to have the effect, mentioned in subsection 45AD(2); or
 - (ii) has the purpose mentioned in a paragraph of subsection 45AD(3) other than paragraph (c); and
 - (b) the person has given the Commission a collective bargaining notice under subsection 93AB(1A) setting out particulars of the contract, arrangement or understanding; and
 - (c) the notice is in force under section 93AD.
- (2) A person who wishes to rely on subsection (1) bears an evidential burden in relation to that matter.

45AM Cartel provision subject to grant of authorisation

- (1) Sections 45AF and 45AJ do not apply in relation to the making of a contract that contains a cartel provision if:
- (a) the contract is subject to a condition that the provision will not come into force unless and until the person is granted an authorisation to give effect to the provision; and
 - (b) the person applies for the grant of such an authorisation within 14 days after the contract is made.
- (2) A person who wishes to rely on subsection (1) bears an evidential burden in relation to that matter.

Section 45AMA

45AMA Acquisition subject to notification

- (1) Sections 45AF and 45AJ do not apply in relation to the making of a contract that contains a cartel provision, in so far as the cartel provision provides for an acquisition if the contract is subject to a condition that the provision will not come into force unless and until the acquisition becomes a notified acquisition.
- (2) A person who wishes to rely on subsection (1) bears an evidential burden in relation to that matter.

45AN Contracts, arrangements or understandings between related bodies corporate

- (1) Sections 45AF, 45AG, 45AJ and 45AK do not apply in relation to a contract, arrangement or understanding if the only parties to the contract, arrangement or understanding are bodies corporate that are related to each other.
- (2) A person who wishes to rely on subsection (1) bears an evidential burden in relation to that matter.

45AO Joint ventures—prosecution

- (1) Sections 45AF and 45AG do not apply in relation to a contract, arrangement or understanding containing a cartel provision if the defendant proves that:
 - (a) the cartel provision is:
 - (i) for the purposes of a joint venture; and
 - (ii) reasonably necessary for undertaking the joint venture; and
 - (b) the joint venture is for any one or more of the following:
 - (i) production of goods;
 - (ii) supply of goods or services;
 - (iii) acquisition of goods or services; and
 - (c) the joint venture is not carried on for the purpose of substantially lessening competition; and

Section 45AP

- (d) in a case where subparagraph 4J(a)(i) applies to the joint venture—the joint venture is carried on jointly by the parties to the contract, arrangement or understanding; and
- (e) in a case where subparagraph 4J(a)(ii) applies to the joint venture—the joint venture is carried on by a body corporate formed by the parties to the contract, arrangement or understanding for the purpose of enabling those parties to carry on the activity mentioned in paragraph (b) jointly by means of:
 - (i) their joint control; or
 - (ii) their ownership of shares in the capital;of that body corporate.

Note: For example, if a joint venture formed for the purpose of research and development provides the results of its research and development to participants in the joint venture, it may be a joint venture for the supply of services.

- (2) A defendant who wishes to rely on subsection (1) must prove that matter on the balance of probabilities.

45AP Joint ventures—civil penalty proceedings

- (1) Sections 45AJ and 45AK do not apply in relation to a contract, arrangement or understanding containing a cartel provision if the defendant proves that:
 - (a) the cartel provision is:
 - (i) for the purposes of a joint venture; and
 - (ii) reasonably necessary for undertaking the joint venture; and
 - (b) the joint venture is for any one or more of the following:
 - (i) production of goods;
 - (ii) supply of goods or services;
 - (iii) acquisition of goods or services; and
 - (c) the joint venture is not carried on for the purpose of substantially lessening competition; and

Section 45AQ

- (d) in a case where subparagraph 4J(a)(i) applies to the joint venture—the joint venture is carried on jointly by the parties to the contract, arrangement or understanding; and
- (e) in a case where subparagraph 4J(a)(ii) applies to the joint venture—the joint venture is carried on by a body corporate formed by the parties to the contract, arrangement or understanding for the purpose of enabling those parties to carry on the activity mentioned in paragraph (b) jointly by means of:
 - (i) their joint control; or
 - (ii) their ownership of shares in the capital; of that body corporate.

Note: For example, if a joint venture formed for the purpose of research and development provides the results of its research and development to participants in the joint venture, it may be a joint venture for the supply of services.

- (2) A defendant who wishes to rely on subsection (1) must prove that matter on the balance of probabilities.

45AQ Resale price maintenance

- (1) Sections 45AF, 45AG, 45AJ and 45AK do not apply in relation to a contract, arrangement or understanding containing a cartel provision, in so far as the cartel provision relates to:
 - (a) conduct that contravenes section 48; or
 - (b) conduct that would contravene section 48 but for the operation of section 88; or
 - (c) conduct that would contravene section 48 if this Act defined the acts constituting the practice of resale price maintenance by reference to the maximum price at which goods or services are to be sold or supplied or are to be advertised, displayed or offered for sale or supply.
- (2) A person who wishes to rely on subsection (1) bears an evidential burden in relation to that matter.

Section 45AR

45AR Exclusive dealing

- (1) Sections 45AF and 45AJ do not apply in relation to the making of a contract, arrangement or understanding that contains a cartel provision, in so far as giving effect to the cartel provision would, or would but for the operation of subsection 47(10) or section 88 or 93, constitute a contravention of section 47.
- (2) Sections 45AG and 45AK do not apply in relation to the giving effect to a cartel provision by way of:
 - (a) engaging in conduct that contravenes, or would but for the operation of subsection 47(10) or section 88 or 93 contravene, section 47; or
 - (b) doing an act by reason of a breach or threatened breach of a condition referred to in subsection 47(2), (4), (6) or (8), being an act done by a person at a time when:
 - (i) an authorisation under section 88 is in force in relation to conduct engaged in by that person on that condition; or
 - (ii) by reason of subsection 93(7), conduct engaged in by that person on that condition is not to be taken to have the effect of substantially lessening competition within the meaning of section 47; or
 - (iii) a notice under subsection 93(1) is in force in relation to conduct engaged in by that person on that condition.
- (3) A person who wishes to rely on subsection (1) or (2) bears an evidential burden in relation to that matter.

45AS Dual listed company arrangement

- (1) Sections 45AF and 45AJ do not apply in relation to the making of a contract, arrangement or understanding that contains a cartel provision, in so far as:
 - (a) the contract, arrangement or understanding is a dual listed company arrangement; and

Section 45AT

- (b) the making of the contract, arrangement or understanding would, or would apart from section 88, contravene section 49.
- (2) Sections 45AG and 45AK do not apply in relation to the giving effect to a cartel provision, in so far as:
 - (a) the cartel provision is a provision of a dual listed company arrangement; and
 - (b) the giving effect to the cartel provision would, or would apart from section 88, contravene section 49.
- (3) A person who wishes to rely on subsection (1) or (2) bears an evidential burden in relation to that matter.

45AT Acquisition of shares or assets

- (1) Sections 45AF, 45AG, 45AJ and 45AK do not apply in relation to a contract, arrangement or understanding containing a cartel provision, in so far as the cartel provision provides directly or indirectly for the acquisition of:
 - (a) any shares in the capital of a body corporate; or
 - (b) any assets of a person.
- (2) A person who wishes to rely on subsection (1) bears an evidential burden in relation to that matter.
- (3) Sections 45AF, 45AG, 45AJ and 45AK do not apply in relation to a contract, arrangement or understanding containing a cartel provision, in so far as the cartel provision provides for an acquisition, if the acquisition is a notified acquisition.
- (4) A person who wishes to rely on subsection (3) bears an evidential burden in relation to that matter.

Section 45AU

45AU Collective acquisition of goods or services by the parties to a contract, arrangement or understanding

- (1) Sections 45AF, 45AG, 45AJ and 45AK do not apply in relation to a contract, arrangement or understanding containing a cartel provision, in so far as:
- (a) the cartel provision has the purpose, or has or is likely to have the effect, mentioned in subsection 45AD(2); and
 - (b) either:
 - (i) the cartel provision relates to the price for goods or services to be collectively acquired, whether directly or indirectly, by the parties to the contract, arrangement or understanding; or
 - (ii) the cartel provision is for the joint advertising of the price for the re-supply of goods or services so acquired.
- (2) A person who wishes to rely on subsection (1) bears an evidential burden in relation to that matter.

Division 1A—Acquisitions

Subdivision A—Preliminary

45AV Purportedly putting acquisitions into effect

- (1) A reference in this Division to putting an acquisition into effect includes a reference to purportedly putting the acquisition into effect.
- (2) A person *purportedly puts into effect* an acquisition if the person engages in conduct that, apart from this Division, would constitute putting the acquisition into effect.

Subdivision B—Obligations

45AW Commission must be notified of acquisitions

A person contravenes this section if:

- (a) the person is a principal party to an acquisition; and
- (b) the acquisition is required to be notified; and
- (c) the acquisition is put into effect; and
- (d) when the acquisition is put into effect:
 - (i) the acquisition is not a notified acquisition; or
 - (ii) no notification of the acquisition has an effective notification date (see section 51ABZ); or
 - (iii) the latest notification of the acquisition that has an effective notification date is stale.

Note 1: For when an acquisition is *required to be notified*, see Division 2 of Part IVA.

Note 2: For when an acquisition is *stale*, see section 51ABG.

Note 3: For enforcement, see Part VI.

45AX Commission must be notified of material changes of fact in relation to notified acquisitions

- (1) This section applies if:
- (a) a person is the notifying party of a notification of an acquisition; and
 - (b) a change of fact occurs; and
 - (c) the change of fact is material to the Commission making a determination under subsection 51ABZE(1) in respect of the notification; and
 - (d) the person becomes aware of the change of fact at a time:
 - (i) occurring on or after the effective notification date of the notification; and
 - (ii) at which the Commission has not decided to cease considering the notification under section 51ABZD; and
 - (iii) at which the Commission has not made a determination in respect of the notification under subsection 51ABZE(1); and
 - (iv) if the notification is subject to phase 2 review—occurring at least 15 business days (within the meaning of section 51ABK) before the end of the phase 2 determination period for the notification.
- (2) For the purposes of this section, the person is taken to become aware of the change of fact at the earliest time at which the person is:
- (a) aware of the change of fact; and
 - (b) aware that the change of fact is material in the way described in paragraph (1)(c).
- (3) This section also applies if:
- (a) a person is the notifying party of a notification of an acquisition; and
 - (b) the notifying party has made a public benefit application in relation to the notification; and
 - (c) a change of fact occurs; and

Section 45AY

- (d) the change of fact is material to the Commission making a determination under subsection 51ABZW(1) in respect of the application; and
 - (e) the person becomes aware of the change of fact at a time:
 - (i) occurring on or after the effective application date of the application; and
 - (ii) at which the Commission has not decided to cease considering the application under section 51ABZV; and
 - (iii) at which the Commission has not made a determination under subsection 51ABZW(1) in respect of the application.
- (4) For the purposes of this section, the person is taken to become aware of the change of fact at the earliest time at which the person is:
- (a) aware of the change of fact; and
 - (b) aware that the change of fact is material in the way described in paragraph (3)(d).
- (5) The person contravenes this subsection if the Commission is not notified of the change of fact, as soon as practicable after the person becomes aware of the change, by:
- (a) if the person is the only notifying party of the notification of the acquisition—the person; or
 - (b) otherwise—all of the notifying parties jointly.
- Note: For enforcement, see Part VI.
- (6) For the purposes of this section, a person who ought reasonably to be aware of something is taken to be aware of it.

45AY Stayed acquisitions must not be put into effect

A person contravenes this section if:

- (a) the person puts an acquisition into effect; and
- (b) the acquisition is stayed.

Note 1: For when an acquisition is *stayed*, see section 51ABE.

Note 2: For enforcement, see Part VI.

Section 45AZ

45AZ Conditions must be complied with

- (1) This section applies to a person who puts a notified acquisition into effect, if putting the acquisition into effect is subject to conditions.

Note: For when putting an acquisition into effect is *subject* to conditions, see section 51ABH.

- (2) The person contravenes this subsection if any of those conditions are not complied with.

Note: For enforcement, see Part VI.

Subdivision C—Acquisitions void if put into effect while stayed

45AZA Acquisitions void if put into effect while stayed

- (1) This section applies to an acquisition that is put into effect in contravention of section 45AY.
- (2) The acquisition is, and is taken always to have been, void by force of this subsection.

Subdivision D—Miscellaneous

45AZB Providing false or misleading information

A person contravenes this section if:

- (a) the person gives information to the Commission or the Tribunal under an acquisitions provision; and
- (b) the information is false or misleading in a material particular; and
- (c) the person knows that, or is reckless as to whether, the information is false or misleading in a material particular.

Note: For enforcement, see Part VI.

Section 45

Division 2—Other provisions

45 Contracts, arrangements or understandings that restrict dealings or affect competition

- (1) A person must not:
 - (a) make a contract or arrangement, or arrive at an understanding, if a provision of the proposed contract, arrangement or understanding has the purpose, or would have or be likely to have the effect, of substantially lessening competition; or
 - (b) give effect to a provision of a contract, arrangement or understanding, if that provision has the purpose, or has or is likely to have the effect, of substantially lessening competition; or
 - (c) engage with one or more other persons in a concerted practice that has the purpose, or has or is likely to have the effect, of substantially lessening competition.
- (2) Paragraph (1)(b) applies in relation to contracts or arrangements made, or understandings arrived at, before or after the commencement of this section.
- (3) For the purposes of this section, *competition* means:
 - (a) in relation to a provision of a contract, arrangement or understanding or of a proposed contract, arrangement or understanding—competition in any market in which:
 - (i) a person who is a party to the contract, arrangement or understanding, or would be a party to the proposed contract, arrangement or understanding; or
 - (ii) any body corporate related to such a person; supplies or acquires, or is likely to supply or acquire, goods or services or would, but for the provision, supply or acquire, or be likely to supply or acquire, goods or services; or
 - (b) in relation to a concerted practice—competition in any market in which:

Section 45

- (i) a person who is a party to the practice; or
 - (ii) any body corporate related to such a person; supplies or acquires, or is likely to supply or acquire, goods or services or would, but for the practice, supply or acquire, or be likely to supply or acquire, goods or services.
- (4) For the purposes of the application of this section in relation to a particular person, a provision of a contract, arrangement or understanding or of a proposed contract, arrangement or understanding shall be deemed to have or to be likely to have the effect of substantially lessening competition if that provision and any one or more of the following provisions, namely:
 - (a) the other provisions of that contract, arrangement or understanding or proposed contract, arrangement or understanding; and
 - (b) the provisions of any other contract, arrangement or understanding or proposed contract, arrangement or understanding to which the person or a body corporate related to the person is or would be a party;together have or are likely to have that effect.
- (5) This section does not apply to or in relation to a provision of a contract, arrangement or understanding or of a proposed contract, arrangement or understanding, or to or in relation to a concerted practice, in so far as the provision or practice relates to:
 - (a) conduct that contravenes section 48; or
 - (b) conduct that would contravene section 48 if subsection 48(2) did not apply; or
 - (c) conduct that would contravene section 48 if it were not authorised under section 88; or
 - (d) conduct that would contravene section 48 if this Act defined the acts constituting the practice of resale price maintenance by reference to the maximum price at which goods or services are to be sold or supplied or are to be advertised, displayed or offered for sale or supply.

Section 45

- (5A) The making of a contract, arrangement or understanding does not constitute a contravention of this section because the contract, arrangement or understanding contains a provision the giving effect to which would, or would apart from subsection 47(10) or section 88 or 93, constitute a contravention of section 47.
- (6) This section does not apply to or in relation to the giving effect to a provision of a contract, arrangement or understanding, or to or in relation to engaging in a concerted practice, by way of:
- (a) engaging in conduct that contravenes, or would but for the operation of subsection 47(10) or section 88 or 93 contravene, section 47; or
 - (b) doing an act by reason of a breach or threatened breach of a condition referred to in subsection 47(2), (4), (6) or (8), being an act done by a person at a time when:
 - (i) an authorisation under section 88 is in force in relation to conduct engaged in by that person on that condition; or
 - (ii) by reason of subsection 93(7) conduct engaged in by that person on that condition is not to be taken to have the effect of substantially lessening competition within the meaning of section 47; or
 - (iii) a notice under subsection 93(1) is in force in relation to conduct engaged in by that person on that condition.
- (6A) The following conduct:
- (a) the making of a dual listed company arrangement;
 - (b) the giving effect to a provision of a dual listed company arrangement;
- does not contravene this section if the conduct would, or would apart from section 88, contravene section 49.
- (7) This section does not apply to or in relation to:
- (a) a contract, arrangement or understanding to the extent that the contract, arrangement or understanding directly or indirectly provides for; or

- (b) a proposed contract, arrangement or understanding to the extent that the proposed contract, arrangement or understanding would directly or indirectly provide for; or
 - (c) a concerted practice to the extent that the practice directly or indirectly involves;
- the acquisition of any shares in the capital of a body corporate or any assets of a person or a notified acquisition.
- (8) This section does not apply to or in relation to:
 - (a) a contract, arrangement or understanding, or
 - (b) a proposed contract, arrangement or understanding; or
 - (c) a concerted practice;the only parties to which are or would be bodies corporate that are related to each other.
- (8AA) This section does not apply to or in relation to a concerted practice if the only persons engaging in it are or would be:
 - (a) the Crown in right of the Commonwealth and one or more authorities of the Commonwealth; or
 - (b) the Crown in right of a State or Territory and one or more authorities of that State or Territory.
- (8A) Subsection (1) does not apply to a person engaging in conduct described in that subsection if:
 - (a) the person has given the Commission a collective bargaining notice under subsection 93AB(1) describing the conduct; and
 - (b) the notice is in force under section 93AD.
- (8B) The making by a person of a contract is not a contravention of subsection (1) to the extent that the contract provides for an acquisition, if the contract is subject to a condition that the provision of the contract will not come into force unless and until the acquisition becomes a notified acquisition.
- (8C) Nothing in subsection (8B) prevents the giving effect by a person to such a provision of a contract from constituting a contravention of subsection (1).

Section 45D

- (9) The making by a person of a contract that contains a provision in relation to which the person intends to apply for an authorisation under section 88 is not a contravention of subsection (1) of this section if:
- (a) the contract is subject to a condition that the provision will not come into force unless and until the person is granted an authorisation to give effect to the provision; and
 - (b) the person applies for the grant of such an authorisation within 14 days after the contract is made;
- but nothing in this subsection prevents the giving effect by a person to such a provision from constituting a contravention of subsection (1).

45D Secondary boycotts for the purpose of causing substantial loss or damage

- (1) A person must not, in concert with a second person, engage in conduct:
- (a) that hinders or prevents:
 - (i) a third person supplying goods or services to a fourth person (who is not an employer of the first person or the second person); or
 - (ii) a third person acquiring goods or services from a fourth person (who is not an employer of the first person or the second person); and
 - (b) that is engaged in for the purpose, and would have or be likely to have the effect, of causing substantial loss or damage to the business of the fourth person.

Note 1: Conduct that would otherwise contravene this section can be authorised under section 88.

Note 2: This section also has effect subject to section 45DD, which deals with permitted boycotts.

- (2) A person is taken to engage in conduct for a purpose mentioned in subsection (1) if the person engages in the conduct for purposes that include that purpose.

Section 45DA

45DA Secondary boycotts for the purpose of causing substantial lessening of competition

- (1) A person must not, in concert with a second person, engage in conduct:
- (a) that hinders or prevents:
 - (i) a third person supplying goods or services to a fourth person (who is not an employer of the first person or the second person); or
 - (ii) a third person acquiring goods or services from a fourth person (who is not an employer of the first person or the second person); and
 - (b) that is engaged in for the purpose, and would have or be likely to have the effect, of causing a substantial lessening of competition in any market in which the fourth person supplies or acquires goods or services.

Note 1: Conduct that would otherwise contravene this section can be authorised under section 88.

Note 2: This section also has effect subject to section 45DD, which deals with permitted boycotts.

- (2) A person is taken to engage in conduct for a purpose mentioned in subsection (1) if the person engages in the conduct for purposes that include that purpose.

Note: This version of Part IV does not contain an equivalent of section 45DB of the *Competition and Consumer Act 2010*.

45DC Involvement and liability of employee organisations

Certain organisations taken to be acting in concert

- (1) If 2 or more persons (the *participants*), each of whom is a member or officer of the same organisation of employees, engage in conduct in concert with one another, whether or not the conduct is also engaged in in concert with another person, then, unless the organisation proves otherwise, the organisation is taken for the purposes of sections 45D and 45DA:

Section 45DC

- (a) to engage in that conduct in concert with the participants; and
- (b) to have engaged in that conduct for the purposes for which the participants engaged in it.

Consequences of organisation contravening subsection 45D(1) or 45DA(1)

- (2) The consequences of an organisation of employees engaging, or being taken by subsection (1) to engage, in conduct in concert with any of its members or officers in contravention of subsection 45D(1) or 45DA(1) are as set out in subsections (3), (4) and (5).

Loss or damage taken to have been caused by organisation's conduct

- (3) Any loss or damage suffered by a person as a result of the conduct is taken, for the purposes of this Act, to have been caused by the conduct of the organisation.

Taking proceedings if organisation is a body corporate

- (4) If the organisation is a body corporate, no action under section 82 to recover the amount of the loss or damage may be brought against any of the members or officers of the organisation in respect of the conduct.

Taking proceedings if organisation is not a body corporate

- (5) If the organisation is not a body corporate:
 - (a) a proceeding in respect of the conduct may be brought under section 77, 80 or 82 against an officer of the organisation as a representative of the organisation's members and the proceeding is taken to be a proceeding against all the persons who were members of the organisation at the time when the conduct was engaged in; and
 - (b) subsection 76(2) does not prevent an order being made in a proceeding mentioned in paragraph (a) that was brought under section 77; and

Section 45DD

- (c) the maximum pecuniary penalty that may be imposed in a proceeding mentioned in paragraph (a) that was brought under section 77 is the penalty applicable under section 76 in relation to a body corporate; and
- (d) except as provided by paragraph (a), a proceeding in respect of the conduct must not be brought under section 77 or 82 against any of the members or officers of the organisation; and
- (e) for the purpose of enforcing any judgment or order given or made in a proceeding mentioned in paragraph (a) that was brought under section 77 or 82, process may be issued and executed against the following property or interests as if the organisation were a body corporate and the absolute owner of the property or interests:
 - (i) any property of the organisation or of any branch or part of the organisation, whether vested in trustees or however otherwise held;
 - (ii) any property in which the organisation or any branch or part of the organisation has a beneficial interest, whether vested in trustees or however otherwise held;
 - (iii) any property in which any members of the organisation or of a branch or part of the organisation have a beneficial interest in their capacity as members, whether vested in trustees or however otherwise held; and
- (f) if paragraph (e) applies, no process is to be issued or executed against any property of members or officers of the organisation or of a branch or part of the organisation except as provided in that paragraph.

45DD Situations in which boycotts permitted

*Dominant purpose of conduct relates to employment matters—
conduct by a person*

- (1) A person does not contravene, and is not involved in a contravention of, subsection 45D(1) or 45DA(1) by engaging in conduct if the dominant purpose for which the conduct is engaged

Section 45DD

in is substantially related to the remuneration, conditions of employment, hours of work or working conditions of that person or of another person employed by an employer of that person.

*Dominant purpose of conduct relates to employment matters—
conduct by employee organisation and employees*

(2) If:

- (a) an employee, or 2 or more employees who are employed by the same employer, engage in conduct in concert with another person who is, or with other persons each of whom is:
 - (i) an organisation of employees; or
 - (ii) an officer of an organisation of employees; and
- (b) the conduct is only engaged in by the persons covered by paragraph (a); and
- (c) the dominant purpose for which the conduct is engaged in is substantially related to the remuneration, conditions of employment, hours of work or working conditions of the employee, or any of the employees, covered by paragraph (a);

the persons covered by paragraph (a) do not contravene, and are not involved in a contravention of, subsection 45D(1) or 45DA(1) by engaging in the conduct.

*Dominant purpose of conduct relates to environmental protection
or consumer protection*

- (3) A person does not contravene, and is not involved in a contravention of, subsection 45D(1) or 45DA(1) by engaging in conduct if:
 - (a) the dominant purpose for which the conduct is engaged in is substantially related to environmental protection or consumer protection; and
 - (b) engaging in the conduct is not industrial action.

Note 1: If an environmental organisation or a consumer organisation is a body corporate:

Section 45DD

- (a) it is a “person” who may be subject to the prohibitions in subsections 45D(1) and 45DA(1) and who may also be covered by this exemption; and
- (b) each of its members is a “person” who may be subject to the prohibitions in subsections 45D(1) and 45DA(1) and who may also be covered by this exemption.

Note 2: If an environmental organisation or a consumer organisation is not a body corporate:

- (a) it is not a “person” and is therefore not subject to the prohibitions in subsections 45D(1) and 45DA(1) (consequently, this exemption does not cover the organisation as such); but
- (b) each of its members is a “person” who may be subject to the prohibitions in subsections 45D(1) and 45DA(1) and who may also be covered by this exemption.

*Meaning of **industrial action**—basic definition*

(4) In subsection (3), **industrial action** means:

- (a) the performance of work in a manner different from that in which it is customarily performed, or the adoption of a practice in relation to work, the result of which is a restriction or limitation on, or a delay in, the performance of the work, where:
 - (i) the terms and conditions of the work are prescribed, wholly or partly, by a workplace instrument or an order of an industrial body; or
 - (ii) the work is performed, or the practice is adopted, in connection with an industrial dispute; or
- (b) a ban, limitation or restriction on the performance of work, or on acceptance of or offering for work, in accordance with the terms and conditions prescribed by a workplace instrument or by an order of an industrial body; or
- (c) a ban, limitation or restriction on the performance of work, or on acceptance of or offering for work, that is adopted in connection with an industrial dispute; or
- (d) a failure or refusal by persons to attend for work or a failure or refusal to perform any work at all by persons who attend for work.

Section 45E

For this purpose, **industrial body** and **workplace instrument** have the same meanings as in the *Fair Work Act 2009*.

Meaning of industrial action—further clarification

- (5) For the purposes of subsection (3):
- (a) conduct is capable of constituting industrial action even if the conduct relates to part only of the duties that persons are required to perform in the course of their employment; and
 - (b) a reference to industrial action includes a reference to a course of conduct consisting of a series of industrial actions.

Subsections (1), (2) and (3) do not protect people not covered by them

- (6) In applying subsection 45D(1) or 45DA(1) to a person who is not covered by subsection (1), (2) or (3) in respect of certain conduct, disregard the fact that other persons may be covered by one of those subsections in respect of the same conduct.

Note: Section 415 of the *Fair Work Act 2009* limits the right to bring actions under the Competition Code in respect of industrial action that is protected action for the purposes of that section.

45E Prohibition of contracts, arrangements or understandings affecting the supply or acquisition of goods or services

Situations to which section applies

- (1) This section applies in the following situations:
- (a) a **supply situation**—in this situation, a person (the **first person**) has been accustomed, or is under an obligation, to supply goods or services to another person (the **second person**); or
 - (b) an **acquisition situation**—in this situation, a person (the **first person**) has been accustomed, or is under an obligation, to acquire goods or services from another person (the **second person**).

Section 45E

Note : For the meanings of *accustomed to supply* and *accustomed to acquire*, see subsections (5) and (7).

Prohibition in a supply situation

- (2) In a supply situation, the first person must not make a contract or arrangement, or arrive at an understanding, with an organisation of employees, an officer of such an organisation or a person acting for and on behalf of such an officer or organisation, if the proposed contract, arrangement or understanding contains a provision included for the purpose, or for purposes including the purpose, of:
- (a) preventing or hindering the first person from supplying or continuing to supply such goods or services to the second person; or
 - (b) preventing or hindering the first person from supplying or continuing to supply such goods or services to the second person, except subject to a condition:
 - (i) that is not a condition to which the supply of such goods or services by the first person to the second person has previously been subject because of a provision in a contract between those persons; and
 - (ii) that is about the persons to whom, the manner in which or the terms on which the second person may supply any goods or services.

Prohibition in an acquisition situation

- (3) In an acquisition situation, the first person must not make a contract or arrangement, or arrive at an understanding, with an organisation of employees, an officer of such an organisation or a person acting for and on behalf of such an officer or organisation, if the proposed contract, arrangement or understanding contains a provision included for the purpose, or for purposes including the purpose, of:
- (a) preventing or hindering the first person from acquiring or continuing to acquire such goods or services from the second person; or

Section 45E

- (b) preventing or hindering the first person from acquiring or continuing to acquire such goods or services from the second person, except subject to a condition:
 - (i) that is not a condition to which the acquisition of such goods or services by the first person from the second person has previously been subject because of a provision in a contract between those persons; and
 - (ii) that is about the persons to whom, the manner in which or the terms on which the second person may supply any goods or services.

No contravention if second person gives written consent to written contract etc.

- (4) Subsections (2) and (3) do not apply to a contract, arrangement or understanding if it is in writing and was made or arrived at with the written consent of the second person.

*Meaning of **accustomed to supply***

- (5) In this section, a reference to a person who has been **accustomed to supply** goods or services to a second person includes (subject to subsection (6)):
 - (a) a regular supplier of such goods or services to the second person; or
 - (b) the latest supplier of such goods or services to the second person; or
 - (c) a person who, at any time during the immediately preceding 3 months, supplied such goods or services to the second person.

Exception to subsection (5)

- (6) If:
 - (a) goods or services have been supplied by a person to a second person under a contract between them that required the first person to supply such goods or services over a period; and
 - (b) the period has ended; and

Section 45E

- (c) after the end of the period, the second person has been supplied with such goods or services by another person and has not also been supplied with such goods or services by the first person;

then, for the purposes of the application of this section in relation to anything done after the second person has been supplied with goods or services as mentioned in paragraph (c), the first person is not to be taken to be a person who has been accustomed to supply such goods or services to the second person.

Meaning of accustomed to acquire

- (7) In this section, a reference to a person who has been **accustomed to acquire** goods or services from a second person includes (subject to subsection (8)):
 - (a) a regular acquirer of such goods or services from the second person; or
 - (b) a person who, when last acquiring such goods or services, acquired them from the second person; or
 - (c) a person who, at any time during the immediately preceding 3 months, acquired such goods or services from the second person.

Exception to subsection (7)

- (8) If:
 - (a) goods or services have been acquired by a person from a second person under a contract between them that required the first person to acquire such goods or services over a period; and
 - (b) the period has ended; and
 - (c) after the end of the period, the second person has refused to supply such goods or services to the first person;then, for the purposes of the application of this section in relation to anything done after the second person has refused to supply goods or services as mentioned in paragraph (c), the first person is

Section 45EA

not to be taken to be a person who has been accustomed to acquire such goods or services from the second person.

Note: Conduct that would otherwise contravene this section can be authorised under section 88.

45EA Provisions contravening section 45E not to be given effect

A person must not give effect to a provision of a contract, arrangement or understanding if, because of the provision, the making of the contract or arrangement, or the arriving at the understanding, by the person:

- (a) contravened subsection 45E(2) or (3); or
- (b) would have contravened subsection 45E(2) or (3) if:
 - (i) section 45E had been in force when the contract or arrangement was made, or the understanding was arrived at; and
 - (ii) the words “is in writing and” and “written” were not included in subsection 45E(4).

Note: Conduct that would otherwise contravene this section can be authorised under section 88.

45EB Sections 45D to 45EA do not affect operation of other provisions of Part

Nothing in section 45D, 45DA, 45DC, 45DD, 45E or 45EA affects the operation of any other provision of this Part.

46 Misuse of market power

- (1) A person who has a substantial degree of power in a market must not engage in conduct that has the purpose, or has or is likely to have the effect, of substantially lessening competition in:
 - (a) that market; or
 - (b) any other market in which that person, or a body corporate that is related to that person:
 - (i) supplies goods or services, or is likely to supply goods or services; or

Section 46

- (ii) supplies goods or services, or is likely to supply goods or services, indirectly through one or more other persons; or
- (c) any other market in which that person, or a body corporate that is related to that person:
 - (i) acquires goods or services, or is likely to acquire goods or services; or
 - (ii) acquires goods or services, or is likely to acquire goods or services, indirectly through one or more other persons.
- (3) A person (the **first person**) is taken for the purposes of this section to have a substantial degree of power in a market if:
 - (a) a body corporate that is related to the first person has, or 2 or more bodies corporate each of which is related to the first person together have, a substantial degree of power in that market; or
 - (b) the first person and a body corporate that is, or the first person and 2 or more bodies corporate each of which is, related to the first person, together have a substantial degree of power in that market.
- (4) In determining for the purposes of this section the degree of power that a person (the **first person**) or bodies corporate have in a market:
 - (a) regard must be had to the extent to which the conduct of the first person or of any of those bodies corporate in that market is constrained by the conduct of:
 - (i) competitors, or potential competitors, of the first person or of any of those bodies corporate in that market; or
 - (ii) persons to whom or from whom the first person or any of those bodies corporate supplies or acquires goods or services in that market; and
 - (b) regard may be had to the power the first person or bodies corporate have in that market that results from:

Section 47

- (i) any contracts, arrangements or understandings that the first person or bodies corporate have with another party or other parties; or
 - (ii) any proposed contracts, arrangements or understandings that the first person or bodies corporate may have with another party or other parties.
- (5) For the purposes of this section, a person may have a substantial degree of power in a market even though:
 - (a) the person does not substantially control that market; or
 - (b) the person does not have absolute freedom from constraint by the conduct of:
 - (i) competitors, or potential competitors, of the person in that market; or
 - (ii) persons to whom or from whom the person supplies or acquires goods or services in that market.
- (6) Subsections (4) and (5) do not limit the matters to which regard may be had in determining, for the purposes of this section, the degree of power that a person or bodies corporate have in a market.
- (7) To avoid doubt, for the purposes of this section, more than one person may have a substantial degree of power in a market.
- (8) In this section:
 - (a) a reference to power is a reference to market power; and
 - (b) a reference to a market is a reference to a market for goods or services; and
 - (c) a reference to power in relation to, or to conduct in, a market is a reference to power, or to conduct, in that market either as a supplier or as an acquirer of goods or services in that market.

47 Exclusive dealing

- (1) Subject to this section, a person shall not, in trade or commerce, engage in the practice of exclusive dealing.

Section 47

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- (2) A person (the **first person**) engages in the practice of exclusive dealing if the first person:
- (a) supplies, or offers to supply, goods or services;
 - (b) supplies, or offers to supply, goods or services at a particular price; or
 - (c) gives or allows, or offers to give or allow, a discount, allowance, rebate or credit in relation to the supply or proposed supply of goods or services by the first person;
- on the condition that the person (the **second person**) to whom the first person supplies, or offers or proposes to supply, the goods or services or, if the second person is a body corporate, a body corporate related to that body corporate:
- (d) will not, or will not except to a limited extent, acquire goods or services, or goods or services of a particular kind or description, directly or indirectly from a competitor of the first person or from a competitor of a body corporate related to the first person;
 - (e) will not, or will not except to a limited extent, re-supply goods or services, or goods or services of a particular kind or description, acquired directly or indirectly from a competitor of the first person or from a competitor of a body corporate related to the first person; or
 - (f) in the case where the first person supplies or would supply goods or services, will not re-supply the goods or services to any person, or will not, or will not except to a limited extent, re-supply the goods or services:
 - (i) to particular persons or classes of persons or to persons other than particular persons or classes of persons; or
 - (ii) in particular places or classes of places or in places other than particular places or classes of places.
- (3) A person (the **first person**) also engages in the practice of exclusive dealing if the first person refuses:
- (a) to supply goods or services to a second person;
 - (b) to supply goods or services to a second person at a particular price; or
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Section 47

- (c) to give or allow a discount, allowance, rebate or credit in relation to the supply or proposed supply of goods or services to a second person;

for the reason that the second person or, if the second person is a body corporate, a body corporate related to that body corporate:

- (d) has acquired, or has not agreed not to acquire, goods or services, or goods or services of a particular kind or description, directly or indirectly from a competitor of the first person or from a competitor of a body corporate related to the first person;
 - (e) has re-supplied, or has not agreed not to re-supply, goods or services, or goods or services of a particular kind or description, acquired directly or indirectly from a competitor of the first person or from a competitor of a body corporate related to the first person; or
 - (f) has re-supplied, or has not agreed not to re-supply, goods or services, or goods or services of a particular kind or description, acquired from the first person to any person, or has re-supplied, or has not agreed not to re-supply, goods or services, or goods or services of a particular kind or description, acquired from the first person:
 - (i) to particular persons or classes of persons or to persons other than particular persons or classes of persons; or
 - (ii) in particular places or classes of places or in places other than particular places or classes of places.
- (4) A person (the **first person**) also engages in the practice of exclusive dealing if the first person:
- (a) acquires, or offers to acquire, goods or services; or
 - (b) acquires, or offers to acquire, goods or services at a particular price;

on the condition that the person (the **second person**) from whom the first person acquires or offers to acquire the goods or services or, if the second person is a body corporate, a body corporate related to that body corporate will not supply goods or services, or goods or services of a particular kind or description, to any person,

or will not, or will not except to a limited extent, supply goods or services, or goods or services of a particular kind or description:

- (c) to particular persons or classes of persons or to persons other than particular persons or classes of persons; or
 - (d) in particular places or classes of places or in places other than particular places or classes of places.
- (5) A person (the **first person**) also engages in the practice of exclusive dealing if the first person refuses:
- (a) to acquire goods or services from a second person; or
 - (b) to acquire goods or services at a particular price from a second person;
- for the reason that the second person or, if the second person is a body corporate, a body corporate related to that body corporate has supplied, or has not agreed not to supply, goods or services, or goods or services of a particular kind or description:
- (c) to particular persons or classes of persons or to persons other than particular persons or classes of persons; or
 - (d) in particular places or classes of places or in places other than particular places or classes of places.
- (6) A person (the **first person**) also engages in the practice of exclusive dealing if the first person:
- (a) supplies, or offers to supply, goods or services;
 - (b) supplies, or offers to supply, goods or services at a particular price; or
 - (c) gives or allows, or offers to give or allow, a discount, allowance, rebate or credit in relation to the supply or proposed supply of goods or services by the first person;
- on the condition that the person (the **second person**) to whom the first person supplies or offers or proposes to supply the goods or services or, if the second person is a body corporate, a body corporate related to that body corporate will acquire goods or services of a particular kind or description directly or indirectly from another person not being a body corporate related to the first person.

Section 47

- (7) A person (the **first person**) also engages in the practice of exclusive dealing if the first person refuses:
- (a) to supply goods or services to a second person;
 - (b) to supply goods or services at a particular price to a second person; or
 - (c) to give or allow a discount, allowance, rebate or credit in relation to the supply of goods or services to a second person;
- for the reason that the second person or, if the second person is a body corporate, a body corporate related to that body corporate has not acquired, or has not agreed to acquire, goods or services of a particular kind or description directly or indirectly from another person not being a body corporate related to the first person.
- (8) A person (the **first person**) also engages in the practice of exclusive dealing if the first person grants or renews, or makes it known that the first person will not exercise a power or right to terminate, a lease of, or a licence in respect of, land or a building or part of a building on the condition that another party to the lease or licence or, if that other party is a body corporate, a body corporate related to that body corporate:
- (a) will not, or will not except to a limited extent:
 - (i) acquire goods or services, or goods or services of a particular kind or description, directly or indirectly from a competitor of the first person or from a competitor of a body corporate related to the first person; or
 - (ii) re-supply goods or services, or goods or services of a particular kind or description, acquired directly or indirectly from a competitor of the first person or from a competitor of a body corporate related to the first person;
 - (b) will not supply goods or services, or goods or services of a particular kind or description, to any person, or will not, or will not except to a limited extent, supply goods or services, or goods or services of a particular kind or description:
 - (i) to particular persons or classes of persons or to persons other than particular persons or classes of persons; or

Section 47

- (ii) in particular places or classes of places or in places other than particular places or classes of places; or
 - (c) will acquire goods or services of a particular kind or description directly or indirectly from another person not being a body corporate related to the first person.
- (9) A person (the **first person**) also engages in the practice of exclusive dealing if the first person refuses to grant or renew, or exercises a power or right to terminate, a lease of, or a licence in respect of, land or a building or part of a building for the reason that another party to the lease or licence or, if that other party is a body corporate, a body corporate related to that body corporate:
- (a) has acquired, or has not agreed not to acquire, goods or services, or goods or services of a particular kind or description, directly or indirectly from a competitor of the first person or from a competitor of a body corporate related to the first person;
 - (b) has re-supplied, or has not agreed not to re-supply, goods or services, or goods or services of a particular kind or description, acquired directly or indirectly from a competitor of the first person or from a competitor of a body corporate related to the first person;
 - (c) has supplied goods or services, or goods or services of a particular kind or description:
 - (i) to particular persons or classes of persons or to persons other than particular persons or classes of persons; or
 - (ii) in particular places or classes of places or in places other than particular places or classes of places; or
 - (d) has not acquired, or has not agreed to acquire, goods or services of a particular kind or description directly or indirectly from another person not being a body corporate related to the first person.
- (10) Subsection (1) does not apply to the practice of exclusive dealing by a person unless:
- (a) the engaging by the person in the conduct that constitutes the practice of exclusive dealing has the purpose, or has or is

Section 47

likely to have the effect, of substantially lessening competition; or

- (b) the engaging by the person in the conduct that constitutes the practice of exclusive dealing, and the engaging by the person, or by a body corporate related to the person, in other conduct of the same or a similar kind, together have or are likely to have the effect of substantially lessening competition.

(11) Subsections (8) and (9) do not apply with respect to:

- (a) conduct engaged in:
 - (i) by a registered charity; and
 - (ii) for or in accordance with the purposes or objects of that registered charity; or
- (b) conduct engaged in in pursuance of a legally enforceable requirement made by a registered charity, being a requirement made for or in accordance with the purposes or objects of that registered charity.

(12) Subsection (1) does not apply with respect to any conduct engaged in by a body corporate by way of restricting dealings by another body corporate if those bodies corporate are related to each other.

(13) In this section:

- (a) a reference to a condition shall be read as a reference to any condition, whether direct or indirect and whether having legal or equitable force or not, and includes a reference to a condition the existence or nature of which is ascertainable only by inference from the conduct of persons or from other relevant circumstances;
- (b) a reference to competition, in relation to conduct to which a provision of this section other than subsection (8) or (9) applies, shall be read as a reference to competition in any market in which:
 - (i) the person engaging in the conduct or any body corporate related to that person; or
 - (ii) any person whose business dealings are restricted, limited or otherwise circumscribed by the conduct or, if

Section 48

that person is a body corporate, any body corporate related to that body corporate;

supplies or acquires, or is likely to supply or acquire, goods or services or would, but for the conduct, supply or acquire, or be likely to supply or acquire, goods or services; and

- (c) a reference to competition, in relation to conduct to which subsection (8) or (9) applies, shall be read as a reference to competition in any market in which the person engaging in the conduct or any other person whose business dealings are restricted, limited or otherwise circumscribed by the conduct, or any body corporate related to either of those persons, supplies or acquires, or is likely to supply or acquire, goods or services or would, but for the conduct, supply or acquire, or be likely to supply or acquire, goods or services.

48 Resale price maintenance

- (1) A person shall not engage in the practice of resale price maintenance.
- (2) Subsection (1) does not apply to a person engaging in conduct that constitutes the practice of resale price maintenance if:
- (a) the person has given the Commission a notice under subsection 93(1) describing the conduct; and
 - (b) the notice is in force under section 93.

49 Dual listed company arrangements that affect competition

- (1) A person must not:
- (a) make a dual listed company arrangement if a provision of the proposed arrangement has the purpose, or would have or be likely to have the effect, of substantially lessening competition; or
 - (b) give effect to a provision of a dual listed company arrangement if that provision has the purpose, or has or is likely to have the effect, of substantially lessening competition.

Section 49

Note: Conduct that would otherwise contravene this section can be authorised under section 88.

Exception

- (2) The making by a person of a dual listed company arrangement that contains a provision that has the purpose, or would have or be likely to have the effect, of substantially lessening competition does not contravene this section if:
- (a) the arrangement is subject to a condition that the provision will not come into force unless and until the person is granted an authorisation to give effect to the provision; and
 - (b) the person applies for the grant of such an authorisation within 14 days after the arrangement is made.

However, this subsection does not permit the person to give effect to such a provision.

Meaning of competition

- (3) For the purposes of this section, **competition**, in relation to a provision of a dual listed company arrangement or of a proposed dual listed company arrangement, means competition in any market in which:
- (a) a person that is a party to the arrangement or would be a party to the proposed arrangement; or
 - (b) any body corporate related to such a person; supplies or acquires, or is likely to supply or acquire, goods or services or would, apart from the provision, supply or acquire, or be likely to supply or acquire, goods or services.
- (4) For the purposes of the application of this section in relation to a particular person, a provision of a dual listed company arrangement or of a proposed dual listed company arrangement is taken to have, or to be likely to have, the effect of substantially lessening competition if that provision and any one or more of the following provisions:
- (a) the other provisions of that arrangement or proposed arrangement;

- (b) the provisions of any other contract, arrangement or understanding or proposed contract, arrangement or understanding to which the person or a body corporate related to the person is or would be a party; together have or are likely to have that effect.

50 Prohibition of acquisitions that would result in a substantial lessening of competition

- (1) A person must not directly or indirectly:
 - (a) acquire shares in the capital of a body corporate; or
 - (b) acquire any assets of a person;if the acquisition would have the effect, or be likely to have the effect, of substantially lessening competition in any market.

Note: The person will not be prevented from making the acquisition if the corporation is granted an authorisation for the acquisition under section 88.

- (3) For the purposes of this section, an acquisition may have the effect or be likely to have the effect of substantially lessening competition in a market if the acquisition would, in all the circumstances, have the effect, or be likely to have the effect, of creating, strengthening or entrenching a substantial degree of power in the market.

- (3A) Subsections 46(3) to (8) have effect for the purposes of this section as if:
 - (a) a reference in those subsections (other than in paragraph 46(8)(b)) to section 46 included a reference to this section; and
 - (b) a reference in those subsections to a market were a reference to a market (within the meaning of this section).

Note: Subsections 46(3) to (8) contain matters relevant to working out whether a corporation has a substantial degree of power in a market.

- (3B) To avoid doubt, subsection (3) does not affect the meaning of ***substantially lessening competition*** outside this section.

Section 50

(4) Where:

- (a) a person has entered into a contract to acquire shares in the capital of a body corporate or assets of a person;
- (b) the contract is subject to a condition that the provisions of the contract relating to the acquisition will not come into force unless and until the person has been granted an authorisation to acquire the shares or assets; and
- (c) the person applied for the grant of such an authorisation before the expiration of 14 days after the contract was entered into;

the acquisition of the shares or assets shall not be regarded for the purposes of this Act as having taken place in pursuance of the contract before:

- (d) the application for the authorisation is disposed of; or
- (e) the contract ceases to be subject to the condition;

whichever first happens.

- (5A) For the purposes of subsection (4), an application for an authorisation is taken to be disposed of 14 days after the day the Tribunal makes a determination on the application.

Notified acquisitions

- (5B) This section does not apply to a notified acquisition.

Definitions

- (6) In this section:

market means a market for goods or services in:

- (a) Australia; or
- (b) a State; or
- (c) a Territory; or
- (d) a region of Australia.

51 Exceptions

- (1) In deciding whether a person has contravened this Part, the following must be disregarded:
- (a) anything that is disregarded for the purposes of Part IV of the *Competition and Consumer Act 2010* because of subsection 51(1) of that Act;
 - (b) anything done in a State, if the thing is specified in, and specifically authorised by:
 - (i) an Act passed by the Parliament of that State; or
 - (ii) regulations made under such an Act;
 - (c) anything done in the Australian Capital Territory, if the thing is specified in, and specifically authorised by:
 - (i) an enactment as defined in section 3 of the *Australian Capital Territory (Self-Government) Act 1988*; or
 - (ii) regulations made under such an enactment;
 - (d) anything done in the Northern Territory, if the thing is specified in, and specifically authorised by:
 - (i) an enactment as defined in section 4 of the *Northern Territory (Self-Government) Act 1978*; or
 - (ii) regulations made under such an enactment;
 - (e) anything done in another Territory, if the thing is specified in, and specifically authorised by:
 - (i) an Ordinance of that Territory; or
 - (ii) regulations made under such an Ordinance.
- (1A) Without limiting subsection (1), conduct is taken to be specified in, and authorised by, a law for the purposes of that subsection if:
- (a) a licence or other instrument issued or made under the law specifies one or both of the following:
 - (i) the person authorised to engage in the conduct;
 - (ii) the place where the conduct is to occur; and
 - (b) the law specifies the attributes of the conduct except those mentioned in paragraph (a).
- For this purpose, **law** means a State Act, enactment or Ordinance.

Section 51

- (1B) Subsections (1) and (1A) apply regardless of when the State Acts, enactments, Ordinances, regulations or instruments referred to in those subsections were passed, made or issued.
- (1C) The operation of subsection (1) (other than paragraph (1)(a)) is subject to the following limitations:
- (a) in order for something to be regarded as specifically authorised for the purposes of subsection (1), the authorising provision must expressly refer to the Competition Code;
 - (b) paragraphs (1)(b), (c), (d) and (e) do not apply in deciding whether a person has contravened Division 1A or section 50;
 - (c) regulations referred to in subparagraph (1)(b)(ii), (c)(ii), (d)(ii) or (e)(ii) do not have the effect of requiring a particular thing to be disregarded if the thing happens more than 2 years after those regulations came into operation;
 - (d) regulations referred to in subparagraph (1)(b)(ii), (c)(ii) or (d)(ii) do not have the effect of requiring a particular thing to be disregarded to the extent that the regulations are the same in substance as other regulations that:
 - (i) were made for the purposes of the subparagraph concerned; and
 - (ii) came into operation more than 2 years before the particular thing happened.
- (2) In determining whether a contravention of a provision of this Part other than section 45D, 45DA, 45E, 45EA or 48 has been committed, regard shall not be had:
- (a) to any act done, or concerted practice, to the extent that it relates to the remuneration, conditions of employment, hours of work or working conditions of employees; or
 - (aa) to:
 - (i) the making of a contract or arrangement, or the entering into of an understanding; or
 - (ii) any provision of a contract, arrangement or understanding;to the extent that the contract, arrangement, understanding or provision relates to the remuneration, conditions of

Section 51

employment, hours of work or working conditions of employees; or

- (b) to any provision of a contract of service or of a contract for the provision of services, being a provision under which a person, not being a body corporate, agrees to accept restrictions as to the work, whether as an employee or otherwise, in which he or she may engage during, or after the termination of, the contract; or

- (c) to:

(i) any provision of a contract, arrangement or understanding; or

(ii) any concerted practice;

to the extent that the provision or concerted practice obliges a person to comply with or apply standards of dimension, design, quality or performance prepared or approved by Standards Australia or a prescribed association or body; or

- (d) to:

(i) any provision of a contract, arrangement or understanding; or

(ii) any concerted practice;

between partners none of whom is a body corporate, to the extent that the provision or concerted practice relates to:

(iii) the terms of the partnership; or

(iv) the conduct of the partnership business; or

(v) competition between the partnership and a party to the contract, arrangement, understanding or concerted practice, while the party is, or after the party ceases to be, a partner; or

- (e) in the case of a contract for the sale of a business or of shares in the capital of a body corporate carrying on a business—to any provision of the contract that is solely for the protection of the purchaser in respect of the goodwill of the business and is not declared under subsection 51ABZG(1); or

- (g) to:

(i) any provision of a contract, arrangement or understanding; or

Section 51

(ii) any concerted practice;
to the extent that the provision or concerted practice relates exclusively to:
(iii) the export of goods from Australia; or
(iv) the supply of services outside Australia;
if full and accurate particulars of the provision or concerted practice were given to the Commission no more than 14 days after the day the contract or arrangement was made or the understanding or concerted practice was entered into, or before 8 September 1976, whichever was the later.

(2AA) For the purposes of paragraph (2)(g), the particulars to be given to the Commission:

- (a) need not include particulars of prices for the goods or services; but
- (b) must include particulars of any method of fixing, controlling or maintaining such prices.

(2A) In determining whether a contravention of a provision of this Part other than section 48 has been committed, regard shall not be had to any acts done, otherwise than in the course of trade or commerce, in concert by ultimate users or consumers of goods or services against the suppliers of those goods or services.

Schedule 2—The Australian Consumer Law

Note: See Part XI.

Chapter 1—Introduction

- 1 Application of this Schedule
- 2 Definitions
- 3 Meaning of *consumer*
- 4 Misleading representations with respect to future matters
- 5 When donations are treated as supplies or acquisitions
- 6 Related bodies corporate
- 7 Meaning of *manufacturer*
- 8 Goods affixed to land or premises
- 9 Meaning of *safety defect* in relation to goods
- 10 Asserting a right to payment
- 11 References to acquisition, supply and re-supply
- 12 Application of Schedule in relation to leases and licences of land and buildings
- 13 Loss or damage to include injury
- 14 Meaning of *continuing credit contract*
- 15 Contraventions of this Schedule
- 16 Severability
- 17 References to provisions in this Schedule

Chapter 2—General protections

Part 2-1—Misleading or deceptive conduct

- 18 Misleading or deceptive conduct
- 19 Application of this Part to information providers

Part 2-2—Unconscionable conduct

- 20 Unconscionable conduct within the meaning of the unwritten law
- 21 Unconscionable conduct in connection with goods or services
- 22 Matters the court may have regard to for the purposes of section 21
- 22A Presumptions relating to whether representations are misleading

Part 2-3—Unfair contract terms

- 23 Unfair terms of consumer contracts and small business contracts
- 24 Meaning of *unfair*
- 25 Examples of unfair terms
- 26 Terms that define main subject matter of consumer contracts or small business contracts etc. are unaffected
- 27 Standard form contracts
- 28 Contracts to which this Part does not apply
- 28A This Part does not apply to certain contracts connected with financial markets

Chapter 3—Specific protections

Part 3-1—Unfair practices

Division 1—False or misleading representations etc.

- 29 False or misleading representations about goods or services
- 30 False or misleading representations about sale etc. of land
- 31 Misleading conduct relating to employment
- 32 Offering rebates, gifts, prizes etc.
- 33 Misleading conduct as to the nature etc. of goods
- 34 Misleading conduct as to the nature etc. of services
- 35 Bait advertising
- 36 Wrongly accepting payment
- 37 Misleading representations about certain business activities
- 38 Application of provisions of this Division to information providers

Division 2—Unsolicited supplies

- 39 Unsolicited cards etc.
- 40 Assertion of right to payment for unsolicited goods or services
- 41 Liability etc. of recipient for unsolicited goods
- 42 Liability of recipient for unsolicited services
- 43 Assertion of right to payment for unauthorised entries or advertisements

Division 3—Pyramid schemes

- 44 Participation in pyramid schemes
- 45 Meaning of *pyramid scheme*
- 46 Marketing schemes as pyramid schemes

Division 4—Pricing

- 47 Multiple pricing
- 48 Single price to be specified in certain circumstances

Division 5—Other unfair practices

- 49 Referral selling
- 50 Harassment and coercion

Part 3-2—Consumer transactions

Division 1—Consumer guarantees

Subdivision A—Guarantees relating to the supply of goods

- 51 Guarantee as to title
- 52 Guarantee as to undisturbed possession
- 53 Guarantee as to undisclosed securities etc.
- 54 Guarantee as to acceptable quality
- 55 Guarantee as to fitness for any disclosed purpose etc.
- 56 Guarantee relating to the supply of goods by description
- 57 Guarantees relating to the supply of goods by sample or demonstration model
- 58 Guarantee as to repairs and spare parts
- 59 Guarantee as to express warranties

Subdivision B—Guarantees relating to the supply of services

- 60 Guarantee as to due care and skill
- 61 Guarantees as to fitness for a particular purpose etc.
- 62 Guarantee as to reasonable time for supply
- 63 Services to which this Subdivision does not apply

Subdivision C—Guarantees not to be excluded etc. by contract

- 64 Guarantees not to be excluded etc. by contract
- 64A Limitation of liability for failures to comply with guarantees

Subdivision D—Miscellaneous

- 65 Application of this Division to supplies of gas, electricity and telecommunications
- 66 Display notices
- 67 Conflict of laws
- 68 Convention on Contracts for the International Sale of Goods

Division 2—Unsolicited consumer agreements

Subdivision A—Introduction

- 69 Meaning of *unsolicited consumer agreement*
-

70 Presumption that agreements are unsolicited consumer agreements

71 Meaning of *dealer*

72 Meaning of *negotiation*

Subdivision B—Negotiating unsolicited consumer agreements

73 Permitted hours for negotiating an unsolicited consumer agreement

74 Disclosing purpose and identity

75 Ceasing to negotiate on request

76 Informing person of termination period etc.

77 Liability of suppliers for contraventions by dealers

Subdivision C—Requirements for unsolicited consumer agreements etc.

78 Requirement to give document to the consumer

79 Requirements for all unsolicited consumer agreements etc.

80 Additional requirements for unsolicited consumer agreements not negotiated by telephone

81 Requirements for amendments of unsolicited consumer agreements

Subdivision D—Terminating unsolicited consumer agreements

82 Terminating an unsolicited consumer agreement during the termination period

83 Effect of termination

84 Obligations of suppliers on termination

85 Obligations and rights of consumers on termination

86 Prohibition on supplies etc.

87 Repayment of payments received after termination

88 Prohibition on recovering amounts after termination

Subdivision E—Miscellaneous

89 Certain provisions of unsolicited consumer agreements void

90 Waiver of rights

91 Application of this Division to persons to whom rights of consumers and suppliers are assigned etc.

92 Application of this Division to supplies to third parties

93 Effect of contravening this Division

94 Regulations may limit the application of this Division

95 Application of this Division to certain conduct covered by the Corporations Act

Division 3—Lay-by agreements

- 96 Lay-by agreements must be in writing etc.
- 97 Termination of lay-by agreements by consumers
- 98 Termination of lay-by agreements by suppliers
- 99 Effect of termination

Division 3A—Gift cards

Subdivision A—Introduction

- 99A Meaning of *gift card*

Subdivision B—Requirements relating to gift cards

- 99B Gift cards to be redeemable for at least 3 years
- 99C When gift card ceases to be redeemable to appear prominently on gift card
- 99D Terms and conditions not to allow post-supply fees
- 99E Post-supply fees not to be demanded or received
- 99F Certain terms and conditions of gift card void

Subdivision C—Miscellaneous

- 99G Regulations may limit application of this Division

Division 4—Miscellaneous

- 100 Supplier must provide proof of transaction etc.
- 101 Consumer may request an itemised bill
- 102 Prescribed requirements for warranties against defects
- 103 Repairers must comply with prescribed requirements

Part 3-3—Safety of consumer goods and product related services

Division 1—Safety standards

- 104 Making safety standards for consumer goods and product related services
- 105 Declaring safety standards for consumer goods and product related services
- 106 Supplying etc. consumer goods that do not comply with safety standards
- 107 Supplying etc. product related services that do not comply with safety standards
- 108 Requirement to nominate a safety standard

Division 2—Bans on consumer goods and product related services

Subdivision A—Interim bans

- 109 Interim bans on consumer goods or product related services that will or may cause injury to any person etc.
- 110 Places in which interim bans apply
- 111 Ban period for interim bans
- 112 Interaction of multiple interim bans
- 113 Revocation of interim bans

Subdivision B—Permanent bans

- 114 Permanent bans on consumer goods or product related services
- 115 Places in which permanent bans apply
- 116 When permanent bans come into force
- 117 Revocation of permanent bans

Subdivision C—Compliance with interim bans and permanent bans

- 118 Supplying etc. consumer goods covered by a ban
- 119 Supplying etc. product related services covered by a ban

Subdivision D—Temporary exemption from mutual recognition principles

- 120 Temporary exemption under the *Trans-Tasman Mutual Recognition Act 1997*
- 121 Temporary exemption under the *Mutual Recognition Act 1992*

Division 3—Recall of consumer goods

Subdivision A—Compulsory recall of consumer goods

- 122 Compulsory recall of consumer goods
- 123 Contents of a recall notice
- 124 Obligations of a supplier in relation to a recall notice
- 125 Notification by persons who supply consumer goods outside Australia if there is compulsory recall
- 126 Interaction of multiple recall notices
- 127 Compliance with recall notices

Subdivision B—Voluntary recall of consumer goods

- 128 Notification requirements for a voluntary recall of consumer goods

Division 4—Safety warning notices

- 129 Safety warning notices about consumer goods and product related services
- 130 Announcement of the results of an investigation etc.

Division 5—Consumer goods, or product related services, associated with death or serious injury or illness

- 131 Suppliers to report consumer goods associated with the death or serious injury or illness of any person
- 132 Suppliers to report product related services associated with the death or serious injury or illness of any person
- 132A Confidentiality of notices given under this Division

Division 6—Miscellaneous

- 133 Liability under a contract of insurance

Part 3-4—Information standards

- 134 Making information standards for goods and services
- 135 Declaring information standards for goods and services
- 136 Supplying etc. goods that do not comply with information standards
- 137 Supplying etc. services that do not comply with information standards
- 137A Safe harbour for complying with information standards about free range eggs

Part 3-5—Liability of manufacturers for goods with safety defects

Division 1—Actions against manufacturers for goods with safety defects

- 138 Liability for loss or damage suffered by an injured individual
- 139 Liability for loss or damage suffered by a person other than an injured individual
- 140 Liability for loss or damage suffered by a person if other goods are destroyed or damaged
- 141 Liability for loss or damage suffered by a person if land, buildings or fixtures are destroyed or damaged
- 142 Defences to defective goods actions

Division 2—Defective goods actions

- 143 Time for commencing defective goods actions
 - 144 Liability joint and several
 - 145 Survival of actions
-

-
- | | |
|-----|---|
| 146 | No defective goods action where workers' compensation law etc. applies |
| 147 | Unidentified manufacturer |
| 148 | Commonwealth liability for goods that are defective only because of compliance with Commonwealth mandatory standard |
| 149 | Representative actions by the regulator |

Division 3—Miscellaneous

- | | |
|-----|---|
| 150 | Application of all or any provisions of this Part etc. not to be excluded or modified |
|-----|---|

Chapter 4—Offences

Part 4-1—Offences relating to unfair practices

Division 1—False or misleading representations etc.

- | | |
|-----|---|
| 151 | False or misleading representations about goods or services |
| 152 | False or misleading representations about sale etc. of land |
| 153 | Misleading conduct relating to employment |
| 154 | Offering rebates, gifts, prizes etc. |
| 155 | Misleading conduct as to the nature etc. of goods |
| 156 | Misleading conduct as to the nature etc. of services |
| 157 | Bait advertising |
| 158 | Wrongly accepting payment |
| 159 | Misleading representations about certain business activities |
| 160 | Application of provisions of this Division to information providers |

Division 2—Unsolicited supplies

- | | |
|-----|--|
| 161 | Unsolicited cards etc. |
| 162 | Assertion of right to payment for unsolicited goods or services |
| 163 | Assertion of right to payment for unauthorised entries or advertisements |

Division 3—Pyramid schemes

- | | |
|-----|----------------------------------|
| 164 | Participation in pyramid schemes |
|-----|----------------------------------|

Division 4—Pricing

- | | |
|-----|---|
| 165 | Multiple pricing |
| 166 | Single price to be specified in certain circumstances |

Division 5—Other unfair practices

- | | |
|-----|------------------|
| 167 | Referral selling |
|-----|------------------|
-

168 Harassment and coercion

Part 4-2—Offences relating to consumer transactions

Division 1—Consumer guarantees

169 Display notices

Division 2—Unsolicited consumer agreements

Subdivision A—Negotiating unsolicited consumer agreements

- 170 Permitted hours for negotiating an unsolicited consumer agreement
- 171 Disclosing purpose and identity
- 172 Ceasing to negotiate on request
- 173 Informing person of termination period etc.

Subdivision B—Requirements for unsolicited consumer agreements etc.

- 174 Requirement to give document to the consumer
- 175 Requirements for all unsolicited consumer agreements etc.
- 176 Additional requirements for unsolicited consumer agreements not negotiated by telephone
- 177 Requirements for amendments of unsolicited consumer agreements

Subdivision C—Terminating unsolicited consumer agreements

- 178 Obligations of suppliers on termination
- 179 Prohibition on supplies etc.
- 180 Repayment of payments received after termination
- 181 Prohibition on recovering amounts after termination

Subdivision D—Miscellaneous

- 182 Certain provisions of unsolicited consumer agreements void
- 183 Waiver of rights
- 184 Application of this Division to persons to whom rights of consumers and suppliers are assigned etc.
- 185 Application of this Division to supplies to third parties
- 186 Regulations may limit the application of this Division
- 187 Application of this Division to certain conduct covered by the Corporations Act

Division 3—Lay-by agreements

- 188 Lay-by agreements must be in writing etc.
- 189 Termination charges
- 190 Termination of lay-by agreements by suppliers

- 191 Refund of amounts

Division 3A—Gift cards

- 191A Gift cards to be redeemable for at least 3 years
191B When gift card ceases to be redeemable to appear prominently on gift card
191C Terms and conditions not to allow post-supply fees
191D Post-supply fees not to be demanded or received
191E Regulations may limit the application of this Division

Division 4—Miscellaneous

- 192 Prescribed requirements for warranties against defects
193 Repairers must comply with prescribed requirements

Part 4-3—Offences relating to safety of consumer goods and product related services

Division 1—Safety standards

- 194 Supplying etc. consumer goods that do not comply with safety standards
195 Supplying etc. product related services that do not comply with safety standards
196 Requirement to nominate a safety standard

Division 2—Bans on consumer goods and product related services

- 197 Supplying etc. consumer goods covered by a ban
198 Supplying etc. product related services covered by a ban

Division 3—Recall of consumer goods

- 199 Compliance with recall orders
200 Notification by persons who supply consumer goods outside Australia if there is compulsory recall
201 Notification requirements for a voluntary recall of consumer goods

Division 4—Consumer goods, or product related services, associated with death or serious injury or illness

- 202 Suppliers to report consumer goods etc. associated with the death or serious injury or illness of any person

Part 4-4—Offences relating to information standards

- 203 Supplying etc. goods that do not comply with information standards
-

-
- 204 Supplying etc. services that do not comply with information standards

Part 4-5—Offences relating to substantiation notices

- 205 Compliance with substantiation notices
- 206 False or misleading information etc.

Part 4-6—Defences

- 207 Reasonable mistake of fact
- 208 Act or default of another person etc.
- 209 Publication of advertisements in the ordinary course of business
- 210 Supplying goods acquired for the purpose of re-supply
- 211 Supplying services acquired for the purpose of re-supply

Part 4-7—Miscellaneous

- 212 Prosecutions to be commenced within 3 years
- 213 Preference must be given to compensation for victims
- 214 Penalties for contraventions of the same nature etc.
- 215 Penalties for previous contraventions of the same nature etc.
- 216 Granting of injunctions etc.
- 217 Criminal proceedings not to be brought for contraventions of Chapter 2 or 3

Chapter 5—Enforcement and remedies**Part 5-1—Enforcement****Division 1—Undertakings**

- 218 Regulator may accept undertakings

Division 2—Substantiation notices

- 219 Regulator may require claims to be substantiated etc.
- 220 Extending periods for complying with substantiation notices
- 221 Compliance with substantiation notices
- 222 False or misleading information etc.

Division 3—Public warning notices

- 223 Regulator may issue a public warning notice

Part 5-2—Remedies**Division 1—Pecuniary penalties**

- 224 Pecuniary penalties
-

- 225 Pecuniary penalties and offences
- 226 Defence
- 227 Preference must be given to compensation for victims
- 228 Civil action for recovery of pecuniary penalties
- 229 Indemnification of officers
- 230 Certain indemnities not authorised and certain documents void

Division 2—Injunctions

- 232 Injunctions
- 233 Consent injunctions
- 234 Interim injunctions
- 235 Variation and discharge of injunctions

Division 3—Damages

- 236 Actions for damages

Division 4—Compensation orders etc. for injured persons and orders for non-parties

- 237 Compensation orders etc. on application by an injured person or the regulator
- 238 Compensation orders etc. arising out of other proceedings
- 239 Orders to redress etc. loss or damage suffered by non-parties
- 240 Determining whether to make a redress order etc. for non-parties
- 241 When a non-party is bound by a redress order etc.
- 243 Kinds of orders that may be made
- 243A Orders made in favour of party to contract containing unfair term
- 243B Orders made on application of the regulator to prevent and remedy unfair contract terms
- 245 Interaction with other provisions

Division 5—Other remedies

- 246 Non-punitive orders
- 247 Adverse publicity orders
- 248 Order disqualifying a person from managing corporations
- 249 Privilege against exposure to penalty or forfeiture—disqualification from managing corporations
- 250 Declarations relating to consumer contracts and small business contracts

Division 6—Defences

- 251 Publication of advertisement in the ordinary course of business
- 252 Supplying consumer goods for the purpose of re-supply
- 253 Supplying product related services for the purpose of re-supply

Part 5-3—Country of origin representations

- 254 Overview
- 255 Country of origin representations do not contravene certain provisions
- 258 Proceedings relating to false, misleading or deceptive conduct or representations

Part 5-4—Remedies relating to guarantees

Division 1—Action against suppliers

Subdivision A—Action against suppliers of goods

- 259 Action against suppliers of goods
- 260 When a failure to comply with a guarantee is a major failure
- 261 How suppliers may remedy a failure to comply with a guarantee
- 262 When consumers are not entitled to reject goods
- 263 Consequences of rejecting goods
- 264 Replaced goods
- 265 Termination of contracts for the supply of services that are connected with rejected goods
- 266 Rights of gift recipients

Subdivision B—Action against suppliers of services

- 267 Action against suppliers of services
- 268 When a failure to comply with a guarantee is a major failure
- 269 Termination of contracts for the supply of services
- 270 Termination of contracts for the supply of goods that are connected with terminated services

Division 2—Action for damages against manufacturers of goods

- 271 Action for damages against manufacturers of goods
- 272 Damages that may be recovered by action against manufacturers of goods
- 273 Time limit for actions against manufacturers of goods

Division 3—Miscellaneous

- 274 Indemnification of suppliers by manufacturers
- 275 Limitation of liability etc.
- 276 This Part not to be excluded etc. by contract
- 276A Limitation in certain circumstances of liability of manufacturer to seller
- 277 Representative actions by the regulator

Part 5-5—Liability of suppliers and credit providers

Division 1—Linked credit contracts

- 278 Liability of suppliers and linked credit providers relating to linked credit contracts
- 279 Action by consumer to recover amount of loss or damage
- 280 Cases where a linked credit provider is not liable
- 281 Amount of liability of linked credit providers
- 282 Counter-claims and offsets
- 283 Enforcement of judgments etc.
- 284 Award of interest to consumers
- 285 Liability of suppliers to linked credit providers, and of linked credit providers to suppliers
- 286 Joint liability proceedings and recovery under section 135 of the National Credit Code

Division 2—Non-linked credit contracts

- 287 Liability of suppliers and credit providers relating to non-linked credit contracts

Chapter 6—Application and transitional provisions

Part 1—Application and transitional provisions relating to the Consumer Credit Legislation Amendment (Enhancements) Act 2012

- 288 Application of amendments relating to lay-by agreements
- 289 Application of amendment relating to repairs
- 290 Saving of regulations relating to repairs

Part 1A—Application provision relating to the Treasury Legislation Amendment (Small Business and Unfair Contract Terms) Act 2015

- 290A Application

Part 2—Application and transitional provisions relating to the Competition and Consumer Amendment (Competition Policy Review) Act 2017

- 291 Application of amendments relating to confidentiality of notices
- 292 Application of amendments relating to prohibition on supplies

Part 3—Application provision relating to the Treasury Laws Amendment (2018 Measures No. 3) Act 2018

- 295 Application of amendments

Part 4—Application provisions relating to the Treasury Laws Amendment (Australian Consumer Law Review) Act 2018

- 296 Application—listed public companies
- 297 Application—unsolicited supplies
- 298 Application—unsolicited consumer agreements
- 299 Application—single price
- 300 Application—non-punitive orders
- 301 Application—guarantees relating to the supply of services

Part 5—Application and transitional provisions relating to the Treasury Laws Amendment (Gift Cards) Act 2018

- 302 Application of amendments relating to gift cards

Part 6—Application and transitional provisions relating to the Treasury Laws Amendment (2020 Measures No. 6) Act 2020

- 303 Application of amendments relating to multiple non-major consumer guarantee failures

Part 7—Application provision relating to the Treasury Laws Amendment (More Competition, Better Prices) Act 2022

- 304 Application of amendments relating to penalties
- 305 Application of amendments relating to unfair contract terms

**Part 8—Application and saving provisions relating to the
Treasury Laws Amendment (Fairer for Families and
Farmers and Other Measures) Act 2024**

- 306 Definitions
- 307 Saving—safety standards declared by the Minister
- 308 Application—nomination and compliance with safety standards
- 309 Application—requests for information or documents

**Part 9—Application provision relating to the Treasury Laws
Amendment (Doubling Penalties for ACCC
Enforcement) Act 2026**

- 310 Application of amendments relating to penalties

Chapter 1—Introduction

1 Application of this Schedule

This Schedule applies to the extent provided by:

- (a) Part XI of the Competition and Consumer Act; or
- (b) an application law.

2 Definitions

- (1) In this Schedule:

ABN has the meaning given by section 41 of the *A New Tax System (Australian Business Number) Act 1999*.

acceptable quality: see sections 54(2) to (7).

ACN has the meaning given by section 9 of the *Corporations Act 2001*.

acquire includes:

- (a) in relation to goods—acquire by way of purchase, exchange or taking on lease, on hire or on hire-purchase; and
- (b) in relation to services—accept.

Note: Section 5 deals with when receipt of a donation is an acquisition.

adjusted turnover, of a body corporate during a period, means the sum of the values of all the supplies that the body corporate, and any body corporate related to the body corporate, have made, or are likely to make, during the period, other than:

- (a) supplies made from any of those bodies corporate to any other of those bodies corporate; or
- (b) supplies that are input taxed; or

Section 2

- (c) supplies that are not for consideration (and are not taxable supplies under section 72-5 of the *A New Tax System (Goods and Services Tax) Act 1999*); or
- (d) supplies that are not made in connection with an enterprise that the body corporate carries on; or
- (e) supplies that are not connected with the indirect tax zone.

Expressions used in this definition that are also used in the *A New Tax System (Goods and Services Tax) Act 1999* have the same meaning as in that Act.

adverse publicity order: see section 247(2).

affected person, in relation to goods, means:

- (a) a consumer who acquires the goods; or
- (b) a person who acquires the goods from the consumer (other than for the purpose of re-supply); or
- (c) a person who derives title to the goods through or under the consumer.

agreement document: see section 78(2).

applicable industry code has the meaning given by section 51ACA(1) of the Competition and Consumer Act.

application law has the same meaning as in section 140 of the Competition and Consumer Act.

article includes a token, card or document.

ASIC means the Australian Securities and Investments Commission.

assert a right to payment: see section 10(1).

associate regulator:

- (a) for the purposes of the application of this Schedule as a law of the Commonwealth—means a body that is, for the purposes of the application of this Schedule as a law of a State or a Territory, the regulator within the meaning of the application law of the State or Territory; or

Section 2

- (b) for the purposes of the application of this Schedule as a law of a State or a Territory—means:
 - (i) the Commission; or
 - (ii) a body that is, for the purposes of the application of this Schedule as a law of another State or a Territory, the regulator within the meaning of the application law of that other State or Territory.

authority, in relation to a State or a Territory (including an external Territory), means:

- (a) a body corporate established for a purpose of the State or the Territory by or under a law of the State or Territory; or
- (b) an incorporated company in which the State or the Territory, or a body corporate referred to in paragraph (a), has a controlling interest.

authority of the Commonwealth means:

- (a) a body corporate established for a purpose of the Commonwealth by or under a law of the Commonwealth or a law of a Territory; or
- (b) an incorporated company in which the Commonwealth, or a body corporate referred to in paragraph (a), has a controlling interest.

banker has the same meaning as in section 4(1) of the Competition and Consumer Act.

ban period for an interim ban: see section 111(1).

breach turnover period, of a body corporate, for an offence or an act or omission, means the longer of the following periods:

- (a) the period of 12 months ending at the end of the month in which:
 - (i) for an offence—the body corporate ceased committing the offence, or was charged with the offence (whichever is earlier); or

Section 2

- (ii) for an act or omission—the act or omission ceased, or proceedings in relation to the act or omission were instituted (whichever is earlier);
- (b) the period ending at the same time as the period determined under paragraph (a) and starting:
 - (i) for an offence—at the beginning of the month in which the body corporate committed, or began committing, the offence (as the case requires); or
 - (ii) for an act or omission—at the beginning of the month in which the act or omission occurred or began occurring (as the case requires).

business includes a business not carried on for profit.

business day, in relation to an unsolicited consumer agreement, means a day that is not:

- (a) a Saturday or Sunday; or
- (b) a public holiday in the place where the agreement was made.

business or professional relationship includes a relationship between employer and employee, or a similar relationship.

call on, in relation to negotiating an unsolicited consumer agreement, does not include call by telephone.

Commission has the same meaning as in section 4(1) of the Competition and Consumer Act.

Commonwealth mandatory standard, in relation to goods, means a mandatory standard in respect of the goods imposed by a law of the Commonwealth.

Commonwealth Minister means the Minister who administers Part XI of the Competition and Consumer Act.

Competition and Consumer Act means the *Competition and Consumer Act 2010*.

consumer: see section 3.

Section 2

consumer contract: see section 23(3).

consumer goods means goods that are intended to be used, or are of a kind likely to be used, for personal, domestic or household use or consumption, and includes any such goods that have become fixtures since the time they were supplied if:

- (a) a recall notice for the goods has been issued; or
- (b) a person has voluntarily taken action to recall the goods.

continuing credit contract: see section 14(1).

contravening conduct: see section 239(1)(a)(i).

court, in relation to a matter, means any court having jurisdiction in the matter.

covering includes a stopper, glass, bottle, vessel, box, capsule, case, frame or wrapper.

credit card: see section 39(5).

credit provider means a person providing, or proposing to provide, in the course of a business carried on by the person, credit to consumers in relation to the acquisition of goods or services.

dealer: see section 71.

debit card: see section 39(6).

declared term: see sections 239(1)(a)(ii), 243A(1) and 243B(1).

defective goods action means an action under section 138, 139, 140 or 141, and includes such an action because of section 138(3) or 145.

disclosed purpose: see section 55(2).

displayed price: see sections 47(2) to (5).

document means any record of information, and includes:

- (a) anything on which there is writing; and

Section 2

- (b) anything on which there are marks, figures, symbols or perforations having a meaning for persons qualified to interpret them; and
- (c) anything from which sounds, images or writings can be reproduced with or without the aid of anything else; and
- (d) a map, plan, drawing or photograph.

egg has the meaning given by subsection 137A(3).

enforcement proceeding means:

- (a) a proceeding for an offence against Chapter 4; or
- (b) a proceeding instituted under Chapter 5 (other than under sections 237, 239, 243A and 243B).

evidential burden, in relation to a matter, means the burden of adducing or pointing to evidence that suggests a reasonable possibility that the matter exists or does not exist.

express warranty, in relation to goods, means an undertaking, assertion or representation:

- (a) that relates to:
 - (i) the quality, state, condition, performance or characteristics of the goods; or
 - (ii) the provision of services that are or may at any time be required for the goods; or
 - (iii) the supply of parts that are or may at any time be required for the goods; or
 - (iv) the future availability of identical goods, or of goods constituting or forming part of a set of which the goods, in relation to which the undertaking, assertion or representation is given or made, form part; and
- (b) that is given or made in connection with the supply of the goods, or in connection with the promotion by any means of the supply or use of the goods; and
- (c) the natural tendency of which is to induce persons to acquire the goods.

Section 2

financial product has the meaning given by section 12BAA of the *Australian Securities and Investments Commission Act 2001*.

financial service has the meaning given by section 12BAB of the *Australian Securities and Investments Commission Act 2001*.

free item includes a free service.

free range egg has the meaning given by subsection 137A(4).

gift card: see section 99A.

goods includes:

- (a) ships, aircraft and other vehicles; and
- (b) animals, including fish; and
- (c) minerals, trees and crops, whether on, under or attached to land or not; and
- (d) gas and electricity; and
- (e) computer software; and
- (f) second-hand goods; and
- (g) any component part of, or accessory to, goods.

grown: see section 255(7).

GST has the meaning given by section 195-1 of the *A New Tax System (Goods and Services Tax) Act 1999*.

industry code has the meaning given by section 51ACA of the Competition and Consumer Act.

information provider: see sections 19(5) and (6).

information standard: see section 134(1).

inner container includes any container into which goods are packed, other than a shipping or airline container, pallet or other similar article.

interest, in relation to land, means:

- (a) a legal or equitable estate or interest in the land; or

Section 2

- (b) a right of occupancy of the land, or of a building or part of a building erected on the land, arising by virtue of the holding of shares, or by virtue of a contract to purchase shares, in an incorporated company that owns the land or building; or
- (c) a right, power or privilege over, or in connection with, the land.

interim ban: see sections 109(1) and (2).

involved: a person is involved, in a contravention of a provision of this Schedule or in conduct that constitutes such a contravention, if the person:

- (a) has aided, abetted, counselled or procured the contravention; or
- (b) has induced, whether by threats or promises or otherwise, the contravention; or
- (c) has been in any way, directly or indirectly, knowingly concerned in, or party to, the contravention; or
- (d) has conspired with others to effect the contravention.

joint liability proceedings means proceedings relating to the joint and several liability under section 278 of a linked credit provider and a supplier of goods or services.

label includes a band or ticket.

lay-by agreement: see section 96(3).

linked credit contract: see section 278(2).

linked credit provider, in relation to a supplier of goods or services, means a credit provider:

- (a) with whom the supplier has a contract, arrangement or understanding relating to:
 - (i) the supply to the supplier of goods in which the supplier deals; or
 - (ii) the business carried on by the supplier of supplying goods or services; or

Section 2

- (iii) the provision to persons to whom goods or services are supplied by the supplier of credit in respect of payment for those goods or services; or
- (b) to whom the supplier, by arrangement with the credit provider, regularly refers persons for the purpose of obtaining credit; or
- (c) whose forms of contract, forms of application or offers for credit are, by arrangement with the credit provider, made available to persons by the supplier; or
- (d) with whom the supplier has a contract, arrangement or understanding under which contracts, applications or offers for credit from the credit provider may be signed by persons at premises of the supplier.

loan contract means a contract under which a person in the course of a business carried on by that person provides or agrees to provide, whether on one or more occasions, credit to a consumer in one or more of the following ways:

- (a) by paying an amount to, or in accordance with the instructions of, the consumer;
- (b) by applying an amount in satisfaction or reduction of an amount owed to the person by the consumer;
- (c) by varying the terms of a contract under which money owed to the person by the consumer is payable;
- (d) by deferring an obligation of the consumer to pay an amount to the person;
- (e) by taking from the consumer a bill of exchange or other negotiable instrument on which the consumer (whether alone or with another person or other persons) is liable as drawer, acceptor or endorser.

major failure: see sections 260 and 268.

mandatory standard, in relation to goods, means a standard:

- (a) for the goods or anything relating to the goods; and
- (b) that, under a law of the Commonwealth, a State or a Territory, must be complied with when the goods are

Section 2

supplied by their manufacturer, being a law creating an offence or liability if there is such non-compliance; but does not include a standard which may be complied with by meeting a higher standard.

manufacturer: see section 7.

market has the same meaning as in section 4E of the Competition and Consumer Act.

materials, in relation to goods, means:

- (a) if the goods are unmanufactured raw products—those products; and
- (b) if the goods are manufactured goods—all matter or substances used or consumed in the manufacture of the goods (other than matter or substances that are treated as overheads); and
- (c) in either case—the inner containers in which the goods are packed.

mixed supply: see section 3(11).

National Credit Code has the meaning given by section 5(1) of the *National Consumer Credit Protection Act 2009*.

negotiated by telephone: see section 78(3).

negotiation: see section 72.

new participant: see section 45(2).

non-linked credit contract: see section 287(5).

non-party means:

- (a) in relation to conduct—a person who is not, or has not been, a party to an enforcement proceeding in relation to the conduct; or
- (b) in relation to a term of a contract—a person who is not, or has not been, a party to an enforcement proceeding in relation to the term.

Section 2

participant, in a pyramid scheme, means a person who participates in the scheme.

participate, in a pyramid scheme: see section 44(3).

participation payment: see section 45(1)(a).

permanent ban: see sections 114(1) and (2).

post-supply fee: see section 99D(2).

premises means:

- (a) an area of land or any other place (whether or not it is enclosed or built on); or
- (b) a building or other structure; or
- (c) a vehicle, vessel or aircraft; or
- (d) a part of any such premises.

price, of goods or services, means:

- (a) the amount paid or payable (including any charge of any description) for their acquisition; or
- (b) if such an amount is not specified because the acquisition is part only of a transaction for which a total amount is paid or payable:
 - (i) the lowest amount (including any charge of any description) for which the goods or services could reasonably have been acquired from the supplier at the time of the transaction or, if not from the supplier, from another supplier; or
 - (ii) if they could not reasonably have been acquired separately from another supplier—their value at the time of the transaction.

prior negotiations or arrangements, in relation to the acquisition of goods by a consumer, means negotiations or arrangements:

- (a) that were conducted or made with the consumer by another person in the course of a business carried on by the other person; and

Section 2

- (b) that induced the consumer to acquire the goods, or otherwise promoted the acquisition of the goods by the consumer.

product related service means a service for or relating to:

- (a) the installation of consumer goods of a particular kind; or
- (b) the maintenance, repair or cleaning of consumer goods of a particular kind; or
- (c) the assembly of consumer goods of a particular kind; or
- (d) the delivery of consumer goods of a particular kind;

and, without limiting paragraphs (a) to (d), includes any other service that relates to the supply of consumer goods of that kind.

proof of transaction: see section 100(4).

publish, in relation to an advertisement, means include in a publication intended for sale or public distribution (whether to the public generally or to a restricted class or number of persons) or for public display (including in an electronic form).

pyramid scheme: see section 45(1).

recall notice: see section 122(1).

recovery period: see section 41(4).

recruitment payment: see section 45(1)(b).

regulations means regulations made under section 139G of the Competition and Consumer Act.

regulator:

- (a) for the purposes of the application of this Schedule as a law of the Commonwealth—means the Commission; or
- (b) for the purposes of the application of this Schedule as a law of a State or a Territory—has the meaning given by the application law of the State or Territory.

rejection period: see section 262(2).

related, in relation to a body corporate: see section 6.

Section 2

related contract or instrument: see section 83(2).

rely on, in relation to a term of a consumer contract or small business contract, includes the following:

- (a) attempt to enforce the term;
- (b) attempt to exercise a right conferred, or purportedly conferred, by the term;
- (c) assert the existence of a right conferred, or purportedly conferred, by the term.

responsible Minister means:

- (a) the Commonwealth Minister; or
- (b) the Minister of a State who administers the application law of the State; or
- (c) the Minister of a Territory who administers the application law of the Territory.

safety defect, in relation to goods: see section 9.

safety standard: see section 104(1).

sale by auction, in relation to the supply of goods by a person, means a sale by auction that is conducted by an agent of the person (whether the agent acts in person or by electronic means).

send includes deliver, and ***sent*** and ***sender*** have corresponding meanings.

serious injury or illness means an acute physical injury or illness that requires medical or surgical treatment by, or under the supervision of, a medical practitioner or a nurse (whether or not in a hospital, clinic or similar place), but does not include:

- (a) an ailment, disorder, defect or morbid condition (whether of sudden onset or gradual development); or
- (b) the recurrence, or aggravation, of such an ailment, disorder, defect or morbid condition.

services includes:

Section 2

- (a) any rights (including rights in relation to, and interests in, real or personal property), benefits, privileges or facilities that are, or are to be, provided, granted or conferred in trade or commerce; and
- (b) without limiting paragraph (a), the rights, benefits, privileges or facilities that are, or are to be, provided, granted or conferred under:
 - (i) a contract for or in relation to the performance of work (including work of a professional nature), whether with or without the supply of goods; or
 - (ii) a contract for or in relation to the provision of, or the use or enjoyment of facilities for, amusement, entertainment, recreation or instruction; or
 - (iii) a contract for or in relation to the conferring of rights, benefits or privileges for which remuneration is payable in the form of a royalty, tribute, levy or similar exaction; or
 - (iv) a contract of insurance; or
 - (v) a contract between a banker and a customer of the banker entered into in the course of the carrying on by the banker of the business of banking; or
 - (vi) any contract for or in relation to the lending of money;but does not include rights or benefits being the supply of goods or the performance of work under a contract of service.

share includes stock.

ship has the meaning given by section 3(1) of the *Admiralty Act 1988*.

single price: see section 48(7).

small business contract: see subsection 23(4).

standard form contract has a meaning affected by section 27.

substantially transformed, in relation to goods: see section 255(2).

substantiation notice means a notice under section 219.

Section 2

substantiation notice compliance period: see section 221(2).

supply, when used as a verb, includes:

- (a) in relation to goods—supply (including re-supply) by way of sale, exchange, lease, hire or hire-purchase; and
 - (b) in relation to services—provide, grant or confer;
- and, when used as a noun, has a corresponding meaning, and **supplied** and **supplier** have corresponding meanings.

Note: Section 5 deals with when a donation is a supply.

supply of limited title: see section 51(2).

telecommunications service: see section 65(2).

termination charge: see section 97(2).

termination period, in relation to an unsolicited consumer agreement, means the period within which the consumer under the agreement is, under section 82 or under the agreement, entitled to terminate the agreement.

tied continuing credit contract means a continuing credit contract under which a credit provider provides credit in respect of the payment by a consumer for goods or services supplied by a supplier in relation to whom the credit provider is a linked credit provider.

tied loan contract means a loan contract entered into between a credit provider and a consumer where:

- (a) the credit provider knows, or ought reasonably to know, that the consumer enters into the loan contract wholly or partly for the purposes of payment for goods or services supplied by a supplier; and
- (b) at the time the loan contract is entered into the credit provider is a linked credit provider of the supplier.

trade or commerce means:

- (a) trade or commerce within Australia; or

Section 2

(b) trade or commerce between Australia and places outside Australia;
and includes any business or professional activity (whether or not carried on for profit).

transparent:

- (a) in relation to a document—means:
 - (i) expressed in reasonably plain language; and
 - (ii) legible; and
 - (iii) presented clearly; and
- (b) in relation to a term of a consumer contract or small business contract—see section 24(3).

unfair, in relation to a term of a consumer contract or small business contract: see section 24(1).

unsolicited consumer agreement: see section 69.

unsolicited goods means goods sent to a person without any request made by the person or on his or her behalf.

unsolicited services means:

- (a) services supplied to a person; or
 - (b) services purported to have been supplied to a person which have not been supplied;
- without any request made by the person or on his or her behalf.

upfront price: see section 26(2).

warranty against defects: see section 102(3).

(2) In this Schedule:

- (a) a reference to engaging in conduct is a reference to doing or refusing to do any act, including:
 - (i) the making of, or the giving effect to a provision of, a contract or arrangement; or
 - (ii) the arriving at, or the giving effect to a provision of, an understanding; or

Section 3

- (iii) the requiring of the giving of, or the giving of, a covenant; and
- (b) a reference to conduct, when that expression is used as a noun otherwise than as mentioned in paragraph (a), is a reference to the doing of or the refusing to do any act, including:
 - (i) the making of, or the giving effect to a provision of, a contract or arrangement; or
 - (ii) the arriving at, or the giving effect to a provision of, an understanding; or
 - (iii) the requiring of the giving of, or the giving of, a covenant; and
- (c) a reference to refusing to do an act includes a reference to:
 - (i) refraining (otherwise than inadvertently) from doing that act; or
 - (ii) making it known that that act will not be done; and
- (d) a reference to a person offering to do an act, or to do an act on a particular condition, includes a reference to the person making it known that the person will accept applications, offers or proposals for the person to do that act or to do that act on that condition, as the case may be.

3 Meaning of *consumer*

Acquiring goods as a consumer

- (1) A person is taken to have acquired particular goods as a **consumer** if, and only if:
 - (a) the amount paid or payable for the goods, as worked out under subsections (4) to (9), did not exceed:
 - (i) \$40,000; or
 - (ii) if a greater amount is prescribed for the purposes of this paragraph—that greater amount; or
 - (b) the goods were of a kind ordinarily acquired for personal, domestic or household use or consumption; or

Section 3

- (c) the goods consisted of a vehicle or trailer acquired for use principally in the transport of goods on public roads.
- (2) However, subsection (1) does not apply if the person acquired the goods, or held himself or herself out as acquiring the goods:
 - (a) for the following purpose:
 - (i) for goods other than gift cards—for the purpose of re-supply;
 - (ii) for gift cards—for the purpose of re-supply in trade or commerce; or
 - (b) for the purpose of using them up or transforming them, in trade or commerce:
 - (i) in the course of a process of production or manufacture; or
 - (ii) in the course of repairing or treating other goods or fixtures on land.

Acquiring services as a consumer

- (3) A person is taken to have acquired particular services as a **consumer** if, and only if:
 - (a) the amount paid or payable for the services, as worked out under subsections (4) to (9), did not exceed:
 - (i) \$40,000; or
 - (ii) if a greater amount is prescribed for the purposes of subsection (1)(a)—that greater amount; or
 - (b) the services were of a kind ordinarily acquired for personal, domestic or household use or consumption.

Amounts paid or payable for purchases

- (4) For the purposes of subsection (1) or (3), the amount paid or payable for goods or services purchased by a person is taken to be the price paid or payable by the person for the goods or services, unless subsection (5) applies.
- (5) For the purposes of subsection (1) or (3), if a person purchased goods or services by a mixed supply and a specified price was not

Section 3

allocated to the goods or services in the contract under which they were purchased, the amount paid or payable for goods or services is taken to be:

- (a) if, at the time of the acquisition, the person could have purchased from the supplier the goods or services other than by a mixed supply—the price at which they could have been purchased from the supplier; or
- (b) if:
 - (i) paragraph (a) does not apply; but
 - (ii) at the time of the acquisition, goods or services of the kind acquired could have been purchased from another supplier other than by a mixed supply;
the lowest price at which the person could, at that time, reasonably have purchased goods or services of that kind from another supplier; or
- (c) if, at the time of the acquisition, goods or services of the kind acquired could not have been purchased from any supplier except by a mixed supply—the value of the goods or services at that time.

Amounts paid or payable for other acquisitions

- (6) For the purposes of subsection (1) or (3), the amount paid or payable for goods or services acquired by a person other than by way of purchase is taken to be the price at which, at the time of the acquisition, the person could have purchased the goods or services from the supplier, unless subsection (7) or (8) applies.
- (7) For the purposes of subsection (1) or (3), if:
 - (a) goods or services acquired by a person other than by way of purchase could not, at the time of the acquisition, have been purchased from the supplier, or could have been purchased only by a mixed supply; but
 - (b) at that time, goods or services of the kind acquired could have been purchased from another supplier other than by a mixed supply;

Section 3

the amount paid or payable for the goods or services is taken to be the lowest price at which the person could, at that time, reasonably have purchased goods or services of that kind from another supplier.

- (8) For the purposes of subsection (1) or (3), if goods or services acquired by a person other than by way of purchase could not, at the time of the acquisition, have been purchased from any supplier other than by a mixed supply, the amount paid or payable for the goods or services is taken to be the value of the goods or services at that time.

Amounts paid or payable for obtaining credit

- (9) If:
- (a) a person obtains credit in connection with the acquisition of goods or services by him or her; and
 - (b) the amount paid or payable by him or her for the goods or services is increased because he or she so obtains credit;
- obtaining the credit is taken for the purposes of subsection (3) to be the acquisition of a service, and the amount paid or payable by him or her for the service of being provided with the credit is taken to include the amount of the increase.

Presumption that persons are consumers

- (10) If it is alleged in any proceeding under this Schedule, or in any other proceeding in respect of a matter arising under this Schedule, that a person was a consumer in relation to particular goods or services, it is presumed, unless the contrary is established, that the person was a consumer in relation to those goods or services.

Mixed supplies

- (11) A purchase or other acquisition of goods or services is made by a ***mixed supply*** if the goods or services are purchased or acquired together with other property or services, or together with both other property and other services.

Section 4

Supplies to consumers

- (12) In this Schedule, a reference to a supply of goods or services to a consumer is a reference to a supply of goods or services to a person who is taken to have acquired them as a consumer.

4 Misleading representations with respect to future matters

- (1) If:
- (a) a person makes a representation with respect to any future matter (including the doing of, or the refusing to do, any act); and
 - (b) the person does not have reasonable grounds for making the representation;
- the representation is taken, for the purposes of this Schedule, to be misleading.
- (2) For the purposes of applying subsection (1) in relation to a proceeding concerning a representation made with respect to a future matter by:
- (a) a party to the proceeding; or
 - (b) any other person;
- the party or other person is taken not to have had reasonable grounds for making the representation, unless evidence is adduced to the contrary.
- (3) To avoid doubt, subsection (2) does not:
- (a) have the effect that, merely because such evidence to the contrary is adduced, the person who made the representation is taken to have had reasonable grounds for making the representation; or
 - (b) have the effect of placing on any person an onus of proving that the person who made the representation had reasonable grounds for making the representation.
- (4) Subsection (1) does not limit by implication the meaning of a reference in this Schedule to:
- (a) a misleading representation; or

Section 5

- (b) a representation that is misleading in a material particular; or
 - (c) conduct that is misleading or is likely or liable to mislead;
- and, in particular, does not imply that a representation that a person makes with respect to any future matter is not misleading merely because the person has reasonable grounds for making the representation.

5 When donations are treated as supplies or acquisitions

- (1) For the purposes of this Schedule, other than Parts 3-3, 3-4, 4-3 and 4-4:
 - (a) a donation of goods or services is not treated as a supply of the goods or services unless the donation is for promotional purposes; and
 - (b) receipt of a donation of goods or services is not treated as an acquisition of the goods or services unless the donation is for promotional purposes.
- (2) For the purposes of Parts 3-3, 3-4, 4-3 and 4-4:
 - (a) any donation of goods or services is treated as a supply of the goods or services; and
 - (b) receipt of any donation of goods or services is treated as an acquisition of the goods or services.

6 Related bodies corporate

- (1) A body corporate is taken to be *related* to another body corporate if the bodies corporate would, under section 4A(5) of the Competition and Consumer Act, be deemed to be related to each other.
- (2) In proceedings under this Schedule, it is presumed, unless the contrary is established, that bodies corporate are not, or were not at a particular time, related to each other.

7 Meaning of *manufacturer*

- (1) A *manufacturer* includes the following:
-

Section 7

- (a) a person who grows, extracts, produces, processes or assembles goods;
 - (b) a person who holds himself or herself out to the public as the manufacturer of goods;
 - (c) a person who causes or permits the name of the person, a name by which the person carries on business or a brand or mark of the person to be applied to goods supplied by the person;
 - (d) a person (the **first person**) who causes or permits another person, in connection with:
 - (i) the supply or possible supply of goods by that other person; or
 - (ii) the promotion by that other person by any means of the supply or use of goods;to hold out the first person to the public as the manufacturer of the goods;
 - (e) a person who imports goods into Australia if:
 - (i) the person is not the manufacturer of the goods; and
 - (ii) at the time of the importation, the manufacturer of the goods does not have a place of business in Australia.
- (2) For the purposes of subsection (1)(c):
- (a) a name, brand or mark is taken to be applied to goods if:
 - (i) it is woven in, impressed on, worked into or annexed or affixed to the goods; or
 - (ii) it is applied to a covering, label, reel or thing in or with which the goods are supplied; and
 - (b) if the name of a person, a name by which a person carries on business or a brand or mark of a person is applied to goods, it is presumed, unless the contrary is established, that the person caused or permitted the name, brand or mark to be applied to the goods.
- (3) If goods are imported into Australia on behalf of a person, the person is taken, for the purposes of paragraph (1)(e), to have imported the goods into Australia.

Section 8

8 Goods affixed to land or premises

For the purposes of this Schedule, goods are taken to be supplied to a consumer even if they are affixed to land or premises at the time of the supply.

9 Meaning of *safety defect* in relation to goods

- (1) For the purposes of this Schedule, goods have a ***safety defect*** if their safety is not such as persons generally are entitled to expect.
- (2) In determining the extent of the safety of goods, regard is to be given to all relevant circumstances, including:
 - (a) the manner in which, and the purposes for which, they have been marketed; and
 - (b) their packaging; and
 - (c) the use of any mark in relation to them; and
 - (d) any instructions for, or warnings with respect to, doing, or refraining from doing, anything with or in relation to them; and
 - (e) what might reasonably be expected to be done with or in relation to them; and
 - (f) the time when they were supplied by their manufacturer.
- (3) An inference that goods have a safety defect is not to be made only because of the fact that, after they were supplied by their manufacturer, safer goods of the same kind were supplied.
- (4) An inference that goods have a safety defect is not to be made only because:
 - (a) there was compliance with a Commonwealth mandatory standard for them; and
 - (b) that standard was not the safest possible standard having regard to the latest state of scientific or technical knowledge when they were supplied by their manufacturer.

10 Asserting a right to payment

- (1) A person is taken to ***assert a right to payment*** from another person if the person:
- (a) makes a demand for the payment or asserts a present or prospective right to the payment; or
 - (b) threatens to bring any legal proceedings with a view to obtaining the payment; or
 - (c) places or causes to be placed the name of the other person on a list of defaulters or debtors, or threatens to do so, with a view to obtaining the payment; or
 - (d) invokes or causes to be invoked any other collection procedure, or threatens to do so, with a view to obtaining the payment; or
 - (e) sends any invoice or other document that:
 - (i) states the amount of the payment; or
 - (ii) sets out the price of unsolicited goods or unsolicited services; or
 - (iii) sets out the charge for placing, in a publication, an entry or advertisement;and does not contain a statement, to the effect that the document is not an assertion of a right to a payment, that complies with any requirements prescribed by the regulations.
- (2) For the purposes of this section, an invoice or other document purporting to have been sent by or on behalf of a person is taken to have been sent by that person unless the contrary is established.

11 References to acquisition, supply and re-supply

In this Schedule:

- (a) a reference to the acquisition of goods includes a reference to the acquisition of property in, or rights in relation to, goods pursuant to a supply of the goods; and

Section 12

- (b) a reference to the supply or acquisition of goods or services includes a reference to agreeing to supply or acquire goods or services; and
- (c) a reference to the supply or acquisition of goods includes a reference to the supply or acquisition of goods together with other property or services, or both; and
- (d) a reference to the supply or acquisition of services includes a reference to the supply or acquisition of services together with property or other services, or both; and
- (e) a reference to the re-supply of goods acquired from a person includes a reference to:
 - (i) a supply of the goods to another person in an altered form or condition; and
 - (ii) a supply to another person of goods in which the first-mentioned goods have been incorporated; and
- (f) a reference to the re-supply of services (the **original services**) acquired from a person (the **original supplier**) includes a reference to:
 - (i) a supply of the original services to another person in an altered form or condition; and
 - (ii) a supply to another person of other services that are substantially similar to the original services, and could not have been supplied if the original services had not been acquired by the person who acquired them from the original supplier.

12 Application of Schedule in relation to leases and licences of land and buildings

In this Schedule:

- (a) a reference to a contract includes a reference to a lease of, or a licence in respect of, land or a building or part of a building (despite the express references in this Schedule to such leases or licences); and

Section 13

- (b) a reference to making or entering into a contract, in relation to such a lease or licence, is a reference to granting or taking the lease or licence; and
- (c) a reference to a party to a contract, in relation to such a lease or licence, includes a reference to any person bound by, or entitled to the benefit of, any provision contained in the lease or licence.

13 Loss or damage to include injury

In this Schedule:

- (a) a reference to loss or damage, other than a reference to the amount of any loss or damage, includes a reference to injury; and
- (b) a reference to the amount of any loss or damage includes a reference to damages in respect of an injury.

14 Meaning of *continuing credit contract*

(1) If:

- (a) a person (the **creditor**), in the course of a business carried on by the creditor, agrees with a consumer to provide credit to the consumer in relation to:
 - (i) payment for goods or services; or
 - (ii) cash supplied by the creditor to the consumer from time to time; or
 - (iii) payment by the creditor to another person in relation to goods or services, or cash, supplied by that other person to the consumer from time to time; and
- (b) the creditor:
 - (i) has an agreement, arrangement or understanding (the **credit agreement**) with the consumer in relation to the provision of the credit; or
 - (ii) is engaged in a course of dealing (the **credit dealing**) with the consumer in relation to the provision of the credit; and

Section 15

- (c) the amounts owing to the creditor from time to time under the credit agreement or credit dealing are, or are to be, calculated on the basis that:
 - (i) all amounts owing; and
 - (ii) all payments made;by the consumer under, or in respect of, the credit agreement or credit dealing are entered in one or more accounts kept for the purpose of that agreement or dealing;
- the credit agreement or credit dealing is taken, for the purposes of this Schedule, to be a *continuing credit contract*.
- (2) If subsection (1)(a)(iii) applies, the creditor is taken, for the purposes of this section, to have provided credit to the consumer in relation to any goods or services, or cash, supplied by another person to the consumer to the extent of any payments made, or to be made, by the creditor to that other person.

15 Contraventions of this Schedule

Conduct is not taken, for the purposes of this Schedule, to contravene a provision of this Schedule merely because of the application of:

- (a) section 23(1); or
- (b) a provision of Division 1 of Part 3-2 (other than section 66(2)); or
- (c) a provision of Part 3-5.

16 Severability

- (1) If the making of a contract after the commencement of this section contravenes this Schedule because the contract includes a particular provision, nothing in this Schedule affects the validity or enforceability of the contract otherwise than in relation to that provision, so far as that provision is severable.
- (2) This section has effect subject to any order made under Division 4 of Part 5-2.

17 References to provisions in this Schedule

In this Schedule, a reference to a provision is a reference to a provision of this Schedule, unless the contrary intention appears.

Chapter 2—General protections

Part 2-1—Misleading or deceptive conduct

18 Misleading or deceptive conduct

- (1) A person must not, in trade or commerce, engage in conduct that is misleading or deceptive or is likely to mislead or deceive.
- (2) Nothing in Part 3-1 (which is about unfair practices) limits by implication subsection (1).

Note: For rules relating to representations as to the country of origin of goods, see Part 5-3.

19 Application of this Part to information providers

- (1) This Part does not apply to a publication of matter by an information provider if:
 - (a) in any case—the information provider made the publication in the course of carrying on a business of providing information; or
 - (b) if the information provider is the Australian Broadcasting Corporation, the Special Broadcasting Service Corporation or the holder of a licence granted under the *Broadcasting Services Act 1992*—the publication was by way of a radio or television broadcast by the information provider.
- (2) Subsection (1) does not apply to a publication of an advertisement.
- (3) Subsection (1) does not apply to a publication of matter in connection with the supply or possible supply of, or the promotion by any means of the supply or use of, goods or services (the **publicised goods or services**), if:
 - (a) the publicised goods or services were goods or services of a kind supplied by the information provider or, if the

Section 19

- information provider is a body corporate, by a body corporate that is related to the information provider; or
- (b) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a person who supplies goods or services of the same kind as the publicised goods or services; or
 - (c) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a body corporate that is related to a body corporate that supplies goods or services of the same kind as the publicised goods or services.
- (4) Subsection (1) does not apply to a publication of matter in connection with the sale or grant, or possible sale or grant, of, or the promotion by any means of the sale or grant of, interests in land (the **publicised interests in land**), if:
- (a) the publicised interests in land were interests of a kind sold or granted by the information provider or, if the information provider is a body corporate, by a body corporate that is related to the information provider; or
 - (b) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a person who sells or grants interests of the same kind as the publicised interests in land; or
 - (c) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a body corporate that is related to a body corporate that sells or grants interests of the same kind as the publicised interests in land.
- (5) An **information provider** is a person who carries on a business of providing information.
- (6) Without limiting subsection (5), each of the following is an **information provider**:
- (a) the holder of a licence granted under the *Broadcasting Services Act 1992*;

Section 19

- (b) a person who is the provider of a broadcasting service under a class licence under that Act;
- (d) the Australian Broadcasting Corporation;
- (e) the Special Broadcasting Service Corporation.

Part 2-2—Unconscionable conduct

20 Unconscionable conduct within the meaning of the unwritten law

- (1) A person must not, in trade or commerce, engage in conduct that is unconscionable, within the meaning of the unwritten law from time to time.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) This section does not apply to conduct that is prohibited by section 21.

21 Unconscionable conduct in connection with goods or services

- (1) A person must not, in trade or commerce, in connection with:
- (a) the supply or possible supply of goods or services to a person; or
 - (b) the acquisition or possible acquisition of goods or services from a person;
- engage in conduct that is, in all the circumstances, unconscionable.
- (2) This section does not apply to conduct that is engaged in only because the person engaging in the conduct:
- (a) institutes legal proceedings in relation to the supply or possible supply, or in relation to the acquisition or possible acquisition; or
 - (b) refers to arbitration a dispute or claim in relation to the supply or possible supply, or in relation to the acquisition or possible acquisition.
- (3) For the purpose of determining whether a person has contravened subsection (1):
- (a) the court must not have regard to any circumstances that were not reasonably foreseeable at the time of the alleged contravention; and

Section 22

- (b) the court may have regard to conduct engaged in, or circumstances existing, before the commencement of this section.
- (4) It is the intention of the Parliament that:
 - (a) this section is not limited by the unwritten law relating to unconscionable conduct; and
 - (b) this section is capable of applying to a system of conduct or pattern of behaviour, whether or not a particular individual is identified as having been disadvantaged by the conduct or behaviour; and
 - (c) in considering whether conduct to which a contract relates is unconscionable, a court's consideration of the contract may include consideration of:
 - (i) the terms of the contract; and
 - (ii) the manner in which and the extent to which the contract is carried out;and is not limited to consideration of the circumstances relating to formation of the contract.

22 Matters the court may have regard to for the purposes of section 21

- (1) Without limiting the matters to which the court may have regard for the purpose of determining whether a person (the **supplier**) has contravened section 21 in connection with the supply or possible supply of goods or services to a person (the **customer**), the court may have regard to:
 - (a) the relative strengths of the bargaining positions of the supplier and the customer; and
 - (b) whether, as a result of conduct engaged in by the supplier, the customer was required to comply with conditions that were not reasonably necessary for the protection of the legitimate interests of the supplier; and
 - (c) whether the customer was able to understand any documents relating to the supply or possible supply of the goods or services; and

Section 22

- (d) whether any undue influence or pressure was exerted on, or any unfair tactics were used against, the customer or a person acting on behalf of the customer by the supplier or a person acting on behalf of the supplier in relation to the supply or possible supply of the goods or services; and
- (e) the amount for which, and the circumstances under which, the customer could have acquired identical or equivalent goods or services from a person other than the supplier; and
- (f) the extent to which the supplier's conduct towards the customer was consistent with the supplier's conduct in similar transactions between the supplier and other like customers; and
- (g) the requirements of any applicable industry code; and
- (h) the requirements of any other industry code, if the customer acted on the reasonable belief that the supplier would comply with that code; and
- (i) the extent to which the supplier unreasonably failed to disclose to the customer:
 - (i) any intended conduct of the supplier that might affect the interests of the customer; and
 - (ii) any risks to the customer arising from the supplier's intended conduct (being risks that the supplier should have foreseen would not be apparent to the customer); and
- (j) if there is a contract between the supplier and the customer for the supply of the goods or services:
 - (i) the extent to which the supplier was willing to negotiate the terms and conditions of the contract with the customer; and
 - (ii) the terms and conditions of the contract; and
 - (iii) the conduct of the supplier and the customer in complying with the terms and conditions of the contract; and
 - (iv) any conduct that the supplier or the customer engaged in, in connection with their commercial relationship, after they entered into the contract; and

Section 22

- (k) without limiting paragraph (j), whether the supplier has a contractual right to vary unilaterally a term or condition of a contract between the supplier and the customer for the supply of the goods or services; and
 - (l) the extent to which the supplier and the customer acted in good faith.
- (2) Without limiting the matters to which the court may have regard for the purpose of determining whether a person (the **acquirer**) has contravened section 21 in connection with the acquisition or possible acquisition of goods or services from a person (the **supplier**), the court may have regard to:
 - (a) the relative strengths of the bargaining positions of the acquirer and the supplier; and
 - (b) whether, as a result of conduct engaged in by the acquirer, the supplier was required to comply with conditions that were not reasonably necessary for the protection of the legitimate interests of the acquirer; and
 - (c) whether the supplier was able to understand any documents relating to the acquisition or possible acquisition of the goods or services; and
 - (d) whether any undue influence or pressure was exerted on, or any unfair tactics were used against, the supplier or a person acting on behalf of the supplier by the acquirer or a person acting on behalf of the acquirer in relation to the acquisition or possible acquisition of the goods or services; and
 - (e) the amount for which, and the circumstances in which, the supplier could have supplied identical or equivalent goods or services to a person other than the acquirer; and
 - (f) the extent to which the acquirer's conduct towards the supplier was consistent with the acquirer's conduct in similar transactions between the acquirer and other like suppliers; and
 - (g) the requirements of any applicable industry code; and
 - (h) the requirements of any other industry code, if the supplier acted on the reasonable belief that the acquirer would comply with that code; and

Section 22A

- (i) the extent to which the acquirer unreasonably failed to disclose to the supplier:
 - (i) any intended conduct of the acquirer that might affect the interests of the supplier; and
 - (ii) any risks to the supplier arising from the acquirer's intended conduct (being risks that the acquirer should have foreseen would not be apparent to the supplier); and
- (j) if there is a contract between the acquirer and the supplier for the acquisition of the goods or services:
 - (i) the extent to which the acquirer was willing to negotiate the terms and conditions of the contract with the supplier; and
 - (ii) the terms and conditions of the contract; and
 - (iii) the conduct of the acquirer and the supplier in complying with the terms and conditions of the contract; and
 - (iv) any conduct that the acquirer or the supplier engaged in, in connection with their commercial relationship, after they entered into the contract; and
- (k) without limiting paragraph (j), whether the acquirer has a contractual right to vary unilaterally a term or condition of a contract between the acquirer and the supplier for the acquisition of the goods or services; and
- (l) the extent to which the acquirer and the supplier acted in good faith.

22A Presumptions relating to whether representations are misleading

Section 4 applies for the purposes of sections 21 and 22 in the same way as it applies for the purposes of Division 1 of Part 3-1.

Section 23

Part 2-3—Unfair contract terms

23 Unfair terms of consumer contracts and small business contracts

- (1) A term of a consumer contract or small business contract is void if:
- (a) the term is unfair; and
 - (b) the contract is a standard form contract.

- (2) The contract continues to bind the parties if it is capable of operating without the unfair term.

- (2A) A person contravenes this subsection if:
- (a) the person makes a contract; and
 - (b) the contract is a consumer contract or small business contract; and
 - (c) the contract is a standard form contract; and
 - (d) a term of the contract is unfair; and
 - (e) the person proposed the unfair term.

Note: A pecuniary penalty may be imposed for a contravention of this subsection: see section 224.

- (2B) A person who contravenes subsection (2A) commits a separate contravention of that subsection in respect of each term that is unfair and that the person proposed.

- (2C) A person contravenes this subsection if:
- (a) the person applies or relies on, or purports to apply or rely on, a term of a contract; and
 - (b) the contract is a consumer contract or small business contract; and
 - (c) the contract is a standard form contract; and
 - (d) the term is unfair.

Note: A pecuniary penalty may be imposed for a contravention of this subsection: see section 224.

- (3) A **consumer contract** is a contract for:
-

Section 23

- (a) a supply of goods or services; or
 - (b) a sale or grant of an interest in land;
- to an individual whose acquisition of the goods, services or interest is wholly or predominantly for personal, domestic or household use or consumption.
- (4) A contract is a ***small business contract*** if:
- (a) the contract is for a supply of goods or services, or a sale or grant of an interest in land; and
 - (b) at least one party to the contract satisfies either or both of the following conditions:
 - (i) the party makes the contract in the course of carrying on a business and at a time when the party employs fewer than 100 persons;
 - (ii) the party's turnover, worked out under subsection (6) for the party's last income year (within the meaning of the *Income Tax Assessment Act 1997*) that ended at or before the time when the contract is made, is less than \$10,000,000.
- (5) In counting for the purposes of subparagraph (4)(b)(i) the number of persons that a person employs:
- (a) a casual employee is not to be counted unless employed on a regular and systematic basis; and
 - (b) a part-time employee (including a part-time casual employee counted under paragraph (a) of this subsection) is to be counted as an appropriate fraction of a full-time equivalent.
- (6) For the purposes of subparagraph (4)(b)(ii), a party's turnover for a period is the sum of the values of all supplies the party made during the period, other than the following:
- (a) supplies that are input taxed;
 - (b) supplies that are not for consideration (and are not taxable supplies under section 72-5 of the *A New Tax System (Goods and Services Tax) Act 1999*);
 - (c) supplies that are not made in connection with an enterprise that the party carries on;

Section 24

- (d) supplies that are not connected with the indirect tax zone.
- (7) Expressions used in subsection (6) that are also used in the *A New Tax System (Goods and Services Tax) Act 1999* have the same meaning as in that Act.

24 Meaning of *unfair*

- (1) A term of a consumer contract or small business contract is ***unfair*** if:
 - (a) it would cause a significant imbalance in the parties' rights and obligations arising under the contract; and
 - (b) it is not reasonably necessary in order to protect the legitimate interests of the party who would be advantaged by the term; and
 - (c) it would cause detriment (whether financial or otherwise) to a party if it were to be applied or relied on.
- (2) In determining whether a term of a contract is unfair under subsection (1), a court may take into account such matters as it thinks relevant, but must take into account the following:
 - (a) the extent to which the term is transparent;
 - (b) the contract as a whole.
- (3) A term is ***transparent*** if the term is:
 - (a) expressed in reasonably plain language; and
 - (b) legible; and
 - (c) presented clearly; and
 - (d) readily available to any party affected by the term.
- (4) For the purposes of subsection (1)(b), a term of a contract is presumed not to be reasonably necessary in order to protect the legitimate interests of the party who would be advantaged by the term, unless that party proves otherwise.

25 Examples of unfair terms

Without limiting section 24, the following are examples of the kinds of terms of a consumer contract or small business contract that may be unfair:

- (a) a term that permits, or has the effect of permitting, one party (but not another party) to avoid or limit performance of the contract;
- (b) a term that permits, or has the effect of permitting, one party (but not another party) to terminate the contract;
- (c) a term that penalises, or has the effect of penalising, one party (but not another party) for a breach or termination of the contract;
- (d) a term that permits, or has the effect of permitting, one party (but not another party) to vary the terms of the contract;
- (e) a term that permits, or has the effect of permitting, one party (but not another party) to renew or not renew the contract;
- (f) a term that permits, or has the effect of permitting, one party to vary the upfront price payable under the contract without the right of another party to terminate the contract;
- (g) a term that permits, or has the effect of permitting, one party unilaterally to vary the characteristics of the goods or services to be supplied, or the interest in land to be sold or granted, under the contract;
- (h) a term that permits, or has the effect of permitting, one party unilaterally to determine whether the contract has been breached or to interpret its meaning;
- (i) a term that limits, or has the effect of limiting, one party's vicarious liability for its agents;
- (j) a term that permits, or has the effect of permitting, one party to assign the contract to the detriment of another party without that other party's consent;
- (k) a term that limits, or has the effect of limiting, one party's right to sue another party;
- (l) a term that limits, or has the effect of limiting, the evidence one party can adduce in proceedings relating to the contract;

Section 26

- (m) a term that imposes, or has the effect of imposing, the evidential burden on one party in proceedings relating to the contract;
- (n) a term of a kind, or a term that has an effect of a kind, prescribed by the regulations.

26 Terms that define main subject matter of consumer contracts or small business contracts etc. are unaffected

- (1) Section 23 does not apply to a term of a contract to the extent, but only to the extent, that:
 - (a) the term defines the main subject matter of the contract; or
 - (b) the term sets the upfront price payable under the contract; or
 - (c) the term is required, or expressly permitted, by a law of the Commonwealth or of a State or Territory; or
 - (d) the term is included in the contract, or is taken to be so included, by operation of a law of the Commonwealth, or of a State or Territory, that regulates the contract; or
 - (e) inclusion of the term has either or both of the following results:
 - (i) one or more other terms are included in the contract, or are taken to be so included, by operation of a law of the Commonwealth, or of a State or Territory, that regulates the contract;
 - (ii) such a law requires one or more other terms to be included in the contract.

Example: A State law provides that, if a retail lease contains a provision for termination on the ground of proposed demolition of the building containing the leased premises, then provisions set out in the State law are taken to be included in the lease.

Paragraph (d) covers the provisions that are set out in the State law and taken to be included in the lease. Paragraph (e) covers inclusion of the provision for termination, since it has the result that the provisions set out in the State law are taken to be included in the lease.

- (2) The ***upfront price*** payable under a contract is the consideration that:

- (a) is provided, or is to be provided, for the supply, sale or grant under the contract; and
- (b) is disclosed at or before the time the contract is entered into; but does not include any other consideration that is contingent on the occurrence or non-occurrence of a particular event.

27 Standard form contracts

- (1) If a party to a proceeding alleges that a contract is a standard form contract, it is presumed to be a standard form contract unless another party to the proceeding proves otherwise.
- (2) In determining whether a contract is a standard form contract, a court may take into account such matters as it thinks relevant, but must take into account the following:
 - (a) whether one of the parties has all or most of the bargaining power relating to the transaction;
 - (ba) whether one of the parties has made another contract, in the same or substantially similar terms, prepared by that party, and, if so, how many such contracts that party has made;
 - (b) whether the contract was prepared by one party before any discussion relating to the transaction occurred between the parties;
 - (c) whether another party was, in effect, required either to accept or reject the terms of the contract (other than the terms referred to in section 26(1)) in the form in which they were presented;
 - (d) whether another party was given an effective opportunity to negotiate the terms of the contract that were not the terms referred to in section 26(1);
 - (e) whether the terms of the contract (other than the terms referred to in section 26(1)) take into account the specific characteristics of another party or the particular transaction;
 - (f) any other matter prescribed by the regulations.
- (3) A contract may be determined to be a standard form contract despite the existence of one or more of the following:

Section 28

- (a) an opportunity for a party to negotiate changes, to terms of the contract, that are minor or insubstantial in effect;
- (b) an opportunity for a party to select a term from a range of options determined by another party;
- (c) an opportunity for a party to another contract or proposed contract to negotiate terms of the other contract or proposed contract.

28 Contracts to which this Part does not apply

- (1) This Part does not apply to:
 - (a) a contract of marine salvage or towage; or
 - (b) a charterparty of a ship; or
 - (c) a contract for the carriage of goods by ship.
- (2) Without limiting subsection (1)(c), the reference in that subsection to a contract for the carriage of goods by ship includes a reference to any contract covered by a sea carriage document within the meaning of the amended Hague Rules referred to in section 7(1) of the *Carriage of Goods by Sea Act 1991*.
- (3) This Part does not apply to a contract that is the constitution (within the meaning of section 9 of the *Corporations Act 2001*) of a company, managed investment scheme or other kind of body.
- (4) This Part does not apply to a small business contract to which a prescribed law of the Commonwealth, a State or a Territory applies.
- (5) This Part does not apply to a contract:
 - (a) that establishes, contains or incorporates rules governing the operation of a payment or settlement system approved under section 9 of the *Payment Systems and Netting Act 1998*; or
 - (b) that is made in the course of, or for the purposes of, operating such a system.

Section 28A

28A This Part does not apply to certain contracts connected with financial markets

- (1) This Part does not apply to a contract:
- (a) that exists because of:
 - (i) section 793B of the *Corporations Act 2001* (legal effect of operating rules of a licensed market); or
 - (ii) section 822B of that Act (legal effect of operating rules of a licensed CS facility); or
 - (b) that is made under, or in accordance with:
 - (i) the operating rules of a licensed market; or
 - (ii) the operating rules of a licensed CS facility.

Note: A licensed CS facility is a clearing and settlement facility whose operation is authorised by an Australian CS facility licence.

- (2) This Part does not apply to a contract between:
- (a) the operator of a licensed market; and
 - (b) any of the following:
 - (i) an entity included in the market's official list;
 - (ii) the responsible entity for a registered scheme that is so included;
 - (iii) the operator of a foreign passport fund that is so included;
- to the extent that the contract consists of, or includes, listing rules of the licensed market.
- (3) An expression has in paragraph (1)(b) and subsection (2) the same meaning as in the *Corporations Act 2001*.

Chapter 3—Specific protections

Part 3-1—Unfair practices

Division 1—False or misleading representations etc.

29 False or misleading representations about goods or services

- (1) A person must not, in trade or commerce, in connection with the supply or possible supply of goods or services or in connection with the promotion by any means of the supply or use of goods or services:
- (a) make a false or misleading representation that goods are of a particular standard, quality, value, grade, composition, style or model or have had a particular history or particular previous use; or
 - (b) make a false or misleading representation that services are of a particular standard, quality, value or grade; or
 - (c) make a false or misleading representation that goods are new; or
 - (d) make a false or misleading representation that a particular person has agreed to acquire goods or services; or
 - (e) make a false or misleading representation that purports to be a testimonial by any person relating to goods or services; or
 - (f) make a false or misleading representation concerning:
 - (i) a testimonial by any person; or
 - (ii) a representation that purports to be such a testimonial; relating to goods or services; or
 - (g) make a false or misleading representation that goods or services have sponsorship, approval, performance characteristics, accessories, uses or benefits; or
 - (h) make a false or misleading representation that the person making the representation has a sponsorship, approval or affiliation; or

Section 29

- (i) make a false or misleading representation with respect to the price of goods or services; or
- (j) make a false or misleading representation concerning the availability of facilities for the repair of goods or of spare parts for goods; or
- (k) make a false or misleading representation concerning the place of origin of goods; or
- (l) make a false or misleading representation concerning the need for any goods or services; or
- (m) make a false or misleading representation concerning the existence, exclusion or effect of any condition, warranty, guarantee, right or remedy (including a guarantee under Division 1 of Part 3-2); or
- (n) make a false or misleading representation concerning a requirement to pay for a contractual right that:
 - (i) is wholly or partly equivalent to any condition, warranty, guarantee, right or remedy (including a guarantee under Division 1 of Part 3-2); and
 - (ii) a person has under a law of the Commonwealth, a State or a Territory (other than an unwritten law).

Note 1: A pecuniary penalty may be imposed for a contravention of this subsection.

Note 2: For rules relating to representations as to the country of origin of goods, see Part 5-3.

- (2) For the purposes of applying subsection (1) in relation to a proceeding concerning a representation of a kind referred to in subsection (1)(e) or (f), the representation is taken to be misleading unless evidence is adduced to the contrary.
- (3) To avoid doubt, subsection (2) does not:
 - (a) have the effect that, merely because such evidence to the contrary is adduced, the representation is not misleading; or
 - (b) have the effect of placing on any person an onus of proving that the representation is not misleading.

Section 30

30 False or misleading representations about sale etc. of land

- (1) A person must not, in trade or commerce, in connection with the sale or grant, or the possible sale or grant, of an interest in land or in connection with the promotion by any means of the sale or grant of an interest in land:
- (a) make a false or misleading representation that the person making the representation has a sponsorship, approval or affiliation; or
 - (b) make a false or misleading representation concerning the nature of the interest in the land; or
 - (c) make a false or misleading representation concerning the price payable for the land; or
 - (d) make a false or misleading representation concerning the location of the land; or
 - (e) make a false or misleading representation concerning the characteristics of the land; or
 - (f) make a false or misleading representation concerning the use to which the land is capable of being put or may lawfully be put; or
 - (g) make a false or misleading representation concerning the existence or availability of facilities associated with the land.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) This section does not affect the application of any other provision of Part 2-1 or this Part in relation to the supply or acquisition, or the possible supply or acquisition, of interests in land.

31 Misleading conduct relating to employment

A person must not, in relation to employment that is to be, or may be, offered by the person or by another person, engage in conduct that is liable to mislead persons seeking the employment as to:

- (a) the availability, nature, terms or conditions of the employment; or
- (b) any other matter relating to the employment.

Section 32

Note: A pecuniary penalty may be imposed for a contravention of this section.

32 Offering rebates, gifts, prizes etc.

- (1) A person must not, in trade or commerce, offer any rebate, gift, prize or other free item with the intention of not providing it, or of not providing it as offered, in connection with:
- (a) the supply or possible supply of goods or services; or
 - (b) the promotion by any means of the supply or use of goods or services; or
 - (c) the sale or grant, or the possible sale or grant, of an interest in land; or
 - (d) the promotion by any means of the sale or grant of an interest in land.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) If a person offers any rebate, gift, prize or other free item in connection with:
- (a) the supply or possible supply of goods or services; or
 - (b) the promotion by any means of the supply or use of goods or services; or
 - (c) the sale or grant, or the possible sale or grant, of an interest in land; or
 - (d) the promotion by any means of the sale or grant of an interest in land;

the person must, within the time specified in the offer or (if no such time is specified) within a reasonable time after making the offer, provide the rebate, gift, prize or other free item in accordance with the offer.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) Subsection (2) does not apply if:
- (a) the person's failure to provide the rebate, gift, prize or other free item in accordance with the offer was due to the act or

Section 33

- omission of another person, or to some other cause beyond the person's control; and
- (b) the person took reasonable precautions and exercised due diligence to avoid the failure.
- (4) Subsection (2) does not apply to an offer that the person makes to another person if:
- (a) the person offers to the other person a different rebate, gift, prize or other free item as a replacement; and
- (b) the other person agrees to receive the different rebate, gift, prize or other free item.
- (5) This section does not affect the application of any other provision of Part 2-1 or this Part in relation to the supply or acquisition, or the possible supply or acquisition, of interests in land.

33 Misleading conduct as to the nature etc. of goods

A person must not, in trade or commerce, engage in conduct that is liable to mislead the public as to the nature, the manufacturing process, the characteristics, the suitability for their purpose or the quantity of any goods.

Note: A pecuniary penalty may be imposed for a contravention of this section.

34 Misleading conduct as to the nature etc. of services

A person must not, in trade or commerce, engage in conduct that is liable to mislead the public as to the nature, the characteristics, the suitability for their purpose or the quantity of any services.

Note: A pecuniary penalty may be imposed for a contravention of this section.

35 Bait advertising

- (1) A person must not, in trade or commerce, advertise goods or services for supply at a specified price if:

Section 36

- (a) there are reasonable grounds for believing that the person will not be able to offer for supply those goods or services at that price for a period that is, and in quantities that are, reasonable, having regard to:
 - (i) the nature of the market in which the person carries on business; and
 - (ii) the nature of the advertisement; and
- (b) the person is aware or ought reasonably to be aware of those grounds.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A person who, in trade or commerce, advertises goods or services for supply at a specified price must offer such goods or services for supply at that price for a period that is, and in quantities that are, reasonable having regard to:
 - (a) the nature of the market in which the person carries on business; and
 - (b) the nature of the advertisement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

36 Wrongly accepting payment

- (1) A person must not, in trade or commerce, accept payment or other consideration for goods or services if, at the time of the acceptance, the person intends not to supply the goods or services.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A person must not, in trade or commerce, accept payment or other consideration for goods or services if, at the time of the acceptance, the person intends to supply goods or services materially different from the goods or services in respect of which the payment or other consideration is accepted.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Section 36

- (3) A person must not, in trade or commerce, accept payment or other consideration for goods or services if, at the time of the acceptance:
- (a) there are reasonable grounds for believing that the person will not be able to supply the goods or services:
 - (i) within the period specified by or on behalf of the person at or before the time the payment or other consideration was accepted; or
 - (ii) if no period is specified at or before that time—within a reasonable time; and
 - (b) the person is aware or ought reasonably to be aware of those grounds.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (4) A person who, in trade or commerce, accepts payment or other consideration for goods or services must supply all the goods or services:
- (a) within the period specified by or on behalf of the person at or before the time the payment or other consideration was accepted; or
 - (b) if no period is specified at or before that time—within a reasonable time.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (5) Subsection (4) does not apply if:
- (a) the person's failure to supply all the goods or services within the period, or within a reasonable time, was due to the act or omission of another person, or to some other cause beyond the person's control; and
 - (b) the person took reasonable precautions and exercised due diligence to avoid the failure.
- (6) Subsection (4) does not apply if:
- (a) the person offers to supply different goods or services as a replacement to the person (the *customer*) to whom the original supply was to be made; and

Section 37

- (b) the customer agrees to receive the different goods or services.
- (7) Subsections (1), (2), (3) and (4) apply whether or not the payment or other consideration that the person accepted represents the whole or a part of the payment or other consideration for the supply of the goods or services.

37 Misleading representations about certain business activities

- (1) A person must not, in trade or commerce, make a representation that:
 - (a) is false or misleading in a material particular; and
 - (b) concerns the profitability, risk or any other material aspect of any business activity that the person has represented as one that can be, or can be to a considerable extent, carried on at or from a person's place of residence.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A person must not, in trade or commerce, make a representation that:
 - (a) is false or misleading in a material particular; and
 - (b) concerns the profitability, risk or any other material aspect of any business activity:
 - (i) that the person invites (whether by advertisement or otherwise) other persons to engage or participate in, or to offer or apply to engage or participate in; and
 - (ii) that requires the performance of work by other persons, or the investment of money by other persons and the performance by them of work associated with the investment.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Section 38

38 Application of provisions of this Division to information providers

- (1) Sections 29, 30, 33, 34 and 37 do not apply to a publication of matter by an information provider if:
 - (a) in any case—the information provider made the publication in the course of carrying on a business of providing information; or
 - (b) if the information provider is the Australian Broadcasting Corporation, the Special Broadcasting Service Corporation or the holder of a licence granted under the *Broadcasting Services Act 1992*—the publication was by way of a radio or television broadcast by the information provider.
- (2) Subsection (1) does not apply to a publication of an advertisement.
- (3) Subsection (1) does not apply to a publication of matter in connection with the supply or possible supply of, or the promotion by any means of the supply or use of, goods or services (the ***publicised goods or services***), if:
 - (a) the publicised goods or services were goods or services of a kind supplied by the information provider or, if the information provider is a body corporate, by a body corporate that is related to the information provider; or
 - (b) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a person who supplies goods or services of the same kind as the publicised goods or services; or
 - (c) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a body corporate that is related to a body corporate that supplies goods or services of the same kind as the publicised goods or services.
- (4) Subsection (1) does not apply to a publication of matter in connection with the sale or grant, or possible sale or grant, of, or the promotion by any means of the sale or grant of, interests in land (the ***publicised interests in land***), if:

Section 38

- (a) the publicised interests in land were interests of a kind sold or granted by the information provider or, if the information provider is a body corporate, by a body corporate that is related to the information provider; or
- (b) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a person who sells or grants interests of the same kind as the publicised interests in land; or
- (c) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a body corporate that is related to a body corporate that sells or grants interests of the same kind as the publicised interests in land.

Section 39

Division 2—Unsolicited supplies

39 Unsolicited cards etc.

- (1) A person must not send a credit card or a debit card, or an article that may be used as a credit card and a debit card, to another person except:
- (a) pursuant to a written request by the person who will be under a liability to the person who issued the card or article in respect of the use of the card or article; or
 - (b) in renewal or replacement of, or in substitution for:
 - (i) a card or article of the same kind previously sent to the other person pursuant to a written request by the person who was under a liability, to the person who issued the card previously so sent, in respect of the use of that card; or
 - (ii) a card or article of the same kind previously sent to the other person and used for a purpose for which it was intended to be used.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) Subsection (1) does not apply unless the card or article is sent by or on behalf of the person who issued it.
- (3) A person must not take any action that enables another person who has a credit card to use the card as a debit card, except in accordance with the other person's written request.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (4) A person must not take any action that enables another person who has a debit card to use the card as a credit card, except in accordance with the other person's written request.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (5) A **credit card** is an article that is one or more of the following:
- (a) an article of a kind commonly known as a credit card;
 - (b) a similar article intended for use in obtaining cash, goods or services on credit;
 - (c) an article of a kind that persons carrying on business commonly issue to their customers, or prospective customers, for use in obtaining goods or services from those persons on credit;
- and includes an article that may be used as an article referred to in paragraph (a), (b) or (c).
- (6) A **debit card** is:
- (a) an article intended for use by a person in obtaining access to an account that is held by the person for the purpose of withdrawing or depositing cash or obtaining goods or services; or
 - (b) an article that may be used as an article referred to in paragraph (a).

40 Assertion of right to payment for unsolicited goods or services

- (1) A person must not, in trade or commerce, assert a right to payment from another person for unsolicited goods unless the person has reasonable cause to believe that there is a right to the payment.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A person must not, in trade or commerce, assert a right to payment from another person for unsolicited services unless the person has reasonable cause to believe that there is a right to the payment.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) A person must not, in trade or commerce, send to another person an invoice or other document that:

- (a) states the amount of a payment, or sets out the charge, for unsolicited goods or unsolicited services; and

Section 41

(b) does not contain a warning statement that complies with the requirements set out in the regulations;

unless the person has reasonable cause to believe that there is a right to the payment or charge.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (4) In a proceeding against a person in relation to a contravention of this section, the person bears the onus of proving that the person had reasonable cause to believe that there was a right to the payment or charge.

41 Liability etc. of recipient for unsolicited goods

- (1) If a person, in trade or commerce, supplies unsolicited goods to another person, the other person:
- (a) is not liable to make any payment for the goods; and
 - (b) is not liable for loss of or damage to the goods, other than loss or damage resulting from the other person doing a wilful and unlawful act in relation to the goods during the recovery period.
- (2) If a person sends, in trade or commerce, unsolicited goods to another person:
- (a) neither the sender nor any person claiming under the sender is entitled, after the end of the recovery period, to take action for the recovery of the goods from the other person; and
 - (b) at the end of the recovery period, the goods become, by force of this section, the property of the other person freed and discharged from all liens and charges of any description.
- (3) However, subsection (2) does not apply to or in relation to unsolicited goods sent to a person if:
- (a) the person has, at any time during the recovery period, unreasonably refused to permit the sender or the owner of the goods to take possession of the goods; or
 - (b) the sender or the owner of the goods has within the recovery period taken possession of the goods; or

- (c) the goods were received by the person in circumstances in which the person knew, or might reasonably be expected to have known, that the goods were not intended for him or her.
- (4) The **recovery period** is whichever of the following periods ends first:
 - (a) the period of 3 months starting on the day after the day on which the person received the goods;
 - (b) if the person who receives the unsolicited goods gives notice with respect to the goods to the supplier or sender in accordance with subsection (5)—the period of one month starting on the day after the day on which the notice is given.
- (5) A notice under subsection (4)(b):
 - (a) must be in writing; and
 - (b) must state the name and address of the person who received the goods; and
 - (c) must state the address at which possession may be taken of the goods, if it is not the address of the person; and
 - (d) must contain a statement to the effect that the goods are unsolicited goods.

42 Liability of recipient for unsolicited services

If a person, in trade or commerce, supplies, or purports to supply but does not supply, unsolicited services to another person, the other person:

- (a) is not liable to make any payment for the services; and
- (b) is not liable for loss or damage as a result of the supply or purported supply of the services.

43 Assertion of right to payment for unauthorised entries or advertisements

- (1) A person must not assert a right to payment from another person of a charge for placing, in a publication, an entry or advertisement relating to:

Section 43

- (a) the other person; or
- (b) the other person's profession, business, trade or occupation; unless the person knows, or has reasonable cause to believe, that the other person authorised the placing of the entry or advertisement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A person must not send to another person an invoice or other document that:
 - (a) states the amount of a payment, or sets out the charge, for placing, in a publication, an entry or advertisement relating to:
 - (i) the other person; or
 - (ii) the other person's profession, business, trade or occupation; and
 - (b) does not contain a warning statement that complies with the requirements set out in the regulations; unless the person knows, or has reasonable cause to believe, that the other person authorised the placing of the entry or advertisement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) Subsections (1) and (2) do not apply to an entry or advertisement that is placed in a publication published by a person who is:
 - (a) the publisher of a publication that has an audited circulation of 10,000 copies or more per week, as confirmed by the most recent audit of the publication by a body specified in the regulations; or
 - (b) a body corporate related to such a publisher; or
 - (c) the Commonwealth, a State or a Territory, or an authority of the Commonwealth, a State or a Territory; or
 - (d) a person specified in the regulations.
- (4) A person:
 - (a) is not liable to make any payment to another person; and

Section 43

- (b) is entitled to recover by action in a court against another person any payment made by the person to the other person; in full or part satisfaction of a charge for placing, in a publication, an entry or advertisement, unless the person authorised the placing of the entry or advertisement.
- (5) A person is not taken for the purposes of this section to have authorised the placing of the entry or advertisement, unless:
 - (a) a document authorising the placing of the entry or advertisement has been signed by the person or by another person authorised by him or her; and
 - (b) a copy of the document has been given to the person before the right to payment of a charge for the placing of the entry or advertisement is asserted; and
 - (c) the document specifies:
 - (i) the name and address of the person publishing the entry or advertisement; and
 - (ii) particulars of the entry or advertisement; and
 - (iii) the amount of the charge for the placing of the entry or advertisement, or the basis on which the charge is, or is to be, calculated.
- (6) In a proceeding against a person in relation to a contravention of this section, the person bears the onus of proving that the person knew or had reasonable cause to believe that the person against whom a right to payment was asserted had authorised the placing of the entry or advertisement.

Section 44

Division 3—Pyramid schemes

44 Participation in pyramid schemes

- (1) A person must not participate in a pyramid scheme.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A person must not induce, or attempt to induce, another person to participate in a pyramid scheme.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) To **participate** in a pyramid scheme is:

- (a) to establish or promote the scheme (whether alone or together with another person); or
- (b) to take part in the scheme in any capacity (whether or not as an employee or agent of a person who establishes or promotes the scheme, or who otherwise takes part in the scheme).

45 Meaning of *pyramid scheme*

- (1) A **pyramid scheme** is a scheme with both of the following characteristics:

- (a) to take part in the scheme, some or all new participants must provide, to another participant or participants in the scheme, either of the following (a **participation payment**):
 - (i) a financial or non-financial benefit to, or for the benefit of, the other participant or participants;
 - (ii) a financial or non-financial benefit partly to, or for the benefit of, the other participant or participants and partly to, or for the benefit of, other persons;
- (b) the participation payments are entirely or substantially induced by the prospect held out to new participants that they will be entitled, in relation to the introduction to the scheme

of further new participants, to be provided with either of the following (a **recruitment payment**):

- (i) a financial or non-financial benefit to, or for the benefit of, new participants;
 - (ii) a financial or non-financial benefit partly to, or for the benefit of, new participants and partly to, or for the benefit of, other persons.
- (2) A **new participant** includes a person who has applied, or been invited, to participate in the scheme.
- (3) A scheme may be a pyramid scheme:
- (a) no matter who holds out to new participants the prospect of entitlement to recruitment payments; and
 - (b) no matter who is to make recruitment payments to new participants; and
 - (c) no matter who is to make introductions to the scheme of further new participants.
- (4) A scheme may be a pyramid scheme even if it has any or all of the following characteristics:
- (a) the participation payments may (or must) be made after the new participants begin to take part in the scheme;
 - (b) making a participation payment is not the only requirement for taking part in the scheme;
 - (c) the holding out of the prospect of entitlement to recruitment payments does not give any new participant a legally enforceable right;
 - (d) arrangements for the scheme are not recorded in writing (whether entirely or partly);
 - (e) the scheme involves the marketing of goods or services (or both).

46 Marketing schemes as pyramid schemes

- (1) To decide, for the purpose of this Schedule, whether a scheme that involves the marketing of goods or services (or both) is a pyramid

Section 46

scheme, a court must have regard to the following matters in working out whether participation payments under the scheme are entirely or substantially induced by the prospect held out to new participants of entitlement to recruitment payments:

- (a) whether the participation payments bear a reasonable relationship to the value of the goods or services that participants are entitled to be supplied with under the scheme (as assessed, if appropriate, by reference to the price of comparable goods or services available elsewhere);
 - (b) the emphasis given in the promotion of the scheme to the entitlement of participants to the supply of goods or services by comparison with the emphasis given to their entitlement to recruitment payments.
- (2) Subsection (1) does not limit the matters to which the court may have regard in working out whether participation payments are entirely or substantially induced by the prospect held out to new participants of entitlement to recruitment payments.

Division 4—Pricing

47 Multiple pricing

- (1) A person must not, in trade or commerce, supply goods if:
- (a) the goods have more than one displayed price; and
 - (b) the supply takes place for a price that is not the lower, or lowest, of the displayed prices.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A **displayed price** for goods is a price for the goods, or any representation that may reasonably be inferred to be a representation of a price for the goods:
- (a) that is annexed or affixed to, or is written, printed, stamped or located on, or otherwise applied to, the goods or any covering, label, reel or thing used in connection with the goods; or
 - (b) that is used in connection with the goods or anything on which the goods are mounted for display or exposed for supply; or
 - (c) that is determined on the basis of anything encoded on or in relation to the goods; or
 - (d) that is published in relation to the goods in a catalogue available to the public if:
 - (i) a time is specified in the catalogue as the time after which the goods will not be sold at that price and that time has not passed; or
 - (ii) in any other case—the catalogue may reasonably be regarded as not out-of-date; or
 - (e) that is in any other way represented in a manner from which it may reasonably be inferred that the price or representation is applicable to the goods;
- and includes such a price or representation that is partly obscured by another such price or representation that is written, stamped or located partly over that price or representation.

Section 48

- (3) If:
- (a) a price or representation is included in a catalogue; and
 - (b) the catalogue is expressed to apply only to goods supplied at a specified location, or in a specified region;
- the price or representation is taken, for the purposes of subsection (2)(d), not to have been made in relation to supply of the goods at a different location, or in a different region, as the case may be.
- (4) Despite subsection (2), a price or representation is not a displayed price for goods if:
- (a) the price or representation is wholly obscured by another such price or representation that is written, stamped or located wholly over that price or representation; or
 - (b) the price or representation:
 - (i) is expressed as a price per unit of mass, volume, length or other unit of measure; and
 - (ii) is presented as an alternative means of expressing the price for supply of the goods that is a displayed price for the goods; or
 - (c) the price or representation is expressed as an amount in a currency other than Australian currency; or
 - (d) the price or representation is expressed in a way that is unlikely to be interpreted as an amount of Australian currency.
- (5) Despite subsection (2), a displayed price for goods that is a displayed price because it has been published in a catalogue or advertisement ceases to be a displayed price for the goods if:
- (a) the displayed price is retracted; and
 - (b) the retraction is published in a manner that has at least a similar circulation or audience as the catalogue or advertisement.

48 Single price to be specified in certain circumstances

- (1) A person must not, in trade or commerce, in connection with:
-

Section 48

- (a) the supply, or possible supply, to another person of goods or services of a kind ordinarily acquired for personal, domestic or household use or consumption; or
- (b) the promotion by any means of the supply to another person, or of the use by another person, of goods or services of a kind ordinarily acquired for personal, domestic or household use or consumption;

make a representation with respect to an amount that, if paid, would constitute a part of the consideration for the supply of the goods or services unless the person also specifies, in a prominent way and as a single figure, the single price for the goods or services.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A person is not required to include, in the single price for goods, a charge that is payable in relation to sending the goods from the supplier to the other person.
- (3) However, if:
 - (a) the person does not include in the single price a charge that is payable in relation to sending the goods from the supplier to the other person; and
 - (b) the person knows, at the time of the representation, the minimum amount of a charge in relation to sending the goods from the supplier to the other person that must be paid by the other person;

the person must not make the representation referred to in subsection (1) unless the person also specifies that minimum amount.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (4) Subsection (1) does not apply if the representation is made exclusively to a body corporate.

(4A) Subsection (1) does not apply if:

Section 48

- (a) the representation is in a class of representations prescribed by the regulations; and
- (b) the conditions (if any) prescribed by the regulations in relation to representations in that class have been complied with.

Note: If the representation is in a class prescribed for paragraph (a) of this subsection and subsection (1) is complied with in relation to the representation, there is no need to also comply with any conditions prescribed for paragraph (b) of this subsection.

- (5) For the purposes of subsection (1), the person is taken not to have specified a single price for the goods or services in a prominent way unless the single price is at least as prominent as the most prominent of the parts of the consideration for the supply.
- (6) Subsection (5) does not apply in relation to services to be supplied under a contract if:
 - (a) the contract provides for the supply of the services for the term of the contract; and
 - (b) the contract provides for periodic payments for the services to be made during the term of the contract; and
 - (c) if the contract also provides for the supply of goods—the goods are directly related to the supply of the services.
- (7) The **single price** is the minimum quantifiable consideration for the supply of the goods or services at the time of the representation, including each of the following amounts (if any) that is quantifiable at that time:
 - (a) a charge of any description payable to the person making the representation by another person unless:
 - (i) the charge is payable at the option of the other person; and
 - (ii) at or before the time of the representation, the other person has either deselected the charge or not expressly requested that the charge be applied;
 - (b) the amount which reflects any tax, duty, fee, levy or charge imposed on the person making the representation in relation to the supply;

- (c) any amount paid or payable by the person making the representation in relation to the supply with respect to any tax, duty, fee, levy or charge if:
- (i) the amount is paid or payable under an agreement or arrangement made under a law of the Commonwealth, a State or a Territory; and
 - (ii) the tax, duty, fee, levy or charge would have otherwise been payable by another person in relation to the supply.

Example 1: An airline advertises a flight for sale. Persons have the option of paying for a carbon offset. If the carbon offset is preselected on the airline's online booking system, the single price for the flight must include the carbon offset charge. This is because the person has not, at or before the time of the representation, deselected the charge on the online booking site. If the person deselects the optional carbon offset charge later in the online booking process, the single price does not need to include the carbon offset charge after the charge is deselected because of the exception provided by paragraphs (a)(i) and (ii).

Example 2: The GST may be an example of an amount covered by paragraph (b).

Example 3: The passenger movement charge imposed under the *Passenger Movement Charge Act 1978* may be an example of an amount covered by paragraph (c). Under an arrangement under section 10 of the *Passenger Movement Charge Collection Act 1978*, airlines may pay an amount equal to the charge that would otherwise be payable by passengers departing Australia.

Section 49

Division 5—Other unfair practices

49 Referral selling

A person must not, in trade or commerce, induce a consumer to acquire goods or services by representing that the consumer will, after the contract for the acquisition of the goods or services is made, receive a rebate, commission or other benefit in return for:

- (a) giving the person the names of prospective customers; or
- (b) otherwise assisting the person to supply goods or services to other consumers;

if receipt of the rebate, commission or other benefit is contingent on an event occurring after that contract is made.

Note: A pecuniary penalty may be imposed for a contravention of this section.

50 Harassment and coercion

- (1) A person must not use physical force, or undue harassment or coercion, in connection with:

- (a) the supply or possible supply of goods or services; or
- (b) the payment for goods or services; or
- (c) the sale or grant, or the possible sale or grant, of an interest in land; or
- (d) the payment for an interest in land.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) Subsections (1)(c) and (d) do not affect the application of any other provision of Part 2-1 or this Part in relation to the supply or acquisition, or the possible supply or acquisition, of interests in land.

Part 3-2—Consumer transactions

Division 1—Consumer guarantees

Subdivision A—Guarantees relating to the supply of goods

51 Guarantee as to title

- (1) If a person (the *supplier*) supplies goods to a consumer, there is a guarantee that the supplier will have a right to dispose of the property in the goods when that property is to pass to the consumer.
- (2) Subsection (1) does not apply to a supply (a *supply of limited title*) if an intention that the supplier of the goods should transfer only such title as the supplier, or another person, may have:
 - (a) appears from the contract for the supply; or
 - (b) is to be inferred from the circumstances of that contract.
- (3) This section does not apply if the supply is a supply by way of hire or lease.

52 Guarantee as to undisturbed possession

- (1) If:
 - (a) a person (the *supplier*) supplies goods to a consumer; and
 - (b) the supply is not a supply of limited title;there is a guarantee that the consumer has the right to undisturbed possession of the goods.
- (2) Subsection (1) does not apply to the extent that the consumer's undisturbed possession of the goods may be lawfully disturbed by a person who is entitled to the benefit of any security, charge or encumbrance disclosed to the consumer before the consumer agreed to the supply.
- (3) If:

Section 53

- (a) a person (the **supplier**) supplies goods to a consumer; and
 - (b) the supply is a supply of limited title;
- there is a guarantee that the following persons will not disturb the consumer's possession of the goods:
- (c) the supplier;
 - (d) if the parties to the contract for the supply intend that the supplier should transfer only such title as another person may have—that other person;
 - (e) anyone claiming through or under the supplier or that other person (otherwise than under a security, charge or encumbrance disclosed to the consumer before the consumer agreed to the supply).
- (4) This section applies to a supply by way of hire or lease only for the period of the hire or lease.

53 Guarantee as to undisclosed securities etc.

- (1) If:
- (a) a person (the **supplier**) supplies goods to a consumer; and
 - (b) the supply is not a supply of limited title;
- there is a guarantee that:
- (c) the goods are free from any security, charge or encumbrance:
 - (i) that was not disclosed to the consumer, in writing, before the consumer agreed to the supply; or
 - (ii) that was not created by or with the express consent of the consumer; and
 - (d) the goods will remain free from such a security, charge or encumbrance until the time when the property in the goods passes to the consumer.
- (2) A supplier does not fail to comply with the guarantee only because of the existence of a floating charge over the supplier's assets unless and until the charge becomes fixed and enforceable by the person to whom the charge is given.

Section 54

Note: Section 339 of the *Personal Property Securities Act 2009* affects the meaning of the references in this subsection to a floating charge and a fixed charge.

- (3) If:
- (a) a person (the **supplier**) supplies goods to a consumer; and
 - (b) the supply is a supply of limited title;
- there is a guarantee that all securities, charges or encumbrances known to the supplier, and not known to the consumer, were disclosed to the consumer before the consumer agreed to the supply.
- (4) This section does not apply if the supply is a supply by way of hire or lease.

54 Guarantee as to acceptable quality

- (1) If:
- (a) a person supplies, in trade or commerce, goods to a consumer; and
 - (b) the supply does not occur by way of sale by auction;
- there is a guarantee that the goods are of acceptable quality.
- (2) Goods are of **acceptable quality** if they are as:
- (a) fit for all the purposes for which goods of that kind are commonly supplied; and
 - (b) acceptable in appearance and finish; and
 - (c) free from defects; and
 - (d) safe; and
 - (e) durable;
- as a reasonable consumer fully acquainted with the state and condition of the goods (including any hidden defects of the goods), would regard as acceptable having regard to the matters in subsection (3).
- (3) The matters for the purposes of subsection (2) are:
- (a) the nature of the goods; and
 - (b) the price of the goods (if relevant); and

Section 54

- (c) any statements made about the goods on any packaging or label on the goods; and
 - (d) any representation made about the goods by the supplier or manufacturer of the goods; and
 - (e) any other relevant circumstances relating to the supply of the goods.
- (4) If:
 - (a) goods supplied to a consumer are not of acceptable quality; and
 - (b) the only reason or reasons why they are not of acceptable quality were specifically drawn to the consumer's attention before the consumer agreed to the supply;the goods are taken to be of acceptable quality.
- (5) If:
 - (a) goods are displayed for sale or hire; and
 - (b) the goods would not be of acceptable quality if they were supplied to a consumer;the reason or reasons why they are not of acceptable quality are taken, for the purposes of subsection (4), to have been specifically drawn to a consumer's attention if those reasons were disclosed on a written notice that was displayed with the goods and that was transparent.
- (6) Goods do not fail to be of acceptable quality if:
 - (a) the consumer to whom they are supplied causes them to become of unacceptable quality, or fails to take reasonable steps to prevent them from becoming of unacceptable quality; and
 - (b) they are damaged by abnormal use.
- (7) Goods do not fail to be of acceptable quality if:
 - (a) the consumer acquiring the goods examines them before the consumer agrees to the supply of the goods; and
 - (b) the examination ought reasonably to have revealed that the goods were not of acceptable quality.

55 Guarantee as to fitness for any disclosed purpose etc.

- (1) If:
- (a) a person (the *supplier*) supplies, in trade or commerce, goods to a consumer; and
 - (b) the supply does not occur by way of sale by auction;
there is a guarantee that the goods are reasonably fit for any disclosed purpose, and for any purpose for which the supplier represents that they are reasonably fit.
- (2) A *disclosed purpose* is a particular purpose (whether or not that purpose is a purpose for which the goods are commonly supplied) for which the goods are being acquired by the consumer and that:
- (a) the consumer makes known, expressly or by implication, to:
 - (i) the supplier; or
 - (ii) a person by whom any prior negotiations or arrangements in relation to the acquisition of the goods were conducted or made; or
 - (b) the consumer makes known to the manufacturer of the goods either directly or through the supplier or the person referred to in paragraph (a)(ii).
- (3) This section does not apply if the circumstances show that the consumer did not rely on, or that it was unreasonable for the consumer to rely on, the skill or judgment of the supplier, the person referred to in subsection (2)(a)(ii) or the manufacturer, as the case may be.

56 Guarantee relating to the supply of goods by description

- (1) If:
- (a) a person supplies, in trade or commerce, goods by description to a consumer; and
 - (b) the supply does not occur by way of sale by auction;
there is a guarantee that the goods correspond with the description.

Section 57

- (2) A supply of goods is not prevented from being a supply by description only because, having been exposed for sale or hire, they are selected by the consumer.
- (3) If goods are supplied by description as well as by reference to a sample or demonstration model, the guarantees in this section and in section 57 both apply.

57 Guarantees relating to the supply of goods by sample or demonstration model

- (1) If:
 - (a) a person supplies, in trade or commerce, goods to a consumer by reference to a sample or demonstration model; and
 - (b) the supply does not occur by way of sale by auction;there is a guarantee that:
 - (c) the goods correspond with the sample or demonstration model in quality, state or condition; and
 - (d) if the goods are supplied by reference to a sample—the consumer will have a reasonable opportunity to compare the goods with the sample; and
 - (e) the goods are free from any defect that:
 - (i) would not be apparent on reasonable examination of the sample or demonstration model; and
 - (ii) would cause the goods not to be of acceptable quality.
- (2) If goods are supplied by reference to a sample or demonstration model as well as by description, the guarantees in section 56 and in this section both apply.

58 Guarantee as to repairs and spare parts

- (1) If:
 - (a) a person supplies, in trade or commerce, goods to a consumer; and
 - (b) the supply does not occur by way of sale by auction;

Section 59

there is a guarantee that the manufacturer of the goods will take reasonable action to ensure that facilities for the repair of the goods, and parts for the goods, are reasonably available for a reasonable period after the goods are supplied.

- (2) This section does not apply if the manufacturer took reasonable action to ensure that the consumer would be given written notice, at or before the time when the consumer agrees to the supply of the goods, that:
- (a) facilities for the repair of the goods would not be available or would not be available after a specified period; or
 - (b) parts for the goods would not be available or would not be available after a specified period.

59 Guarantee as to express warranties

- (1) If:
- (a) a person supplies, in trade or commerce, goods to a consumer; and
 - (b) the supply does not occur by way of sale by auction;
- there is a guarantee that the manufacturer of the goods will comply with any express warranty given or made by the manufacturer in relation to the goods.
- (2) If:
- (a) a person supplies, in trade or commerce, goods to a consumer; and
 - (b) the supply does not occur by way of sale by auction;
- there is a guarantee that the supplier will comply with any express warranty given or made by the supplier in relation to the goods.

Section 60

Subdivision B—Guarantees relating to the supply of services

60 Guarantee as to due care and skill

If a person supplies, in trade or commerce, services to a consumer, there is a guarantee that the services will be rendered with due care and skill.

61 Guarantees as to fitness for a particular purpose etc.

(1) If:

- (a) a person (the *supplier*) supplies, in trade or commerce, services to a consumer; and
- (b) the consumer, expressly or by implication, makes known to the supplier any particular purpose for which the services are being acquired by the consumer;

there is a guarantee that the services, and any product resulting from the services, will be reasonably fit for that purpose.

(2) If:

- (a) a person (the *supplier*) supplies, in trade or commerce, services to a consumer; and
- (b) the consumer makes known, expressly or by implication, to:
 - (i) the supplier; or
 - (ii) a person by whom any prior negotiations or arrangements in relation to the acquisition of the services were conducted or made;

the result that the consumer wishes the services to achieve; there is a guarantee that the services, and any product resulting from the services, will be of such a nature, and quality, state or condition, that they might reasonably be expected to achieve that result.

- (3) This section does not apply if the circumstances show that the consumer did not rely on, or that it was unreasonable for the consumer to rely on, the skill or judgment of the supplier.

- (4) This section does not apply to a supply of services of a professional nature by a qualified architect or engineer.

62 Guarantee as to reasonable time for supply

If:

- (a) a person (the *supplier*) supplies, in trade or commerce, services to a consumer; and
- (b) the time within which the services are to be supplied:
 - (i) is not fixed by the contract for the supply of the services; or
 - (ii) is not to be determined in a manner agreed to by the consumer and supplier;

there is a guarantee that the services will be supplied within a reasonable time.

63 Services to which this Subdivision does not apply

- (1) This Subdivision does not apply to services that are, or are to be, supplied under:
- (a) a contract for or in relation to the transportation or storage of goods for the purposes of a business, trade, profession or occupation carried on or engaged in by the person for whom the goods are transported or stored; or
 - (b) a contract of insurance.
- (2) To avoid doubt, subsection (1)(a) does not apply if the consignee of the goods is not carrying on or engaged in a business, trade, profession or occupation in relation to the goods.

Note: This subsection was inserted as a response to the decision of the High Court of Australia in *Wallis v Downard-Pickford (North Queensland) Pty Ltd* [1994] HCA 17.

Section 64

Subdivision C—Guarantees not to be excluded etc. by contract

64 Guarantees not to be excluded etc. by contract

- (1) A term of a contract (including a term that is not set out in the contract but is incorporated in the contract by another term of the contract) is void to the extent that the term purports to exclude, restrict or modify, or has the effect of excluding, restricting or modifying:
 - (a) the application of all or any of the provisions of this Division; or
 - (b) the exercise of a right conferred by such a provision; or
 - (c) any liability of a person for a failure to comply with a guarantee that applies under this Division to a supply of goods or services.
- (2) A term of a contract is not taken, for the purposes of this section, to exclude, restrict or modify the application of a provision of this Division unless the term does so expressly or is inconsistent with the provision.

64A Limitation of liability for failures to comply with guarantees

- (1) A term of a contract for the supply by a person of goods other than goods of a kind ordinarily acquired for personal, domestic or household use or consumption is not void under section 64 merely because the term limits the person's liability for failure to comply with a guarantee (other than a guarantee under section 51, 52 or 53) to one or more of the following:
 - (a) the replacement of the goods or the supply of equivalent goods;
 - (b) the repair of the goods;
 - (c) the payment of the cost of replacing the goods or of acquiring equivalent goods;
 - (d) the payment of the cost of having the goods repaired.
- (2) A term of a contract for the supply by a person of services other than services of a kind ordinarily acquired for personal, domestic

Section 64A

or household use or consumption is not void under section 64 merely because the term limits the person's liability for failure to comply with a guarantee to:

- (a) the supplying of the services again; or
 - (b) the payment of the cost of having the services supplied again.
- (3) This section does not apply in relation to a term of a contract if the person to whom the goods or services were supplied establishes that it is not fair or reasonable for the person who supplied the goods or services to rely on that term of the contract.
- (4) In determining for the purposes of subsection (3) whether or not reliance on a term of a contract is fair or reasonable, a court is to have regard to all the circumstances of the case, and in particular to the following matters:
- (a) the strength of the bargaining positions of the person who supplied the goods or services and the person to whom the goods or services were supplied (the *buyer*) relative to each other, taking into account, among other things, the availability of equivalent goods or services and suitable alternative sources of supply;
 - (b) whether the buyer received an inducement to agree to the term or, in agreeing to the term, had an opportunity of acquiring the goods or services or equivalent goods or services from any source of supply under a contract that did not include that term;
 - (c) whether the buyer knew or ought reasonably to have known of the existence and extent of the term (having regard, among other things, to any custom of the trade and any previous course of dealing between the parties);
 - (d) in the case of the supply of goods, whether the goods were manufactured, processed or adapted to the special order of the buyer.

Section 65

Subdivision D—Miscellaneous

65 Application of this Division to supplies of gas, electricity and telecommunications

- (1) This Division does not apply to a supply if the supply:
 - (a) is a supply of a kind specified in the regulations; and
 - (b) is a supply of gas, electricity or a telecommunications service.
- (2) A *telecommunications service* is a service for carrying communications by means of guided or unguided electromagnetic energy or both.

66 Display notices

- (1) The Commonwealth Minister may determine, in writing, that persons (the *suppliers*) who make supplies, or supplies of a specified kind, to which guarantees apply under this Division are required to display, in accordance with the determination, a notice that meets the requirements of the determination.
 - (2) A supplier who makes a supply to a consumer to which a guarantee applies under this Division, and to which such a determination relates, must ensure that a notice that meets those requirements is, in accordance with the determination:
 - (a) if the consumer takes delivery of the goods or services at the supplier's premises—displayed at those premises; or
 - (b) otherwise—drawn to the consumer's attention before the consumer agrees to the supply of the goods.
- Note: A pecuniary penalty may be imposed for a contravention of this subsection.
- (3) Without limiting subsection (1), a determination under that subsection may do all or any of the following:
 - (a) require the notice to include specified information about the application of all or any of the provisions of this Division and Part 5-4;

- (b) specify where the notice must be displayed;
- (c) specify how the notice must be drawn to the attention of consumers;
- (d) specify requirements as to the form of the notice.

67 Conflict of laws

If:

- (a) the proper law of a contract for the supply of goods or services to a consumer would be the law of any part of Australia but for a term of the contract that provides otherwise; or
 - (b) a contract for the supply of goods or services to a consumer contains a term that purports to substitute, or has the effect of substituting, the following provisions for all or any of the provisions of this Division:
 - (i) the provisions of the law of a country other than Australia;
 - (ii) the provisions of the law of a State or a Territory;
- the provisions of this Division apply in relation to the supply under the contract despite that term.

68 Convention on Contracts for the International Sale of Goods

The provisions of the United Nations Convention on Contracts for the International Sale of Goods, done at Vienna on 11 April 1980, as amended and in force for Australia from time to time, prevail over the provisions of this Division to the extent of any inconsistency.

Note: The text of the Convention is set out in Australian Treaty Series 1988 No. 32 ([1988] ATS 32). In 2010, the text of a Convention in the Australian Treaty Series was accessible through the Australian Treaties Library on the AustLII website (www.austlii.edu.au).

Section 69

Division 2—Unsolicited consumer agreements

Subdivision A—Introduction

69 Meaning of *unsolicited consumer agreement*

- (1) An agreement is an *unsolicited consumer agreement* if:
- (a) it is for the supply, in trade or commerce, of goods or services to a consumer; and
 - (b) it is made as a result of negotiations between a dealer and the consumer:
 - (i) in each other's presence at a place other than the business or trade premises of the supplier of the goods or services; or
 - (ii) by telephone;whether or not they are the only negotiations that precede the making of the agreement; and
 - (c) the consumer did not invite the dealer to come to that place, or to make a telephone call, for the purposes of entering into negotiations relating to the supply of those goods or services (whether or not the consumer made such an invitation in relation to a different supply); and
 - (d) the total price paid or payable by the consumer under the agreement:
 - (i) is not ascertainable at the time the agreement is made; or
 - (ii) if it is ascertainable at that time—is more than \$100 or such other amount prescribed by the regulations.

- (1AA) To avoid doubt, a place mentioned in subsection (1)(b)(i) may be a public place, and need not be a place the dealer cannot enter without the consumer's consent or invitation.

Note: This subsection was inserted as a response to the decision of the Federal Court of Australia in *Australian Competition and Consumer Commission v A.C.N. 099 814 749 Pty Ltd* [2016] FCA 403.

- (1A) The consumer is not taken, for the purposes of subsection (1)(c), to have invited the dealer to come to that place, or to make a telephone call, merely because the consumer has:
- (a) given his or her name or contact details other than for the predominant purpose of entering into negotiations relating to the supply of the goods or services referred to in subsection (1)(c); or
 - (b) contacted the dealer in connection with an unsuccessful attempt by the dealer to contact the consumer.
- (2) An invitation merely to quote a price for a supply is not taken, for the purposes of subsection (1)(c), to be an invitation to enter into negotiations for a supply.
- (3) An agreement is also an ***unsolicited consumer agreement*** if it is an agreement of a kind that the regulations provide are unsolicited consumer agreements.
- (4) However, despite subsections (1) and (3), an agreement is not an ***unsolicited consumer agreement*** if it is an agreement of a kind that the regulations provide are not unsolicited consumer agreements.

70 Presumption that agreements are unsolicited consumer agreements

- (1) In a proceeding relating to a contravention or possible contravention of this Division (other than a criminal proceeding), an agreement is presumed to be an unsolicited consumer agreement if:
- (a) a party to the proceeding alleges that the agreement is an unsolicited consumer agreement; and
 - (b) no other party to the proceeding proves that the agreement is not an unsolicited consumer agreement.
- (2) In a proceeding relating to a contravention or possible contravention of this Division (other than a criminal proceeding), it is presumed that a proposed agreement would be an unsolicited consumer agreement if it were made if:

Section 71

- (a) a party to the proceeding alleges that the proposed agreement would be an unsolicited consumer agreement if it were made; and
- (b) no other party to the proceeding proves that the proposed agreement would not be an unsolicited consumer agreement if it were made.

71 Meaning of *dealer*

A *dealer* is a person who, in trade or commerce:

- (a) enters into negotiations with a consumer with a view to making an agreement for the supply of goods or services to the consumer; or
- (b) calls on, or telephones, a consumer for the purpose of entering into such negotiations;

whether or not that person is, or is to be, the supplier of the goods or services.

72 Meaning of *negotiation*

A *negotiation*, in relation to an agreement or a proposed agreement, includes any discussion or dealing directed towards the making of the agreement or proposed agreement (whether or not the terms of the agreement or proposed agreement are open to any discussion or dealing).

Subdivision B—Negotiating unsolicited consumer agreements

73 Permitted hours for negotiating an unsolicited consumer agreement

- (1) A dealer must not call on a person for the purpose of negotiating an unsolicited consumer agreement, or for an incidental or related purpose:
 - (a) at any time on a Sunday or a public holiday; or
 - (b) before 9 am on any other day; or

- (c) after 6 pm on any other day (or after 5 pm if the other day is a Saturday).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) Subsection (1) does not apply if the dealer calls on the person in accordance with consent that:
- (a) was given by the person to the dealer or a person acting on the dealer's behalf; and
 - (b) was not given in the presence of the dealer or a person acting on the dealer's behalf.

Note: The *Do Not Call Register Act 2006* may apply to a telephone call made for the purpose of negotiating an unsolicited consumer agreement.

74 Disclosing purpose and identity

A dealer who calls on a person for the purpose of negotiating an unsolicited consumer agreement, or for an incidental or related purpose, must, as soon as practicable and in any event before starting to negotiate:

- (a) clearly advise the person that the dealer's purpose is to seek the person's agreement to a supply of the goods or services concerned; and
- (b) clearly advise the person that the dealer is obliged to leave the premises immediately on request; and
- (c) provide to the person such information relating to the dealer's identity as is prescribed by the regulations.

Note: A pecuniary penalty may be imposed for a contravention of this section.

75 Ceasing to negotiate on request

- (1) A dealer who calls on a person at any premises for the purpose of negotiating an unsolicited consumer agreement, or for an incidental or related purpose, must leave the premises immediately on the request of:

Section 76

- (a) the occupier of the premises, or any person acting with the actual or apparent authority of the occupier; or
- (b) the person (the *prospective consumer*) with whom the negotiations are being conducted.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) If the prospective consumer makes such a request, the dealer must not contact the prospective consumer for the purpose of negotiating an unsolicited consumer agreement (or for an incidental or related purpose) for at least 30 days after the prospective consumer makes the request.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) If the dealer is not, or is not to be, the supplier of the goods or services to which the negotiations relate:
 - (a) subsection (2) applies to that supplier, and any person acting on behalf of that supplier, in the same way that it applies to the dealer; but
 - (b) subsection (2) does not apply to the dealer contacting the prospective customer in relation to a supply by another supplier.

76 Informing person of termination period etc.

A dealer must not make an unsolicited consumer agreement with a person unless:

- (a) before the agreement is made, the person is given information as to the following:
 - (i) the person's right to terminate the agreement during the termination period;
 - (ii) the way in which the person may exercise that right;
 - (iii) such other matters as are prescribed by the regulations;
- and

Section 77

- (b) if the agreement is made in the presence of both the dealer and the person—the person is given the information in writing; and
- (c) if the agreement is made by telephone—the person is given the information by telephone, and is subsequently given the information in writing; and
- (d) the form in which, and the way in which, the person is given the information complies with any other requirements prescribed by the regulations.

Note: A pecuniary penalty may be imposed for a contravention of this section.

77 Liability of suppliers for contraventions by dealers

If:

- (a) a dealer contravenes a provision of this Subdivision in relation to an unsolicited consumer agreement; and
- (b) the dealer is not, or is not to be, the supplier of the goods or services to which the agreement relates;

the supplier of the goods or services is also taken to have contravened that provision in relation to the agreement.

Subdivision C—Requirements for unsolicited consumer agreements etc.

78 Requirement to give document to the consumer

- (1) If an unsolicited consumer agreement was not negotiated by telephone, the dealer who negotiated the agreement must give a copy of the agreement to the consumer under the agreement immediately after the consumer signs the agreement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) If an unsolicited consumer agreement was negotiated by telephone, the dealer who negotiated the agreement must, within 5 business

Section 79

days after the agreement was made or such longer period agreed by the parties, give to the consumer under the agreement:

- (a) personally; or
- (b) by post; or
- (c) with the consumer's consent—by electronic communication; a document (the ***agreement document***) evidencing the agreement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) An unsolicited consumer agreement was ***negotiated by telephone*** if the negotiations that resulted in the making of the agreement took place by telephone (whether or not other negotiations preceded the making of the agreement).

79 Requirements for all unsolicited consumer agreements etc.

The supplier under an unsolicited consumer agreement must ensure that the agreement, or (if the agreement was negotiated by telephone) the agreement document, complies with the following requirements:

- (a) it must set out in full all the terms of the agreement, including:
 - (i) the total consideration to be paid or provided by the consumer under the agreement or, if the total consideration is not ascertainable at the time the agreement is made, the way in which it is to be calculated; and
 - (ii) any postal or delivery charges to be paid by the consumer;
- (b) its front page must include a notice that:
 - (i) conspicuously and prominently informs the consumer of the consumer's right to terminate the agreement; and
 - (ii) conspicuously and prominently sets out any other information prescribed by the regulations; and
 - (iii) complies with any other requirements prescribed by the regulations;

- (c) it must be accompanied by a notice that:
 - (i) may be used by the consumer to terminate the agreement; and
 - (ii) complies with any requirements prescribed by the regulations;
- (d) it must conspicuously and prominently set out in full:
 - (i) the supplier's name; and
 - (ii) if the supplier has an ABN—the supplier's ABN; and
 - (iii) if the supplier does not have an ABN but has an ACN—the supplier's ACN; and
 - (iv) the supplier's business address (not being a post box) or, if the supplier does not have a business address, the supplier's residential address; and
 - (v) if the supplier has an email address—the supplier's email address; and
 - (vi) if the supplier has a fax number—the supplier's fax number;
- (e) it must be printed clearly or typewritten (apart from any amendments to the printed or typewritten form, which may be handwritten);
- (f) it must be transparent.

Note: A pecuniary penalty may be imposed for a contravention of this section.

80 Additional requirements for unsolicited consumer agreements not negotiated by telephone

The supplier under an unsolicited consumer agreement that was not negotiated by telephone must ensure that, in addition to complying with the requirements of section 79, the agreement complies with the following requirements:

- (a) the agreement must be signed by the consumer under the agreement;
- (b) if the agreement is signed by a person on the supplier's behalf—the agreement must state that the person is acting on the supplier's behalf, and must set out in full:

Section 81

- (i) the person's name; and
- (ii) the person's business address (not being a post box) or, if the person does not have a business address, the person's residential address; and
- (iii) if the person has an email address—the person's email address.

Note: A pecuniary penalty may be imposed for a contravention of this section.

81 Requirements for amendments of unsolicited consumer agreements

The supplier under an unsolicited consumer agreement must ensure that any amendments to the agreement are signed by both parties to the agreement.

Note: A pecuniary penalty may be imposed for a contravention of this section.

Subdivision D—Terminating unsolicited consumer agreements

82 Terminating an unsolicited consumer agreement during the termination period

- (1) The consumer under an unsolicited consumer agreement may, during the period provided under subsection (3), terminate the agreement by indicating, in an oral or written notice to the supplier under the agreement, an intention to terminate the agreement.
- (2) A right of termination under this section may be exercised:
 - (a) despite affirmation of the agreement by the consumer; and
 - (b) even though the agreement has been fully executed.
- (3) The period during which the consumer may terminate the agreement is whichever of the following periods is the longest:
 - (a) if the agreement was not negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the tenth business day after the day on which the agreement was made;

Section 82

- (b) if the agreement was negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the tenth business day after the day on which the consumer was given the agreement document relating to the agreement;
 - (c) if one or more of sections 73 (permitted hours for negotiating an unsolicited consumer agreement), 74 (disclosing purpose and identity) and 75 (ceasing to negotiate on request) were contravened in relation to the agreement:
 - (i) if the agreement was not negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the period of 3 months starting on the day after the day on which the agreement was made; or
 - (ii) if the agreement was negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the period of 3 months starting on the day after the day on which the consumer was given the agreement document relating to the agreement;
 - (d) if one or more of section 76 (informing consumer of termination period), a provision of Subdivision C (requirements for unsolicited consumer agreements) and section 86 (prohibition on supplies etc.) were contravened in relation to the agreement:
 - (i) if the agreement was not negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the period of 6 months starting on the day after the day on which the agreement was made; or
 - (ii) if the agreement was negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the period of 6 months starting on the day after the day on which the consumer was given the agreement document relating to the agreement;
 - (e) such other period as the agreement provides.
-

Section 83

- (4) If the notice under subsection (1) is written, it may be given:
 - (a) by delivering it personally to the supplier; or
 - (b) by delivering it, or sending it by post, in an envelope addressed to the supplier, to the supplier's address referred to in section 79(d)(iv); or
 - (c) if the supplier has an email address—by sending it to the supplier's email address referred to in section 79(d)(v); or
 - (d) if the supplier has a fax number—by faxing it to the supplier's fax number referred to in section 79(d)(vi).
- (5) A notice under subsection (1) sent by post to a supplier is taken to have been given to the supplier at the time of posting.
- (6) There are no requirements relating to the form or content of a notice under subsection (1).

83 Effect of termination

- (1) If an unsolicited consumer agreement is terminated in accordance with section 82:
 - (a) the agreement is taken to have been rescinded by mutual consent; and
 - (b) any related contract or instrument is void.
- (2) A ***related contract or instrument***, in relation to an unsolicited consumer agreement, is:
 - (a) any contract of guarantee or indemnity that is related to the agreement; or
 - (b) any instrument related to the agreement that creates a mortgage or charge in favour of the supplier under the contract or the dealer in relation to the contract (or a person nominated by the supplier or dealer); or
 - (c) any contract or instrument (other than an instrument of a kind referred to in paragraph (b)) that is collateral or related to the agreement;but does not include a tied continuing credit contract (within the meaning of section 127(2) of Schedule 1 to the *National Consumer*

Credit Protection Act 2009), or a tied loan contract (within the meaning of section 127(3) of that Schedule).

- (3) The termination of an unsolicited consumer agreement has effect for the purposes of section 82 and this section even if:
- (a) the supplier under the agreement has not received the notice of termination; or
 - (b) the goods or services supplied under the agreement have been wholly or partly consumed or used.

84 Obligations of suppliers on termination

If an unsolicited consumer agreement is terminated in accordance with section 82, the supplier under the agreement must, immediately upon being notified of the termination, return or refund to the consumer under the agreement any consideration (or the value of any consideration) that the consumer gave under the agreement or a related contract or instrument.

Note: A pecuniary penalty may be imposed for a contravention of this section.

85 Obligations and rights of consumers on termination

- (1) If an unsolicited consumer agreement is terminated in accordance with section 82, the consumer under the agreement must, within a reasonable time:
- (a) return to the supplier under the agreement any goods:
 - (i) that have been received from the supplier under the agreement; and
 - (ii) that the consumer has not already consumed; or
 - (b) notify the supplier of the place where the supplier may collect the goods.
- (2) The goods become the property of the consumer, freed and discharged from all liens and charges of any description, if:
- (a) the consumer gives notice to the supplier under subsection (1)(b); and

Section 85

- (b) the supplier does not collect the goods within 30 days after the termination of the contract.
- (3) If:
 - (a) the agreement is terminated in accordance with section 82 after the end of:
 - (i) if the agreement was not negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the tenth business day after the day on which the agreement was made; or
 - (ii) if the agreement was negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the tenth business day after the day on which the consumer was given the agreement document relating to the agreement; and
 - (b) the consumer returns the goods to the supplier, or the supplier collects the goods, under this section; and
 - (c) the consumer has failed to take reasonable care of the goods; the consumer is liable to pay compensation to the supplier for the damage to, or depreciation in the value of, the goods.
- (4) The compensation is recoverable in a court of competent jurisdiction.
- (5) However, the consumer is not liable for any such damage or depreciation attributable to normal use of the goods or to circumstances beyond the consumer's control.
- (6) If:
 - (a) an unsolicited consumer agreement is terminated in accordance with section 82 after the end of:
 - (i) if the agreement was not negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the tenth business day after the day on which the agreement was made; or
 - (ii) if the agreement was negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the tenth business day

after the day on which the consumer was given the agreement document relating to the agreement; and
(b) prior to the termination, but after the end of that period, a service was supplied under the agreement;
the termination does not affect any liability of the consumer under the agreement to provide consideration for the service.

86 Prohibition on supplies etc.

- (1) The supplier under an unsolicited consumer agreement must not:
- (a) supply to the consumer under the agreement the goods or services to be supplied under the agreement; or
 - (b) accept any payment, or any other consideration, in connection with those goods or services; or
 - (c) require any payment, or any other consideration, in connection with those goods or services;
- during:
- (d) if the agreement was not negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the tenth business day after the day on which the agreement was made; or
 - (e) if the agreement was negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the tenth business day after the day on which the consumer was given the agreement document relating to the agreement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) If the supplier supplies goods to the consumer in contravention of this section, the consumer has the same rights in relation to the goods as if the goods were unsolicited goods.

Note: Section 41 deals with unsolicited goods.

- (3) If the supplier supplies services to the consumer in contravention of this section, the consumer has the same rights in relation to the services as if the services were unsolicited services.

Section 87

Note: Section 42 deals with unsolicited services.

87 Repayment of payments received after termination

If an unsolicited consumer agreement is terminated in accordance with section 82, the supplier under the agreement must immediately refund to the consumer under the agreement any payment:

- (a) that the consumer, or a person acting on the consumer's behalf, makes to the supplier after the termination; and
- (b) that purports to be made under the agreement or a related contract or instrument.

Note: A pecuniary penalty may be imposed for a contravention of this section.

88 Prohibition on recovering amounts after termination

- (1) If an unsolicited consumer agreement is terminated in accordance with section 82, a person must not:

- (a) bring, or assert an intention to bring, legal proceedings against the consumer; or
- (b) take, or assert an intention to take, any other action against the consumer;

in relation to an amount alleged to be payable, under the agreement or a related contract or instrument, by the consumer under the agreement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (1A) Subsection (1) does not apply to:

- (a) bringing, or asserting an intention to bring, legal proceedings against the consumer; or
- (b) taking, or asserting an intention to take, any other action against the consumer;

to enforce a liability under section 85(3), or a liability of a kind referred to in section 85(6).

Section 89

- (2) If an unsolicited consumer agreement is terminated in accordance with section 82, a person must not, for the purpose of recovering an amount alleged to be payable, under the agreement or a related contract or instrument, by the consumer under the agreement:
- (a) place the consumer's name, or cause the consumer's name to be placed, on a list of defaulters or debtors; or
 - (b) assert an intention to place the consumer's name, or cause the consumer's name to be placed, on such a list.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) Without limiting Division 2 of Part 5-2, an injunction granted under that Division may require a person responsible for keeping a list of defaulters or debtors on which the consumer's name has been wrongly placed to remove the name from that list.

Subdivision E—Miscellaneous

89 Certain provisions of unsolicited consumer agreements void

- (1) A provision (however described) of an unsolicited consumer agreement is void if it has the effect of, or purports to have the effect of:
- (a) excluding, limiting, modifying or restricting a right of the consumer under the agreement to terminate the agreement under this Division; or
 - (b) otherwise excluding, limiting, modifying or restricting the effect or operation of this Division; or
 - (c) making a dispute relating to the agreement, or to a supply to which the agreement relates, justiciable by a court by which the dispute would not otherwise be justiciable.
- (2) The supplier under an unsolicited consumer agreement must ensure that the agreement does not include, or purport to include, a provision (however described) that is, or would be, void because of subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Section 90

- (3) The supplier under an unsolicited consumer agreement must not attempt to enforce or rely on a provision (however described) that is void because of subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

90 Waiver of rights

- (1) The consumer under an unsolicited consumer agreement is not competent to waive any right conferred by this Division.
- (2) The supplier under the unsolicited consumer agreement must not induce, or attempt to induce, the consumer to waive any right conferred by this Division.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

91 Application of this Division to persons to whom rights of consumers and suppliers are assigned etc.

- (1) This Division applies in relation to a person to whom the rights of a consumer (the *original consumer*) under a contract for the supply of goods or services are assigned or transferred, or pass by operation of law, (whether from the original consumer or from another person) as if the person were the original consumer.
- (2) This Division applies in relation to a person to whom the rights of a supplier (the *original supplier*) under a contract for the supply of goods or services are assigned or transferred, or pass by operation of law, (whether from the original supplier or from another person) as if the person were the original supplier.

92 Application of this Division to supplies to third parties

This Division applies in relation to a contract for the supply of goods or services to a consumer (the *original consumer*) on the order of another person as if the other person were also the consumer.

93 Effect of contravening this Division

- (1) The supplier under an unsolicited consumer agreement cannot enforce the agreement against the consumer under the agreement if a provision of this Division (other than section 85) has been contravened in relation to the agreement.
- (2) This section does not prevent any action being taken under this Schedule in relation to the contravention.

94 Regulations may limit the application of this Division

This Division (other than section 73) does not apply, or provisions of this Division (other than section 73) that are specified in the regulations do not apply, to or in relation to:

- (a) circumstances of a kind specified in the regulations; or
- (b) agreements of a kind specified in the regulations; or
- (c) the conduct of businesses of a kind specified in the regulations.

95 Application of this Division to certain conduct covered by the Corporations Act

This Division does not apply in relation to conduct to which section 992A of the *Corporations Act 2001* applies.

Note: Section 992A of the *Corporations Act 2001* prohibits hawking of financial products.

Section 96

Division 3—Lay-by agreements

96 Lay-by agreements must be in writing etc.

- (1) A supplier of goods who is a party to a lay-by agreement must ensure that:

- (a) the agreement is in writing; and
- (b) a copy of the agreement is given to the consumer to whom the goods are, or are to be, supplied.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A supplier of goods who is a party to a lay-by agreement must ensure that the agreement is transparent.
- (3) A **lay-by agreement** is an agreement between a supplier of goods and a consumer for the supply, in trade or commerce, of the goods on terms (whether express or implied) which provide that:
- (a) the goods will not be delivered to the consumer until the total price of the goods has been paid; and
 - (b) the price of the goods is to be paid by:
 - (i) 3 or more instalments; or
 - (ii) if the agreement specifies that it is a lay-by agreement—2 or more instalments.
- (4) For the purposes of subsection (3)(b), any deposit paid by the consumer for the goods is taken to be an instalment.

97 Termination of lay-by agreements by consumers

- (1) A consumer who is party to a lay-by agreement may terminate the agreement at any time before the goods to which the agreement relates are delivered to the consumer under the agreement.
- (2) A supplier of goods who is a party to a lay-by agreement must ensure that the agreement does not require the consumer to pay a

Section 98

charge (a **termination charge**) for the termination of the agreement unless:

- (a) the agreement is terminated by the consumer; and
- (b) the supplier has not breached the agreement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) A supplier of goods who is a party to a lay-by agreement must ensure that, if the agreement provides that a termination charge is payable, the amount of the charge is not more than the supplier's reasonable costs in relation to the agreement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

98 Termination of lay-by agreements by suppliers

A supplier of goods who is a party to a lay-by agreement must not terminate the agreement unless:

- (a) the consumer who is a party to the agreement breached a term of the agreement; or
- (b) the supplier is no longer engaged in trade or commerce; or
- (c) the goods to which the agreement relates are no longer available.

Note: A pecuniary penalty may be imposed for a contravention of this section.

99 Effect of termination

- (1) If a lay-by agreement is terminated by a party to the agreement, the supplier must refund to the consumer all the amounts paid by the consumer under the agreement other than any termination charge that is payable under the agreement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) The supplier is entitled to recover any unpaid termination charge from the consumer as a debt if the amounts paid by the consumer under the lay-by agreement are not enough to cover the charge.

Section 99

- (3) If a lay-by agreement is terminated by a party to the agreement, the supplier is not entitled to damages, or to enforce any other remedy, in relation to that termination except as provided for by this section.

Division 3A—Gift cards

Subdivision A—Introduction

99A Meaning of *gift card*

A *gift card* is:

- (a) an article (whether in physical or electronic form) that:
 - (i) is of a kind that is commonly known as a gift card or gift voucher; and
 - (ii) is redeemable for goods or services; or
 - (b) an article of a kind specified in regulations made for the purposes of this paragraph;
- but does not include an article of a kind specified in the regulations.

Subdivision B—Requirements relating to gift cards

99B Gift cards to be redeemable for at least 3 years

- (1) A person must not, in trade or commerce, supply a gift card to a consumer if the day that the gift card ceases to be redeemable is earlier than 3 years after the day of that supply.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) If:
 - (a) a gift card is, in trade or commerce, supplied to a consumer; and
 - (b) the day that the gift card ceases to be redeemable is earlier than 3 years after the day of that supply;the day that the gift card ceases to be redeemable is taken to be 3 years after the day of that supply.
- (3) Subsection (2) does not affect a person's liability for an alleged contravention of subsection (1) or section 191A.

Section 99C

99C When gift card ceases to be redeemable to appear prominently on gift card

A person must not, in trade or commerce, supply a gift card to a consumer if one of the following does not appear prominently on the gift card:

- (a) the date the gift card ceases to be redeemable;
- (b) the month and year the gift card ceases to be redeemable;
- (c) the date the gift card is supplied and a statement that identifies the period during which the gift card is redeemable;
- (d) the month and year the gift card is supplied and a statement that identifies the period during which the gift card is redeemable;
- (e) the words “no expiry date” or words to that effect.

Note: A pecuniary penalty may be imposed for a contravention of this section.

99D Terms and conditions not to allow post-supply fees

- (1) A person must not, in trade or commerce, supply a gift card to a consumer if the terms or conditions (however described) of the gift card allow or require the payment of a post-supply fee in relation to the gift card.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A **post-supply fee** is a fee or charge payable in relation to a gift card after it is supplied to a consumer, other than a fee or charge of a kind specified in the regulations.

99E Post-supply fees not to be demanded or received

A person must not, in trade or commerce, demand or receive payment of a post-supply fee in relation to a gift card.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Section 99F

99F Certain terms and conditions of gift card void

- (1) A term or condition (however described) of a gift card is void if it has the effect of, or purports to have the effect of:
 - (a) allowing or requiring the payment of a post-supply fee in relation to the gift card; or
 - (b) reducing the period that the gift card ceases to be redeemable to a period that ends earlier than 3 years after the day the gift card is supplied to a consumer.
- (2) The supplier of a gift card must ensure that the terms or conditions (however described) of the gift card do not include, or purport to include, a term or condition that is, or would be, void because of subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.
- (3) This section does not affect a person's liability for an alleged contravention of:
 - (a) section 99B(1); or
 - (b) section 99C; or
 - (c) section 99D(1); or
 - (d) section 99E; or
 - (e) section 191A; or
 - (f) section 191B; or
 - (g) section 191C; or
 - (h) section 191D.

Subdivision C—Miscellaneous

99G Regulations may limit application of this Division

The regulations may provide that some or all of the provisions of this Division do not apply to or in relation to:

- (a) gift cards of a kind prescribed by the regulations; or
- (b) persons of a kind prescribed by the regulations; or

Section 99G

- (c) gift cards supplied in circumstances prescribed by the regulations.

Division 4—Miscellaneous

100 Supplier must provide proof of transaction etc.

(1) If:

- (a) a person (the **supplier**), in trade or commerce, supplies goods or services to a consumer; and
- (b) the total price (excluding GST) of the goods or services is \$75 or more;

the supplier must give the consumer a proof of transaction as soon as practicable after the goods or services are so supplied.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

(2) If:

- (a) a person (the **supplier**), in trade or commerce, supplies goods or services to a consumer; and
- (b) the total price (excluding GST) of the goods or services is less than \$75;

the consumer may request a proof of transaction from the supplier as soon as practicable after the goods or services are so supplied.

(3) If a request is made under subsection (2), the supplier must give the proof of transaction within 7 days after the request is made.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

(4) A **proof of transaction** for a supply of goods or services to a consumer is a document that:

- (a) identifies the supplier of the goods or services; and
- (b) if the supplier has an ABN—states the supplier's ABN; and
- (c) if the supplier does not have an ABN but has an ACN—states the supplier's ACN; and
- (d) states the date of the supply; and
- (e) states the goods or services supplied to the consumer; and
- (f) states the price of the goods or services.

Section 101

- Note: The following are examples of a proof of transaction:
- (a) a tax invoice within the meaning of the *A New Tax System (Goods and Services Tax) Act 1999*;
 - (b) a cash register receipt;
 - (c) a credit card or debit card statement;
 - (d) a handwritten receipt;
 - (e) a lay-by agreement;
 - (f) a confirmation or receipt number provided for a telephone or internet transaction.

- (5) The supplier must ensure that the proof of transaction given under subsection (1) or (3) is transparent.

101 Consumer may request an itemised bill

- (1) If a person (the **supplier**), in trade or commerce, supplies services to a consumer, the consumer may request that the supplier give the consumer an itemised bill that:
- (a) specifies how the price of the services was calculated; and
 - (b) includes, if applicable, the number of hours of labour that related to the supply of the services and the hourly rate for that labour; and
 - (c) includes, if applicable, a list of the materials used to supply the services and the amount charged for those materials.
- (2) The request under subsection (1) must be made within 30 days after:
- (a) the services are supplied; or
 - (b) the consumer receives a bill or account from the supplier for the supply of the services;
- whichever occurs later.
- (3) The supplier must give the consumer the itemised bill within 7 days after the request is made.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (4) The supplier must not charge the consumer for the itemised bill.

Section 102

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (5) The supplier must ensure that the itemised bill is transparent.

102 Prescribed requirements for warranties against defects

- (1) The regulations may prescribe requirements relating to the form and content of warranties against defects.
- (2) A person must not, in connection with the supply, in trade or commerce, of goods or services to a consumer:
- (a) give to the consumer a document that evidences a warranty against defects that does not comply with the requirements prescribed for the purposes of subsection (1); or
 - (b) represent directly to the consumer that the goods or services are goods or services to which such a warranty against defects relates.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) A **warranty against defects** is a representation communicated to a consumer in connection with the supply of goods or services, at or about the time of supply, to the effect that a person will (unconditionally or on specified conditions):
- (a) repair or replace the goods or part of them; or
 - (b) provide again or rectify the services or part of them; or
 - (c) wholly or partly recompense the consumer;
- if the goods or services or part of them are defective, and includes any document by which such a representation is evidenced.

103 Repairers must comply with prescribed requirements

- (1) The regulations may prescribe requirements relating to the form and content of notices to be given relating to the repair of goods supplied to a consumer.

Section 103

- (2) A person (the *repairer*) must not, in trade or commerce, accept from another person goods that the other person acquired as a consumer if the repairer:
- (a) accepts the goods for the purpose of repairing them; and
 - (b) does not give to the other person a notice that complies with the requirements prescribed for the purposes of subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Part 3-3—Safety of consumer goods and product related services

Division 1—Safety standards

104 Making safety standards for consumer goods and product related services

- (1) The Commonwealth Minister may, by written notice, for the purposes of preventing or reducing the risk of injury to any person, make a *safety standard* for one or both of the following:
 - (a) consumer goods of a particular kind;
 - (b) product related services of a particular kind.
- (2) Without limiting subsection (1), a safety standard for consumer goods of a particular kind may consist of requirements about the following matters:
 - (a) the performance, composition, contents, methods of manufacture or processing, design, construction, finish or packaging of consumer goods of that kind;
 - (b) the testing of consumer goods of that kind during, or after the completion of, manufacture or processing;
 - (c) the form and content of markings to accompany consumer goods of that kind;
 - (d) the form and content of warnings, instructions or other information about consumer goods of that kind.
- (3) Without limiting subsection (1), a safety standard for product related services of a particular kind may consist of requirements about the following matters:
 - (a) the manner in which services of that kind are supplied (including, but not limited to, the method of supply);
 - (b) the skills or qualifications of persons who supply such services;
 - (c) the materials used in supplying such services;

Section 106

- (d) the testing of such services;
 - (e) the form and content of warnings, instructions or other information about such services.
- (4) A safety standard may also deal with matters incidental or related to preventing or reducing the risk of injury to any person.
- (5) A safety standard may make provision in relation to a matter by applying, adopting or incorporating, with or without modification, any matter contained in any other instrument or writing (an ***incorporated instrument***):
 - (a) as in force or existing at a particular time; or
 - (b) as in force or existing from time to time.
- (6) If:
 - (a) a safety standard makes provision in relation to a matter in accordance with subsection (5); and
 - (b) the incorporated instrument is prepared or approved by an Australian or international standards body;the safety standard may also make provision in relation to any matter dealt with in the incorporated instrument.

106 Supplying etc. consumer goods that do not comply with safety standards

- (1) A person must not, in trade or commerce, supply consumer goods of a particular kind if:
 - (a) a safety standard for consumer goods of that kind is in force; and
 - (b) those goods do not comply with the standard.
- (2) A person must not, in trade or commerce, offer for supply (other than for export) consumer goods the supply of which is prohibited by subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Section 106

- (3) A person must not, in or for the purposes of trade or commerce, manufacture, possess or have control of consumer goods the supply of which is prohibited by subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (4) In a proceeding under Part 5-2 in relation to a contravention of subsection (3), it is a defence if the defendant proves that the defendant's manufacture, possession or control of the goods was not for the purpose of supplying the goods (other than for export).

- (5) A person must not, in trade or commerce, export consumer goods the supply of which is prohibited by subsection (1) unless:
- (a) the person applies, in writing, to the Commonwealth Minister for an approval to export those goods; and
 - (b) the Commonwealth Minister gives such an approval by written notice given to the person.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (6) If the Commonwealth Minister gives an approval under subsection (5), he or she must cause a statement setting out particulars of the approval to be tabled in each House of the Parliament of the Commonwealth within 7 sitting days of that House after the approval is given.

- (7) If:
- (a) a person supplies consumer goods in contravention of this section; and
 - (b) another person suffers loss or damage:
 - (i) because of a defect in, or a dangerous characteristic of, the goods; or
 - (ii) because of a reasonably foreseeable use (including a misuse) of the goods; or
 - (iii) because, contrary to the safety standard, he or she was not provided with particular information in relation to the goods; and

Section 107

(c) the other person would not have suffered the loss or damage if the goods had complied with the safety standard;
the other person is taken, for the purposes of this Schedule, to have suffered the loss or damage because of that supply.

107 Supplying etc. product related services that do not comply with safety standards

(1) A person must not, in trade or commerce, supply product related services of particular kind if:

- (a) a safety standard for services of that kind is in force; and
- (b) those services do not comply with the standard.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

(2) A person must not, in trade or commerce, offer for supply product related services the supply of which is prohibited by subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

(3) If:

- (a) a person supplies product related services in contravention of this section; and
- (b) another person suffers loss or damage:
 - (i) because of defect in, or a dangerous characteristic of, consumer goods that results from the services being supplied; or
 - (ii) because of a reasonably foreseeable use (including a misuse) of consumer goods that results from the services being supplied; or
 - (iii) because, contrary to the safety standard, he or she was not provided with particular information in relation to the services; and

(c) the other person would not have suffered the loss or damage if the services had complied with the safety standard;
the other person is taken, for the purposes of this Schedule, to have suffered the loss or damage because of that supply.

108 Requirements relating to alternative methods of complying

- (1) This section applies if:
- (a) a safety standard for consumer goods, or product related services, of a particular kind is in force; and
 - (b) the standard specifies, as alternative methods of complying with the standard (or part of the standard), 2 or more sets of requirements.
- (2) If:
- (a) a person, in trade or commerce:
 - (i) has supplied, or offered for supply, goods or services of that kind; or
 - (ii) is supplying, or offering for supply, goods or services of that kind; or
 - (iii) intends to supply, or offer for supply, goods or services of that kind; and
 - (b) the regulator gives to the person a written request to nominate which of those sets of requirements the person has complied with, is complying with, or intends to comply with; the person must, within the period specified in the request, give to the regulator a written notice nominating one of those sets of requirements.
- Note 1: A pecuniary penalty may be imposed for a contravention of this subsection.
- Note 2: A contravention of this subsection is an offence (see section 196).
- (3) A person contravenes this subsection if:
- (a) the person, in trade or commerce:
 - (i) has supplied, or offered for supply, goods or services of that kind; or
 - (ii) is supplying, or offering for supply, goods or services of that kind; and
 - (b) the person nominates a set of requirements, either by giving to the regulator a written notice under subsection (2) of this section or by other means; and

Section 108A

- (c) those goods or services did not or do not comply with that set of requirements.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

108A Requirement to give information or documents

If:

- (a) a safety standard for consumer goods, or product related services, of a particular kind is in force; and
- (b) a person, in trade or commerce:
 - (i) has supplied, or offered for supply, goods or services of that kind; or
 - (ii) is supplying, or offering for supply, goods or services of that kind; or
 - (iii) intends to supply, or offer for supply, goods or services of that kind; and
- (c) the regulator gives to the person a written request for information or documents to determine whether the person has complied, is complying, or will comply with the standard;

the person must, within the period specified in the request, give to the regulator the requested information or documents.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Division 2—Bans on consumer goods and product related services

Subdivision A—Interim bans

109 Interim bans on consumer goods or product related services that will or may cause injury to any person etc.

- (1) A responsible Minister may, by written notice published on the internet, impose an ***interim ban*** on consumer goods of a particular kind if:
 - (a) it appears to the responsible Minister that:
 - (i) consumer goods of that kind will or may cause injury to any person; or
 - (ii) a reasonably foreseeable use (including a misuse) of consumer goods of that kind will or may cause injury to any person; or
 - (b) another responsible Minister has imposed, under paragraph (a), an interim ban:
 - (i) on consumer goods of the same kind; or
 - (ii) on consumer goods of a kind that includes those goods; and that ban is still in force.
- (2) A responsible Minister may, by written notice published on the internet, impose an ***interim ban*** on product related services of a particular kind if:
 - (a) it appears to the responsible Minister that:
 - (i) as a result of services of that kind being supplied, consumer goods of a particular kind will or may cause injury to any person; or
 - (ii) a reasonably foreseeable use (including a misuse) of consumer goods of a particular kind, to which such services relate, will or may cause injury to any person as a result of such services being supplied; or

Section 110

- (b) another responsible Minister has imposed, under paragraph (a), an interim ban:
 - (i) on product related services of the same kind; or
 - (ii) on product related services that include those services; and that ban is still in force.

110 Places in which interim bans apply

- (1) An interim ban imposed by the Commonwealth Minister applies in all States and Territories.
- (2) An interim ban imposed by a responsible Minister who is Minister of a State applies in the State.
- (3) An interim ban imposed by a responsible Minister who is a Minister of a Territory applies in the Territory.

111 Ban period for interim bans

- (1) An interim ban imposed by a responsible Minister is in force during the period (the *ban period*) that:
 - (a) starts on the day (the *start day*) specified in the notice imposing the ban; and
 - (b) subject to this Subdivision, ends at the end of 60 days after the start day.
- (2) Before the ban period for the interim ban ends, the responsible Minister may, by written notice published on the internet, extend the ban period for the ban by a period of up to 30 days.
- (3) If:
 - (a) the ban period for the interim ban is extended under subsection (2); and
 - (b) the extended ban period for the ban has not ended; and
 - (c) the interim ban was not imposed by the Commonwealth Minister;

the responsible Minister may, in writing, request the Commonwealth Minister to extend the extended ban period for the ban.

- (4) If a request is made under subsection (3), the Commonwealth Minister may, by written notice published on the internet, extend the extended ban period for the interim ban by a further period of up to 30 days.
- (5) If:
- (a) a request is made under subsection (3); and
 - (b) the Commonwealth Minister has not made a decision on the request immediately before the extended ban period for the interim ban is to end;
- the Commonwealth Minister is taken to have decided to extend the extended ban period for the ban by a further period of 30 days.
- (6) If:
- (a) the ban period for the interim ban is extended under subsection (2); and
 - (b) the extended ban period for the ban has not ended; and
 - (c) the interim ban was imposed by the Commonwealth Minister;
- the Commonwealth Minister may, by written notice published on the internet, extend the extended ban period for the interim ban by a further period of up to 30 days.

112 Interaction of multiple interim bans

- (1) If:
- (a) an interim ban (the **original ban**) on consumer goods of a particular kind (the **banned goods**) is imposed by a responsible Minister other than the Commonwealth Minister; and
 - (b) while the original ban is in force, the Commonwealth Minister imposes an interim ban (the **Commonwealth ban**):
 - (i) on the banned goods; or

Section 113

- (ii) on consumer goods of a kind that includes the banned goods;
the original ban, to the extent that it is a ban on the banned goods, ceases to be in force immediately before the Commonwealth ban comes into force.
- (2) If:
 - (a) an interim ban (the **original ban**) on product related services of a particular kind (the **banned services**) is imposed by a responsible Minister other than the Commonwealth Minister; and
 - (b) while the original ban is in force, the Commonwealth Minister imposes an interim ban (the **Commonwealth ban**):
 - (i) on the banned services; or
 - (ii) on product related services of a kind that includes the banned services;the original ban, to the extent that it is a ban on the banned services, ceases to be in force immediately before the Commonwealth ban comes into force.

113 Revocation of interim bans

If a responsible Minister imposes an interim ban:

- (a) the responsible Minister may, by written notice published on the internet, revoke the ban at any time; and
- (b) the ban ceases to be in force on the day specified by the responsible Minister in the notice.

Subdivision B—Permanent bans

114 Permanent bans on consumer goods or product related services

- (1) The Commonwealth Minister may, by written notice published on the internet, impose a **permanent ban** on consumer goods of a particular kind if:

Section 115

- (a) one or more interim bans on consumer goods of that kind (the **banned goods**), or on consumer goods of a kind that include the banned goods, are in force; or
 - (b) it appears to the Commonwealth Minister that:
 - (i) consumer goods of that kind will or may cause injury to any person; or
 - (ii) a reasonably foreseeable use (including a misuse) of consumer goods of that kind will or may cause injury to any person.
- (2) The Commonwealth Minister may, by written notice published on the internet, impose a **permanent ban** on product related services of a particular kind if:
- (a) one or more interim bans on product related services of that kind (the **banned services**), or on product related services of a kind that include the banned services, are in force; or
 - (b) it appears to the Commonwealth Minister that:
 - (i) as a result of services of that kind being supplied, consumer goods of a particular kind will or may cause injury to any person; or
 - (ii) a reasonably foreseeable use (including a misuse) of consumer goods of a particular kind, to which such services relate, will or may cause injury to any person as a result of such services being supplied.

115 Places in which permanent bans apply

A permanent ban applies in all States and Territories.

116 When permanent bans come into force

A permanent ban comes into force on the day specified by the Commonwealth Minister in the instrument imposing the ban.

117 Revocation of permanent bans

If the Commonwealth Minister imposes a permanent ban:

Section 118

- (a) the Commonwealth Minister may, by written notice published on the internet, revoke the ban at any time; and
- (b) the ban ceases to be in force on the day specified by the Commonwealth Minister in the notice.

Subdivision C—Compliance with interim bans and permanent bans

118 Supplying etc. consumer goods covered by a ban

- (1) A person must not, in trade or commerce, supply consumer goods of a particular kind if:
 - (a) an interim ban on consumer goods of that kind is in force in the place where the supply occurs; or
 - (b) a permanent ban on consumer goods of that kind is in force.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A person must not, in trade or commerce, offer for supply (other than for export) consumer goods the supply of which is prohibited by subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) A person must not, in or for the purposes of trade or commerce, manufacture, possess or have control of consumer goods the supply of which is prohibited by subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (4) In a proceeding under Part 5-2 in relation to a contravention of subsection (3), it is a defence if the defendant proves that the defendant's manufacture, possession or control of the goods was not for the purpose of supplying the goods (other than for export).

- (5) A person must not, in trade or commerce, export consumer goods the supply of which is prohibited by subsection (1) unless:

Section 119

- (a) the person applies, in writing, to the Commonwealth Minister for an approval to export those goods; and
- (b) the Commonwealth Minister gives such an approval by written notice given to the person.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (6) If the Commonwealth Minister gives an approval under subsection (5), he or she must cause a statement setting out particulars of the approval to be tabled in each House of the Parliament of the Commonwealth within 7 sitting days of that House after the approval is given.
- (7) If:
 - (a) a person supplies consumer goods in contravention of subsection (1); and
 - (b) another person suffers loss or damage:
 - (i) because of a defect in, or a dangerous characteristic of, the goods; or
 - (ii) because of a reasonably foreseeable use (including a misuse) of the goods;the other person is taken, for the purposes of this Schedule, to have suffered the loss or damage because of that supply.

119 Supplying etc. product related services covered by a ban

- (1) A person must not, in trade or commerce, supply product related services of a particular kind if:
 - (a) an interim ban on services of that kind is in force in the place where the supply occurs; or
 - (b) a permanent ban on services of that kind is in force.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) A person must not, in trade or commerce, offer for supply product related services the supply of which is prohibited by subsection (1).

Section 120

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) If:
- (a) a person supplies product related services in contravention of subsection (1); and
 - (b) another person suffers loss or damage:
 - (i) because of a defect in, or a dangerous characteristic of, consumer goods that results from the services being supplied; or
 - (ii) because of a reasonably foreseeable use (including a misuse) of consumer goods that results from the services being supplied;
- the other person is taken, for the purposes of this Schedule, to have suffered the loss or damage because of that supply.

Subdivision D—Temporary exemption from mutual recognition principles

120 Temporary exemption under the *Trans-Tasman Mutual Recognition Act 1997*

- (1) If:
- (a) an interim ban on consumer goods of a particular kind is in force; or
 - (b) a permanent ban on consumer goods of a particular kind is in force;
- the goods are taken, for the purposes of section 46 of the *Trans-Tasman Mutual Recognition Act 1997*, to be goods of a kind that are declared, in the manner provided by section 46(2) of that Act, to be exempt from the operation of that Act.
- (2) This section does not affect the application of section 46(4) of that Act in relation to such an exemption.

121 Temporary exemption under the *Mutual Recognition Act 1992*

- (1) If:
-

Section 121

- (a) an interim ban on consumer goods of a particular kind is in force; and
 - (b) the interim ban was not imposed by the Commonwealth Minister;
- the goods are taken, for the purposes of section 15 of the *Mutual Recognition Act 1992*, to be goods of a kind that are declared, in the manner provided by section 15(1) of that Act, to be goods to which that section applies.
- (2) This section does not affect the application of section 15(3) of that Act in relation to such an exemption.

Section 122

Division 3—Recall of consumer goods

Subdivision A—Compulsory recall of consumer goods

122 Compulsory recall of consumer goods

- (1) A responsible Minister may, by written notice published on the internet, issue a ***recall notice*** for consumer goods of a particular kind if:
 - (a) a person, in trade or commerce, supplies consumer goods of that kind; and
 - (b) any of the following applies:
 - (i) it appears to the responsible Minister that such goods will or may cause injury to any person;
 - (ii) it appears to the responsible Minister that a reasonably foreseeable use (including a misuse) of such goods will or may cause injury to any person;
 - (iii) a safety standard for such goods is in force and the goods do not comply with the standard;
 - (iv) an interim ban, or a permanent ban, on such goods is in force; and
 - (c) it appears to the responsible Minister that one or more suppliers of such goods have not taken satisfactory action to prevent those goods causing injury to any person.
- (2) It is not necessary for the purposes of subsection (1)(c) for the responsible Minister to know the identities of any of the suppliers of the consumer goods of that kind.
- (3) A recall notice for consumer goods may be issued under subsection (1) even if the consumer goods have become fixtures since the time they were supplied.

123 Contents of a recall notice

- (1) A recall notice for the consumer goods may require one or more suppliers of the goods, or (if no such supplier is known to the

Section 123

responsible Minister who issued the notice) the regulator, to take one or more of the following actions:

- (a) recall the goods;
 - (b) disclose to the public, or to a class of persons specified in the notice, one or more of the following:
 - (i) the nature of a defect in, or a dangerous characteristic of, the goods as identified in the notice;
 - (ii) the circumstances as identified in the notice in which a reasonably foreseeable use or misuse of the goods is dangerous;
 - (iii) procedures as specified in the notice for disposing of the goods;
 - (c) if the identities of any of those suppliers are known to the responsible Minister—inform the public, or a class of persons specified in the notice, that the supplier undertakes to do whichever of the following the supplier thinks is appropriate:
 - (i) unless the notice identifies a dangerous characteristic of the goods—repair the goods;
 - (ii) replace the goods;
 - (iii) refund to a person to whom the goods were supplied (whether by the supplier or by another person) the price of the goods.
- (2) The recall notice may specify:
- (a) the manner in which the action required to be taken by the notice must be taken; and
 - (b) the period within which the action must be taken.
- (3) If the recall notice requires the regulator to take action to recall the consumer goods, the responsible Minister may specify in the notice that the regulator must retain, destroy or otherwise dispose of the goods.
- (4) If the recall notice requires a supplier of the consumer goods to take action of a kind referred to in subsection (1)(c), the responsible Minister may specify in the notice that, if:

Section 124

- (a) the supplier undertakes to refund the price of the goods; and
 - (b) a period of more than 12 months has elapsed since a person (whether or not the person to whom the refund is to be made) acquired the goods from the supplier;
- the amount of a refund may be reduced by the supplier by an amount calculated in a manner specified in the notice that is attributable to the use which a person has had of the goods.

124 Obligations of a supplier in relation to a recall notice

- (1) This section applies if a recall notice for consumer goods requires a supplier to take action of a kind referred to in section 123(1)(c).
- (2) If the supplier undertakes to repair the consumer goods, the supplier must cause the goods to be repaired so that:
 - (a) any defect in the goods identified in the recall notice is remedied; and
 - (b) if a safety standard for the goods is in force—the goods comply with that standard.
- (3) If the supplier undertakes to replace the consumer goods, the supplier must replace the goods with similar consumer goods which:
 - (a) if a defect in, or a dangerous characteristic of, the goods to be replaced was identified in the recall notice—do not contain that defect or have that characteristic; and
 - (b) if a safety standard for the goods to be replaced is in force—comply with that standard.
- (4) If the supplier undertakes:
 - (a) to repair the consumer goods; or
 - (b) to replace the consumer goods;the cost of the repair or replacement, including any necessary transportation costs, must be paid by the supplier.

125 Notification by persons who supply consumer goods outside Australia if there is compulsory recall

- (1) If consumer goods of a particular kind are recalled as required by a recall notice, a person who has supplied or supplies those consumer goods to a person outside Australia must give the person outside Australia a written notice that complies with subsection (2).
- (2) The notice given under subsection (1) must:
 - (a) state that the consumer goods are subject to recall; and
 - (b) if the consumer goods contain a defect or have a dangerous characteristic—set out the nature of that defect or characteristic; and
 - (c) if a reasonably foreseeable use or misuse of the consumer goods is dangerous—set out the circumstances of that use or misuse; and
 - (d) if the consumer goods do not comply with a safety standard for such goods that is in force—set out the nature of the non-compliance; and
 - (e) if an interim ban, or a permanent ban, on the consumer goods is in force—state that fact.
- (3) The notice under subsection (1) must be given as soon as practicable after the supply of the consumer goods to the person outside Australia.
- (4) A person who is required to give a notice under subsection (1) must, within 10 days after giving the notice, give a copy of the notice to the responsible Minister who issued the recall notice.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

126 Interaction of multiple recall notices

If:

- (a) a recall notice (the ***original recall notice***) for consumer goods of a particular kind (the ***recalled goods***) is issued by a

Section 127

responsible Minister other than the Commonwealth Minister;
and

- (b) while the original recall notice is in force, the Commonwealth Minister issues a recall notice (the **Commonwealth recall notice**):

- (i) for the recalled goods; or
(ii) for consumer goods of a kind that includes the recalled goods;

the original recall notice, to the extent that it relates to the recalled goods, ceases to be in force immediately before the Commonwealth recall notice is issued.

127 Compliance with recall notices

- (1) If:

- (a) a recall notice for consumer goods is in force; and
(b) the notice requires a person (other than the regulator) to do one or more things;

the person must comply with the notice.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) If a recall notice for consumer goods is in force, a person must not, in trade or commerce:

- (a) if the notice identifies a defect in, or a dangerous characteristic of, the consumer goods—supply consumer goods of the kind to which the notice relates which contain that defect or have that characteristic; or
(b) in any other case—supply consumer goods of the kind to which the notice relates.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) If:

- (a) a person contravenes subsection (1) or (2) in relation to consumer goods; and
(b) another person suffers loss or damage:

- (i) because of a defect in, or a dangerous characteristic of, the goods; or
- (ii) because of a reasonably foreseeable use (including a misuse) of the goods; or
- (iii) because, contrary to the recall notice, the other person was not provided with particular information in relation to the goods;

the other person is taken, for the purposes of this Schedule, to have suffered the loss or damage because of the contravention.

Subdivision B—Voluntary recall of consumer goods

128 Notification requirements for a voluntary recall of consumer goods

- (1) This section applies if a person voluntarily takes action to recall consumer goods of a particular kind (including consumer goods that have become fixtures since being supplied) because:
 - (a) the consumer goods will or may cause injury to any other person; or
 - (b) a reasonably foreseeable use (including a misuse) of the consumer goods will or may cause injury to any other person; or
 - (c) a safety standard for the consumer goods is in force and they do not, or it is likely that they do not, comply with the standard; or
 - (d) an interim ban, or a permanent ban, on the consumer goods is in force.
- (2) The person must, within 2 days after taking the action, give the Commonwealth Minister a written notice that complies with subsection (7).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.
- (3) The Commonwealth Minister may publish a copy of the notice on the internet.

Section 128

- (4) A person who has supplied or supplies consumer goods of that kind to another person outside Australia must give the other person a written notice that complies with subsection (7).
- (5) The notice under subsection (4) must be given as soon as practicable after the supply of the consumer goods to the person outside Australia.
- (6) A person who is required to give a notice under subsection (4) must, within 10 days after giving the notice, give a copy of the notice to the Commonwealth Minister.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (7) A notice given under subsection (2) or (4) must:
 - (a) state that the consumer goods are subject to recall; and
 - (b) if the consumer goods contain a defect or have a dangerous characteristic—set out the nature of that defect or characteristic; and
 - (c) if a reasonably foreseeable use or misuse of the consumer goods is dangerous—set out the circumstances of that use or misuse; and
 - (d) if the consumer goods do not, or it is likely that they do not, comply with a safety standard for the goods that is in force—set out the nature of the non-compliance or likely non-compliance; and
 - (e) if an interim ban, or a permanent ban, on the consumer goods is in force—state that fact.

Division 4—Safety warning notices

129 Safety warning notices about consumer goods and product related services

- (1) A responsible Minister may publish on the internet a written notice containing one or both of the following:
 - (a) a statement that consumer goods of a kind specified in the notice are under investigation to determine whether:
 - (i) those goods will or may cause injury to any person; or
 - (ii) a reasonably foreseeable use (including a misuse) of those goods will or may cause injury to any person;
 - (b) a warning of possible risks involved in the use of consumer goods of a kind specified in the notice.
- (2) A responsible Minister may publish on the internet a written notice containing one or both of the following:
 - (a) a statement that product related services of a kind specified in the notice are under investigation to determine whether:
 - (i) consumer goods of a particular kind will or may cause injury to any person as a result of services of that kind being supplied; or
 - (ii) a reasonably foreseeable use (including a misuse) of consumer goods of a particular kind, to which such services relate, will or may cause injury to any person as a result of such services being supplied;
 - (b) a warning of possible risks involved in the supply of product related services of a kind specified in the notice.

130 Announcement of the results of an investigation etc.

- (1) If:
 - (a) an investigation of consumer goods, or product related services, specified in a notice under section 129(1) or (2) has been completed; and

Section 130

- (b) none of the following have been published or issued in relation to those goods or services:
 - (i) a proposed ban notice under section 132 of the Competition and Consumer Act;
 - (ii) a proposed recall notice under section 132A of that Act;
 - (iii) a notice under section 132J(1) or (2) of that Act;the responsible Minister who issued the notice under section 129(1) or (2) must, as soon as practicable after the completion of the investigation, announce, by written notice published on the internet, the results of the investigation.
- (2) The responsible Minister may announce in a notice published under subsection (1) of this section:
 - (a) whether any action under this Part is proposed to be taken in relation to the consumer goods or product related services; and
 - (b) if it is proposed to take any such action—what action is proposed to be taken.

**Division 5—Consumer goods, or product related services,
associated with death or serious injury or illness**

**131 Suppliers to report consumer goods associated with the death or
serious injury or illness of any person**

(1) If:

- (a) a person (the *supplier*), in trade or commerce, supplies consumer goods; and
- (b) the supplier becomes aware of the death or serious injury or illness of any person and:
 - (i) considers that the death or serious injury or illness was caused, or may have been caused, by the use or foreseeable misuse of the consumer goods; or
 - (ii) becomes aware that a person other than the supplier considers that the death or serious injury or illness was caused, or may have been caused, by the use or foreseeable misuse of the consumer goods;

the supplier must, within 2 days of becoming so aware, give the Commonwealth Minister a written notice that complies with subsection (5).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

(2) Subsection (1) does not apply if:

- (a) it is clear that the death or serious injury or illness was not caused by the use or foreseeable misuse of the consumer goods; or
- (b) it is very unlikely that the death or serious injury or illness was caused by the use or foreseeable misuse of the consumer goods; or
- (c) the supplier, or another person, is required to notify the death or serious injury or illness in accordance with a law of the Commonwealth, a State or a Territory that is a law specified in the regulations; or

Section 131

- (d) the supplier, or another person, is required to notify the death or serious injury or illness in accordance with an industry code of practice that:
 - (i) applies to the supplier or other person; and
 - (ii) is specified in the regulations.
- (3) Subsection (1) applies whether or not the consumer goods were being used before or at the time the death or serious injury or illness occurred.
- (4) Without limiting subsection (1), the ways in which the supplier may become aware as mentioned in subsection (1)(b) include receiving the relevant information from any of the following:
 - (a) a consumer;
 - (b) a person who re-supplies the consumer goods;
 - (c) a repairer or insurer of the goods;
 - (d) an industry organisation or consumer organisation.
- (5) The notice must:
 - (a) identify the consumer goods; and
 - (b) include information about the following matters to the extent that it is known by the supplier at the time the notice is given:
 - (i) when, and in what quantities, the consumer goods were manufactured in Australia, supplied in Australia, imported into Australia or exported from Australia;
 - (ii) the circumstances in which the death or serious injury or illness occurred;
 - (iii) the nature of any serious injury or illness suffered by any person;
 - (iv) any action that the supplier has taken, or is intending to take, in relation to the consumer goods.
- (6) The giving of the notice under subsection (1) is not to be taken for any purpose to be an admission by the supplier of any liability in relation to:
 - (a) the consumer goods; or
 - (b) the death or serious injury or illness of any person.

132 Suppliers to report product related services associated with the death or serious injury or illness of any person

(1) If:

- (a) a person (the *supplier*), in trade or commerce, supplies product related services; and
- (b) the supplier becomes aware of the death or serious injury or illness of any person and:
 - (i) considers that the death or serious injury or illness was caused, or may have been caused, by the use or foreseeable misuse of the consumer goods to which the services relate; or
 - (ii) becomes aware that a person other than the supplier considers that the death or serious injury or illness was caused, or may have been caused, by the use or foreseeable misuse of the consumer goods to which the services relate;

the supplier must, within 2 days of becoming so aware, give the Commonwealth Minister a written notice that complies with subsection (5).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

(2) Subsection (1) does not apply if:

- (a) it is clear that the death or serious injury or illness was not caused by the use or foreseeable misuse of the consumer goods to which the services relate; or
- (b) it is very unlikely that the death or serious injury or illness was caused by the use or foreseeable misuse of the consumer goods to which the services relate; or
- (c) the supplier, or another person, is required to notify the death or serious injury or illness in accordance with a law of the Commonwealth, a State or a Territory that is a law specified in the regulations; or
- (d) the supplier, or another person, has notified the death or serious injury or illness in accordance with an industry code of practice that:

Section 132

- (i) applies to the supplier or other person; and
 - (ii) is specified in the regulations.
- (3) Subsection (1) applies whether or not consumer goods to which the product related services relate were being used before or at the time the death or serious injury or illness occurred.
- (4) Without limiting subsection (1), the ways in which the supplier may become aware as mentioned in subsection (1)(b) include receiving the relevant information from any of the following:
 - (a) a consumer;
 - (b) a person who re-supplies the product related services;
 - (c) an insurer of the services;
 - (d) an industry organisation or consumer organisation.
- (5) The notice must:
 - (a) identify the product related services and the consumer goods to which the services relate; and
 - (b) include information about the following matters to the extent that it is known by the supplier at the time the notice is given:
 - (i) when the services have been supplied;
 - (ii) the circumstances in which the death or serious injury or illness occurred;
 - (iii) the nature of any serious injury or illness suffered by any person;
 - (iv) any action that the supplier has taken, or is intending to take, in relation to the services.
- (6) The giving of the notice under subsection (1) is not to be taken for any purpose to be an admission by the supplier of any liability in relation to:
 - (a) the product related services; or
 - (b) the consumer goods to which the services relate; or
 - (c) the death or serious injury or illness of any person.

132A Confidentiality of notices given under this Division

- (1) A person must not disclose to any other person a notice given under this Division, or any part of or information contained in such a notice, unless the person who gave the notice has consented to the notice, or that part or information, not being treated as confidential.
- (2) This section does not apply if:
 - (a) the disclosure is made by the Commonwealth Minister to:
 - (i) another responsible Minister; or
 - (ii) the regulator; or
 - (iii) an associate regulator; or
 - (b) the disclosure is made by the Commonwealth Minister and the Commonwealth Minister considers that the disclosure is in the public interest; or
 - (c) the disclosure is made by a member of the staff of the regulator, or an associate regulator, in the performance of his or her duties as such a member of staff, and is made:
 - (i) to another member of the staff of the regulator or associate regulator; or
 - (ii) if the person making the disclosure is a member of the staff of the regulator—to an associate regulator; or
 - (iii) if the person making the disclosure is a member of the staff of an associate regulator—to the regulator or another associate regulator; or
 - (d) the disclosure is required or authorised by or under law; or
 - (e) the disclosure is reasonably necessary for the enforcement of the criminal law or of a law imposing a pecuniary penalty.
- (3) This section also does not apply if the disclosure is made by a member of the staff of the regulator, or an associate regulator, in the performance of his or her duties as such a member of staff, and is made because it is reasonably necessary to protect public safety, to:
 - (a) any other agency within the meaning of the *Freedom of Information Act 1982*; or

Section 132A

- (b) the Director of Public Prosecutions; or
- (c) a State/Territory government body (within the meaning of section 155AAA of the Competition and Consumer Act); or
- (d) a foreign government body (within the meaning of the Competition and Consumer Act).

Division 6—Miscellaneous

133 Liability under a contract of insurance

If:

- (a) a contract of insurance between an insurer and a person relates to:
 - (i) the recall of consumer goods that are supplied by the person, or which the person proposes to supply; or
 - (ii) the liability of the person with respect to possible defects in such consumer goods; and
- (b) the person gives information relating to any such consumer goods to:
 - (i) a responsible Minister; or
 - (ii) the regulator; or
 - (iii) a person appointed or engaged under the *Public Service Act 1999*, or under a corresponding law of a State or a Territory; or
 - (iv) an officer of an authority of the Commonwealth or of a State or Territory;

the liability of the insurer under the contract is not affected only because the person gave the information.

Part 3-4—Information standards

134 Making information standards for goods and services

- (1) The Commonwealth Minister may, by written notice, make an *information standard* in relation to the provision of information for one or both of the following:
 - (a) goods of a particular kind;
 - (b) services of a particular kind.
- (2) Without limiting subsection (1), an information standard for goods or services of a particular kind may:
 - (a) make provision in relation to the content of information about goods or services of that kind; or
 - (b) require the provision of specified information about goods or services of that kind; or
 - (c) provide for the manner or form in which such information is to be provided; or
 - (d) provide that such information is not to be provided in a specified manner or form; or
 - (e) provide that information of a specified kind is not to be provided about goods or services of that kind; or
 - (f) assign a meaning to specified information about goods or services;
 - (g) require the making and keeping of records in relation to goods or services of that kind;
 - (h) require the provision of information to any person, including the regulator, in relation to goods or services of that kind.
- (3) An information standard may also deal with matters incidental or related to the provision of information for goods or services of a particular kind.
- (4) An information standard may make provision in relation to a matter by applying, adopting or incorporating, with or without

Section 136

modification, any matter contained in any other instrument or writing (an *incorporated instrument*):

- (a) as in force or existing at a particular time; or
- (b) as in force or existing from time to time.

(5) If:

- (a) an information standard makes provision in relation to a matter in accordance with subsection (4); and
- (b) the incorporated instrument is prepared or approved by an Australian or international standards body;

the information standard may also make provision in relation to any matter dealt with in the incorporated instrument.

136 Supplying etc. goods that do not comply with information standards

- (1) A person must not, in trade or commerce, supply goods of a particular kind if:
 - (a) an information standard for goods of that kind is in force; and
 - (b) the person has not complied with that standard.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (1A) Subsection (1) does not apply if the person failed to comply only with a provision of the standard that is specified by the standard to be a provision to which section 137AA applies.

- (1B) A person who wishes to rely on subsection (1A) in proceedings bears an evidential burden in relation to that matter.

- (2) A person must not, in trade or commerce, offer for supply goods the supply of which is prohibited by subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) A person must not, in or for the purposes of trade or commerce, manufacture, possess or have control of goods the supply of which is prohibited by subsection (1).

Section 136

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (4) In a proceeding under Part 5-2 in relation to a contravention of subsection (3), it is a defence if the defendant proves that the defendant's manufacture, possession or control of the goods was not for the purpose of supplying the goods.
- (5) Subsections (1), (2) and (3) do not apply to goods that are intended to be used outside Australia.
- (6) Unless the contrary is established, it is presumed, for the purposes of this section, that goods are intended to be used outside Australia if either of the following is applied to the goods:
 - (a) a statement that the goods are for export only;
 - (b) a statement indicating, by the use of words authorised by the regulations to be used for the purposes of this subsection, that the goods are intended to be used outside Australia.
- (7) Without limiting subsection (6), a statement may, for the purposes of that subsection, be applied to goods by being:
 - (a) woven in, impressed on, worked into or annexed or affixed to the goods; or
 - (b) applied to a covering, label, reel or thing in or with which the goods are supplied.
- (8) If:
 - (a) a person (the **supplier**) supplies goods in contravention of subsection (1), (2) or (3); and
 - (b) another person suffers loss or damage because, contrary to the information standard, he or she was not provided with particular information in relation to the goods; and
 - (c) the other person would not have suffered the loss or damage if the supplier had complied with the information standard;the other person is taken, for the purposes of this Schedule, to have suffered the loss or damage because of that supply.

137 Supplying etc. services that do not comply with information standards

- (1) A person must not, in trade or commerce, supply services of a particular kind if:
- (a) an information standard for services of that kind is in force; and
 - (b) the person has not complied with that standard.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (1A) Subsection (1) does not apply if the person failed to comply only with a provision of the standard that is specified by the standard to be a provision to which section 137AA applies.

- (1B) A person who wishes to rely on subsection (1A) in proceedings bears an evidential burden in relation to that matter.

- (2) A person must not, in trade or commerce, offer for supply services the supply of which is prohibited by subsection (1).

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (3) If:

- (a) a person (the *supplier*) supplies services in contravention of subsection (1) or (2); and
 - (b) another person suffers loss or damage because, contrary to the information standard, he or she was not provided with particular information in relation to the services; and
 - (c) the other person would not have suffered the loss or damage if the supplier had complied with the information standard;
- the other person is taken, for the purposes of this Schedule, to have suffered the loss or damage because of that supply.

137AA Other non-compliance with information standards

- (1) A person contravenes this section if:

Section 137A

- (a) an information standard for goods or services of a particular kind is in force; and
- (b) the person, in trade or commerce, has supplied, or offered for supply, goods or services of that kind; and
- (c) the person is subject to a requirement under a provision of the standard that is specified by the standard to be a provision to which this section applies; and
- (d) the person engages in conduct in relation to the supply or offer; and
- (e) the conduct contravenes the requirement.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) Subsection (1) does not apply to goods that are intended to be used outside Australia.
- (3) Subsections 136(6) and (7) apply for the purposes of this section in the same way those sections apply for the purposes of section 136.

137A Safe harbour for complying with information standards about free range eggs

- (1) Neither section 18 nor paragraph 29(1)(a) or 151(1)(a) applies to a person in relation to the labelling or displaying of eggs as free range eggs if, when doing so, the person is complying with all requirements:
 - (a) specified in an information standard for eggs; and
 - (b) relating to the labelling or displaying of free range eggs, including requirements about:
 - (i) the use of the words “free range”; or
 - (ii) representing that eggs are free range eggs.
- (2) If:
 - (a) proceedings are brought against a person in respect of section 18 or paragraph 29(1)(a) or 151(1)(a); and
 - (b) the person seeks to rely on subsection (1) of this section in the proceedings;

Section 137B

the person bears an evidential burden in relation to the matters set out in that subsection.

- (3) An **egg** is an egg laid by a female domestic chicken (*Gallus gallus domesticus*).
- (4) **Free range egg** has the meaning given by the information standard mentioned in paragraph (1)(a).

137B Requirement to give information or documents

If:

- (a) an information standard for goods or services of a particular kind is in force; and
- (b) a person, in trade or commerce:
 - (i) has supplied, or offered for supply, goods or services of that kind; or
 - (ii) is supplying, or offering for supply, goods or services of that kind; or
 - (iii) intends to supply, or offer for supply, goods or services of that kind; and
- (c) the regulator gives to the person a written request for information or documents to determine whether the person has complied, is complying, or will comply with the standard;

the person must, within the period specified in the request, give to the regulator the requested information or documents.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Part 3-5—Liability of manufacturers for goods with safety defects

Division 1—Actions against manufacturers for goods with safety defects

138 Liability for loss or damage suffered by an injured individual

- (1) A manufacturer of goods is liable to compensate an individual if:
 - (a) the manufacturer supplies the goods in trade or commerce; and
 - (b) the goods have a safety defect; and
 - (c) the individual suffers injuries because of the safety defect.
- (2) The individual may recover, by action against the manufacturer, the amount of the loss or damage suffered by the individual.
- (3) If the individual dies because of the injuries, a law of a State or a Territory about liability in respect of the death of individuals applies as if:
 - (a) the action were an action under the law of the State or Territory for damages in respect of the injuries; and
 - (b) the safety defect were the manufacturer's wrongful act, neglect or default.

139 Liability for loss or damage suffered by a person other than an injured individual

- (1) A manufacturer of goods is liable to compensate a person if:
 - (a) the manufacturer supplies the goods in trade or commerce; and
 - (b) the goods have a safety defect; and
 - (c) an individual (other than the person) suffers injuries because of the safety defect; and
 - (d) the person suffers loss or damage because of:

- (i) the injuries; or
 - (ii) if the individual dies because of the injuries—the individual’s death; and
 - (e) the loss or damage does not come about because of a business or professional relationship between the person and the individual.
- (2) The person may recover, by action against the manufacturer, the amount of the loss or damage suffered by the person.

140 Liability for loss or damage suffered by a person if other goods are destroyed or damaged

- (1) A manufacturer of goods is liable to compensate a person if:
- (a) the manufacturer supplies the goods in trade or commerce; and
 - (b) the goods have a safety defect; and
 - (c) other goods of a kind ordinarily acquired for personal, domestic or household use or consumption are destroyed or damaged because of the safety defect; and
 - (d) the person used or consumed, or intended to use or consume, the destroyed or damaged goods for personal, domestic or household use or consumption; and
 - (e) the person suffers loss or damage as a result of the destruction or damage.
- (2) The person may recover, by action against the manufacturer, the amount of the loss or damage suffered by the person.

141 Liability for loss or damage suffered by a person if land, buildings or fixtures are destroyed or damaged

- (1) A manufacturer of goods is liable to compensate a person if:
- (a) the manufacturer supplies the goods in trade or commerce; and
 - (b) the goods have a safety defect; and

Section 142

- (c) land, buildings or fixtures are destroyed or damaged because of the safety defect; and
 - (d) the land, buildings or fixtures are ordinarily acquired for private use; and
 - (e) the person used, or intended to use, the land, buildings or fixtures for private use; and
 - (f) the person suffers loss or damage as a result of the destruction or damage.
- (2) The person may recover, by action against the manufacturer, the amount of the loss or damage suffered by the person.

142 Defences to defective goods actions

In a defective goods action, it is a defence if it is established that:

- (a) the safety defect in the goods that is alleged to have caused the loss or damage did not exist:
 - (i) in the case of electricity—at the time at which the electricity was generated, being a time before it was transmitted or distributed; or
 - (ii) in any other case—at the time when the goods were supplied by their actual manufacturer; or
- (b) the goods had that safety defect only because there was compliance with a mandatory standard for them; or
- (c) the state of scientific or technical knowledge at the time when the goods were supplied by their manufacturer was not such as to enable that safety defect to be discovered; or
- (d) if the goods that had that safety defect were comprised in other goods—that safety defect is attributable only to:
 - (i) the design of the other goods; or
 - (ii) the markings on or accompanying the other goods; or
 - (iii) the instructions or warnings given by the manufacturer of the other goods.

Division 2—Defective goods actions

143 Time for commencing defective goods actions

- (1) Subject to subsection (2), a person may commence a defective goods action at any time within 3 years after the time the person became aware, or ought reasonably to have become aware, of all of the following:
 - (a) the alleged loss or damage;
 - (b) the safety defect of the goods;
 - (c) the identity of the person who manufactured the goods.
- (2) A defective goods action must be commenced within 10 years of the supply by the manufacturer of the goods to which the action relates.

144 Liability joint and several

If 2 or more persons are liable under Division 1 for the same loss or damage, they are jointly and severally liable.

145 Survival of actions

A law of a State or a Territory about the survival of causes of action vested in persons who die applies to actions under Division 1.

146 No defective goods action where workers' compensation law etc. applies

Division 1 does not apply to a loss or damage in respect of which an amount has been, or could be, recovered under a law of the Commonwealth, a State or a Territory that:

- (a) relates to workers' compensation; or
- (b) gives effect to an international agreement.

Section 147

147 Unidentified manufacturer

- (1) A person who:
 - (a) wishes to institute a defective goods action; but
 - (b) does not know who is the manufacturer of the goods to which the action would relate;may, by written notice given to a supplier, or each supplier, of the goods who is known to the person, request the supplier or suppliers to give the person particulars identifying the manufacturer of the goods, or the supplier of the goods to the supplier requested.
- (2) If, 30 days after the person made the request or requests, the person still does not know who is the manufacturer of the goods, then each supplier:
 - (a) to whom the request was made; and
 - (b) who did not comply with the request;is taken, for the purposes of the defective goods liability action (but not for the purposes of section 142(c)), to be the manufacturer of the goods.

148 Commonwealth liability for goods that are defective only because of compliance with Commonwealth mandatory standard

- (1) If a person (however described) against whom a defective goods action is brought raises the defence that the goods had the alleged safety defect only because there was compliance with a Commonwealth mandatory standard for the goods, the person must, as soon as practicable after raising that defence, give the Commonwealth:
 - (a) a prescribed notice of the action and of that defence; and
 - (b) a copy of the person's defence in the action.
- (2) The giving of the notice and defence makes the Commonwealth a defendant in the action.
- (3) If, in the action, the court finds that the person (the *plaintiff*) by whom the action is brought would, but for the defence referred to

in subsection (1), have succeeded against the person (other than the Commonwealth) against which the action is brought, then:

- (a) the Commonwealth, and not the person (other than the Commonwealth) against which the action is brought, is liable to pay the plaintiff for the amount of the loss or damage caused by the safety defect; and
- (b) the court is to enter judgment against the Commonwealth for that amount; and
- (c) the court may make such orders for costs as the court considers just.

149 Representative actions by the regulator

- (1) The regulator may, by application, commence a defective goods action on behalf of one or more persons identified in the application who have suffered the loss or damage in relation to which the action is commenced.
- (2) The regulator may only make the application if it has obtained the written consent of the person, or each of the persons, on whose behalf the application is being made.

Section 150

Division 3—Miscellaneous

150 Application of all or any provisions of this Part etc. not to be excluded or modified

- (1) Any term of a contract (including a term that is not set out in the contract but is incorporated in the contract by another term) that purports to exclude, restrict or modify, or has the effect of excluding, restricting or modifying, any of the following is void:
 - (a) the application of all or any of the provisions of this Part;
 - (b) the exercise of a right conferred by any of those provisions;
 - (c) any liability under any of those provisions.
- (2) A term of a contract is not taken to exclude, restrict or modify the application of a provision of this Part unless the term does so expressly or is inconsistent with that provision.

Chapter 4—Offences

Part 4-1—Offences relating to unfair practices

Division 1—False or misleading representations etc.

151 False or misleading representations about goods or services

- (1) A person commits an offence if the person, in trade or commerce, in connection with the supply or possible supply of goods or services or in connection with the promotion by any means of the supply or use of goods or services:
- (a) makes a false or misleading representation that goods are of a particular standard, quality, value, grade, composition, style or model or have had a particular history or particular previous use; or
 - (b) makes a false or misleading representation that services are of a particular standard, quality, value or grade; or
 - (c) makes a false or misleading representation that goods are new; or
 - (d) makes a false or misleading representation that a particular person has agreed to acquire goods or services; or
 - (e) makes a false or misleading representation that purports to be a testimonial by any person relating to goods or services; or
 - (f) makes a false or misleading representation concerning:
 - (i) a testimonial by any person; or
 - (ii) a representation that purports to be such a testimonial; relating to goods or services; or
 - (g) makes a false or misleading representation that goods or services have sponsorship, approval, performance characteristics, accessories, uses or benefits; or
 - (h) makes a false or misleading representation that the person making the representation has a sponsorship, approval or affiliation; or

Section 151

- (i) makes a false or misleading representation with respect to the price of goods or services; or
- (j) makes a false or misleading representation concerning the availability of facilities for the repair of goods or of spare parts for goods; or
- (k) makes a false or misleading representation concerning the place of origin of goods; or
- (l) makes a false or misleading representation concerning the need for any goods or services; or
- (m) makes a false or misleading representation concerning the existence, exclusion or effect of any condition, warranty, guarantee, right or remedy (including a guarantee under Division 1 of Part 3-2); or
- (n) makes a false or misleading representation concerning a requirement to pay for a contractual right that:
 - (i) is wholly or partly equivalent to any condition, warranty, guarantee, right or remedy (including a guarantee under Division 1 of Part 3-2); and
 - (ii) a person has under a law of the Commonwealth, a State or a Territory (other than an unwritten law).

Note: For rules relating to representations as to the country of origin of goods, see Part 5-3.

- (2) For the purposes of applying subsection (1) in relation to a proceeding concerning a representation of a kind referred to in subsection (1)(e) or (f), the representation is taken to be misleading unless evidence is adduced to the contrary.
- (3) To avoid doubt, subsection (2) does not:
 - (a) have the effect that, merely because such evidence to the contrary is adduced, the representation is not misleading; or
 - (b) have the effect of placing on any person an onus of proving that the representation is not misleading.
- (4) Subsection (1) is an offence of strict liability.

Penalty

- (5) An offence against subsection (1) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
- (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (6) An offence against subsection (1) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

152 False or misleading representations about sale etc. of land

- (1) A person commits an offence if the person, in trade or commerce, in connection with the sale or grant, or the possible sale or grant, of an interest in land or in connection with the promotion by any means of the sale or grant of an interest in land:
- (a) makes a false or misleading representation that the person making the representation has a sponsorship, approval or affiliation; or
 - (b) makes a false or misleading representation concerning the nature of the interest in the land; or
 - (c) makes a false or misleading representation concerning the price payable for the land; or
 - (d) makes a false or misleading representation concerning the location of the land; or
 - (e) makes a false or misleading representation concerning the characteristics of the land; or

Section 153

- (f) makes a false or misleading representation concerning the use to which the land is capable of being put or may lawfully be put; or
 - (g) makes a false or misleading representation concerning the existence or availability of facilities associated with the land.
- (2) Subsection (1) is an offence of strict liability.

Penalty

- (2A) An offence against subsection (1) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
- (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (2B) An offence against subsection (1) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Other

- (3) This section does not affect the application of any other provision of this Part in relation to the supply or acquisition, or the possible supply or acquisition, of interests in land.

153 Misleading conduct relating to employment

- (1) A person commits an offence if the person, in relation to employment that is to be, or may be, offered by the person or by another person, engages in conduct that is liable to mislead persons seeking the employment as to:

Section 154

- (a) the availability, nature, terms or conditions of the employment; or
 - (b) any other matter relating to the employment.
- (2) Subsection (1) is an offence of strict liability.

Penalty

- (3) An offence against subsection (1) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
- (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (4) An offence against subsection (1) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

154 Offering rebates, gifts, prizes etc.

- (1) A person commits an offence if:
- (a) the person, in trade or commerce, offers any rebate, gift, prize or other free item; and
 - (b) the offer is connected with:
 - (i) the supply or possible supply of goods or services; or
 - (ii) the promotion by any means of the supply or use of goods or services; or
 - (iii) the sale or grant, or the possible sale or grant, of an interest in land; or

Section 154

- (iv) the promotion by any means of the sale or grant of an interest in land; and
 - (c) the offer is made with the intention of not providing the rebate, gift, prize or other free item, or of not providing it as offered.
- (2) A person commits an offence if:
 - (a) the person, in trade or commerce, offers any rebate, gift, prize or other free item; and
 - (b) the offer is connected with:
 - (i) the supply or possible supply of goods or services; or
 - (ii) the promotion by any means of the supply or use of goods or services; or
 - (iii) the sale or grant, or the possible sale or grant, of an interest in land; or
 - (iv) the promotion by any means of the sale or grant of an interest in land; and
 - (c) the person fails to provide the rebate, gift, prize or other free item, in accordance with the offer, within the time specified in the offer or (if no such time is specified) within a reasonable time after making the offer.
- (3) Subsection (2) does not apply if:
 - (a) the person's failure to provide the rebate, gift, prize or other free item in accordance with the offer was due to the act or omission of another person, or to some other cause beyond the person's control; and
 - (b) the person took reasonable precautions and exercised due diligence to avoid the failure.
- (4) Subsection (2) does not apply to an offer that the person makes to another person if:
 - (a) the person offers to the other person a different rebate, gift, prize or other free item as a replacement; and
 - (b) the other person agrees to receive the different rebate, gift, prize or other free item.

- (5) Strict liability applies to subsections (1)(b) and (2)(b).

Penalty

- (5A) An offence against subsection (1) or (2) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
- (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (5B) An offence against subsection (1) or (2) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Other

- (6) This section does not affect the application of any other provision of this Part in relation to the supply or acquisition, or the possible supply or acquisition, of interests in land.

155 Misleading conduct as to the nature etc. of goods

- (1) A person commits an offence if the person, in trade or commerce, engages in conduct that is liable to mislead the public as to the nature, the manufacturing process, the characteristics, the suitability for their purpose or the quantity of any goods.
- (2) Subsection (1) is an offence of strict liability.

Section 156

Penalty

- (3) An offence against subsection (1) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (4) An offence against subsection (1) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

156 Misleading conduct as to the nature etc. of services

- (1) A person commits an offence if the person, in trade or commerce, engages in conduct that is liable to mislead the public as to the nature, the characteristics, the suitability for their purpose or the quantity of any services.
- (2) Subsection (1) is an offence of strict liability.

Penalty

- (3) An offence against subsection (1) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;

- (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (4) An offence against subsection (1) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

157 Bait advertising

- (1) A person commits an offence if:
 - (a) the person, in trade or commerce, advertises goods or services for supply at a specified price; and
 - (b) there are reasonable grounds for believing that the person will not be able to offer for supply those goods or services at that price for a period that is, and in quantities that are, reasonable, having regard to:
 - (i) the nature of the market in which the person carries on business; and
 - (ii) the nature of the advertisement.
- (2) A person commits an offence if:
 - (a) the person, in trade or commerce, advertises goods or services for supply at a specified price; and
 - (b) the person fails to offer such goods or services for supply at that price for a period that is, and in quantities that are, reasonable having regard to:
 - (i) the nature of the market in which the person carries on business; and
 - (ii) the nature of the advertisement.
- (3) Subsections (1) and (2) are offences of strict liability.

Penalty

- (3A) An offence against subsection (1) or (2) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:

Section 158

- (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (3B) An offence against subsection (1) or (2) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Defence

- (4) In a prosecution of a person (the **defendant**) under subsection (2), for failing to offer goods or services to another person (the **customer**), it is a defence if:
- (a) the defendant proves that:
 - (i) he or she offered to supply, or to procure a third person to supply, goods or services of the kind advertised to the customer within a reasonable time, in a reasonable quantity and at the advertised price; or
 - (ii) he or she offered to supply immediately, or to procure a third person to supply within a reasonable time, equivalent goods or services to the customer in a reasonable quantity and at the price at which the first-mentioned goods or services were advertised; and
 - (b) in either case, if the offer was accepted by the customer, the defendant proves that he or she has so supplied, or procured a third person to supply, the goods or services.

158 Wrongly accepting payment

- (1) A person commits an offence if:
- (a) the person, in trade or commerce, accepts payment or other consideration for goods or services; and

- (b) at the time of the acceptance, the person intends not to supply the goods or services.
- (2) Strict liability applies to subsection (1)(a).
- (3) A person commits an offence if:
 - (a) the person, in trade or commerce, accepts payment or other consideration for goods or services; and
 - (b) at the time of the acceptance, the person intends to supply goods or services materially different from the goods or services in respect of which the payment or other consideration is accepted.
- (4) Strict liability applies to subsection (3)(a).
- (5) A person commits an offence if:
 - (a) the person, in trade or commerce, accepts payment or other consideration for goods or services; and
 - (b) at the time of the acceptance, the person was reckless as to whether he or she would be able to supply the goods or services:
 - (i) within the period specified by or on behalf of the person at or before the time the payment or other consideration was accepted; or
 - (ii) if no period is specified at or before that time—within a reasonable time.
- (6) Strict liability applies to subsection (5)(a).
- (7) A person commits an offence if:
 - (a) the person, in trade or commerce, accepts payment or other consideration for goods or services; and
 - (b) the person fails to supply all the goods or services:
 - (i) within the period specified by or on behalf of the person at or before the time the payment or other consideration was accepted; or
 - (ii) if no period is specified at or before that time—within a reasonable time.

Section 158

- (8) Subsection (7) does not apply if:
 - (a) the person's failure to supply all the goods or services within the period, or within a reasonable time, was due to the act or omission of another person, or to some other cause beyond the person's control; and
 - (b) the person took reasonable precautions and exercised due diligence to avoid the failure.
- (9) Subsection (7) does not apply if:
 - (a) the person offers to supply different goods or services as a replacement to the person (the *customer*) to whom the original supply was to be made; and
 - (b) the customer agrees to receive the different goods or services.
- (10) Subsection (7) is an offence of strict liability.

Penalty

- (10A) An offence against subsection (1), (3), (5) or (7) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (10B) An offence against subsection (1), (3), (5) or (7) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Other

- (11) Subsections (1), (3), (5) and (7) apply whether or not the payment or other consideration that the person accepted represents the whole or a part of the payment or other consideration for the supply of the goods or services.

159 Misleading representations about certain business activities

- (1) A person commits an offence if:
- (a) the person, in trade or commerce, makes a representation; and
 - (b) the representation is false or misleading in a material particular; and
 - (c) the representation concerns the profitability, risk or any other material aspect of any business activity that the person has represented as one that can be, or can be to a considerable extent, carried on at or from a person's place of residence.
- (2) A person commits an offence if:
- (a) the person, in trade or commerce, makes a representation; and
 - (b) the representation is false or misleading in a material particular; and
 - (c) the representation concerns the profitability, risk or any other material aspect of any business activity:
 - (i) that the person invites (whether by advertisement or otherwise) other persons to engage or participate in, or to offer or apply to engage or participate in; and
 - (ii) that requires the performance of work by other persons, or the investment of money by other persons and the performance by them of work associated with the investment.
- (3) Subsections (1) and (2) are offences of strict liability.

Section 160

Penalty

- (4) An offence against subsection (1) or (2) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (5) An offence against subsection (1) or (2) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

160 Application of provisions of this Division to information providers

- (1) Sections 151, 152, 155, 156 and 159 do not apply to a publication of matter by an information provider if:
 - (a) in any case—the information provider made the publication in the course of carrying on a business of providing information; or
 - (b) if the information provider is the Australian Broadcasting Corporation, the Special Broadcasting Service Corporation or the holder of a licence granted under the *Broadcasting Services Act 1992*—the publication was by way of a radio or television broadcast by the information provider.
- (2) Subsection (1) does not apply to a publication of an advertisement.
- (3) Subsection (1) does not apply to a publication of matter in connection with the supply or possible supply of, or the promotion

Section 160

by any means of the supply or use of, goods or services (the ***publicised goods or services***), if:

- (a) the publicised goods or services were goods or services of a kind supplied by the information provider or, if the information provider is a body corporate, by a body corporate that is related to the information provider; or
 - (b) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a person who supplies goods or services of the same kind as the publicised goods or services; or
 - (c) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a body corporate that is related to a body corporate that supplies goods or services of the same kind as the publicised goods or services.
- (4) Subsection (1) does not apply to a publication of matter in connection with the sale or grant, or possible sale or grant, of, or the promotion by any means of the sale or grant of, interests in land (the ***publicised interests in land***), if:
- (a) the publicised interests in land were interests of a kind sold or granted by the information provider or, if the information provider is a body corporate, by a body corporate that is related to the information provider; or
 - (b) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a person who sells or grants interests of the same kind as the publicised interests in land; or
 - (c) the publication was made on behalf of, or pursuant to a contract, arrangement or understanding with, a body corporate that is related to a body corporate that sells or grants interests of the same kind as the publicised interests in land.

Section 161

Division 2—Unsolicited supplies

161 Unsolicited cards etc.

- (1) A person commits an offence if:
 - (a) the person sends a credit card or a debit card, or an article that may be used as a credit card and a debit card, to another person; and
 - (b) either:
 - (i) the person had issued the card; or
 - (ii) the card was sent on behalf of the person who had issued the card.
- (2) Subsection (1) does not apply if the person sends the card to the other person:
 - (a) pursuant to a written request by the person who will be under a liability to the person who issued the card or article in respect of the use of the card or article; or
 - (b) in renewal or replacement of, or in substitution for:
 - (i) a card or article of the same kind previously sent to the other person pursuant to a written request by the person who was under a liability, to the person who issued the card previously so sent, in respect of the use of that card; or
 - (ii) a card or article of the same kind previously sent to the other person and used for a purpose for which it was intended to be used.
- (3) A person commits an offence if the person takes any action that enables another person who has a credit card to use the card as a debit card.
- (4) A person commits an offence if the person takes any action that enables another person who has a debit card to use the card as a credit card.

Section 162

- (5) Subsection (3) or (4) does not apply if the person takes the action in accordance with the other person's written request.
- (6) Subsections (1), (3) and (4) are offences of strict liability.

Penalty

- (7) An offence against subsection (1), (3) or (4) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (8) An offence against subsection (1), (3) or (4) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

162 Assertion of right to payment for unsolicited goods or services

- (1) A person commits an offence if the person, in trade or commerce, asserts a right to payment from another person for unsolicited goods.
- (2) A person commits an offence if the person, in trade or commerce, asserts a right to payment from another person for unsolicited services.
- (3) A person commits an offence if the person, in trade or commerce, sends to another person an invoice or other document that:
 - (a) states the amount of a payment, or sets out the charge, for unsolicited goods or unsolicited services; and

Section 163

- (b) does not contain a warning statement that complies with the requirements set out in the regulations made for the purposes of section 40(3)(b).
- (4) Subsection (1), (2) or (3) does not apply if the person proves that he or she had reasonable cause to believe that there was a right to the payment or charge.
- (5) Subsections (1), (2) and (3) are offences of strict liability.

Penalty

- (6) An offence against subsection (1), (2) or (3) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (7) An offence against subsection (1), (2) or (3) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

163 Assertion of right to payment for unauthorised entries or advertisements

- (1) A person commits an offence if the person asserts a right to payment from another person of a charge for placing, in a publication, an entry or advertisement relating to:
 - (a) the other person; or
 - (b) the other person's profession, business, trade or occupation.

Section 163

- (2) A person commits an offence if the person sends to another person an invoice or other document that:
- (a) states the amount of a payment, or sets out the charge, for placing, in a publication, an entry or advertisement relating to:
 - (i) the other person; or
 - (ii) the other person's profession, business, trade or occupation; and
 - (b) does not contain a warning statement that complies with the requirements set out in the regulations made for the purposes of section 43(2)(b).
- (3) Subsections (1) and (2) do not apply if the person proves that he or she knew, or had reasonable cause to believe, that the other person authorised the placing of the entry or advertisement.
- (4) Subsections (1) and (2) do not apply to an entry or advertisement that is placed in a publication published by a person who is:
- (a) the publisher of a publication that has an audited circulation of 10,000 copies or more per week, as confirmed by the most recent audit of the publication by a body specified in the regulations made for the purposes of section 43(3)(a); or
 - (b) a body corporate related to such a publisher; or
 - (c) the Commonwealth, a State or a Territory, or an authority of the Commonwealth, a State or a Territory; or
 - (d) a person specified in regulations made for the purposes of section 43(3)(d).
- (5) Subsections (1) and (2) are offences of strict liability.

Penalty

- (5A) An offence against subsection (1) or (2) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
- (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body

Section 163

corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;

- (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.

- (5B) An offence against subsection (1) or (2) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Other

- (6) A person is not taken for the purposes of this section to have authorised the placing of the entry or advertisement, unless:
 - (a) a document authorising the placing of the entry or advertisement has been signed by the person or by another person authorised by him or her; and
 - (b) a copy of the document has been given to the person before the right to payment of a charge for the placing of the entry or advertisement is asserted; and
 - (c) the document specifies:
 - (i) the name and address of the person publishing the entry or advertisement; and
 - (ii) particulars of the entry or advertisement; and
 - (iii) the amount of the charge for the placing of the entry or advertisement, or the basis on which the charge is, or is to be, calculated.

Division 3—Pyramid schemes

164 Participation in pyramid schemes

- (1) A person commits an offence if the person participates in a pyramid scheme.
- (2) A person commits an offence if the person induces another person to participate in a pyramid scheme.
- (3) Subsections (1) and (2) are offences of strict liability.

Penalty

- (4) An offence against subsection (1) or (2) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (5) An offence against subsection (1) or (2) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Section 165

Division 4—Pricing

165 Multiple pricing

- (1) A person commits an offence if:
 - (a) the person, in trade or commerce, supplies goods; and
 - (b) the goods have more than one displayed price; and
 - (c) the supply takes place for a price that is not the lower, or lowest, of the displayed prices.

Penalty:

- (a) if the person is a body corporate—\$5,000; or
 - (b) if the person is not a body corporate—\$1,000.
- (2) Subsection (1) is an offence of strict liability.

166 Single price to be specified in certain circumstances

- (1) A person commits an offence if the person, in trade or commerce, in connection with:
 - (a) the supply, or possible supply, to another person of goods or services of a kind ordinarily acquired for personal, domestic or household use or consumption; or
 - (b) the promotion by any means of the supply to another person, or of the use by another person, of goods or services of a kind ordinarily acquired for personal, domestic or household use or consumption;makes a representation with respect to an amount that, if paid, would constitute a part of the consideration for the supply of the goods or services.
- (2) A person is not required to include, in the single price for goods, a charge that is payable in relation to sending the goods from the supplier to the other person.

- (3) Subsection (1) does not apply if the person also:
- (a) specifies, in a prominent way and as a single figure, the single price for the goods or services; and
 - (b) if, in relation to goods:
 - (i) the person does not include in the single price a charge that is payable in relation to sending the goods from the supplier to the other person; and
 - (ii) the person knows, at the time of the representation, the minimum amount of a charge in relation to sending the goods from the supplier to the other person that must be paid by the other person;specifies that minimum amount.
- (4) Subsection (1) does not apply if the representation is made exclusively to a body corporate.
- (5) For the purposes of subsection (3)(a), the person is taken not to have specified a single price for the goods or services in a prominent way unless the single price is at least as prominent as the most prominent of the parts of the consideration for the supply.
- (6) Subsection (5) does not apply in relation to services to be supplied under a contract if:
- (a) the contract provides for the supply of the services for the term of the contract; and
 - (b) the contract provides for periodic payments for the services to be made during the term of the contract; and
 - (c) if the contract also provides for the supply of goods—the goods are directly related to the supply of the services.
- (7) Subsection (1) is an offence of strict liability.

Penalty

- (8) An offence against subsection (1) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
- (a) \$100,000,000;

Section 166

- (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (9) An offence against subsection (1) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Division 5—Other unfair practices

167 Referral selling

- (1) A person commits an offence if:
 - (a) the person, in trade or commerce, induces a consumer to acquire goods or services by representing that the consumer will, after the contract for the acquisition of the goods or services is made, receive a rebate, commission or other benefit in return for:
 - (i) giving the person the names of prospective customers; or
 - (ii) otherwise assisting the person to supply goods or services to other consumers; and
 - (b) the receipt of the rebate, commission or other benefit is contingent on an event occurring after that contract is made.
- (2) Subsection (1) is an offence of strict liability.

Penalty

- (3) An offence against subsection (1) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (4) An offence against subsection (1) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Section 168

168 Harassment and coercion

- (1) A person commits an offence if:
- (a) the person uses physical force, or undue harassment or coercion; and
 - (b) the physical force, or undue harassment or coercion is used in connection with:
 - (i) the supply or possible supply of goods or services; or
 - (ii) the payment for goods or services; or
 - (iii) the sale or grant, or the possible sale or grant, of an interest in land; or
 - (iv) the payment for an interest in land.
- (2) Subsection (1) is an offence of strict liability.

Penalty

- (2A) An offence against subsection (1) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
- (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (2B) An offence against subsection (1) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Other

- (3) Subsections (1)(b)(iii) and (iv) do not affect the application of any other provision of this Part in relation to the supply or acquisition, or the possible supply or acquisition, of interests in land.

Section 169

Part 4-2—Offences relating to consumer transactions

Division 1—Consumer guarantees

169 Display notices

- (1) A person commits an offence if:
- (a) the person makes a supply to a consumer to which:
 - (i) guarantees apply under Division 1 of Part 3-2; and
 - (ii) a determination under subsection 66(1) applies; and
 - (b) a notice that meets the requirements of the determination is not, in accordance with the determination:
 - (i) if the consumer takes delivery of the goods or services at the supplier's premises—displayed at those premises; or
 - (ii) otherwise—drawn to the consumer's attention before the consumer agrees to the supply of the goods.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) Subsection (1) is an offence of strict liability.

Division 2—Unsolicited consumer agreements

Subdivision A—Negotiating unsolicited consumer agreements

170 Permitted hours for negotiating an unsolicited consumer agreement

- (1) A dealer commits an offence if the dealer calls on a person for the purpose of negotiating an unsolicited consumer agreement, or for an incidental or related purpose:
- (a) at any time on a Sunday or a public holiday; or
 - (b) before 9 am on any other day; or
 - (c) after 6 pm on any other day (or after 5 pm if the other day is a Saturday).

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) Subsection (1) does not apply if the dealer calls on, or telephones, the person in accordance with consent that:
- (a) was given by the person to the dealer or a person acting on the dealer's behalf; and
 - (b) was not given in the presence of the dealer or a person acting on the dealer's behalf.
- (3) Subsection (1) is an offence of strict liability.

171 Disclosing purpose and identity

- (1) A dealer commits an offence if the dealer:
- (a) calls on a person for the purpose of negotiating an unsolicited consumer agreement, or for an incidental or related purpose; and
 - (b) does not as soon as practicable and in any event before starting to negotiate:

Section 172

- (i) clearly advise the person that the dealer's purpose is to seek the person's agreement to a supply of the goods or services concerned; and
- (ii) clearly advise the person that the dealer is obliged to leave the premises immediately on request; and
- (iii) provide to the person such information relating to the dealer's identity as is prescribed by the regulations made for the purposes of section 74(c).

Penalty:

- (a) if the person is a body corporate—\$50,000; or
- (b) if the person is not a body corporate—\$10,000.

(2) Subsection (1) is an offence of strict liability.

172 Ceasing to negotiate on request

- (1) A dealer commits an offence if the dealer:
 - (a) calls on a person at any premises for the purpose of negotiating an unsolicited consumer agreement, or for an incidental or related purpose; and
 - (b) does not leave the premises immediately on the request of:
 - (i) the occupier of the premises, or any person acting with the actual or apparent authority of the occupier; or
 - (ii) the person (the *prospective consumer*) with whom the negotiations are being conducted.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
- (b) if the person is not a body corporate—\$10,000.

- (2) A dealer commits an offence if:
 - (a) the prospective consumer has made the request referred to in subsection (1)(b); and
 - (b) the dealer contacts the prospective consumer for the purpose of negotiating an unsolicited consumer agreement (or for an

incidental or related purpose) within 30 days after the prospective consumer made the request.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (3) If the dealer is not, or is not to be, the supplier of the goods or services to which the negotiations relate, subsection (2) applies to that supplier, and any person acting on behalf of the supplier, in the same way that it applies to the dealer.
- (4) Subsection (2) does not apply to the dealer contacting the prospective consumer if:
- (a) the dealer is not, or is not to be, the supplier of the goods or services to which the negotiations relate; and
 - (b) the contact relates to a supply by another supplier.
- (5) Subsections (1) and (2) are offences of strict liability.

173 Informing person of termination period etc.

- (1) A dealer commits an offence if the dealer makes an unsolicited consumer agreement with a person, and:
- (a) before the agreement is made, the person is not given information as to the following:
 - (i) the person's right to terminate the agreement during the termination period;
 - (ii) the way in which the person may exercise that right;
 - (iii) such other matters as are prescribed by regulations made for the purposes of section 76(a)(iii); or
 - (b) if the agreement is made in the presence of both the dealer and the person—the person is not given the information in writing; or
 - (c) if the agreement is made by telephone—the person is not:
 - (i) given the information by telephone; and
 - (ii) subsequently given the information in writing; or

Section 174

- (d) the form in which, and the way in which, the person is given the information does not comply with any other requirements prescribed by regulations made for the purposes of section 76(d).

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) If:
- (a) a dealer contravenes subsection (1) in relation to an unsolicited consumer agreement; and
 - (b) the dealer is not, or is not to be, the supplier of the goods or services to which the agreement relates;
- the supplier of the goods or services is also taken to have contravened subsection (1) in relation to the agreement.
- (3) Subsection (1) is an offence of strict liability.

Subdivision B—Requirements for unsolicited consumer agreements etc.

174 Requirement to give document to the consumer

- (1) The dealer who negotiated an unsolicited consumer agreement commits an offence if:
- (a) the agreement was not negotiated by telephone; and
 - (b) the dealer does not give a copy of the agreement to the consumer under the agreement immediately after the consumer signs the agreement.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) The dealer who negotiated an unsolicited consumer agreement commits an offence if:
- (a) the agreement was negotiated by telephone; and

- (b) the dealer does not, within 5 business days after the agreement was made or such longer period agreed by the parties, give to the consumer under the agreement:
 - (i) personally; or
 - (ii) by post; or
 - (iii) with the consumer's consent—by electronic communication;an agreement document evidencing the agreement.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (3) Subsections (1) and (2) are offences of strict liability.

175 Requirements for all unsolicited consumer agreements etc.

- (1) The supplier under an unsolicited consumer agreement commits an offence if the agreement, or (if the agreement was negotiated by telephone) the agreement document, does not comply with the following requirements:
 - (a) it must set out in full all the terms of the agreement, including:
 - (i) the total consideration to be paid or provided by the consumer under the agreement or, if the total consideration is not ascertainable at the time the agreement is made, the way in which it is to be calculated; and
 - (ii) any postal or delivery charges to be paid by the consumer;
 - (b) its front page must include a notice that:
 - (i) conspicuously and prominently informs the consumer of the consumer's right to terminate the agreement; and
 - (ii) conspicuously and prominently sets out any other information prescribed by regulations made for the purposes of section 79(b)(ii); and

Section 176

- (iii) complies with any other requirements prescribed by regulations made for the purposes of section 79(b)(iii);
- (c) it must be accompanied by a notice that:
 - (i) may be used by the consumer to terminate the agreement; and
 - (ii) complies with any requirements prescribed by regulations made for the purposes of section 79(c)(ii);
- (d) it must conspicuously and prominently set out in full:
 - (i) the supplier's name; and
 - (ii) if the supplier has an ABN—the supplier's ABN; and
 - (iii) if the supplier does not have an ABN but has an ACN—the supplier's ACN; and
 - (iv) the supplier's business address (not being a post box) or, if the supplier does not have a business address, the supplier's residential address; and
 - (v) if the supplier has an email address—the supplier's email address; and
 - (vi) if the supplier has a fax number—the supplier's fax number;
- (e) it must be printed clearly or typewritten (apart from any amendments to the printed or typewritten form, which may be handwritten);
- (f) it must be transparent.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
- (b) if the person is not a body corporate—\$10,000.

(2) Subsection (1) is an offence of strict liability.

176 Additional requirements for unsolicited consumer agreements not negotiated by telephone

- (1) The supplier under an unsolicited consumer agreement that was not negotiated by telephone commits an offence if the agreement does not comply with the following requirements:

Section 177

- (a) the agreement must be signed by the consumer under the agreement;
- (b) if the agreement is signed by a person on the supplier's behalf—the agreement must state that the person is acting on the supplier's behalf, and must set out in full:
 - (i) the person's name; and
 - (ii) the person's business address (not being a post box) or, if the person does not have a business address, the person's residential address; and
 - (iii) if the person has an email address—the person's email address.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) Subsection (1) is an offence of strict liability.
- (3) This section does not limit the operation of section 175.

177 Requirements for amendments of unsolicited consumer agreements

- (1) The supplier under an unsolicited consumer agreement commits an offence if any amendments to the agreement are not signed by both parties to the agreement.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) Subsection (1) is an offence of strict liability.

Section 178

Subdivision C—Terminating unsolicited consumer agreements

178 Obligations of suppliers on termination

- (1) The supplier under an unsolicited consumer agreement commits an offence if:
- (a) the agreement is terminated in accordance with section 82; and
 - (b) the supplier does not, immediately upon being notified of the termination, return or refund to the consumer under the agreement any consideration (or the value of any consideration) that the consumer gave under the agreement or a related contract or instrument.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) Subsection (1) is an offence of strict liability.

179 Prohibition on supplies etc.

- (1) The supplier under an unsolicited consumer agreement commits an offence if:
- (a) the supplier:
 - (i) supplies to the consumer under the agreement the goods or services to be supplied under the agreement; or
 - (ii) accepts any payment, or any other consideration, in connection with those goods or services; or
 - (iii) requires any payment, or any other consideration, in connection with those goods or services; and
 - (b) the supply, acceptance or requirement occurs during:
 - (i) if the agreement was not negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the tenth business day after the day on which the agreement was made; or

- (ii) if the agreement was negotiated by telephone—the period starting on the day on which the agreement was made and ending at the end of the tenth business day after the day on which the consumer was given the agreement document relating to the agreement.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) Strict liability applies to subsection (1)(a).

180 Repayment of payments received after termination

- (1) The supplier under an unsolicited consumer agreement commits an offence if:
- (a) the agreement is terminated in accordance with section 82; and
 - (b) the supplier does not immediately refund to the consumer under the agreement any payment:
 - (i) that the consumer, or a person acting on the consumer's behalf, makes to the supplier after the termination; and
 - (ii) that purports to be made under the agreement or a related contract or instrument.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) Subsection (1) is an offence of strict liability.

181 Prohibition on recovering amounts after termination

- (1) A person commits an offence if:
- (a) an unsolicited consumer agreement is terminated in accordance with section 82; and
 - (b) the person:

Section 182

- (i) brings, or asserts an intention to bring, legal proceedings against the consumer; or
 - (ii) takes, or asserts an intention to take, any other action against the consumer;
- in relation to an amount alleged to be payable, under the agreement or a related contract or instrument, by the consumer under the agreement.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) A person commits an offence if:
- (a) an unsolicited consumer agreement is terminated in accordance with section 82; and
 - (b) for the purpose of recovering an amount alleged to be payable, under the agreement or a related contract or instrument, by the consumer under the agreement, the person:
 - (i) places the consumer's name, or causes the consumer's name to be placed, on a list of defaulters or debtors; or
 - (ii) asserts an intention to place the consumer's name, or to cause the consumer's name to be placed, on such a list.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (3) Subsection (1) is an offence of strict liability.
- (4) Strict liability applies to subsection (2)(a).

Subdivision D—Miscellaneous

182 Certain provisions of unsolicited consumer agreements void

- (1) The supplier under an unsolicited consumer agreement commits an offence if the agreement includes, or purports to include, a

Section 183

provision (however described) that is, or would be, void because of section 89(1).

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) The supplier under an unsolicited consumer agreement commits an offence if the supplier attempts to enforce or rely on a provision (however described) that is void because of section 89(1).

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (3) Subsections (1) and (2) are offences of strict liability.

183 Waiver of rights

- (1) The supplier under an unsolicited consumer agreement commits an offence if the supplier induces the consumer to waive any right conferred by Division 2 of Part 3-2.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) Subsection (1) is an offence of strict liability.

184 Application of this Division to persons to whom rights of consumers and suppliers are assigned etc.

- (1) This Division applies in relation to a person to whom the rights of a consumer (the *original consumer*) under a contract for the supply of goods or services are assigned or transferred, or pass by operation of law, (whether from the original consumer or from another person) as if the person were the original consumer.

Section 185

- (2) This Division applies in relation to a person to whom the rights of a supplier (the *original supplier*) under a contract for the supply of goods or services are assigned or transferred, or pass by operation of law, (whether from the original supplier or from another person) as if the person were the original supplier.

185 Application of this Division to supplies to third parties

This Division applies in relation to a contract for the supply of goods or services to a consumer (the *original consumer*) on the order of another person as if the other person were also the consumer.

186 Regulations may limit the application of this Division

This Division (other than section 170) does not apply, or provisions of this Division (other than section 170) that are specified in regulations made for the purposes of section 94 do not apply, to or in relation to:

- (a) circumstances of a kind specified in those regulations; or
- (b) agreements of a kind specified in those regulations; or
- (c) the conduct of businesses of a kind specified in those regulations.

187 Application of this Division to certain conduct covered by the Corporations Act

This Division does not apply in relation to conduct to which section 992A of the *Corporations Act 2001* applies.

Note: Section 992A of the *Corporations Act 2001* prohibits hawking of financial products.

Division 3—Lay-by agreements

188 Lay-by agreements must be in writing etc.

- (1) A supplier of goods who is a party to a lay-by agreement commits an offence if:
- (a) the agreement is not in writing; or
 - (b) a copy of the agreement is not given to the consumer to whom the goods are, or are to be, supplied.

Penalty:

- (a) if the person is a body corporate—\$30,000; or
 - (b) if the person is not a body corporate—\$6,000.
- (2) Subsection (1) is an offence of strict liability.

189 Termination charges

- (1) A supplier of goods who is a party to a lay-by agreement commits an offence if the agreement requires the consumer to pay a termination charge.

Penalty:

- (a) if the person is a body corporate—\$30,000; or
 - (b) if the person is not a body corporate—\$6,000.
- (2) Subsection (1) does not apply if the termination charge is payable only if:
- (a) the agreement is terminated by the consumer; and
 - (b) the supplier has not breached the agreement.
- (3) A supplier of goods who is a party to a lay-by agreement commits an offence if:
- (a) the agreement provides that a termination charge is payable; and
 - (b) the amount of the charge is more than the supplier's reasonable costs in relation to the agreement.

Section 190

Penalty:

- (a) if the person is a body corporate—\$30,000; or
 - (b) if the person is not a body corporate—\$6,000.
- (4) Subsections (1) and (3) are offences of strict liability.

190 Termination of lay-by agreements by suppliers

- (1) A supplier of goods who is a party to a lay-by agreement commits an offence if the supplier terminates the agreement.

Penalty:

- (a) if the person is a body corporate—\$30,000; or
 - (b) if the person is not a body corporate—\$6,000.
- (2) Subsection (1) does not apply if:
- (a) the consumer who is a party to the agreement breached a term of the agreement; or
 - (b) the supplier is no longer engaged in trade or commerce; or
 - (c) the goods to which the agreement relates are no longer available.
- (3) Subsection (1) is an offence of strict liability.

191 Refund of amounts

- (1) A supplier of goods who is a party to a lay-by agreement commits an offence if:
- (a) the agreement is terminated by a party to the agreement; and
 - (b) the supplier fails to refund to the consumer all the amounts paid by the consumer under the agreement (other than any termination charge that is payable under the agreement).

Penalty:

- (a) if the person is a body corporate—\$30,000; or
 - (b) if the person is not a body corporate—\$6,000.
- (2) Subsection (1) is an offence of strict liability.

Division 3A—Gift cards

191A Gift cards to be redeemable for at least 3 years

- (1) A person commits an offence if:
- (a) the person, in trade or commerce, supplies a gift card to a consumer; and
 - (b) the day the gift card ceases to be redeemable is earlier than 3 years after the day of that supply.

Penalty:

- (a) if the person is a body corporate—\$30,000; or
 - (b) if the person is not a body corporate—\$6,000.
- (2) Subsection (1) is an offence of strict liability.

191B When gift card ceases to be redeemable to appear prominently on gift card

- (1) A person commits an offence if:
- (a) the person, in trade or commerce, supplies a gift card to a consumer; and
 - (b) one of the following does not appear prominently on the gift card:
 - (i) the date the gift card ceases to be redeemable;
 - (ii) the month and year the gift card ceases to be redeemable;
 - (iii) the date the gift card is supplied and a statement that identifies the period during which the gift card is redeemable;
 - (iv) the month and year the gift card is supplied and a statement that identifies the period during which the gift card is redeemable;
 - (v) the words “no expiry date” or words to that effect.

Section 191C

Penalty:

- (a) if the person is a body corporate—\$30,000; or
- (b) if the person is not a body corporate—\$6,000.

(2) Subsection (1) is an offence of strict liability.

191C Terms and conditions not to allow post-supply fees

(1) A person commits an offence if:

- (a) the person, in trade or commerce, supplies a gift card to a consumer; and
- (b) the terms or conditions (however described) of the gift card allow or require the payment of a post-supply fee in relation to the gift card.

Penalty:

- (a) if the person is a body corporate—\$30,000; or
- (b) if the person is not a body corporate—\$6,000.

(2) An offence against subsection (1) is an offence of strict liability.

191D Post-supply fees not to be demanded or received

(1) A person commits an offence if the person, in trade or commerce, demands or receives payment of a post-supply fee in relation to a gift card.

Penalty:

- (a) if the person is a body corporate—\$30,000; or
- (b) if the person is not a body corporate—\$6,000.

(2) An offence against subsection (1) is an offence of strict liability.

191E Regulations may limit the application of this Division

The regulations may provide that some or all of the provisions of this Division do not apply to or in relation to:

- (a) gift cards of a kind prescribed by the regulations; or

Section 191E

- (b) persons of a kind prescribed by the regulations; or
- (c) gift cards supplied in circumstances prescribed by the regulations.

Section 192

Division 4—Miscellaneous

192 Prescribed requirements for warranties against defects

- (1) A person commits an offence if the person, in connection with the supply, in trade or commerce, of goods or services to a consumer:
- (a) gives to the consumer a document that evidences a warranty against defects and that does not comply with the requirements prescribed for the purposes of section 102(1); or
 - (b) represents directly to the consumer that the goods or services are goods or services to which such a warranty against defects relates.

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) Subsection (1) is an offence of strict liability.

193 Repairers must comply with prescribed requirements

- (1) A person commits an offence if:
- (a) the person accepts from another person goods that the other person acquired as a consumer; and
 - (b) the goods are accepted for the purpose of repairing them; and
 - (c) the person does not give to the other person a notice that complies with the requirements prescribed for the purposes of section 103(1).

Penalty:

- (a) if the person is a body corporate—\$50,000; or
 - (b) if the person is not a body corporate—\$10,000.
- (2) Subsection (1) is an offence of strict liability.

Part 4-3—Offences relating to safety of consumer goods and product related services

Division 1—Safety standards

194 Supplying etc. consumer goods that do not comply with safety standards

- (1) A person commits an offence if:
 - (a) the person, in trade or commerce, supplies consumer goods of a particular kind; and
 - (b) a safety standard for consumer goods of that kind is in force; and
 - (c) those goods do not comply with the standard.
- (2) A person commits an offence if:
 - (a) the person, in trade or commerce, offers for supply (other than for export) consumer goods of a particular kind; and
 - (b) a safety standard for consumer goods of that kind is in force; and
 - (c) those goods do not comply with the standard.
- (3) A person commits an offence if:
 - (a) the person, in or for the purposes of trade or commerce, manufactures, possesses or has control of consumer goods of a particular kind; and
 - (b) a safety standard for consumer goods of that kind is in force; and
 - (c) those goods do not comply with the standard.
- (4) Subsection (3) does not apply if the person does not manufacture, possess or control the goods for the purpose of supplying the goods (other than for export).
- (5) A person commits an offence if:

Section 195

- (a) the person, in trade or commerce, exports consumer goods of a particular kind; and
 - (b) a safety standard for consumer goods of that kind is in force; and
 - (c) those goods do not comply with the standard.
- (6) Subsection (5) does not apply if the Commonwealth Minister has, by written notice given to the person, approved the export of the goods under section 106(5).
- (7) Subsections (1), (2), (3) and (5) are offences of strict liability.

Penalty

- (8) An offence against subsection (1), (2), (3) or (5) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (9) An offence against subsection (1), (2), (3) or (5) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

195 Supplying etc. product related services that do not comply with safety standards

- (1) A person commits an offence if:
 - (a) the person, in trade or commerce, supplies product related services of a particular kind; and
 - (b) a safety standard for services of that kind is in force; and
-

- (c) those services do not comply with the standard.
- (2) A person commits an offence if:
 - (a) the person, in trade or commerce, offers for supply product related services of a particular kind; and
 - (b) a safety standard for services of that kind is in force; and
 - (c) those services do not comply with the standard.
- (3) Subsections (1) and (2) are offences of strict liability.

Penalty

- (4) An offence against subsection (1) or (2) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (5) An offence against subsection (1) or (2) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

196 Requirement to nominate a safety standard

- (1) A person commits an offence if the person refuses or fails to comply with a request given to the person under subsection 108(2).

Penalty:

- (a) if the person is a body corporate—\$22,000; or
- (b) if the person is not a body corporate—\$4,400.
- (2) Subsection (1) is an offence of strict liability.

Division 2—Bans on consumer goods and product related services

197 Supplying etc. consumer goods covered by a ban

- (1) A person commits an offence if:
 - (a) the person, in trade or commerce, supplies consumer goods of a particular kind; and
 - (b) either:
 - (i) an interim ban on goods of that kind is in force in the place where the supply occurs; or
 - (ii) a permanent ban on goods of that kind is in force.
- (2) A person commits an offence if:
 - (a) the person, in trade or commerce, offers for supply (other than for export) consumer goods of a particular kind; and
 - (b) the supply would be prohibited by subsection (1).
- (3) A person commits an offence if:
 - (a) the person, in or for the purposes of trade or commerce, manufactures, possesses or has control of consumer goods of a particular kind; and
 - (b) supply of the goods would be prohibited by subsection (1).
- (4) Subsection (3) does not apply if the person does not manufacture, possess or control the goods for the purpose of supplying the goods (other than for export).
- (5) A person commits an offence if:
 - (a) the person exports consumer goods of a particular kind; and
 - (b) supply of the goods would be prohibited by subsection (1).
- (6) Subsection (5) does not apply if the Commonwealth Minister has, by written notice given to the person, approved the export of the goods under section 118(5).
- (7) Subsections (1), (2), (3) and (5) are offences of strict liability.

Penalty

- (8) An offence against subsection (1), (2), (3) or (5) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (9) An offence against subsection (1), (2), (3) or (5) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

198 Supplying etc. product related services covered by a ban

- (1) A person commits an offence if:
 - (a) the person, in trade or commerce, supplies product related services of a particular kind; and
 - (b) either:
 - (i) an interim ban on services of that kind is in force in the place where the supply occurs; or
 - (ii) a permanent ban on services of that kind is in force.
- (2) A person commits an offence if:
 - (a) the person, in trade or commerce, offers for supply product related services of a particular kind; and
 - (b) the supply would be prohibited by subsection (1).
- (3) Subsections (1) and (2) are offences of strict liability.

Section 198

Penalty

- (4) An offence against subsection (1) or (2) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (5) An offence against subsection (1) or (2) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Division 3—Recall of consumer goods

199 Compliance with recall orders

- (1) A person commits an offence if:
 - (a) a recall notice for consumer goods is in force; and
 - (b) the notice requires the person (other than the regulator) to do one or more things; and
 - (c) the person refuses or fails to comply with the notice.
- (2) A person commits an offence if:
 - (a) a recall notice for consumer goods is in force; and
 - (b) the person, in trade or commerce:
 - (i) if the notice identifies a defect in, or a dangerous characteristic of, the consumer goods—supplies consumer goods of the kind to which the notice relates which contain that defect or have that characteristic; or
 - (ii) in any other case—supplies consumer goods of the kind to which the notice relates.
- (3) Subsections (1) and (2) are offences of strict liability.

Penalty

- (4) An offence against subsection (1) or (2) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.

Section 200

- (5) An offence against subsection (1) or (2) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

200 Notification by persons who supply consumer goods outside Australia if there is compulsory recall

- (1) A person commits an offence if:
- (a) the person is required by section 125(4) to give a copy of a notice to a responsible Minister; and
 - (b) the person refuses or fails to give the copy as required by that section.

Penalty:

- (a) if the person is a body corporate—\$16,650; or
 - (b) if the person is not a body corporate—\$3,330.
- (2) Subsection (1) is an offence of strict liability.

201 Notification requirements for a voluntary recall of consumer goods

- (1) A person commits an offence if:
- (a) the person is required by section 128(2) to give a notice to the Commonwealth Minister; and
 - (b) the person refuses or fails to give the notice as required by that section.

Penalty:

- (a) if the person is a body corporate—\$16,650; or
 - (b) if the person is not a body corporate—\$3,330.
- (2) A person commits an offence if:
- (a) the person is required by section 128(6) to give a copy of a notice to the Commonwealth Minister; and
 - (b) the person refuses or fails to give the copy as required by that section.

Section 201

Penalty:

- (a) if the person is a body corporate—\$16,650; or
 - (b) if the person is not a body corporate—\$3,330.
- (3) Subsections (1) and (2) are offences of strict liability.

Section 202

**Division 4—Consumer goods, or product related services,
associated with death or serious injury or illness**

**202 Suppliers to report consumer goods etc. associated with the
death or serious injury or illness of any person**

- (1) A person commits an offence if:
- (a) the person is required by section 131 or 132 to give a notice to the Commonwealth Minister; and
 - (b) the person refuses or fails to give the notice as required by that section.

Penalty:

- (a) if the person is a body corporate—\$16,650; or
 - (b) if the person is not a body corporate—\$3,330.
- (2) Subsection (1) is an offence of strict liability.

Part 4-4—Offences relating to information standards

203 Supplying etc. goods that do not comply with information standards

- (1) A person commits an offence if:
 - (a) the person, in trade or commerce, supplies goods of a particular kind; and
 - (b) an information standard for goods of that kind is in force; and
 - (c) the person has not complied with the standard in relation to the goods.
- (2) A person commits an offence if:
 - (a) the person, in trade or commerce, offers for supply goods of a particular kind; and
 - (b) an information standard for goods of that kind is in force; and
 - (c) the person has not complied with the standard in relation to the goods.
- (3) A person commits an offence if:
 - (a) the person, in or for the purposes of trade or commerce, manufactures, possesses or has control of goods of a particular kind; and
 - (b) an information standard for goods of that kind is in force; and
 - (c) the person has not complied with the standard in relation to the goods.
- (4) Subsection (3) does not apply if the person does not manufacture, possess or control the goods for the purpose of supplying the goods.
- (5) Subsection (1), (2) or (3) does not apply to goods that are intended to be used outside Australia.

Section 203

- (6) Unless the contrary is established, it is presumed, for the purposes of this section, that goods are intended to be used outside Australia if either of the following is applied to the goods:
 - (a) a statement that the goods are for export only;
 - (b) a statement indicating, by the use of words authorised by regulations made for the purposes of section 136(6)(b) to be used for the purposes of section 136(6), that the goods are intended to be used outside Australia.
- (7) Without limiting subsection (6), a statement may, for the purposes of that subsection, be applied to goods by being:
 - (a) woven in, impressed on, worked into or annexed or affixed to the goods; or
 - (b) applied to a covering, label, reel or thing in or with which the goods are supplied.
- (8) Subsections (1), (2) and (3) are offences of strict liability.

Penalty

- (9) An offence against subsection (1), (2) or (3) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.
- (10) An offence against subsection (1), (2) or (3) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

204 Supplying etc. services that do not comply with information standards

- (1) A person commits an offence if:
 - (a) the person, in trade or commerce, supplies services of a particular kind; and
 - (b) an information standard for services of that kind is in force; and
 - (c) the person has not complied with the standard in relation to the services.
- (2) A person commits an offence if:
 - (a) the person, in trade or commerce, offers for supply services of a particular kind; and
 - (b) an information standard for services of that kind is in force; and
 - (c) the person has not complied with the standard in relation to the services.
- (3) Subsections (1) and (2) are offences of strict liability.

Penalty

- (4) An offence against subsection (1) or (2) committed by a body corporate is punishable on conviction by a fine of not more than the greater of the following:
 - (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the commission of the offence—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the offence.

Section 204

- (5) An offence against subsection (1) or (2) committed by a person other than a body corporate is punishable on conviction by a fine of not more than \$2,500,000.

Part 4-5—Offences relating to substantiation notices

205 Compliance with substantiation notices

- (1) A person commits an offence if the person:
 - (a) is given a substantiation notice; and
 - (b) refuses or fails to comply with it within the substantiation notice compliance period for the notice.

Penalty:

 - (a) if the person is a body corporate—\$16,500; or
 - (b) if the person is not a body corporate—\$3,300.
- (2) Subsection (1) does not apply if:
 - (a) the person is an individual; and
 - (b) the person refuses or fails to give particular information or produce a particular document in compliance with a substantiation notice; and
 - (c) the information, or production of the document, might tend to incriminate the individual or to expose the individual to a penalty.
- (3) Subsection (1) is an offence of strict liability.

206 False or misleading information etc.

- (1) A person commits an offence if the person, in compliance or purported compliance with a substantiation notice given by the regulator:
 - (a) gives to the regulator false or misleading information; or
 - (b) produces to the regulator documents that contain false or misleading information.

Penalty:

 - (a) if the person is a body corporate—\$27,500; or
 - (b) if the person is not a body corporate—\$5,500.

Section 206

- (2) This section does not apply to:
 - (a) information that the person could not have known was false or misleading; or
 - (b) the production to the regulator of a document containing false or misleading information if the document is accompanied by a statement of the person that the information is false or misleading.
- (3) Subsection (1) is an offence of strict liability.

Part 4-6—Defences

207 Reasonable mistake of fact

- (1) In a prosecution for a contravention of a provision of this Chapter, it is a defence if the defendant proves that the contravention was caused by a reasonable mistake of fact, including a mistake of fact caused by reasonable reliance on information supplied by another person.
- (2) However, subsection (1) does not apply in relation to information relied upon by the defendant that was supplied to the defendant by another person who was, at the time when the contravention occurred:
 - (a) an employee or agent of the defendant; or
 - (b) if the defendant is a body corporate—a director, employee or agent of the defendant.
- (3) If a defence provided by subsection (1) involves an allegation that a contravention was due to reliance on information supplied by another person, the defendant is not entitled to rely on that defence unless:
 - (a) the court gives leave; or
 - (b) the defendant has, not later than 7 days before the day on which the hearing of the proceeding commences, served on the person who instituted the proceeding a written notice giving such information as the defendant then had that would identify or assist in identifying the other person.

208 Act or default of another person etc.

- (1) In a prosecution for a contravention of a provision of this Chapter, it is a defence if the defendant proves that:
 - (a) the contravention was due to the act or default of another person, to an accident or to some other cause beyond the defendant's control; and

Section 209

- (b) the defendant took reasonable precautions and exercised due diligence to avoid the contravention.
- (2) However, subsection (1) does not apply in relation to the act or default of another person who was, at the time when the contravention occurred:
 - (a) an employee or agent of the defendant; or
 - (b) if the defendant is a body corporate—a director, employee or agent of the defendant.
- (3) If a defence provided by subsection (1) involves an allegation that a contravention was due to the act or default of another person, the defendant is not entitled to rely on that defence unless:
 - (a) the court gives leave; or
 - (b) the defendant has, not later than 7 days before the day on which the hearing of the proceeding commences, served on the person who instituted the proceeding a written notice giving such information as the defendant then had that would identify or assist in identifying the other person.

209 Publication of advertisements in the ordinary course of business

In a prosecution for a contravention of a provision of this Chapter that was committed by publication of an advertisement, it is a defence if the defendant proves that:

- (a) the defendant is a person whose business it is to publish or arrange for the publication of advertisements; and
- (b) the defendant received the advertisement for publication in the ordinary course of business; and
- (c) the defendant did not know, and had no reason to suspect, that its publication would amount to a contravention of such a provision.

210 Supplying goods acquired for the purpose of re-supply

- (1) In a prosecution for a contravention of a provision of this Chapter that was committed by supplying goods in contravention of section 194 or 203, it is a defence if the defendant proves that:

Section 210

- (a) the goods were acquired by the defendant for the purpose of re-supply; and
- (b) the goods were so acquired from a person who carried on in Australia a business of supplying such goods otherwise than as the agent of a person outside Australia; and
- (c) in the case of a contravention of section 194—the defendant:
 - (i) did not know, and could not with reasonable diligence have ascertained, that the goods did not comply with the safety standard to which the contravention relates; or
 - (ii) relied in good faith on a representation by the person from whom the defendant acquired the goods that there was no safety standard for such goods; and
- (d) in the case of a contravention of section 203—the defendant:
 - (i) did not know, and could not with reasonable diligence have ascertained, that the defendant had not complied with the information standard to which the contravention relates; or
 - (ii) relied in good faith on a representation by the person from whom the defendant acquired the goods that there was no information standard for such goods.

Note: Section 194 is about supply of consumer goods that do not comply with safety standards, and section 203 is about supply of goods that do not comply with information standards.

- (2) A defendant is not entitled to rely on the defence provided by subsection (1) unless:
 - (a) the court gives leave; or
 - (b) the defendant has, not later than 7 days before the day on which the hearing of the proceeding commences, served on the person who instituted the proceeding a written notice identifying the person from whom the defendant acquired the goods.

Section 211

211 Supplying services acquired for the purpose of re-supply

- (1) In a prosecution for a contravention of a provision of this Chapter that was committed by supplying services in contravention of section 195 or 204, it is a defence if the defendant proves that:
- (a) the services were acquired by the defendant for the purpose of re-supply; and
 - (b) the services were so acquired from a person who carried on in Australia a business of supplying such services otherwise than as the agent of a person outside Australia; and
 - (c) in the case of a contravention of section 195—the defendant:
 - (i) did not know, and could not with reasonable diligence have ascertained, that the services did not comply with the safety standard to which the contravention relates; or
 - (ii) relied in good faith on a representation by the person from whom the defendant acquired the services that there was no safety standard for such services; and
 - (d) in the case of a contravention of section 204—the defendant:
 - (i) did not know, and could not with reasonable diligence have ascertained, that the defendant had not complied with the information standard to which the contravention relates; or
 - (ii) relied in good faith on a representation by the person from whom the defendant acquired the services that there was no information standard for such services.

Note: Section 195 is about supply of product related services that do not comply with safety standards, and section 204 is about supply of services that do not comply with information standards.

- (2) A defendant is not entitled to rely on the defence provided by subsection (1) unless:
- (a) the court gives leave; or
 - (b) the defendant has, not later than 7 days before the day on which the hearing of the proceeding commences, served on the person who instituted the proceeding a written notice identifying the person from whom the defendant acquired the services.

Part 4-7—Miscellaneous**212 Prosecutions to be commenced within 3 years**

A prosecution for an offence against a provision of this Chapter may be commenced at any time within 3 years after the commission of the offence.

213 Preference must be given to compensation for victims

If a court considers that:

- (a) it is appropriate to impose a fine on a person (the *defendant*) under this Chapter in relation to:
 - (i) a contravention of a provision of this Schedule; or
 - (ii) an attempt to contravene such a provision; or
 - (iii) aiding, abetting, counselling or procuring a person to contravene such a provision; or
 - (iv) inducing, or attempting to induce, a person, whether by threats or promises or otherwise, to contravene such a provision; or
 - (v) being in any way, directly or indirectly, knowingly concerned in, or party to, the contravention by a person of such a provision; or
 - (vi) conspiring with others to contravene such a provision; and
- (b) it is appropriate to order the defendant to pay compensation to a person who has suffered loss or damage as result of that contravention or conduct; and
- (c) the defendant does not have sufficient financial resources to pay both the fine and the compensation;

the court must give preference to making an order for compensation.

Section 214

214 Penalties for contraventions of the same nature etc.

(1) If:

- (a) a person is convicted of 2 or more offences constituted by, or relating to, contraventions of the same provision of this Chapter; and
- (b) the contraventions appear to the court:
 - (i) to have been of the same nature or a substantially similar nature; and
 - (ii) to have occurred at or about the same time;

the court must not, in respect of the offences, impose on the person fines that, in the aggregate, exceed the maximum fine that would be applicable in respect of one offence by that person against that provision.

- (2) This section applies whether or not the person is also convicted of an offence or offences constituted by, or relating to, another contravention or other contraventions of that provision that were of a different nature or occurred at a different time.

215 Penalties for previous contraventions of the same nature etc.

(1) If:

- (a) a person is convicted of an offence constituted by, or relating to, a contravention of a provision of this Chapter; and
- (b) a fine has, or fines have, previously been imposed on the person by the court for an offence or offences constituted by, or relating to, another contravention or other contraventions of the same provision; and
- (c) the contravention, or each of the contraventions, mentioned in paragraph (b) appear to the court:
 - (i) to have been of the same nature as, or a substantially similar nature to, the contravention mentioned in paragraph (a); and
 - (ii) to have occurred at or about the same time as the contravention mentioned in paragraph (a);

Section 216

the court must not, in respect of the offence mentioned in paragraph (a), impose on the person a fine that exceeds the amount (if any) by which the maximum fine applicable in respect of that offence is greater than the amount of the fine, or the sum of the amounts of the fines, referred to in paragraph (b).

- (2) This section applies whether or not a fine has, or fines have, also previously been imposed on the person for an offence or offences constituted by, or relating to, a contravention or contraventions of that provision that were of a different nature or occurred at a different time.

216 Granting of injunctions etc.

In proceedings against a person for a contravention of a provision of this Chapter, the court may:

- (a) grant an injunction under Division 2 of Part 5-2 against the person in relation to:
 - (i) the conduct that constitutes, or is alleged to constitute, the contravention; or
 - (ii) other conduct of that kind; or
- (b) make an order under section 246, 247 or 248 in relation to the contravention.

217 Criminal proceedings not to be brought for contraventions of Chapter 2 or 3

Criminal proceedings do not lie against a person only because the person:

- (a) has contravened a provision of Chapter 2 or 3; or
- (b) has attempted to contravene such a provision; or
- (c) has aided, abetted, counselled or procured a person to contravene such a provision; or
- (d) has induced, or attempted to induce, a person, whether by threats or promises or otherwise, to contravene such a provision; or

Section 217

- (e) has been in any way, directly or indirectly, knowingly concerned in, or party to, the contravention by a person of such a provision; or
- (f) has conspired with others to contravene such a provision.

Chapter 5—Enforcement and remedies

Part 5-1—Enforcement

Division 1—Undertakings

218 Regulator may accept undertakings

- (1) The regulator may accept a written undertaking given by a person for the purposes of this section in connection with a matter in relation to which the regulator has a power or function under this Schedule.
- (2) The person may, with the consent of the regulator, withdraw or vary the undertaking at any time.
- (3) If the regulator considers that the person who gave the undertaking has breached any of its terms, the regulator may apply to a court for an order under subsection (4).
- (4) If the court is satisfied that the person has breached a term of the undertaking, the court may make all or any of the following orders:
 - (a) an order directing the person to comply with that term of the undertaking;
 - (b) an order directing the person to pay to the Commonwealth, or to a State or Territory, an amount up to the amount of any financial benefit that the person has obtained directly or indirectly and that is reasonably attributable to the breach;
 - (c) any order that the court considers appropriate directing the person to compensate any other person who has suffered loss or damage as a result of the breach;
 - (d) any other order that the court considers appropriate.

Section 219

Division 2—Substantiation notices

219 Regulator may require claims to be substantiated etc.

- (1) This section applies if a person has, in trade or commerce, made a claim or representation promoting, or apparently intended to promote:
 - (a) a supply, or possible supply, of goods or services by the person or another person; or
 - (b) a sale or grant, or possible sale or grant, of an interest in land by the person or another person; or
 - (c) employment that is to be, or may be, offered by the person or another person.
- (2) The regulator may give the person who made the claim or representation a written notice that requires the person to do one or more of the following:
 - (a) give information and/or produce documents to the regulator that could be capable of substantiating or supporting the claim or representation;
 - (b) if the claim or representation relates to a supply, or possible supply, of goods or services by the person or another person—give information and/or produce documents to the regulator that could be capable of substantiating:
 - (i) the quantities in which; and
 - (ii) the period for which;the person or other person is or will be able to make such a supply (whether or not the claim or representation relates to those quantities or that period);
 - (c) give information and/or produce documents to the regulator that are of a kind specified in the notice;within 21 days after the notice is given to the person who made the claim or representation.

Section 220

- (3) Any kind of information or documents that the regulator specifies under subsection (2)(c) must be a kind that the regulator is satisfied is relevant to:
 - (a) substantiating or supporting the claim or representation; or
 - (b) if the claim or representation relates to a supply, or possible supply, of goods or services by the person or another person—substantiating the quantities in which, or the period for which, the person or other person is or will be able to make such a supply.
- (4) The notice must:
 - (a) name the person to whom it is given; and
 - (b) specify the claim or representation to which it relates; and
 - (c) explain the effect of sections 220, 221 and 222.
- (5) The notice may relate to more than one claim or representation that the person has made.
- (6) This section does not apply to a person who made the claim or representation if the person:
 - (a) is an information provider; and
 - (b) made the claim or representation by publishing it on behalf of another person in the course of carrying on a business of providing information; and
 - (c) does not have a commercial relationship with the other person other than for the purpose of:
 - (i) publishing claims or representations promoting, or apparently intended to promote, the other person's business or other activities; or
 - (ii) the other person supplying goods or services, or selling or granting interests in land to the person.

220 Extending periods for complying with substantiation notices

- (1) A person who has been given a substantiation notice may, at any time within 21 days after the notice was given to the person by the

Section 221

regulator, apply in writing to the regulator for an extension of the period for complying with the notice.

- (2) The regulator may, by written notice given to the person, extend the period within which the person must comply with the notice.

221 Compliance with substantiation notices

- (1) A person who is given a substantiation notice must comply with it within the substantiation notice compliance period for the notice.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

- (2) The ***substantiation notice compliance period*** for a substantiation notice is:

- (a) the period of 21 days specified in the notice; or
- (b) if the period for complying with the notice has been extended under section 220—the period as so extended;

and includes (if an application has been made under section 220(1) for an extension of the period for complying with the notice) the period up until the time when the applicant is given notice of the regulator's decision on the application.

- (3) Despite subsection (1), an individual may refuse or fail to give particular information or produce a particular document in compliance with a substantiation notice on the ground that the information or production of the document might tend to incriminate the individual or to expose the individual to a penalty.

222 False or misleading information etc.

- (1) A person must not, in compliance or purported compliance with a substantiation notice given by the regulator:

- (a) give to the regulator false or misleading information; or
- (b) produce to the regulator documents that contain false or misleading information.

Note: A pecuniary penalty may be imposed for a contravention of this subsection.

Section 222

- (2) This section does not apply to:
- (a) information that the person could not have known was false or misleading; or
 - (b) the production to the regulator of a document containing false or misleading information if the document is accompanied by a statement of the person that the information is false or misleading.

Division 3—Public warning notices

223 Regulator may issue a public warning notice

- (1) The regulator may issue to the public a written notice containing a warning about the conduct of a person if:
 - (a) the regulator has reasonable grounds to suspect that the conduct may constitute a contravention of a provision of Chapter 2, 3 or 4; and
 - (b) the regulator is satisfied that one or more other persons has suffered, or is likely to suffer, detriment as a result of the conduct; and
 - (c) the regulator is satisfied that it is in the public interest to issue the notice.
- (2) Without limiting subsection (1), if:
 - (a) a person refuses to respond to a substantiation notice given by the regulator to the person, or fails to respond to the notice before the end of the substantiation notice compliance period for the notice; and
 - (b) the regulator is satisfied that it is in the public interest to issue a notice under this subsection;the regulator may issue to the public a written notice containing a warning that the person has refused or failed to respond to the substantiation notice within that period, and specifying the matter to which the substantiation notice related.

Part 5-2—Remedies

Division 1—Pecuniary penalties

224 Pecuniary penalties

- (1) If a court is satisfied that a person:
- (a) has contravened any of the following provisions:
 - (i) a provision of Part 2-2 (which is about unconscionable conduct);
 - (ia) section 23(2A) or (2C) (which is about unfair terms in standard form consumer or small business contracts);
 - (ii) a provision of Part 3-1 (which is about unfair practices);
 - (iii) section 66(2) (which is about display notices);
 - (iv) a provision (other than section 85) of Division 2 of Part 3-2 (which is about unsolicited consumer agreements);
 - (v) a provision (other than section 96(2)) of Division 3 of Part 3-2 (which is about lay-by agreements);
 - (va) section 99B(1), 99C, 99D(1), 99E or 99F(2) (which are about gift cards);
 - (vi) section 100(1) or (3) or 101(3) or (4) (which are about proof of transactions and itemised bills);
 - (vii) section 102(2) or 103(2) (which are about prescribed requirements for warranties and repairers);
 - (viii) section 106(1), (2), (3) or (5), 107(1) or (2), 108(2) or (3), 108A, 118(1), (2), (3) or (5), 119(1) or (2), 125(4), 127(1) or (2), 128(2) or (6), 131(1) or 132(1) (which are about safety of consumer goods and product related services);
 - (ix) section 136(1), (2) or (3), 137(1) or (2), 137AA or 137B (which are about information standards);
 - (x) section 221(1) or 222(1) (which are about substantiation notices); or
 - (b) has attempted to contravene such a provision; or

Section 224

- (c) has aided, abetted, counselled or procured a person to contravene such a provision; or
 - (d) has induced, or attempted to induce, a person, whether by threats or promises or otherwise, to contravene such a provision; or
 - (e) has been in any way, directly or indirectly, knowingly concerned in, or party to, the contravention by a person of such a provision; or
 - (f) has conspired with others to contravene such a provision;
- the court may order the person to pay to the Commonwealth, State or Territory, as the case may be, such pecuniary penalty, in respect of each act or omission by the person to which this section applies, as the court determines to be appropriate.
- (2) In determining the appropriate pecuniary penalty, the court must have regard to all relevant matters including:
- (a) the nature and extent of the act or omission and of any loss or damage suffered as a result of the act or omission; and
 - (b) the circumstances in which the act or omission took place; and
 - (c) whether the person has previously been found by a court in proceedings under Chapter 4 or this Part to have engaged in any similar conduct.
- (3) The pecuniary penalty payable under subsection (1) is not to exceed the amount worked out using the following table:

Amount of pecuniary penalty			
Item	For each act or omission to which this section applies that relates to ...	if the person is a body corporate—the pecuniary penalty is not to exceed ...	if the person is not a body corporate—the pecuniary penalty is not to exceed ...
1	a provision of Part 2-2	the greater of the amounts mentioned in subsection (3A)	\$2,500,000

Section 224

Amount of pecuniary penalty			
Item	For each act or omission to which this section applies that relates to ...	if the person is a body corporate—the pecuniary penalty is not to exceed ...	if the person is not a body corporate—the pecuniary penalty is not to exceed ...
2A	section 23(2A) or (2C)	the greater of the amounts mentioned in subsection (3A)	\$2,500,000
2	a provision of Part 3-1 (other than section 47(1))	the greater of the amounts mentioned in subsection (3A)	\$2,500,000
3	section 47(1)	\$5,000	\$1,000
4	section 66(2)	\$50,000	\$10,000
5	a provision of Division 2 of Part 3-2 (other than section 85)	\$50,000	\$10,000
6	a provision of Division 3 of Part 3-2 (other than section 96(2))	\$30,000	\$6,000
7	section 99B(1), 99C, 99D(1), 99E or 99F(2)	\$30,000	\$6,000
8	section 100(1) or (3) or 101(3) or (4)	\$15,000	\$3,000
9	section 102(2) or 103(2)	\$50,000	\$10,000
10	section 106(1), (2), (3) or (5), 107(1) or (2), 118(1), (2), (3) or (5) or 119(1) or (2)	the greater of the amounts mentioned in subsection (3A)	\$2,500,000
10A	section 108(2)	\$50,000	\$10,000
10B	section 108(3)	\$250,000	\$50,000
10C	section 108A	\$50,000	\$10,000
11	section 125(4)	\$16,500	\$3,300

Section 224

Amount of pecuniary penalty			
Item	For each act or omission to which this section applies that relates to ...	if the person is a body corporate—the pecuniary penalty is not to exceed ...	if the person is not a body corporate—the pecuniary penalty is not to exceed ...
12	section 127(1) or (2)	the greater of the amounts mentioned in subsection (3A)	\$2,500,000
13	section 128(2) or (6), 131(1) or 132(1)	\$16,500	\$3,300
14	section 136(1), (2) or (3) or 137(1) or (2)	the greater of the amounts mentioned in subsection (3A)	\$2,500,000
14A	section 137AA or 137B	\$50,000	\$10,000
15	section 221(1)	\$16,500	\$3,300
16	section 222(1)	\$27,500	\$5,500

(3A) For the purposes of items 1, 2A, 2, 10, 12 and 14 of the table in subsection (3), the amounts are as follows:

- (a) \$100,000,000;
 - (b) if the court can determine the value of the benefit that the body corporate, and any body corporate related to the body corporate, have obtained directly or indirectly and that is reasonably attributable to the act or omission—3 times the value of that benefit;
 - (c) if the court cannot determine the value of that benefit—30% of the body corporate's adjusted turnover during the breach turnover period for the act or omission.
- (4) If conduct constitutes a contravention of 2 or more provisions referred to in subsection (1)(a):
- (a) a proceeding may be instituted under this Schedule against a person in relation to the contravention of any one or more of the provisions; but

- (b) a person is not liable to more than one pecuniary penalty under this section in respect of the same conduct.

225 Pecuniary penalties and offences

- (1) A court must not make an order under section 224 against a person in relation to either of the following matters (a **consumer protection breach**):
 - (a) a contravention of a provision referred to in section 224(1)(a);
 - (b) conduct referred to in section 224(1)(b), (c), (d), (e) or (f) that relates to a contravention of such a provision;if the person has been convicted of an offence constituted by conduct that is substantially the same as the conduct constituting the consumer protection breach.
- (2) Proceedings for an order under section 224 against a person in relation to a consumer protection breach are stayed if:
 - (a) criminal proceedings are started or have already been started against the person for an offence; and
 - (b) the offence is constituted by conduct that is substantially the same as the conduct alleged to constitute the consumer protection breach.The proceedings for the order may be resumed if the person is not convicted of the offence. Otherwise, the proceedings are dismissed.
- (3) Criminal proceedings may be started against a person for conduct that is substantially the same as conduct constituting a consumer protection breach regardless of whether an order under section 224 has been made against the person in respect of the breach.
- (4) Evidence of information given, or evidence of the production of documents, by an individual is not admissible in criminal proceedings against the individual if:
 - (a) the individual previously gave the evidence or produced the documents in proceedings for an order under section 224 against the individual in relation to a consumer protection breach (whether or not the order was made); and

Section 226

- (b) the conduct alleged to constitute the offence is substantially the same as the conduct that was claimed to constitute the consumer protection breach.

However, this does not apply to a criminal proceeding in respect of the falsity of the evidence given by the individual in the proceedings for the order.

226 Defence

If, in proceedings under section 224 against a person other than a body corporate, it appears to a court that the person has, or may have:

- (a) engaged in conduct in contravention of a provision referred to in subsection (1)(a) of that section; or
- (b) engaged in conduct referred to in subsection (1)(b), (c), (d), (e) or (f) of that section that relates to a contravention of such a provision;

but that the person acted honestly and reasonably and, having regard to all the circumstances of the case, ought fairly to be excused, the court may relieve the person either wholly or partly from liability to a pecuniary penalty under that section.

227 Preference must be given to compensation for victims

If a court considers that:

- (a) it is appropriate to order a person (the *defendant*) to pay a pecuniary penalty under section 224 in relation to:
 - (i) a contravention of a provision referred to in subsection (1)(a) of that section; or
 - (ii) conduct referred to in subsection (1)(b), (c), (d), (e) or (f) of that section that relates to a contravention such a provision; and
- (b) it is appropriate to order the defendant to pay compensation to a person who has suffered loss or damage as result of that contravention or conduct; and
- (c) the defendant does not have sufficient financial resources to pay both the pecuniary penalty and the compensation;

Section 228

the court must give preference to making an order for compensation.

228 Civil action for recovery of pecuniary penalties

- (1) The regulator may institute a proceeding in a court for the recovery on behalf of the Commonwealth, a State or a Territory, as the case may be, of a pecuniary penalty referred to in section 224.
- (2) A proceeding under subsection (1) may be commenced at any time within 6 years after the contravention or conduct.

229 Indemnification of officers

- (1) A body corporate (the *first body*), or a body corporate related to the first body, commits an offence if it indemnifies a person (whether by agreement or by making a payment and whether directly or through an interposed entity) against either of the following liabilities incurred as an officer (within the meaning of the *Corporations Act 2001*) of the first body:
 - (a) a liability to pay a pecuniary penalty under section 224;
 - (b) legal costs incurred in defending or resisting proceedings in which the person is found to have such a liability.

Penalty: \$2,750.

- (2) For the purposes of subsection (1), the outcome of proceedings is the outcome of the proceedings and any appeal in relation to the proceedings.

230 Certain indemnities not authorised and certain documents void

- (1) Section 229 does not authorise anything that would otherwise be unlawful.
- (2) Anything that purports to indemnify a person against a liability is void to the extent that it contravenes section 229.

Section 232

Division 2—Injunctions

232 Injunctions

- (1) A court may grant an injunction, in such terms as the court considers appropriate, if the court is satisfied that a person has engaged, or is proposing to engage, in conduct that constitutes or would constitute:
 - (a) a contravention of a provision of Chapter 2, 3 or 4; or
 - (b) attempting to contravene such a provision; or
 - (c) aiding, abetting, counselling or procuring a person to contravene such a provision; or
 - (d) inducing, or attempting to induce, whether by threats, promises or otherwise, a person to contravene such a provision; or
 - (e) being in any way, directly or indirectly, knowingly concerned in, or party to, the contravention by a person of such a provision; or
 - (f) conspiring with others to contravene such a provision.
- (2) The court may grant the injunction on application by the regulator or any other person.
- (4) The power of the court to grant an injunction under subsection (1) restraining a person from engaging in conduct may be exercised:
 - (a) whether or not it appears to the court that the person intends to engage again, or to continue to engage, in conduct of a kind referred to in that subsection; and
 - (b) whether or not the person has previously engaged in conduct of that kind; and
 - (c) whether or not there is an imminent danger of substantial damage to any other person if the person engages in conduct of that kind.
- (5) Without limiting subsection (1), the court may grant an injunction under that subsection restraining a person from carrying on a

Section 233

business or supplying goods or services (whether or not as part of, or incidental to, the carrying on of another business):

- (a) for a specified period; or
 - (b) except on specified terms and conditions.
- (6) Without limiting subsection (1), the court may grant an injunction under that subsection requiring a person to do any of the following:
- (a) refund money;
 - (b) transfer property;
 - (c) honour a promise;
 - (d) destroy or dispose of goods.
- (7) The power of the court to grant an injunction under subsection (1) requiring a person to do an act or thing may be exercised:
- (a) whether or not it appears to the court that the person intends to refuse or fail again, or to continue to refuse or fail, to do that act or thing; and
 - (b) whether or not the person has previously refused or failed to do that act or thing; and
 - (c) whether or not there is an imminent danger of substantial damage to any other person if the person refuses or fails to do that act or thing.

233 Consent injunctions

If an application is made under section 232, the court may, if it considers that it is appropriate to do so, grant an injunction under this section by consent of all the parties to the proceedings, whether or not the court is satisfied as required by section 232(1).

234 Interim injunctions

- (1) If an application is made under section 232, the court may, if it considers it is desirable to do so, grant an interim injunction under this subsection pending the determination of the application.
- (2) If a responsible Minister or the regulator made the application under section 232, the court must not require the applicant or any

Section 235

other person to give any undertakings as to damages as a condition of granting the interim injunction.

(3) If:

(a) in a case to which subsection (2) does not apply the court would, but for this subsection, require a person to give an undertaking as to damages or costs; and

(b) a responsible Minister gives the undertaking;

the court must accept the undertaking by the responsible Minister and must not require a further undertaking from any other person.

235 Variation and discharge of injunctions

A court may vary or discharge an injunction (including an interim injunction) that it has granted under this Division.

Division 3—Damages

236 Actions for damages

- (1) If:
 - (a) a person (the *claimant*) suffers loss or damage because of the conduct of another person; and
 - (b) the conduct contravened a provision of Chapter 2 or 3;the claimant may recover the amount of the loss or damage by action against that other person, or against any person involved in the contravention.
- (2) An action under subsection (1) may be commenced at any time within 6 years after the day on which the cause of action that relates to the conduct accrued.

Section 237

Division 4—Compensation orders etc. for injured persons and orders for non-parties

237 Compensation orders etc. on application by an injured person or the regulator

- (1) A court may:
- (a) on application of a person (the *injured person*) who has suffered, or is likely to suffer, loss or damage because another person has engaged in conduct in contravention of a provision of Chapter 2, 3 or 4; or
 - (b) on the application of the regulator made on behalf of, and with the consent in writing of, one or more such injured persons;

make such order or orders as the court thinks appropriate against the person who engaged in the conduct, or a person involved in that conduct.

Note: The orders that the court may make include all or any of the orders set out in section 243.

- (2) The order must be an order that the court considers will:
- (a) compensate the injured person, or any such injured persons, in whole or in part for the loss or damage; or
 - (b) prevent or reduce the loss or damage suffered, or likely to be suffered, by the injured person or any such injured persons.
- (3) An application under subsection (1) may be made at any time before the end of 6 years from the day on which the cause of action accrued that relates to the conduct referred to in that subsection.

238 Compensation orders etc. arising out of other proceedings

- (1) If:
- (a) a proceeding is instituted in a court under a provision of Chapter 4 or this Chapter (other than this section); and

- (b) the court finds that a party to the proceeding (the ***injured person***) has suffered loss or damage, or is likely to suffer loss or damage, because another person has engaged in conduct in contravention of a provision of Chapter 2, 3 or 4;

the court may make such order or orders as it thinks appropriate against the other person, or against a person involved in that conduct.

Note: The orders that the court may make include all or any of the orders set out in section 243.

- (2) The order must be an order that the court considers will:
- (a) compensate the injured person in whole or in part for the loss or damage; or
 - (b) prevent or reduce the loss or damage.

239 Orders to redress etc. loss or damage suffered by non-parties

- (1) If:
- (a) a person:
 - (i) engaged in conduct (the ***contravening conduct***) in contravention of a provision of Chapter 2, Part 3-1, Division 2, 3 or 4 of Part 3-2 or Chapter 4; or
 - (ii) is a party to a contract who is advantaged by a term (the ***declared term***) of the contract in relation to which a court has made a declaration under section 250; and
 - (b) the contravening conduct or declared term caused, or is likely to cause, a class of persons to suffer loss or damage; and
 - (c) the class includes persons who are non-parties in relation to the contravening conduct or declared term;

a court may, on the application of the regulator, make such order or orders (other than an award of damages) as the court thinks appropriate against a person referred to in subsection (2) of this section.

Note: The orders that the court may make include all or any of the orders set out in section 243.

- (2) An order under subsection (1) may be made against:
-

Section 240

- (a) if subsection (1)(a)(i) applies—the person who engaged in the contravening conduct, or a person involved in that conduct; or
 - (b) if subsection (1)(a)(ii) applies—a party to the contract who is advantaged by the declared term.
- (3) The order must be an order that the court considers will:
 - (a) redress, in whole or in part, the loss or damage suffered by the non-parties in relation to the contravening conduct or declared term; or
 - (b) prevent or reduce the loss or damage suffered, or likely to be suffered, by the non-parties in relation to the contravening conduct or declared term.
- (4) An application under subsection (1) may be made at any time within 6 years after the day on which:
 - (a) if subsection (1)(a)(i) applies—the cause of action that relates to the contravening conduct accrued; or
 - (b) if subsection (1)(a)(ii) applies—the declaration is made.

240 Determining whether to make a redress order etc. for non-parties

- (1) In determining whether to make an order under section 239(1) against a person referred to in section 239(2)(a), the court may have regard to the conduct of the person, and of the non-parties in relation to the contravening conduct, since the contravention occurred.
- (2) In determining whether to make an order under section 239(1) against a person referred to in section 239(2)(b), the court may have regard to the conduct of the person, and of the non-parties in relation to the declared term, since the declaration was made.
- (3) In determining whether to make an order under section 239(1), the court need not make a finding about either of the following matters:

Section 241

- (a) which persons are non-parties in relation to the contravening conduct or declared term;
- (b) the nature of the loss or damage suffered, or likely to be suffered, by such persons.

241 When a non-party is bound by a redress order etc.

- (1) A non-party is bound by an order made under section 239(1) against a person if:
 - (a) the loss or damage suffered, or likely to be suffered, by the non-party in relation to the contravening conduct, or the declared term, to which the order relates has been redressed, prevented or reduced in accordance with the order; and
 - (b) the non-party has accepted the redress, prevention or reduction.
- (2) Any other order made under section 239(1) that relates to that loss or damage has no effect in relation to the non-party.
- (3) Despite any other provision of:
 - (a) this Schedule; or
 - (b) any other law of the Commonwealth, or a State or a Territory;no claim, action or demand may be made or taken against the person by the non-party in relation to that loss or damage.

243 Kinds of orders that may be made

Without limiting section 237(1), 238(1) or 239(1), the orders that a court may make under any of those sections against a person (the **respondent**) include all or any of the following:

- (a) an order declaring the whole or any part of a contract made between the respondent and a person (the ***injured person***) who suffered, or is likely to suffer, the loss or damage referred to in that section, or of a collateral arrangement relating to such a contract:
 - (i) to be void; and

Section 243

- (ii) if the court thinks fit—to have been void ab initio or void at all times on and after such date as is specified in the order (which may be a date that is before the date on which the order is made);
- (b) an order:
 - (i) varying such a contract or arrangement in such manner as is specified in the order; and
 - (ii) if the court thinks fit—declaring the contract or arrangement to have had effect as so varied on and after such date as is specified in the order (which may be a date that is before the date on which the order is made);
- (c) an order refusing to enforce any or all of the provisions of such a contract or arrangement;
- (d) an order directing the respondent to refund money or return property to the injured person;
- (e) except if the order is to be made under section 239(1)—an order directing the respondent to pay the injured person the amount of the loss or damage;
- (f) an order directing the respondent, at his or her own expense, to repair, or provide parts for, goods that had been supplied by the respondent to the injured person;
- (g) an order directing the respondent, at his or her own expense, to supply specified services to the injured person;
- (h) an order, in relation to an instrument creating or transferring an interest in land, directing the respondent to execute an instrument that:
 - (i) varies, or has the effect of varying, the first mentioned instrument; or
 - (ii) terminates or otherwise affects, or has the effect of terminating or otherwise affecting, the operation or effect of the first mentioned instrument.

243A Orders made in favour of party to contract containing unfair term

- (1) If a declaration has been made under section 250 in relation to a term (the ***declared term***) of a contract, a court may:
- (a) on the application of a party to the contract; or
 - (b) on the application of the regulator made on behalf of, and with the consent in writing of, one or more parties to the contract;
- make against a party (the ***respondent***) to the contract who is advantaged by the declared term such order or orders (other than an award of damages) as the court thinks appropriate:
- (c) to redress, in whole or in part, loss or damage that has been caused to any person by the declared term; or
 - (d) to prevent or reduce loss or damage that is likely to be so caused.
- (2) Without limiting subsection (1), the orders that a court may make against the respondent include all or any of the following:
- (a) an order declaring the whole or any part of the contract, or of a collateral arrangement relating to the contract:
 - (i) to be void; and
 - (ii) if the court thinks fit—to have been void ab initio or void at all times on and after such date as is specified in the order (which may be a date that is before the date on which the order is made);
 - (b) an order:
 - (i) varying the contract, or such a collateral arrangement, as specified in the order; and
 - (ii) if the court thinks fit—declaring the contract or arrangement to have had effect as so varied on and after such date as is specified in the order (which may be a date that is before the date on which the order is made);
 - (c) an order refusing to enforce any or all of the provisions of the contract, or of such a collateral arrangement.

Section 243B

- (3) An application under subsection (1) may be made at any time before the end of 6 years from the day on which the declaration under section 250 was made.

243B Orders made on application of the regulator to prevent and remedy unfair contract terms

- (1) If a declaration has been made under section 250 in relation to a term (the *declared term*) of a contract, a court may, on the application of the regulator, make against a party (the *respondent*) to the contract who is advantaged by the declared term such order or orders (other than an award of damages) as the court thinks appropriate:
- (a) to prevent a term (a *similar term*) that is the same, or substantially similar, in effect to the declared term from being included in any future contract:
 - (i) to which the respondent is a party; and
 - (ii) that is a consumer contract or small business contract; and
 - (iii) that is a standard form contract; or
 - (b) to redress, in whole or in part, loss or damage that has been caused, or to prevent or reduce loss or damage that is likely to be caused, to any person by a similar term that is included in any existing contract:
 - (i) to which the respondent is a party; and
 - (ii) that is a consumer contract or small business contract; and
 - (iii) that is a standard form contract;
- whether or not the future or existing contract is identifiable when the court makes the order or orders.
- (2) Without limiting subsection (1), the orders that a court may make against the respondent include all or any of the following:
- (a) an injunction restraining the respondent from making any future contract that is of the kind referred to in paragraph (1)(a) and includes a similar term;

Section 245

- (b) an injunction restraining the respondent from applying or relying on a similar term of any existing contract that is of the kind referred to in paragraph (1)(b);
 - (c) an order declaring the whole or any part of any existing contract of the kind referred to in paragraph (1)(b), or of a collateral arrangement relating to such a contract:
 - (i) to be void; and
 - (ii) if the court thinks fit—to have been void ab initio or void at all times on and after such date as is specified in the order (which may be a date that is before the date on which the order is made);
 - (d) an order:
 - (i) varying such an existing contract, or such a collateral arrangement, as specified in the order; and
 - (ii) if the court thinks fit—declaring the contract or arrangement to have had effect as so varied on and after such date as is specified in the order (which may be a date that is before the date on which the order is made);
 - (e) an order refusing to enforce any or all of the provisions of such an existing contract, or of such a collateral arrangement.
- (3) An application under subsection (1) may be made at any time before the end of 6 years from the day on which the declaration under section 250 was made.
- (4) An order made under this section against the respondent binds a person affected by the order, even if the person is not a party to the proceedings in which the order is made.

245 Interaction with other provisions

- (1) An application may be made under section 237(1), 239(1), 243A(1) or 243B(1) even if an enforcement proceeding in relation to the conduct or term referred to in that section has not been instituted.
- (2) A court may make an order under a provision of this Division whether or not the court:

Section 245

- (a) grants an injunction under Division 2; or
 - (b) makes an order under any other provision of this Division or under section 236, 246, 247 or 248.
- (3) Nothing in this Division limits the generality of Division 2.

Division 5—Other remedies

246 Non-punitive orders

- (1) A court may, on application of the regulator, make one or more of the orders mentioned in subsection (2) in relation to a person who has engaged in conduct that:
 - (a) contravenes a provision of Chapter 2, 3 or 4; or
 - (b) constitutes an involvement in a contravention of such a provision.
- (2) The court may make the following orders in relation to the person who has engaged in the conduct:
 - (a) an order directing the person to perform a service that is specified in the order, and that relates to the conduct, for the benefit of the community or a section of the community;
 - (aa) an order requiring the person, at the person's expense, to engage:
 - (i) another person specified in the order; or
 - (ii) another person in a class of persons specified in the order;to perform a service that is specified in the order and that relates to the conduct, for the benefit of the community or a section of the community;
 - (b) an order for the purpose of ensuring that the person does not engage in the conduct, similar conduct, or related conduct, during the period of the order (which must not be longer than 3 years) including:
 - (i) an order directing the person to establish a compliance program for employees or other persons involved in the person's business, being a program designed to ensure their awareness of the responsibilities and obligations in relation to such conduct; and
 - (ii) an order directing the person to establish an education and training program for employees or other persons involved in the person's business, being a program

Section 247

designed to ensure their awareness of the responsibilities and obligations in relation to such conduct; and

- (iii) an order directing the person to revise the internal operations of the person's business which led to the person engaging in such conduct;
- (c) an order requiring the person to disclose, in the way and to the persons specified in the order, such information as is so specified, being information that the person has possession of or access to;
- (d) an order requiring the person to publish, at the person's expense and in the way specified in the order, an advertisement in the terms specified in, or determined in accordance with, the order.

Note: The following are examples of orders that the court may make under subsection (2)(a):

- (a) an order requiring a person who has made false representations to make available a training video which explains advertising obligations under this Schedule;
- (b) an order requiring a person who has engaged in misleading or deceptive conduct in relation to a product to carry out a community awareness program to address the needs of consumers when purchasing the product.

(2A) An order under subsection (2)(aa) is not enforceable against a person mentioned in subsections (2)(aa)(i) and (ii).

(3) This section does not limit a court's powers under any other provision of this Schedule.

247 Adverse publicity orders

- (1) A court may, on application of the regulator, make an adverse publicity order in relation to a person who:
 - (a) has contravened a provision of Part 2-2 or 2-3 or Chapter 3;
or
 - (b) has committed an offence against Chapter 4.

Section 248

- (2) An **adverse publicity order** in relation to a person is an order that requires the person:
- (a) to disclose, in the way and to the persons specified in the order, such information as is so specified, being information that the person has possession of or access to; and
 - (b) to publish, at the person's expense and in the way specified in the order, an advertisement in the terms specified in, or determined in accordance with, the order.
- (3) This section does not limit a court's powers under any other provision of this Schedule.

248 Order disqualifying a person from managing corporations

- (1) A court may, on application of the regulator, make an order disqualifying a person from managing corporations for a period that the court considers appropriate if:
- (a) the court is satisfied that the person has contravened, has attempted to contravene or has been involved in a contravention of any of the following provisions:
 - (i) a provision of Part 2-2 (which is about unconscionable conduct);
 - (ia) a provision of Part 2-3 (which is about unfair contract terms);
 - (ii) a provision of Part 3-1 (which is about unfair practices);
 - (iii) a provision (other than section 85) of Division 2 of Part 3-2 (which is about unsolicited consumer agreements);
 - (iv) section 106(1), (2), (3) or (5), 107(1) or (2), 118(1), (2), (3) or (5), 119(1) or (2), 125(4), 127(1) or (2), 128(2) or (6), 131(1) or 132(1) (which are about safety of consumer goods and product related services);
 - (v) section 136(1), (2) or (3) or 137(1) or (2) (which are about information standards);
 - (vi) a provision of Chapter 4 (which is about offences); and
 - (b) the court is satisfied that the disqualification is justified.

Section 249

Note: Section 206EA of the *Corporations Act 2001* provides that a person is disqualified from managing corporations if a court order is in force under this section. That Act contains various consequences for persons so disqualified.

- (2) In determining under subsection (1) whether the disqualification is justified, the court may have regard to:
 - (a) the person's conduct in relation to the management, business or property of any corporation; and
 - (b) any other matters that the court considers appropriate.
- (3) If the court makes an order under subsection (1), the regulator must:
 - (a) notify ASIC; and
 - (b) give ASIC a copy of any such order.

Note: ASIC must keep a register of persons who have been disqualified from managing corporations: see section 1274AA of the *Corporations Act 2001*.

- (4) For the purposes of this Schedule (other than this section or section 249), an order under this section is not a penalty.

249 Privilege against exposure to penalty or forfeiture— disqualification from managing corporations

- (1) In a civil or criminal proceeding under, or arising out of, this Schedule, a person is not entitled to refuse or fail to comply with a requirement:
 - (a) to answer a question or give information; or
 - (b) to produce a document or any other thing; or
 - (c) to do any other act;on the ground that the answer or information, production of the document or other thing, or doing that other act, as the case may be, might tend to expose the person to a penalty (including forfeiture) by way of an order under section 248.
- (2) Subsection (1) applies whether or not the person is a defendant in the proceeding or in any other proceeding.

Section 250

- (3) A person is not entitled to refuse or fail to comply with a requirement under this Schedule:
- (a) to answer a question or give information; or
 - (b) to produce a document or any other thing; or
 - (c) to do any other act;
- on the ground that the answer or information, production of the document or other thing, or doing that other act, as the case may be, might tend to expose the person to a penalty (including forfeiture) by way of an order under section 248.

250 Declarations relating to consumer contracts and small business contracts

- (1) The Court may declare that a term of a consumer contract is an unfair term, on application by:
- (a) a party to the contract; or
 - (b) the regulator.
- (2) The Court may declare that a term of a small business contract is an unfair term, on application by:
- (a) a party to the contract, if the party was covered by paragraph 23(4)(b) at the time the contract was entered into; or
 - (b) the regulator.
- (3) Subsections (1) and (2) do not apply unless the contract is a standard form contract.
- (4) Subsections (1) and (2) do not apply if Part 2-3 does not apply to the contract.
- (5) Subsections (1) and (2) do not limit any other power of the court to make declarations.

Section 251

Division 6—Defences

251 Publication of advertisement in the ordinary course of business

- (1) This section applies to a proceeding under this Part in relation to a contravention of a provision of Part 2-1 or 2-2 or Chapter 3 if the contravention was committed by the publication of an advertisement.
- (2) In the proceeding, it is a defence if the defendant proves that:
 - (a) the defendant is a person whose business it is to publish or arrange for the publication of advertisements; and
 - (b) the defendant received the advertisement for publication in the ordinary course of business; and
 - (c) the defendant did not know, and had no reason to suspect, that its publication would amount to a contravention of such a provision.

252 Supplying consumer goods for the purpose of re-supply

- (1) This section applies to a proceeding under this Part in relation to a contravention of a provision of Part 2-1 or 2-2 or Chapter 3 committed by:
 - (a) the supplying of consumer goods that did not comply with a safety standard for such goods; or
 - (b) the supplying of consumer goods by a supplier who did not comply with an information standard for such goods.
- (2) In the proceeding, it is a defence if the defendant proves that:
 - (a) the consumer goods were acquired by the defendant for the purpose of re-supply; and
 - (b) the consumer goods were so acquired from a person who carried on in Australia a business of supplying such goods otherwise than as the agent of a person outside Australia; and
 - (c) either:

Section 253

- (i) the defendant did not know, and could not with reasonable diligence have ascertained, that the consumer goods did not comply with that safety standard, or that the defendant had not complied with that information standard, as the case may be; or
 - (ii) the defendant relied in good faith on a representation by the person from whom the defendant acquired the goods that there was no safety standard or information standard, as the case may be, for such consumer goods.
- (3) A defendant is not entitled to rely on the defence provided by subsection (2) unless:
 - (a) the court gives leave; or
 - (b) the defendant has, not later than 7 days before the day on which the hearing of the proceeding commences, served on the person who instituted the proceeding a written notice identifying the person from whom the defendant acquired the consumer goods.

253 Supplying product related services for the purpose of re-supply

- (1) This section applies to a proceeding under this Part in relation to a contravention of a provision of Part 2-1 or 2-2 or Chapter 3 committed by:
 - (a) the supplying of product related services that did not comply with a safety standard for such services; or
 - (b) the supplying of product related services by a supplier who did not comply with an information standard for such services.
- (2) In the proceeding, it is a defence if the defendant proves that:
 - (a) the product related services were acquired by the defendant for the purpose of re-supply; and
 - (b) the product related services were so acquired from a person who carried on in Australia a business of supplying such services otherwise than as the agent of a person outside Australia; and

Section 253

- (c) either:
 - (i) the defendant did not know, and could not with reasonable diligence have ascertained, that the product related services did not comply with that safety standard, or that the defendant had not complied with that information standard, as the case may be; or
 - (ii) the defendant relied in good faith on a representation by the person from whom the defendant acquired the goods that there was no safety standard or information standard, as the case may be, for such product related services.
- (3) A defendant is not entitled to rely on the defence provided by subsection (2) unless:
 - (a) the court gives leave; or
 - (b) the defendant has, not later than 7 days before the day on which the hearing of the proceeding commences, served on the person who instituted the proceeding a written notice identifying the person from whom the defendant acquired the product related services.

Part 5-3—Country of origin representations

254 Overview

This Part provides that certain country of origin representations made about goods do not contravene:

- (a) section 18 (which deals with misleading or deceptive conduct); or
- (b) section 29(1)(a) or (k) or 151(1)(a) or (k) (which deal with false or misleading representations).

255 Country of origin representations do not contravene certain provisions

- (1) A person does not contravene section 18, 29(1)(a) or (k) or 151(1)(a) or (k) only by making a representation of a kind referred to in an item in the first column of this table, if the requirements of the corresponding item in the second column are met.

Country of origin representations		
Item	Representation	Requirements to be met
1	A representation that goods were grown in a particular country	(a) each significant ingredient or significant component of the goods was grown in that country; and (b) all, or virtually all, processes involved in the production or manufacture of the goods happened in that country.
2	A representation that goods are the produce of a particular country	(a) the country was the country of origin of each significant ingredient or significant component of the goods; and (b) all, or virtually all, processes involved in the production or manufacture of the goods happened in that country.

Section 255

Country of origin representations		
Item	Representation	Requirements to be met
3	A representation that goods were made or manufactured in, or otherwise originate in, a particular country	(a) the goods were last substantially transformed in that country; and (b) the representation is not a representation to which item 1 or 2 of this table applies.
4	A representation in the form of a mark specified in an information standard relating to country of origin labelling of goods	the requirements under the information standard relating to the use of that mark.

- (2) Goods were **substantially transformed** in a country if:
- (a) the goods met, in relation to that country, the requirements of item 1 or 2 in the second column of the table in subsection (1); or
 - (b) as a result of one or more processes undertaken in that country, the goods are fundamentally different in identity, nature or essential character from all of their ingredients or components that were imported into that country; or
 - (c) the goods underwent in that country one or more processes prescribed by the regulations.
- (3) Without limiting subsection (2), the regulations:
- (a) may prescribe (in relation to particular classes of goods or otherwise) processes or combinations of processes that, for the purposes of that subsection, do not have the result described in subsection (2)(b); and
 - (b) may include examples (in relation to particular classes of goods or otherwise) of processes or combinations of processes that, for the purposes of that subsection, have the result described in subsection (2)(b).
- (5) Item 2 of the table in subsection (1) applies to a representation that goods are the produce of a particular country whether the representation uses the words “product of”, “produce of” or any other grammatical variation of the word “produce”.

- (7) Goods, or ingredients or components of goods, are ***grown*** in a country if they:
- (a) are materially increased in size or materially altered in substance in that country by natural development; or
 - (b) germinated or otherwise arose in, or issued in, that country; or
 - (c) are harvested, extracted or otherwise derived from an organism that has been materially increased in size, or materially altered in substance, in that country by natural development.
- (8) For the purposes of item 1 of the table in subsection (1) in relation to particular goods, packaging materials are not treated as ingredients or components of the goods.
- (9) For the purposes of item 1 of the table in subsection (1) in relation to an ingredient or component, water added to the ingredient or component is treated as having the same origin as the ingredient or component, regardless of its actual origin, if:
- (a) the ingredient or component has been dried or concentrated by the evaporation of water; and
 - (b) the added water returns the water content of the ingredient or component to no more than its natural level.

258 Proceedings relating to false, misleading or deceptive conduct or representations

If:

- (a) proceedings are brought against a person in respect of section 18, 29(1)(a) or (k) or 151(1)(a) or (k); and
- (b) the person seeks to rely on a provision of this Part, or of a regulation made for the purposes of a provision of this Part, in the proceedings;

the person bears an evidential burden in relation to the matters set out in the provision on which the person seeks to rely.

Part 5-4—Remedies relating to guarantees

Division 1—Action against suppliers

Subdivision A—Action against suppliers of goods

259 Action against suppliers of goods

- (1) A consumer may take action under this section if:
 - (a) a person (the *supplier*) supplies, in trade or commerce, goods to the consumer; and
 - (b) a guarantee that applies to the supply under Subdivision A of Division 1 of Part 3-2 (other than sections 58 and 59(1)) is not complied with.
- (2) If the failure to comply with the guarantee can be remedied and is not a major failure:
 - (a) the consumer may require the supplier to remedy the failure within a reasonable time; or
 - (b) if such a requirement is made of the supplier but the supplier refuses or fails to comply with the requirement, or fails to comply with the requirement within a reasonable time—the consumer may:
 - (i) otherwise have the failure remedied and, by action against the supplier, recover all reasonable costs incurred by the consumer in having the failure so remedied; or
 - (ii) subject to section 262, notify the supplier that the consumer rejects the goods and of the ground or grounds for the rejection.
- (3) If the failure to comply with the guarantee cannot be remedied or is a major failure, the consumer may:
 - (a) subject to section 262, notify the supplier that the consumer rejects the goods and of the ground or grounds for the rejection; or

Section 260

- (b) by action against the supplier, recover compensation for any reduction in the value of the goods below the price paid or payable by the consumer for the goods.
- (4) The consumer may, by action against the supplier, recover damages for any loss or damage suffered by the consumer because of the failure to comply with the guarantee if it was reasonably foreseeable that the consumer would suffer such loss or damage as a result of such a failure.
- (5) Subsection (4) does not apply if the failure to comply with the guarantee occurred only because of a cause independent of human control that occurred after the goods left the control of the supplier.
- (6) To avoid doubt, subsection (4) applies in addition to subsections (2) and (3).
- (7) The consumer may take action under this section whether or not the goods are in their original packaging.

260 When a failure to comply with a guarantee is a major failure

- (1) A failure to comply with a guarantee referred to in section 259(1)(b) that applies to a supply of goods is a **major failure** if:
 - (a) the goods would not have been acquired by a reasonable consumer fully acquainted with the nature and extent of the failure; or
 - (b) the goods depart in one or more significant respects:
 - (i) if they were supplied by description—from that description; or
 - (ii) if they were supplied by reference to a sample or demonstration model—from that sample or demonstration model; or
 - (c) the goods are substantially unfit for a purpose for which goods of the same kind are commonly supplied and they cannot, easily and within a reasonable time, be remedied to make them fit for such a purpose; or

Section 261

- (d) the goods are unfit for a disclosed purpose that was made known to:
 - (i) the supplier of the goods; or
 - (ii) a person by whom any prior negotiations or arrangements in relation to the acquisition of the goods were conducted or made;and they cannot, easily and within a reasonable time, be remedied to make them fit for such a purpose; or
 - (e) the goods are not of acceptable quality because they are unsafe.
- (2) A failure to comply with a guarantee referred to in section 259(1)(b) that applies to a supply of goods is also a **major failure** if:
- (a) the failure is one of 2 or more failures to comply with a guarantee referred to in section 259(1)(b) that apply to the supply; and
 - (b) the goods would not have been acquired by a reasonable consumer fully acquainted with the nature and extent of those failures, taken as a whole.
- Note: The multiple failures do not need to relate to the same guarantee.
- (3) Subsection (2) applies regardless of whether the consumer has taken action under section 259 in relation to any of the failures.

261 How suppliers may remedy a failure to comply with a guarantee

If, under section 259(2)(a), a consumer requires a supplier of goods to remedy a failure to comply with a guarantee referred to in section 259(1)(b), the supplier may comply with the requirement:

- (a) if the failure relates to title—by curing any defect in title; or
- (b) if the failure does not relate to title—by repairing the goods; or
- (c) by replacing the goods with goods of an identical type; or
- (d) by refunding:
 - (i) any money paid by the consumer for the goods; and

- (ii) an amount that is equal to the value of any other consideration provided by the consumer for the goods.

262 When consumers are not entitled to reject goods

- (1) A consumer is not entitled, under section 259, to notify a supplier of goods that the consumer rejects the goods if:
 - (a) the rejection period for the goods has ended; or
 - (b) the goods have been lost, destroyed or disposed of by the consumer; or
 - (c) the goods were damaged after being delivered to the consumer for reasons not related to their state or condition at the time of supply; or
 - (d) the goods have been attached to, or incorporated in, any real or personal property and they cannot be detached or isolated without damaging them.
- (2) The *rejection period* for goods is the period from the time of the supply of the goods to the consumer within which it would be reasonable to expect the relevant failure to comply with a guarantee referred to in section 259(1)(b) to become apparent having regard to:
 - (a) the type of goods; and
 - (b) the use to which a consumer is likely to put them; and
 - (c) the length of time for which it is reasonable for them to be used; and
 - (d) the amount of use to which it is reasonable for them to be put before such a failure becomes apparent.

263 Consequences of rejecting goods

- (1) This section applies if, under section 259, a consumer notifies a supplier of goods that the consumer rejects the goods.
- (2) The consumer must return the goods to the supplier unless:
 - (a) the goods have already been returned to, or retrieved by, the supplier; or

Section 264

- (b) the goods cannot be returned, removed or transported without significant cost to the consumer because of:
 - (i) the nature of the failure to comply with the guarantee to which the rejection relates; or
 - (ii) the size or height, or method of attachment, of the goods.
- (3) If subsection (2)(b) applies, the supplier must, within a reasonable time, collect the goods at the supplier's expense.
- (4) The supplier must, in accordance with an election made by the consumer:
 - (a) refund:
 - (i) any money paid by the consumer for the goods; and
 - (ii) an amount that is equal to the value of any other consideration provided by the consumer for the goods; or
 - (b) replace the rejected goods with goods of the same type, and of similar value, if such goods are reasonably available to the supplier.
- (5) The supplier cannot satisfy subsection (4)(a) by permitting the consumer to acquire goods from the supplier.
- (6) If the property in the rejected goods had passed to the consumer before the rejection was notified, the property in those goods reverts in the supplier on the notification of the rejection.

264 Replaced goods

If the goods are replaced under section 261(c) or 263(4)(b):

- (a) the replacement goods are taken, for the purposes of Division 1 of Part 3-2 and this Part, to be supplied by the supplier; and
- (b) the provisions of Division 1 of Part 3-2 and this Part apply in relation to the replacement goods.

265 Termination of contracts for the supply of services that are connected with rejected goods

- (1) If:
- (a) under section 259, a consumer notifies a supplier of goods that the consumer rejects the goods; and
 - (b) the supplier is required under section 263(4)(a) to give the consumer a refund; and
 - (c) a person supplies, in trade or commerce, services to the consumer that are connected with the rejected goods;
- the consumer may terminate the contract for the supply of the services.
- (2) The termination takes effect:
- (a) at the time the termination is made known to the supplier of the services (whether by words or by conduct indicating the consumer's intention to terminate the contract); or
 - (b) if it is not reasonably practicable to communicate with the supplier of the services—at the time the consumer indicates, by means which are reasonable in the circumstances, his or her intention to terminate the contract.
- (3) The consumer is entitled to recover, by action against the supplier of the services, a refund of:
- (a) any money paid by the consumer for the services; and
 - (b) an amount that is equal to the value of any other consideration provided by the consumer for the services;
- to the extent that the consumer has not already consumed the services at the time the termination takes effect.

266 Rights of gift recipients

If a consumer acquires goods from a supplier and gives them to another person as a gift, the other person may, subject to any defence which would be available to the supplier against the consumer:

Section 267

- (a) exercise any rights or remedies under this Subdivision which would be available to the other person if he or she had acquired the goods from the supplier; and
- (b) any reference in this Subdivision to a consumer includes a reference to the other person accordingly.

Subdivision B—Action against suppliers of services

267 Action against suppliers of services

- (1) A consumer may take action under this section if:
 - (a) a person (the *supplier*) supplies, in trade or commerce, services to the consumer; and
 - (b) a guarantee that applies to the supply under Subdivision B of Division 1 of Part 3-2 is not complied with; and
 - (c) unless the guarantee is the guarantee under section 60—the failure to comply with the guarantee did not occur only because of:
 - (i) an act, default or omission of, or a representation made by, any person other than the supplier, or an agent or employee of the supplier; or
 - (ii) a cause independent of human control that occurred after the services were supplied.
- (2) If the failure to comply with the guarantee can be remedied and is not a major failure:
 - (a) the consumer may require the supplier to remedy the failure within a reasonable time; or
 - (b) if such a requirement is made of the supplier but the supplier refuses or fails to comply with the requirement, or fails to comply with the requirement within a reasonable time—the consumer may:
 - (i) otherwise have the failure remedied and, by action against the supplier, recover all reasonable costs incurred by the consumer in having the failure so remedied; or
 - (ii) terminate the contract for the supply of the services.

Section 268

- (3) If the failure to comply with the guarantee cannot be remedied or is a major failure, the consumer may:
 - (a) terminate the contract for the supply of the services; or
 - (b) by action against the supplier, recover compensation for any reduction in the value of the services below the price paid or payable by the consumer for the services.
- (4) The consumer may, by action against the supplier, recover damages for any loss or damage suffered by the consumer because of the failure to comply with the guarantee if it was reasonably foreseeable that the consumer would suffer such loss or damage as a result of such a failure.
- (5) To avoid doubt, subsection (4) applies in addition to subsections (2) and (3).

268 When a failure to comply with a guarantee is a major failure

- (1) A failure to comply with a guarantee referred to in section 267(1)(b) that applies to a supply of services is a *major failure* if:
 - (a) the services would not have been acquired by a reasonable consumer fully acquainted with the nature and extent of the failure; or
 - (b) the services are substantially unfit for a purpose for which services of the same kind are commonly supplied and they cannot, easily and within a reasonable time, be remedied to make them fit for such a purpose; or
 - (c) both of the following apply:
 - (i) the services, and any product resulting from the services, are unfit for a particular purpose for which the services were acquired by the consumer that was made known to the supplier of the services;
 - (ii) the services, and any of those products, cannot, easily and within a reasonable time, be remedied to make them fit for such a purpose; or

Section 269

- (d) both of the following apply:
 - (i) the services, and any product resulting from the services, are not of such a nature, or quality, state or condition, that they might reasonably be expected to achieve a result desired by the consumer that was made known to the supplier;
 - (ii) the services, and any of those products, cannot, easily and within a reasonable time, be remedied to achieve such a result; or
 - (e) the supply of the services creates an unsafe situation.
- (2) A failure to comply with a guarantee referred to in section 267(1)(b) that applies to a supply of services is also a **major failure** if:
- (a) the failure is one of 2 or more failures to comply with a guarantee referred to in section 267(1)(b) that apply to the supply; and
 - (b) the services would not have been acquired by a reasonable consumer fully acquainted with the nature and extent of those failures, taken as a whole.
- Note: The multiple failures do not need to relate to the same guarantee.
- (3) Subsection (2) applies regardless of whether the consumer has taken action under section 267 in relation to any of the failures.

269 Termination of contracts for the supply of services

- (1) This section applies if, under section 267, a consumer terminates a contract for the supply of services.
- (2) The termination takes effect:
 - (a) at the time the termination is made known to the supplier of the services (whether by words or by conduct indicating the consumer's intention to terminate the contract); or
 - (b) if it is not reasonably practicable to communicate with the supplier of the services—at the time the consumer indicates, by means which are reasonable in the circumstances, his or her intention to terminate the contract.

- (3) The consumer is entitled to recover, by action against the supplier of the services, a refund of:
- (a) any money paid by the consumer for the services; and
 - (b) an amount that is equal to the value of any other consideration provided by the consumer for the services;
- to the extent that the consumer has not already consumed the services at the time the termination takes effect.

270 Termination of contracts for the supply of goods that are connected with terminated services

- (1) If:
- (a) under section 267, a consumer terminates a contract for the supply of services; and
 - (b) a person (the **supplier**) has supplied, in trade or commerce, goods to the consumer that are connected with the services;
- then:
- (c) the consumer is taken to have rejected the goods at the time the termination of the contract takes effect; and
 - (d) the consumer must return the goods to the supplier of the goods unless:
 - (i) the goods have already been returned to, or retrieved by, the supplier; or
 - (ii) the goods cannot be returned, removed or transported without significant cost to the consumer because of the nature of the failure to comply with the guarantee to which the rejection relates, or because of the size or height, or method of attachment, of the goods; and
 - (e) the supplier must refund:
 - (i) any money paid by the consumer for the goods; and
 - (ii) an amount that is equal to the value of any other consideration provided by the consumer for the goods.
- (2) If subsection (1)(d)(ii) applies, the supplier must collect the goods at the supplier's expense.

Section 271

Division 2—Action for damages against manufacturers of goods

271 Action for damages against manufacturers of goods

- (1) If:
- (a) the guarantee under section 54 applies to a supply of goods to a consumer; and
 - (b) the guarantee is not complied with;
- an affected person in relation to the goods may, by action against the manufacturer of the goods, recover damages from the manufacturer.
- (2) Subsection (1) does not apply if the guarantee under section 54 is not complied with only because of:
- (a) an act, default or omission of, or any representation made by, any person other than the manufacturer or an employee or agent of the manufacturer; or
 - (b) a cause independent of human control that occurred after the goods left the control of the manufacturer; or
 - (c) the fact that the price charged by the supplier was higher than the manufacturer's recommended retail price, or the average retail price, for the goods.
- (3) If:
- (a) a person supplies, in trade or commerce, goods by description to a consumer; and
 - (b) the description was applied to the goods by or on behalf of the manufacturer of the goods, or with express or implied consent of the manufacturer; and
 - (c) the guarantee under section 56 applies to the supply and it is not complied with;
- an affected person in relation to the goods may, by action against the manufacturer of the goods, recover damages from the manufacturer.

Section 272

- (4) Subsection (3) does not apply if the guarantee under section 56 is not complied with only because of:
- (a) an act, default or omission of any person other than the manufacturer or an employee or agent of the manufacturer; or
 - (b) a cause independent of human control that occurred after the goods left the control of the manufacturer.
- (5) If:
- (a) the guarantee under section 58 or 59(1) applies to a supply of goods to a consumer; and
 - (b) the guarantee is not complied with;
- an affected person in relation to the goods may, by action against the manufacturer of the goods, recover damages from the manufacturer.
- (6) If an affected person in relation to goods has, in accordance with an express warranty given or made by the manufacturer of the goods, required the manufacturer to remedy a failure to comply with a guarantee referred to in subsection (1), (3) or (5):
- (a) by repairing the goods; or
 - (b) by replacing the goods with goods of an identical type;
- then, despite that subsection, the affected person is not entitled to commence an action under that subsection to recover damages of a kind referred to in section 272(1)(a) unless the manufacturer has refused or failed to remedy the failure, or has failed to remedy the failure within a reasonable time.
- (7) The affected person in relation to the goods may commence an action under this section whether or not the goods are in their original packaging.

272 Damages that may be recovered by action against manufacturers of goods

- (1) In an action for damages under this Division, an affected person in relation to goods is entitled to recover damages for:

Section 273

- (a) any reduction in the value of the goods, resulting from the failure to comply with the guarantee to which the action relates, below whichever of the following prices is lower:
 - (i) the price paid or payable by the consumer for the goods;
 - (ii) the average retail price of the goods at the time of supply; and
 - (b) any loss or damage suffered by the affected person because of the failure to comply with the guarantee to which the action relates if it was reasonably foreseeable that the affected person would suffer such loss or damage as a result of such a failure.
- (2) Without limiting subsection (1)(b), the cost of inspecting and returning the goods to the manufacturer is taken to be a reasonably foreseeable loss suffered by the affected person as a result of the failure to comply with the guarantee.
- (3) Subsection (1)(b) does not apply to loss or damage suffered through a reduction in the value of the goods.

273 Time limit for actions against manufacturers of goods

An affected person may commence an action for damages under this Division at any time within 3 years after the day on which the affected person first became aware, or ought reasonably to have become aware, that the guarantee to which the action relates has not been complied with.

Division 3—Miscellaneous

274 Indemnification of suppliers by manufacturers

- (1) A manufacturer of goods is liable to indemnify a person (the **supplier**) who supplies the goods to a consumer if:
 - (a) the supplier is liable to pay damages under section 259(4) to the consumer for loss or damage suffered by the consumer; and
 - (b) the manufacturer is or would be liable under section 271 to pay damages to the consumer for the same loss or damage.
- (2) Without limiting subsection (1), a manufacturer of goods is liable to indemnify a person (the **supplier**) who supplies the goods to a consumer if:
 - (a) the supplier incurs costs because the supplier is liable under this Part for a failure to comply with a guarantee that applies to the supply under Subdivision A of Division 1 of Part 3-2; and
 - (b) the failure is:
 - (i) a failure to comply with the guarantee under section 54; or
 - (ii) a failure to comply with the guarantee under section 55 in relation to a disclosed purpose that the consumer made known to the manufacturer either directly or through the supplier or the person referred to in section 55(2)(a)(ii); or
 - (iii) a failure to comply with the guarantee under section 56 in relation to a description that was applied to the goods by or on behalf of the manufacturer of the goods, or with the express or implied consent of the manufacturer.
- (3) The supplier may, with respect to the manufacturer's liability to indemnify the supplier, commence an action against the manufacturer in a court of competent jurisdiction for such legal or equitable relief as the supplier could have obtained if that liability had arisen under a contract of indemnity made between them.

Section 275

- (4) The supplier may commence the action at any time within 3 years after the earliest of the following days:
- (a) the day, or the first day, as the case may be, on which the supplier made a payment with respect to, or otherwise discharged in whole or in part, the liability of the supplier to the consumer;
 - (b) the day on which a proceeding was commenced by the consumer against the supplier with respect to that liability or, if more than one such proceeding was commenced, the day on which the first such proceeding was commenced.

275 Limitation of liability etc.

If:

- (a) there is a failure to comply with a guarantee that applies to a supply of services under Subdivision B of Division 1 of Part 3-2; and
- (b) the law of a State or a Territory is the proper law of the contract;

that law applies to limit or preclude liability for the failure, and recovery of that liability (if any), in the same way as it applies to limit or preclude liability, and recovery of any liability, for a breach of a term of the contract for the supply of the services.

276 This Part not to be excluded etc. by contract

- (1) A term of a contract (including a term that is not set out in the contract but is incorporated in the contract by another term of the contract) is void to the extent that the term purports to exclude, restrict or modify, or has the effect of excluding, restricting or modifying:
- (a) the application of all or any of the provisions of this Part; or
 - (b) the exercise of a right conferred by such a provision; or
 - (c) any liability of a person in relation to a failure to comply with a guarantee that applies under Division 1 of Part 3-2 to a supply of goods or services.

Section 276A

- (2) A term of a contract is not taken, for the purposes of this section, to exclude, restrict or modify the application of a provision of this Part unless the term does so expressly or is inconsistent with the provision.
- (3) This section does not apply to a term of a contract that is a term referred to in section 276A(4).

276A Limitation in certain circumstances of liability of manufacturer to seller

- (1) Despite section 274, if goods are not of a kind ordinarily acquired for personal, domestic or household use or consumption, the liability under that section of the manufacturer of the goods to a person (the *supplier*) who supplied the goods to a consumer is limited to a liability to pay to the supplier an amount equal to:
 - (a) the cost of replacing the goods; or
 - (b) the cost of obtaining equivalent goods; or
 - (c) the cost of having the goods repaired;whichever is the lowest amount.
- (2) Subsection (1) does not apply in relation to particular goods if the supplier establishes that it is not fair or reasonable for the liability of the manufacturer of the goods to be limited as mentioned in subsection (1).
- (3) In determining for the purposes of subsection (2) whether or not it is fair or reasonable for the liability of a manufacturer to a supplier in relation to goods to be limited as mentioned in subsection (1), a court is to have regard to all the circumstances of the case, and in particular to the following matters:
 - (a) the availability of suitable alternative sources of supply of the goods;
 - (b) the availability of equivalent goods;
 - (c) whether the goods were manufactured, processed or adapted to the special order of the supplier.

Section 277

- (4) This section is subject to any term of a contract between the manufacturer and the supplier imposing on the manufacturer a greater liability than the liability mentioned in subsection (1).

277 Representative actions by the regulator

- (1) The regulator may, by application, commence an action under this Part on behalf of one or more persons identified in the application who are entitled under this Part to take the action.
- (2) The regulator may only make the application if it has obtained the written consent of the person, or each of the persons, on whose behalf the application is being made.

Part 5-5—Liability of suppliers and credit providers

Division 1—Linked credit contracts

278 Liability of suppliers and linked credit providers relating to linked credit contracts

- (1) If a consumer who is a party to a linked credit contract suffers loss or damage as a result of:
- (a) a misrepresentation relating to the credit provided under that linked credit contract, or to a supply of goods or services (a ***related supply***) to which that contract relates; or
 - (b) a breach of the linked credit contract, or of a contract for a related supply; or
 - (c) the failure of consideration in relation to the linked credit contract, or to a contract for a related supply; or
 - (d) a failure to comply with a guarantee that applies, under section 54, 55, 56, 57, 60, 61 or 62, in relation to a related supply; or
 - (e) a breach of a warranty that is implied in the linked credit contract by section 12ED of the *Australian Securities and Investments Commission Act 2001*;
- the linked credit provider who is a party to the contract, and the supplier of a related supply, are jointly and severally liable to the consumer for the amount of the loss or damage.
- (2) A ***linked credit contract*** is a contract that a consumer enters into with a linked credit provider of a person (the ***supplier***) for the provision of credit in relation to:
- (a) the supply by way of sale, lease, hire or hire-purchase of goods to the consumer by the linked credit provider where the supplier supplies the goods, or causes the goods to be supplied, to the linked credit provider; or
 - (b) the supply by the supplier of goods or services, or goods and services, to the consumer.

Section 279

279 Action by consumer to recover amount of loss or damage

- (1) If a linked credit provider, and a supplier of the goods or services, are liable under section 278 to a consumer for an amount of loss or damage, the consumer may recover the amount by action in a court of competent jurisdiction.
- (2) The consumer must bring the action against the linked credit provider and the supplier jointly.
- (3) Subsection (2) does not apply if:
 - (a) the supplier has been dissolved or the winding up of the supplier has commenced; or
 - (b) both of the following apply:
 - (i) in the opinion of the court in which the action is taken, it is not reasonably likely that a judgment obtained against the supplier would be satisfied;
 - (ii) that court has, on the application of the consumer, declared that that subsection does not apply in relation to the proceedings.

280 Cases where a linked credit provider is not liable

- (1) In joint liability proceedings, a linked credit provider is not liable to a consumer under section 278 if the linked credit provider establishes that:
 - (a) the credit provided by the credit provider to the consumer was the result of an approach made to the credit provider by the consumer; and
 - (b) the approach was not induced by the supplier of the goods or services to which the linked credit contract relates.
- (2) In joint liability proceedings, a linked credit provider is not liable to a consumer under section 278 if the proceedings relate to the supply by way of lease, hire or hire-purchase of goods to the consumer by the linked credit provider, and the credit provider establishes that:

Section 280

- (a) after due inquiry before becoming a linked credit provider of the supplier of the goods, the credit provider was satisfied that the reputation of the supplier in respect of the supplier's financial standing and business conduct was good; and
 - (b) after becoming a linked credit provider of the supplier, the credit provider had not had cause to suspect that:
 - (i) the consumer might be entitled to recover an amount of loss or damage suffered as a result of a misrepresentation, breach, failure of consideration, failure to comply with a guarantee, or breach of a warranty, referred to in section 278(1); and
 - (ii) the supplier might be unable to meet the supplier's liabilities as and when they fall due.
- (3) In joint liability proceedings, a linked credit provider is not liable to a consumer under section 278 if the proceedings relate to a contract of sale in relation to which a tied loan contract applies and the linked credit provider establishes that:
 - (a) after due inquiry before becoming a linked credit provider of the supplier of goods to which the contract relates, the credit provider was satisfied that the reputation of the supplier in respect of the supplier's financial standing and business conduct was good; and
 - (b) after becoming a linked credit provider of the supplier, but before the tied loan contract was entered into, the linked credit provider had not had cause to suspect that:
 - (i) the consumer might, if the tied loan contract was entered into, be entitled to recover an amount of loss or damage suffered as a result of a misrepresentation, breach, failure of consideration, failure to comply with a guarantee, or breach of a warranty, referred to in section 278(1); and
 - (ii) the supplier might be unable to meet the supplier's liabilities as and when they fall due.
- (4) In joint liability proceedings, a linked credit provider is not liable to a consumer under section 278 if:

Section 281

- (a) the proceedings relate to a contract of sale in relation to which a tied continuing credit contract entered into by the linked credit provider applies; and
 - (b) the credit provider establishes the matter referred to in subsection (5), having regard to:
 - (i) the nature and volume of business carried on by the credit provider; and
 - (ii) such other matters as appear to be relevant in the circumstances of the case.
- (5) The matter for the purposes of subsection (4) is that the linked credit provider, before first becoming aware of:
 - (a) the contract of sale referred to in paragraph (a) of that subsection; or
 - (b) proposals for the making of such a contract;had not had cause to suspect that a person entering into such a contract with the supplier might be entitled to claim damages against, or recover a sum of money from, the supplier for a misrepresentation, breach, failure of consideration, failure to comply with a guarantee, or a breach of a warranty, referred to in section 278(1).
- (6) This section has effect despite section 278(1).

281 Amount of liability of linked credit providers

The liability of a linked credit provider to a consumer under section 278(1) in relation to a contract referred to in section 278(1) is limited to an amount that does not exceed the sum of:

- (a) the amount financed under the tied loan contract, tied continuing credit contract, lease contract, contract of hire or contract of hire-purchase; and
- (b) the amount of interest (if any), or damages in the nature of interest, allowed or awarded against the credit provider by the court in which the action in relation to the liability is taken; and

- (c) the amount of costs (if any) awarded by that court against the credit provider or supplier, or both.

282 Counter-claims and offsets

- (1) If proceedings in relation to a linked credit contract are brought against a consumer who is party to the contract by the linked credit provider who is a party to the contract, the consumer is not entitled to:
 - (a) make a counter-claim in relation to the credit provider's liability under section 278(1); or
 - (b) exercise a right conferred by subsection (3) of this section in relation to that liability;unless the consumer claims in the proceedings against the supplier in respect of the liability, by third-party proceedings or otherwise.
- (2) Subsection (1) does not apply if:
 - (a) the supplier has been dissolved or the winding up of the supplier has commenced; or
 - (b) both of the following apply:
 - (i) in the opinion of the court in which the proceedings are taken, it is not reasonably likely that a judgment obtained against the supplier would be satisfied;
 - (ii) that court has, on the application of the consumer, declared that that subsection does not apply in relation to the proceedings.
- (3) In any proceedings in relation to a linked credit contract in which the linked credit provider who is a party to the contract claims damages or an amount of money from a consumer, the consumer may offset, in whole or in part, the consumer's liability against any liability of the credit provider under section 278(1).

283 Enforcement of judgments etc.

- (1) If, in joint liability proceedings, judgment is given against a supplier and a linked credit provider, the judgment must not be enforced against the credit provider unless a written demand made

Section 283

on the supplier for satisfaction of the judgment has remained unsatisfied for at least 30 days.

- (2) If the judgment can be enforced against the linked credit provider, it may only be enforced to the extent of the lesser of the following amounts:
 - (a) the amount calculated in accordance with section 281;
 - (b) so much of the judgment debt as has not been satisfied by the supplier.
- (3) If, in joint liability proceedings, a right conferred by section 282(3) is established by a consumer against a linked credit provider, the consumer must not receive the benefit of the right unless:
 - (a) judgment has been given against the supplier and credit provider; and
 - (b) a written demand has been made on the supplier for satisfaction of the judgment; and
 - (c) the demand has remained unsatisfied for at least 30 days.
- (4) If the consumer can receive the benefit of a right conferred by section 282(3), the consumer may only receive the benefit to the extent of the lesser of the following amounts:
 - (a) the amount calculated in accordance with section 281;
 - (b) so much of the judgment debt as has not been satisfied by the supplier.
- (5) Subsections (1) and (3) do not apply if:
 - (a) the supplier has been dissolved or the winding up of the supplier has commenced; or
 - (b) both of the following apply:
 - (i) in the opinion of the court in which the proceedings are taken, it is not reasonably likely that a judgment obtained against the supplier would be satisfied;
 - (ii) that court has, on the application of the consumer, declared that those subsections do not apply in relation to the proceedings.

- (6) If a judgment given in joint liability proceedings is enforced against a linked credit provider of a supplier, the credit provider is subrogated to the extent of the enforced judgment to any rights that the consumer would have had but for the judgment against the supplier or any other person.

284 Award of interest to consumers

- (1) If, in joint liability proceedings, judgment is given against the following (the *defendant*) for an amount of loss or damage:
- (a) a supplier and a linked credit provider;
 - (b) a linked credit provider;
- the court must, on the application of the consumer who suffered the loss or damage, award interest to the consumer against the defendant upon the whole or a part of the amount, unless good cause is shown to the contrary.
- (2) The interest must be awarded from the time when the consumer became entitled to recover the amount until the date on which the judgment is given, at the greater of the following rates:
- (a) if the amount payable by the consumer to the linked credit provider for obtaining credit in connection with the goods or services to which the proceedings relate may be calculated at a percentage rate per annum—that rate or, if more than one such rate may be calculated, the lower or lowest of those rates;
 - (b) 8%, or such other rate as is prescribed by the regulations.
- (3) In determining whether good cause is shown against the awarding of interest under subsection (1), the court must take into account any payment made into court by the supplier or the linked credit provider.
- (4) This section applies despite any other law.

Section 285

285 Liability of suppliers to linked credit providers, and of linked credit providers to suppliers

- (1) If a linked credit provider and supplier are liable, under section 278, to a consumer who is a party to a linked credit contract:
 - (a) if the liability relates to a supply of goods or services to which the linked credit contract relates—the supplier is liable to the credit provider for the amount of loss suffered by the credit provider, unless the supplier and credit provider otherwise agree; or
 - (b) if the liability relates to the linked credit contract—the credit provider is liable to the supplier for the amount of loss suffered by the supplier, unless the supplier and credit provider otherwise agree.
- (2) The amount for which the supplier is liable under subsection (1)(a) of this section is an amount not exceeding the sum of the following amounts:
 - (a) the maximum amount of the linked credit provider's liability under section 281;
 - (b) unless the court otherwise determines, the amount of costs (if any) reasonably incurred by the linked credit provider in defending the joint liability proceedings.

286 Joint liability proceedings and recovery under section 135 of the National Credit Code

- (1) If:
 - (a) a consumer is seeking, in joint liability proceedings, to recover an amount under section 279 in relation to a contract for the supply of goods or services; and
 - (b) the contract has been rescinded or discharged (whether under this Schedule or any other law); and
 - (c) as a result of the contract being rescinded or discharged, the consumer is entitled under section 135 of the National Credit Code to terminate a linked credit contract; and

- (d) the consumer terminates the linked credit contract under that section;
- the following amounts may be recovered in the joint liability proceedings (to the extent that they have not been recovered under section 135 of the National Credit Code):
- (e) any amount that the consumer is entitled under section 135 of the National Credit Code to recover from the credit provider under the linked credit contract;
 - (f) any amount that the credit provider is entitled under section 135 of the National Credit Code to recover from:
 - (i) the consumer; or
 - (ii) if the supplier under the contract for the supply of goods or services is a party to the joint liability proceedings—the supplier.
- (2) An amount that is recovered under subsection (1) ceases to be recoverable under section 135 of the National Credit Code.

Division 2—Non-linked credit contracts

287 Liability of suppliers and credit providers relating to non-linked credit contracts

- (1) If a consumer who is a party to a non-linked credit contract suffers loss or damage as a result of a failure to comply with a guarantee that applies, under section 54, 55, 56, 57, 60, 61 or 62, in relation to a supply to which the contract relates, the credit provider who is a party to the contract is not under any liability to the consumer for the amount of the loss or damage.
- (2) Subsection (1) does not prevent the consumer from recovering that amount by action against the supplier of the goods or services to which the contract relates.
- (3) If a consumer who is a party to a non-linked credit contract suffers loss or damage as a result of a breach of a warranty that is implied in the contract by section 12ED of the *Australian Securities and Investments Commission Act 2001*, the supplier of the goods or services to which the contract relates is not under any liability to the consumer for the amount of the loss or damage.
- (4) Subsection (3) does not prevent the consumer from recovering that amount by action against the credit provider who is a party to the contract.
- (5) A **non-linked credit contract** is a contract that a consumer enters into with a credit provider for the provision of credit in relation to:
 - (a) the supply by way of sale, lease, hire or hire-purchase of goods to the consumer where:
 - (i) a person (the **supplier**) supplies the goods, or the causes the goods to be supplied, to the credit provider; and
 - (ii) the credit provider is not a linked credit provider of the supplier; and
 - (iii) prior negotiations or arrangements in relation to the acquisition of the goods were conducted or made with the consumer by or on behalf of the supplier; and

Section 287

- (iv) the credit provider did not take physical possession of the goods before they were delivered to the consumer;
or
- (b) the supply of services to the consumer by a person in relation to whom the credit provider is not a linked credit provider.

Chapter 6—Application and transitional provisions

Part 1—Application and transitional provisions relating to the Consumer Credit Legislation Amendment (Enhancements) Act 2012

288 Application of amendments relating to lay-by agreements

The amendments made by items 1 to 8 and 10 to 15 of Schedule 7 to the *Consumer Credit Legislation Amendment (Enhancements) Act 2012* apply to lay-by agreements entered into on or after the commencement of those items.

289 Application of amendment relating to repairs

The amendment made by item 9 of Schedule 7 to the *Consumer Credit Legislation Amendment (Enhancements) Act 2012* applies to notices to be given in relation to the repair of goods accepted on or after the commencement of that item.

290 Saving of regulations relating to repairs

Despite the amendment made to subsection 103(1) of Schedule 2 to the *Competition and Consumer Act 2010* by item 9 of Schedule 7 to the *Consumer Credit Legislation Amendment (Enhancements) Act 2012*, regulations that:

- (a) were made for the purposes of that subsection; and
- (b) were in force immediately before the commencement of that item;

continue in force (and may be dealt with) as if they were made for the purposes of that subsection as amended by that item.

**Part 1A—Application provision relating to the Treasury
Legislation Amendment (Small Business and
Unfair Contract Terms) Act 2015**

290A Application

- (1) The amendments made by Schedule 1 to the *Treasury Legislation Amendment (Small Business and Unfair Contract Terms) Act 2015* apply in relation to a contract entered into on or after the commencement of that Schedule.
- (2) The amendments do not apply to a contract entered into before the commencement of that Schedule. However:
 - (a) if the contract is renewed on or after that commencement—the amendments apply to the contract as renewed, on and from the day (the **renewal day**) on which the renewal takes effect, in relation to conduct that occurs on or after the renewal day; or
 - (b) if a term of the contract is varied on or after that commencement and paragraph (a) has not already applied in relation to the contract—the amendments apply to the term as varied, on and from the day (the **variation day**) on which the variation takes effect, in relation to conduct that occurs on and after the variation day.
- (3) If paragraph (2)(b) of this section applies to a term of a contract, subsection 23(2) and section 27 apply to the contract.
- (4) Despite paragraphs (2)(a) and (b) and subsection (3) of this section, the amendments do not apply to a contract, or a term of a contract, to the extent that the operation of the amendments would result in an acquisition of property (within the meaning of paragraph 51(xxxi) of the Constitution) from a person otherwise than on just terms (within the meaning of that paragraph of the Constitution).

**Part 2—Application and transitional provisions relating to
the Competition and Consumer Amendment
(Competition Policy Review) Act 2017**

291 Application of amendments relating to confidentiality of notices

The amendment made by Part 4 of Schedule 14 to the *Competition and Consumer Amendment (Competition Policy Review) Act 2017* applies in relation to disclosures made on or after the commencement of that Part that relate to notices given on or after the commencement of that Part.

292 Application of amendments relating to prohibition on supplies

The amendments made by Part 6 of Schedule 14 to the *Competition and Consumer Amendment (Competition Policy Review) Act 2017* apply in relation to unsolicited consumer agreements made on or after the commencement of that Part.

**Part 3—Application provision relating to the Treasury
Laws Amendment (2018 Measures No. 3) Act
2018**

295 Application of amendments

The amendments made by Schedule 1 to the *Treasury Laws Amendment (2018 Measures No. 3) Act 2018* apply in relation to acts or omissions that occur on or after the commencement of that Schedule.

Section 296

Part 4—Application provisions relating to the Treasury Laws Amendment (Australian Consumer Law Review) Act 2018

296 Application—listed public companies

The amendments made by items 4 and 5 of Schedule 2 to the *Treasury Laws Amendment (Australian Consumer Law Review) Act 2018* apply in relation to acts or omissions on or after the day that Schedule commences.

297 Application—unsolicited supplies

The amendments made by Schedule 3 to the *Treasury Laws Amendment (Australian Consumer Law Review) Act 2018* apply in relation to acts or omissions on or after the day that Schedule commences.

298 Application—unsolicited consumer agreements

The amendment made by Schedule 4 to the *Treasury Laws Amendment (Australian Consumer Law Review) Act 2018* applies in relation to acts or omissions that relate to agreements entered into on or after the day that Schedule commences.

299 Application—single price

The amendments made by Schedule 5 to the *Treasury Laws Amendment (Australian Consumer Law Review) Act 2018* apply in relation to acts or omissions on or after the day that is 12 months after the day that Schedule commences.

300 Application—non-punitive orders

The amendments made by Schedule 8 to the *Treasury Laws Amendment (Australian Consumer Law Review) Act 2018* apply in

relation to orders relating to acts or omissions on or after the day
that Schedule commences.

301 Application—guarantees relating to the supply of services

The amendments made by Schedule 9 to the *Treasury Laws
Amendment (Australian Consumer Law Review) Act 2018* apply in
relation to services supplied under a contract entered into on or
after the day that Schedule commences.

Section 302

**Part 5—Application and transitional provisions relating to
the Treasury Laws Amendment (Gift Cards) Act
2018**

302 Application of amendments relating to gift cards

The amendments made by Schedule 1 to the *Treasury Laws
Amendment (Gift Cards) Act 2018* apply to gift cards supplied on
or after 1 November 2019.

**Part 6—Application and transitional provisions relating to
the Treasury Laws Amendment (2020 Measures
No. 6) Act 2020**

**303 Application of amendments relating to multiple non-major
consumer guarantee failures**

- (1) The amendments made by Part 1 of Schedule 4 to the *Treasury Laws Amendment (2020 Measures No. 6) Act 2020* apply in relation to goods supplied under a contract entered into on or after the day that that Part commences.
- (2) The amendments made by Part 1 of Schedule 4 to the *Treasury Laws Amendment (2020 Measures No. 6) Act 2020* apply in relation to services supplied under a contract entered into on or after the day that that Part commences.

Part 7—Application provision relating to the Treasury Laws Amendment (More Competition, Better Prices) Act 2022

304 Application of amendments relating to penalties

The amendments made by Part 4 of Schedule 1 to the *Treasury Laws Amendment (More Competition, Better Prices) Act 2022* apply in relation to offences committed, or acts or omissions that occurred, on or after the commencement of that Schedule.

305 Application of amendments relating to unfair contract terms

- (1) This section applies to the amendments of this Schedule made by Schedule 2 (the ***amending Schedule***) to the *Treasury Laws Amendment (More Competition, Better Prices) Act 2022*.
- (2) The amendments:
 - (a) apply in relation to a contract made at or after the commencement (the ***relevant commencement***) of the amending Schedule; and
 - (b) do not apply to a contract (an ***existing contract***) made before the relevant commencement, except as provided in this section.
- (3) If an existing contract is renewed at or after the relevant commencement, the amendments apply to the contract as renewed, on and from the day (the ***renewal day***) on which the renewal takes effect, in relation to conduct that occurs on or after the renewal day.
- (4) If an existing contract is varied at or after the relevant commencement by varying or adding a term and subsection (3) has not already applied in relation to the contract:
 - (a) the amendments apply to the term as varied or added, and so apply:

Section 305

- (i) on and from the day (the ***variation day***) on which the variation of the contract takes effect; and
 - (ii) as if the contract as varied had been made on the variation day; and
 - (iii) in relation to conduct that occurs on and after the variation day; and
 - (b) section 23(2A)(e) applies in relation to a person proposing the varied or added term, whether before, at or after the relevant commencement; and
 - (c) subsection 23(2), and section 27, as in force at and after the relevant commencement, apply to the contract.
- (5) If a contract is made or renewed at or after the relevant commencement, section 23(2A)(e) applies in relation to a person proposing a term of the contract, whether before, at or after the relevant commencement.
- (6) Despite subsections (3) to (5) of this section, the amendments do not apply to a contract, or a term of a contract, to the extent that the operation of the amendments would result in an acquisition of property (within the meaning of paragraph 51(xxxi) of the Constitution) from a person otherwise than on just terms (within the meaning of that paragraph of the Constitution).

Section 306

**Part 8—Application and saving provisions relating to the
Treasury Laws Amendment (Fairer for Families
and Farmers and Other Measures) Act 2024**

306 Definitions

In this Part:

amending Schedule means Schedule 2 to the *Treasury Laws Amendment (Fairer for Families and Farmers and Other Measures) Act 2024*.

307 Saving—safety standards declared by the Minister

Despite the repeal of section 105 by the amending Schedule, a safety standard that:

- (a) was declared for the purposes of that section; and
- (b) was in force immediately before the commencement of Part 1 of the amending Schedule;

continues in force (and may be dealt with) on and after the commencement of Part 1 of the amending Schedule as if it were made for the purposes of section 104, as amended by the amending Schedule.

308 Application—nomination and compliance with safety standards

- (1) Despite the repeal of section 108 by the amending Schedule, that section continues to apply in relation to requests given by the regulator before the commencement of Part 1 of the amending Schedule, as if that repeal had not happened.
- (2) Section 108, as inserted by the amending Schedule, applies in relation to safety standards made before, on or after the commencement of Part 1 of the amending Schedule.

309 Application—requests for information or documents

Sections 108A and 137B, as inserted by the amending Schedule,
apply in relation to safety standards and information standards
made before, on or after the commencement of Part 1 of the
amending Schedule.

Section 310

**Part 9—Application provision relating to the
Treasury Laws Amendment (Doubling
Penalties for ACCC Enforcement) Act
2026**

310 Application of amendments relating to penalties

The amendments made by item 6 of Schedule 1 to the *Treasury Laws Amendment (Doubling Penalties for ACCC Enforcement) Act 2026* apply in relation to offences committed, or acts or omissions that occurred, on or after the commencement of that Schedule.

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment

Endnotes

Endnote 1—About the endnotes

can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnote 2—Abbreviation key

Endnote 2—Abbreviation key

ad = added or inserted	orig = original
am = amended	p = page(s)
amdt = amendment	para = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
ch = Chapter(s)	prev = previous
cl = clause(s)	(prev...) = previously
cont. = continued	pt = Part(s)
def = definition(s)	r = regulation(s)/Court rule(s)
Dict = Dictionary	reloc = relocated
disallowed = disallowed by Parliament	renum = renumbered
div = Division(s)	rep = repealed
ed = editorial change	rs = repealed and substituted
exp = expires/expired or ceases/ceased to have effect	s = section(s)/subsection(s) /rule(s)/subrule(s)/order(s)/suborder(s)
gaz = gazette	sch = Schedule(s)
LA = <i>Legislation Act 2003</i>	SLI = Select Legislative Instrument
LIA = <i>Legislative Instruments Act 2003</i>	SR = Statutory Rules
(md) = misdescribed amendment can be given effect	sub ch = Sub-Chapter(s)
(md not incorp) = misdescribed amendment cannot be given effect	sub div = Subdivision(s)
mod = modified/modification	sub pt = Subpart(s)
No. = Number(s)	<u>underlining</u> = whole or part not commenced or to be commenced
Ord = Ordinance	

Endnotes

Endnote 3—Legislation history

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Trade Practices Act 1974	51, 1974	24 Aug 1974	s 1, 2: 24 Aug 1974 (s 2(1)) s 55: 27 Sept 1975 (s 2(2) and gaz 1975, No. S178) Remainder: 1 Oct 1974 (s 2(3) and gaz 1974, No. 75B)	
Postal and Telecommunications Commissions (Transitional Provisions) Act 1975	56, 1975	12 June 1975	sch 2, 3: 1 July 1975 (s 2(1) and gaz 1975, No S122)	—
Trade Practices Act 1975	63, 1975	19 June 1975	19 June 1975 (s 2)	—
Trade Practices Amendment Act 1976	88, 1976	31 Aug 1976	s 3(a), 8, 17: 1 Oct 1974 (s 2) Remainder: 31 Aug 1976 (s 2)	s 2, 6(2)
Federal Court of Australia (Consequential Provisions) Act 1976	157, 1976	9 Dec 1976	sch: 1 Feb 1977 (s 2 and gaz 1977, No S3)	—
Trade Practices Amendment Act 1977	81, 1977	16 June 1977	s 3-80, 82: 1 July 1977 (s 2)	s 8(2)-(6), 22(2), 40(2), 41(2), 42(2), 47(2), 52(2), 54(2)-(7), 58(2), 62(2), 63(2), 82

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Remuneration and Allowances Amendment Act 1977	111, 1977	28 Oct 1977	s 18, 19(2): 28 Oct 1977 (s 2(1)) s 19(1): 1 June 1977 (s 2(2))	s 19(2)
Trade Practices Amendment Act (No. 2) 1977	151, 1977	10 Nov 1977	10 Nov 1977 (s 2)	s 6
Trade Practices Amendment Act 1978	206, 1978	6 Dec 1978	6 Dec 1978 (s 2)	s 8(2), 20
Trade Practices Amendment Act (No. 2) 1978	207, 1978	6 Dec 1978	6 Dec 1978 (s 2)	—
Trade Practices (Boycotts) Amendment Act 1980	73, 1980	29 May 1980	29 May 1980 (s 2)	—
Statute Law Revision Act 1981	61, 1981	12 June 1981	sch 1: 12 June 1981 (s 2(1))	—
Statute Law (Miscellaneous Amendments) Act 1981	176, 1981	2 Dec 1981	s 68: 30 Dec 1981 (s 2(12))	—
Statute Law (Miscellaneous Amendments) Act (No. 2) 1982	80, 1982	22 Sept 1982	s 279: 20 Oct 1982 (s 2(16)) s 280(2), (3): 22 Sept 1982 (s 2(1))	s 280(2), (3)
Statute Law (Miscellaneous Provisions) Act (No. 1) 1983	39, 1983	20 June 1983	s 7(1), (3), (4), sch 1: 18 July 1983 (s 2(1))	s 7(1), (3), (4)
Public Service Reform Act 1984	63, 1984	25 June 1984	s 151(9), sch 4: 1 July 1984 (s 2(4) and gaz 1984, No S245)	s 151(9)

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Remuneration and Allowances Amendment Act 1984	73, 1984	25 June 1984	s 22: 25 June 1984 (s 2)	—
Statute Law (Miscellaneous Provisions) Act (No. 2) 1984 as amended by	165, 1984	25 Oct 1984	s 2(32): 22 Nov 1984 (s 2(1)) sch 1: 25 Oct 1984 (s 2(28))	s 2(32)
Trade Practices Revision Act 1986	17, 1986	13 May 1986	s 75, 76: 25 Oct 1984 (s 2(2))	—
Statute Law (Miscellaneous Provisions) Act (No. 1) 1985	65, 1985	5 June 1985	sch 1: 3 July 1985 (s 2(1))	—
Trade Practices (Transfer of Market Dominance) Amendment Act 1986	8, 1986	1 May 1986	1 June 1986 (s 2 and gaz 1986, No S251)	—
Trade Practices Revision Act 1986	17, 1986	13 May 1986	s 4-30, 32-34, 36-48, 49(2), 50, 51(2), 52-63, 64(2), 65-73: 1 June 1986 (s 2(4) and gaz 1986, No S251) s 31, 35: 1 July 1986 (s 2(3)) s 49(1), 51(1), 64(1): 13 May 1986 (s 2(1))	s 27(2), 31(2), 33(2), 34(2), 47(2), 50(2), 59(3), 65(2)
Statute Law (Miscellaneous Provisions) Act (No. 2) 1986	168, 1986	18 Dec 1986	s 5(1), sch 1: 18 Dec 1986 (s 2(1))	s 5(1)
Jurisdiction of Courts (Miscellaneous Amendments) Act 1987	23, 1987	26 May 1987	s 4: 26 May 1987 (s 2(1)) sch: 1 Sept 1987 (s 2(2) and gaz 1987, No S217)	s 4

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Statute Law (Miscellaneous Provisions) Act 1987	141, 1987	18 Dec 1987	s 5(1): 18 Dec 1987 (s 2(1)) sch 1: 1 Apr 1989 (s 2(32) and gaz 1989, No S88)	s 5(1)
Family Court of Australia (Additional Jurisdiction and Exercise of Powers) Act 1988 as amended by	8, 1988	5 Apr 1988	s 41, 42: 1 July 1988 (s 2(3) and gaz 1988, No S191)	—
Law and Justice Legislation Amendment Act 1988	120, 1988	14 Dec 1988	s 35: 5 Apr 1988 (s 2(6))	—
Trade Practices Amendment Act 1988	20, 1988	11 May 1988	s 4: 1 July 1988 (s 2(2)) Remainder: 11 May 1988 (s 2(1))	—
Industrial Relations (Consequential Provisions) Act 1988 as amended by	87, 1988	8 Nov 1988	sch 2: 1 Mar 1989 (s 2(2))	—
Industrial Relations Legislation Amendment Act (No. 2) 1990	108, 1990	18 Dec 1990	s 24(d): 1 Mar 1989 (s 2(2))	—
Circuit Layouts Act 1989	28, 1989	22 May 1989	sch: 1 Oct 1990 (s 2(2) and gaz 1990, No S261)	—
Trade Practices (International Liner Cargo Shipping) Amendment Act 1989	34, 1989	30 May 1989	1 Aug 1989 (s 2(1) and gaz 1989, No S260)	s 6
Law and Justice Legislation Amendment Act 1989	11, 1990	17 Jan 1990	s 58, 59: 14 Feb 1990 (s 2(1))	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Trade Practices (Misuse of Trans-Tasman Market Power) Act 1990	70, 1990	16 June 1990	s 4-15: 1 July 1990 (s 2(1) and gaz 1990, No S172)	—
Trade Practices Amendment Act 1991	49, 1991	24 Apr 1991	21 Dec 1990 (s 2)	—
Industrial Relations Legislation Amendment Act 1991	122, 1991	27 June 1991	sch: 10 Dec 1991 (s 2(3) and gaz 1991, No S332)	s 31(2)
Law and Justice Legislation Amendment Act 1991	136, 1991	12 Sept 1991	s 23-25: 10 Oct 1991 (s 2(1))	s 25
Transport and Communications Legislation Amendment Act 1991	173, 1991	25 Nov 1991	s 49-56: 25 Nov 1991 (s 2(1))	—
Special Broadcasting Service Act 1991	180, 1991	25 Nov 1991	sch: 23 Dec 1991 (s 2(1))	—
Law and Justice Legislation Amendment Act 1992	22, 1992	13 Apr 1992	sch: 13 Apr 1992 (s 2(1))	—
Territories Law Reform Act 1992	104, 1992	30 June 1992	sch 4: 1 July 1992 (s 2(3))	—
Broadcasting Services (Transitional Provisions and Consequential Amendments) Act 1992	105, 1992	9 July 1992	sch 2: 5 Oct 1992 (s 2)	—
Trade Practices Amendment Act 1992	106, 1992	9 July 1992	9 July 1992 (s 2)	s 3
Trade Practices Legislation Amendment Act 1992	222, 1992	24 Dec 1992	s 2-18, 21, sch 1: 21 Jan 1993 (Date of commencement)	s 10(2), 16(2), 18(2), 21

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Industrial Relations Reform Act 1993	98, 1993	22 Dec 1993	s 43-47, 54, sch 3: 30 Mar 1994 (s 2(6) and gaz 1994, No S104)	s 54
Insurance Laws Amendment Act (No. 2) 1994	49, 1994	7 Apr 1994	sch (item 19): 7 Apr 1994 (s 2(1))	—
Law and Justice Legislation Amendment Act (No. 2) 1994	141, 1994	28 Nov 1994	sch 1 (items 21-26): 28 Nov 1994 (s 2(1))	—
Competition Policy Reform Act 1995	88, 1995	20 July 1995	s 3-30, 32, 88-90, 92, sch 1: 17 Aug 1995 (s 2(1)) s 35-76, 78: 6 Nov 1995 (s 2(2) and gaz 1995, No S423) s 80-87, 91: 20 July 1996 (s 2(4), (5))	s 33, 34, 78, 88-90, 92
Statute Law Revision Act 1996	43, 1996	25 Oct 1996	sch 4 (items 1, 147): 25 Oct 1996 (s 2(1))	—
Workplace Relations and Other Legislation Amendment Act 1996	60, 1996	25 Nov 1996	sch 17 (items 1-11, 14-24, 29-37): 17 Jan 1997 (s 2(2) and gaz 1997, No S18)	sch 17 (items 29-37)
as amended by				
Workplace Relations and Other Legislation Amendment Act (No. 2) 1996	77, 1996	19 Dec 1996	sch 3 (items 1, 2): 25 Nov 1996 (s 2(4))	—
Trade Practices Amendment (Industry Access Codes) Act 1997	28, 1997	10 Apr 1997	10 Apr 1997 (s 2)	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Trade Practices Amendment (Telecommunications) Act 1997	58, 1997	30 Apr 1997	30 Apr 1997 (s 2)	sch 1 (item 15)
Audit (Transitional and Miscellaneous) Amendment Act 1997	152, 1997	24 Oct 1997	sch 2 (item 1260): 1 Jan 1998 (s 2(2))	—
Telecommunications Legislation Amendment Act 1997	200, 1997	16 Dec 1997	sch 2 (items 30-34): 30 Apr 1997 (s 2(4))	—
Trade Practices Amendment (Fair Trading) Act 1998	36, 1998	22 Apr 1998	sch 2: 1 July 1998 (s 2(2)(b)(i) and gaz 1998, No S301) Remainder: 22 Apr 1998 (s 2(1))	—
Financial Sector Reform (Consequential Amendments) Act 1998	48, 1998	29 June 1998	sch 1 (item 194), sch 2 (items 24-29): 1 July 1998 (s 2(2))	—
Gas Pipelines Access (Commonwealth) Act 1998	101, 1998	30 July 1998	sch 1 (items 11-26): 30 July 1998 (s 2(1)) sch 1 (items 27-56): 30 July 1998 (s 2(3))	sch 1 (items 36, 47, 50)
Trade Practices Amendment (Country of Origin Representations) Act 1998	106, 1998	30 July 1998	sch 1: 13 Aug 1998 (s 2(2) and gaz 1998, No S398) Remainder: 30 July 1998 (s 2(1))	—
Telecommunications Legislation Amendment Act 1999	52, 1999	5 July 1999	sch 1 (items 6-77): 5 July 1999 (s 2(1)) sch 3 (items 69-76, 81): 2 Aug 1999 (s 2(4)) sch 4 (items 17-20, 28): 1 July 1999 (s 2(6))	sch 1 (items 72-77), sch 3 (item 81), sch 4 (item 28)

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
A New Tax System (Trade Practices Amendment) Act 1999	61, 1999	8 July 1999	9 July 1999 (s 2)	—
Public Employment (Consequential and Transitional) Amendment Act 1999	146, 1999	11 Nov 1999	sch 1 (items 944-955): 5 Dec 1999 (s 2(1), (2))	—
A New Tax System (Indirect Tax and Consequential Amendments) Act 1999	176, 1999	22 Dec 1999	sch 4: 22 Dec 1999 (s 2(1))	—
Federal Magistrates (Consequential Amendments) Act 1999	194, 1999	23 Dec 1999	sch 25: 23 Dec 1999 (s 2(1))	—
Jurisdiction of Courts Legislation Amendment Act 2000	57, 2000	30 May 2000	sch 1 (items 77-90): 30 May 2000 (s 2(1))	—
A New Tax System (Trade Practices Amendment) Act 2000	69, 2000	22 June 2000	sch 2 (item 1): 6 Nov 1995 (s 2(2)) sch 2 (item 2): 10 Apr 1997 (s 2(3)) Remainder: 22 June 2000 (s 2(1))	—
Trade Practices Amendment (International Liner Cargo Shipping) Act 2000	123, 2000	5 Oct 2000	sch 1 (items 154-170, 180): 2 Mar 2001 (s 2(2)(a)) Remainder: 2 Nov 2000 (s 2(1))	sch 1 (items 171-180)
Jurisdiction of Courts (Miscellaneous Amendments) Act 2000	161, 2000	21 Dec 2000	sch 1 (items 4, 5): 21 Dec 2000 (s 2)	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Treasury Legislation Amendment (Application of Criminal Code) Act (No. 1) 2001 as amended by	31, 2001	28 Apr 2001	sch 1 (items 240-290): 15 Dec 2001 (s 2(4))	—
Statute Law Revision Act 2002	63, 2002	3 July 2002	sch 2 (item 35): 15 Dec 2001 (s 2(1) item 64)	—
Communications and the Arts Legislation Amendment Act 2001	46, 2001	5 June 2001	s 6, sch 1 (items 9-18): 5 June 2001 (s 2)	s 6
Corporations (Repeals, Consequential and Transitional) Act 2001	55, 2001	28 June 2001	s 4-14, sch 3 (items 550-557): 15 July 2001 (s 2(3))	s 4-14
Trade Practices Amendment Act (No. 1) 2001 as amended by	63, 2001	28 June 2001	sch 2 (items 1-3, 6-8): 15 Dec 2001 (s 2(3)) Remainder: 26 July 2001 (s 2(1), (2)(a))	sch 1 (items 5, 8, 10, 13, 15, 17, 19, 21, 23, 25, 27, 29, 32, 34, 36, 38), sch 2 (items 3, 5, 8)
Statute Law Revision Act 2002	63, 2002	3 July 2002	sch 2 (item 32): 15 Dec 2001 (s 2(1) item 61)	—
Treasury Legislation Amendment (Application of Criminal Code) Act (No. 3) 2001	117, 2001	18 Sept 2001	s 4, sch 3 (items 16-56): 15 Dec 2001 (s 2(1), (4))	s 4
Financial Services Reform (Consequential Provisions) Act 2001	123, 2001	27 Sept 2001	sch 1 (items 364-364D, 365-365B): 11 Mar 2002 (s 2(1), (6), (15))	—
Trade Practices Amendment (Telecommunications) Act 2001	124, 2001	27 Sept 2001	27 Sept 2001 (s 2)	sch 1 (items 23, 24)

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Treasury Legislation Amendment (Application of Criminal Code) Act (No. 2) 2001	146, 2001	1 Oct 2001	s 4, sch 2: 15 Dec 2001 (s 2(1), (2))	s 4
Statute Law Revision Act 2002	63, 2002	3 July 2002	sch 1 (items 34, 35, 38): 1 July 1999 s 2(1) items 27, 29) sch 1 (items 36, 37): 3 July 2002 (s 2(1) item 28)	—
Trade Practices Amendment Act (No. 1) 2002	128, 2002	11 Dec 2002	11 Dec 2002 (s 2)	sch 1 (items 4, 7, 9)
Telecommunications Competition Act 2002	140, 2002	19 Dec 2002	sch 2: 19 Dec 2002 (s 2)	sch 2 (items 9, 15, 19, 21, 69, 110, 111, 113, 115)
Trade Practices Amendment (Liability for Recreational Services) Act 2002	146, 2002	19 Dec 2002	19 Dec 2002 (s 2)	—
Maritime Legislation Amendment Act 2003	7, 2003	19 Mar 2003	sch 2: 19 Mar 2003 (s 2(1) item 4)	—
Industry, Tourism and Resources Legislation Amendment Act 2003	21, 2003	11 Apr 2003	sch 1 (items 25-29): 12 Apr 2003 (s 2(1) item 7)	sch 1 (item 29)
Trade Practices Legislation Amendment Act 2003	134, 2003	17 Dec 2003	sch 1, sch 2 (items 32-44, 53, 56): 1 Mar 2004 (s 2(1) item 2 and gaz 2004, No GN8)	sch 2 (items 44-53, 56)
Postal Services Legislation Amendment Act 2004	69, 2004	22 June 2004	sch 1 (item 25): 22 June 2004 (s 2)	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Corporate Law Economic Reform Program (Audit Reform and Corporate Disclosure) Act 2004	103, 2004	30 June 2004	sch 3 (items 5, 6): 26 July 2004 (s 2(1) item 3 and gaz 2004, No GN28)	—
Trade Practices Amendment (Australian Energy Market) Act 2004	108, 2004	30 June 2004	sch 1: 23 May 2005 (s 2(1) item 2)	—
Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Trade Practices Amendment (Personal Injuries and Death) Act (No. 2) 2004 (C2004A01348)	113, 2004	13 July 2004	13 July 2004 (s 2)	sch 1 (item 11)
Treasury Legislation Amendment (Professional Standards) Act 2004 (C2004A01352)	118, 2004	13 July 2004	sch 1 (items 8A, 9-11): 13 July 2004 (s 2)	—
Australian Communications and Media Authority (Consequential and Transitional Provisions) Act 2005 (C2014C00733)	45, 2005	1 Apr 2005	sch 1 (items 168-171), sch 2, 4: 1 July 2005 (s 2(1) items 2, 3, 10)	sch 4

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
as amended by				
Omnibus Repeal Day (Autumn 2014) Act 2014 (C2014A00109)	109, 2014	16 Oct 2014	sch 2 (items 177-181): 17 Oct 2014 (s 2(1) item 2)	—
Telecommunications Legislation Amendment (Competition and Consumer Issues) Act 2005 (C2005A00119)	119, 2005	23 Sept 2005	sch 4-6, sch 7 (items 1-3, 5-12, 14-19, 21-28), sch 9, 12: 24 Sept 2005 (s 2(1) items 4, 5, 7, 9, 11, 12, 14) sch 7 (items 4, 13, 20): 23 Mar 2006 (s 2(1) items 6, 8, 10) sch 11 (items 8, 9): 1 Jan 2006 (s 2(1) item 13)	sch 4 (item 2)
Trade Practices Amendment (Personal Injuries and Death) Act 2006 (C2006A00011)	11, 2006	23 Mar 2006	sch 1: 20 Apr 2006 (s 2(1) item 2)	sch 1 (item 8)
Offshore Petroleum (Repeals and Consequential Amendments) Act 2006 (C2006A00017)	17, 2006	29 Mar 2006	sch 2 (items 113-116): 1 July 2008 (s 2(1) item 2)	—
Jurisdiction of the Federal Magistrates Court Legislation Amendment Act 2006 (C2006A00023)	23, 2006	6 Apr 2006	sch 1: 4 May 2006 (s 2(1) item 2)	sch 1 (items 2, 5)

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Energy Legislation Amendment Act 2006 (C2006A00060)	60, 2006	22 June 2006	sch 1 (items 2-13), sch 2 (item 14): 22 June 2006 (s 2(1) items 2, 6) sch 2 (items 12, 13, 15, 16): 23 May 2005 (s 2(1) items 5, 7)	—
Trade Practices Amendment (National Access Regime) Act 2006 (C2006A00092)	92, 2006	18 Aug 2006	sch 1: 1 Oct 2006 (s 2(1) item 2)	sch 1 (items 114-136)
Tax Laws Amendment (Repeal of Inoperative Provisions) Act 2006 (C2006A00101)	101, 2006	14 Sept 2006	sch 5 (items 164, 165): 14 Sept 2006 (s 2(1) item 4)	—
Maritime Transport and Offshore Facilities Security Amendment (Security Plans and Other Measures) Act 2006 (C2006A00109)	109, 2006	27 Sept 2006	sch 2 (items 97-103): 27 Sept 2006 (s 2(1) item 5)	—
Trade Practices Legislation Amendment Act (No. 1) 2006 (C2006A00131)	131, 2006	6 Nov 2006	sch 1-8, sch 9 (items 1-15, 20-24): 1 Jan 2007 (s 2(1) items 2, 3) sch 10: 7 Nov 2006 (s 2(1) item 54) sch 11: 6 Nov 2006 (s 2(1) item 5)	sch 1 (items 52, 53), sch 2 (items 13, 14), sch 3 (items 28, 29), sch 4 (item 2), sch 5 (item 4), sch 6 (item 20), sch 7 (items 18, 33, 35), sch 8 (items 28, 29), sch 9 (items 15, 21, 24)

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Australian Energy Market Amendment (Gas Legislation) Act 2007 (C2007A00045)	45, 2007	10 Apr 2007	sch 1 (items 58-81): 1 July 2008 (s 2(1) item 2)	—
Broadcasting Legislation Amendment (Digital Radio) Act 2007 (C2007A00068)	68, 2007	28 May 2007	sch 1 (items 178-182): 29 May 2007 (s 2(1) item 2) sch 2 (item 3): 19 July 2007 (s 2(1) item 3)	—
Corporations (NZ Closer Economic Relations) and Other Legislation Amendment Act 2007 (C2007A00085)	85, 2007	21 June 2007	sch 3 (items 3-9): 19 July 2007 (s 2(1) item 7)	—
Water (Consequential Amendments) Act 2007 (C2007A00138)	138, 2007	3 Sept 2007	sch 1 (items 6-8): 3 Mar 2008 (s 2(1) item 2)	—
Trade Practices Legislation Amendment Act (No. 1) 2007 (C2007A00159)	159, 2007	24 Sept 2007	sch 1, 2, sch 3 (items 5-9): 25 Sept 2007 (s 2)	sch 1 (item 4), sch 2 (item 12), sch 3 (item 9)
Trade Practices Amendment (Access Declarations) Act 2008 (C2008A00007)	7, 2008	20 Mar 2008	20 Mar 2008 (s 2)	—
Australian Energy Market Amendment (Minor Amendments) Act 2008 (C2008A00060)	60, 2008	30 June 2008	sch 4: 1 July 2008 (s 2(1) item 4)	—

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Trade Practices Legislation Amendment Act 2008 (C2008A00116)	116, 2008	21 Nov 2008	sch 1, 2, sch 3 (items 7-15): 22 Nov 2008 (s 2)	sch 3 (items 13, 15)
Offshore Petroleum Amendment (Greenhouse Gas Storage) Act 2008 (C2008A00117)	117, 2008	21 Nov 2008	sch 3 (item 60): 22 Nov 2008 (s 2(1) item 4)	—
Trade Practices Amendment (Clarity in Pricing) Act 2008 (C2008A00126)	126, 2008	25 Nov 2008	sch 1: 25 May 2009 (s 2(1) item 2) sch 2: 26 Nov 2008 (s 2(1) item 3)	sch 1 (item 5)
Water Amendment Act 2008 (C2008A00139)	139, 2008	8 Dec 2008	sch 2 (items 3-5): 15 Dec 2008 (s 2(1) item 3)	—
Australian Energy Market Amendment (AEMO and Other Measures) Act 2009 (C2009A00017)	17, 2009	26 Mar 2009	sch 1 (items 12, 14): 27 Mar 2009 (s 2(1) items 4, 6) sch 1 (item 13): 1 July 2009 (s 2(1) item 5)	—
Fair Work (State Referral and Consequential and Other Amendments) Act 2009 (C2009A00054)	54, 2009	25 June 2009	sch 18 (items 24-31): 1 July 2009 (s 2(1) item 41)	—

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Trade Practices Amendment (Cartel Conduct and Other Measures) Act 2009 (C2009A00059)	59, 2009	26 June 2009	sch 1 (items 3-128), sch 2 (items 1-49, 52, 53): 24 July 2009 (s 2(1) items 2, 3, 5) sch 2 (items 50, 51): 27 June 2009 (s 2(1) item 4)	sch 1 (item 118), sch 2 (items 52, 53)
Statute Stocktake (Regulatory and Other Laws) Act 2009 (C2009A00111)	111, 2009	16 Nov 2009	sch 1 (items 26-50, 107-109): 17 Nov 2009 (s 2)	sch 1 (items 49, 50)
Crimes Legislation Amendment (Serious and Organised Crime) Act (No. 2) 2010 (C2010A00004)	4, 2010	19 Feb 2010	sch 11 (item 23): 20 Feb 2010 (s 2(1) item 13)	—
Statute Law Revision Act 2010 (C2010A00008)	8, 2010	1 Mar 2010	sch 5 (items 125, 126, 137): 1 Mar 2010 (s 2(1) items 37, 38)	—

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Trade Practices Amendment (Australian Consumer Law) Act (No. 1) 2010 (C2010A00044)	44, 2010	14 Apr 2010	sch 1, sch 2 (items 27, 29, 31, 32, 41-43, 46-50, 56-70, 72-74), sch 4 (items 4, 5): 1 July 2010 (s 2(1) items 2, 4, 6, 7, 14) sch 2 (items 1-26), sch 4 (item 3): 15 Apr 2010 (s 2(1) items 3, 13) sch 2 (item 40): never commenced (s 2(1) item 5)	sch 1 (item 2)
Trade Practices Amendment (Infrastructure Access) Act 2010 (C2010A00102)	102, 2010	13 July 2010	sch 1-5: 14 July 2010 (s 2(1) items 2-5)	sch 1 (item 72), sch 3 (item 11), sch 4 (item 5), sch 5 (items 20-25)
Trade Practices Amendment (Australian Consumer Law) Act (No. 2) 2010 (C2010A00103) as amended by	103, 2010	13 July 2010	sch 1, 2, 4, 5, 7: 1 Jan 2011 (s 2(1) items 2, 8)	sch 4 (item 5), sch 7
Competition and Consumer Legislation Amendment Act 2011 (C2010A00184)	184, 2011	6 Dec 2011	sch 3: 1 Jan 2011 (s 2(1) (item 4))	—

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Statute Law Revision Act 2012 (C2012A00136)	136, 2012	22 Sept 2012	sch 2 (items 39, 40): 12 Apr 2012 (s 2(1) item 30) sch 2 (item 43): 1 Jan 2011 (s 2(1) item 33)	—
Telecommunications Legislation Amendment (Competition and Consumer Safeguards) Act 2010 (C2010A00140)	140, 2010	15 Dec 2010	sch 1 (items 32-40, 114-195, 195A, 196-198, 202-213): 1 Jan 2011 (s 2(1) items 2, 5) sch 1 (items 57-59): <u>awaiting</u> <u>commencement</u> <u>(s 2(1) item 3)</u> sch 1 (items 66, 67): 6 Mar 2012 (s 2(1) item 4)	sch 1 (items 40, 198, 202-210, 213)
Financial Framework Legislation Amendment Act 2010 (C2010A00148)	148, 2010	17 Dec 2010	sch 6: 18 Dec 2010 (s 2(1) item 6)	sch 6 (items 2, 3)
Statute Law Revision Act 2011 (C2011A00005)	5, 2011	22 Mar 2011	sch 7 (items 38, 39): 19 Apr 2011 (s 2(1) item 18)	—
Telecommunications Legislation Amendment (National Broadband Network Measures— Access Arrangements) Act 2011 (C2011A00023)	23, 2011	12 Apr 2011	sch 1 (items 25-83): 13 Apr 2011 (s 2(1) item 2) sch 1 (items 89-114): 12 Apr 2012 (s 2(1) item 4)	sch 1 (item 83)

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
as amended by				
Statute Law Revision Act 2012 (C2012A00136)	136, 2012	22 Sept 2012	sch 2 (items 39, 40): 12 Apr 2012 (s 2(1) item 30)	—
Acts Interpretation Amendment Act 2011 (C2011A00046)	46, 2011	27 June 2011	sch 2 (items 409-441), sch 3 (items 10, 11): 27 Dec 2011 (s 2(1) items 3, 12)	sch 3 (items 10, 11)
Carbon Credits (Consequential Amendments) Act 2011 (C2011A00102)	102, 2011	15 Sept 2011	sch 1 (item 8): 8 Dec 2011 (s 2(1) item 2)	—
Australian Energy Market Amendment (National Energy Retail Law) Act 2011 (C2011A00119)	119, 2011	14 Oct 2011	sch 2 (items 2-25): 1 July 2012 (s 2(1) items 3-5)	sch 2 (item 13)
Clean Energy (Consequential Amendments) Act 2011 (C2011A00132)	132, 2011	18 Nov 2011	sch 1 (items 100-102): 2 Apr 2012 (s 2(1) item 2) sch 1 (items 258B-258D): 1 July 2012 (s 2(1) item 3)	—
Competition and Consumer Legislation Amendment Act 2011 (C2011A00184)	184, 2011	6 Dec 2011	sch 1: 6 Feb 2012 (s 2(1) item 2) sch 2 (items 2-4): 1 Jan 2012 (s 2(1) item 3)	—

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Competition and Consumer Amendment Act (No. 1) 2011 (C2011A00185)	185, 2011	6 Dec 2011	sch 1: 6 June 2012 (s 2(1) item 2)	—
Telecommunications Legislation Amendment (Universal Service Reform) Act 2012 (C2012A00044)	44, 2012	16 Apr 2012	sch 1 (item 4): 1 July 2012 (s 2(1) item 2)	—
Consumer Credit Legislation Amendment (Enhancements) Act 2012 (C2012A00130)	130, 2012	17 Sept 2012	sch 7: 17 Sept 2013 (s 2(1) item 5)	—
Statute Law Revision Act 2012 (C2012A00136)	136, 2012	22 Sept 2012	sch 1 (items 31-36): 22 Sept 2012 (s 2(1) item 2)	—
Australian Charities and Not-for-profits Commission (Consequential and Transitional) Act 2012 (C2012A00169)	169, 2012	3 Dec 2012	sch 2 (items 160-168): 3 Dec 2012 (s 2(1) item 7) sch 4 (item 14): never commenced (s 2(1) item 14)	sch 2 (item 168)
Federal Circuit Court of Australia (Consequential Amendments) Act 2013 (C2013A00013)	13, 2013	14 Mar 2013	sch 1 (items 87-92), sch 2 (item 1): 12 Apr 2013 (s 2(1) items 2, 3)	—
Statute Law Revision Act 2013 (C2013A00103)	103, 2013	29 June 2013	sch 1 (item 32), sch 3 (items 69-74, 343): 29 June 2013 (s 2(1) items 2, 16)	sch 3 (item 343)

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Competition and Consumer Amendment Act 2013 (C2013A00104)	104, 2013	29 June 2013	30 June 2013 (s 2)	—
Public Governance, Performance and Accountability (Consequential and Transitional Provisions) Act 2014 (C2014A00062)	62, 2014	30 June 2014	sch 5 (items 111, 112), sch 6 (item 35), sch 14: 1 July 2014 (s 2(1) items 5, 6, 14)	sch 14
as amended by Public Governance and Resources Legislation Amendment Act (No. 1) 2015 (C2014A00036)	36, 2015	13 Apr 2015	sch 2 (items 7-9), sch 7: 14 Apr 2015 (s 2)	sch 7
as amended by Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015 (C2015A00126)	126, 2015	10 Sept 2015	sch 1 (item 486): 5 Mar 2016 (s 2(1) item 2)	—
Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015 (C2011A00126)	126, 2015	10 Sept 2015	sch 1 (item 495): 5 Mar 2016 (s 2(1) item 2)	—

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Clean Energy Legislation (Carbon Tax Repeal) Act 2014 (C2014A00083)	83, 2014	17 July 2014	sch 2: 18 July 2014 (s 2(1) item 6)	—
Competition and Consumer Amendment (Industry Code Penalties) Act 2014 (C2014A00107)	107, 2014	24 Sept 2014	1 Jan 2015 (s 2)	—
Omnibus Repeal Day (Autumn 2014) Act 2014 (C2014A00109)	109, 2014	16 Oct 2014	sch 2 (items 2-4, 112, 113, 187): 17 Oct 2014 (s 2(1) item 2)	sch 2 (item 4)
Acts and Instruments (Framework Reform) Act 2015 (C2015A00010)	10, 2015	5 Mar 2015	sch 3 (items 68-75, 348, 349): 5 Mar 2016 (s 2(1) item 2)	sch 3 (items 348, 349)
Telecommunications Legislation Amendment (Deregulation) Act 2015 (C2015A00038)	38, 2015	13 Apr 2015	sch 1 (items 7-10, 138-163): 1 July 2015 (s 2(1) item 3)	sch 1 (items 138-163)
Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015 (C2015A00126)	126, 2015	10 Sept 2015	sch 1 (items 128-148): 5 Mar 2016 (s 2(1) item 2)	—
Treasury Legislation Amendment (Small Business and Unfair Contract Terms) Act 2015 (C2015A00147)	147, 2015	12 Nov 2015	sch 1 (items 19-47): 12 Nov 2016 (s 2(1) item 2)	—

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Statute Law Revision Act (No. 1) 2016 (C2016A00004)	4, 2016	11 Feb 2016	sch 4 (items 1, 66-68), sch 5 (item 4): 10 Mar 2016 (s 2(1) item 6)	—
Competition and Consumer Amendment (Payment Surcharges) Act 2016 (C2016A00009)	9, 2016	25 Feb 2016	25 Feb 2016 (s 2(1) item 1)	—
Courts Administration Legislation Amendment Act 2016 (C2016A00024)	24, 2016	18 Mar 2016	sch 5 (item 8): 1 July 2016 (s 2(1) item 7) sch 6: 18 Mar 2016 (s 2(1) item 9)	sch 6
Territories Legislation Amendment Act 2016 (C2016A00033)	33, 2016	23 Mar 2016	sch 5 (items 25-28): 1 July 2016 (s 2(1) item 7)	—
Statute Update Act 2016 (C2016A00061)	61, 2016	23 Sept 2016	sch 1 (items 152, 153), sch 3 (items 13, 14): 21 Oct 2016 (s 2(1) item 1)	—
Competition and Consumer Amendment (Country of Origin) Act 2017 (C2017A00005)	5, 2017	22 Feb 2017	23 Feb 2017 (s 2(1) item 1)	—
Competition and Consumer Amendment (Misuse of Market Power) Act 2017 (C2017A00087)	87, 2017	23 Aug 2017	6 Nov 2017 (s 2(1) item 1)	—

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Petroleum and Other Fuels Reporting (Consequential Amendments and Transitional Provisions) Act 2017 (C2017A00091)	91, 2017	23 Aug 2017	sch 1 (items 1, 3-7): 24 Aug 2017 (s 2(1) item 1)	sch 1 (items 3-7)
Public Governance and Resources Legislation Amendment Act (No. 1) 2017 (C2017A00092)	92, 2017	23 Aug 2017	sch 1 (items 2, 3), sch 2 (items 67-82), sch 4: 23 Aug 2017 (s 2(1) item 1)	sch 4
Competition and Consumer Amendment (Competition Policy Review) Act 2017 (C2017A00114)	114, 2017	27 Oct 2017	sch 1-5, 7, 8, sch 9 (items 1-163), sch 10, 11, sch 12 (items 1-43), sch 13: 6 Nov 2017 (s 2(1) items 2-13, 15) sch 12 (items 44, 45): never commenced (s 2(1) item 14) sch 14: 28 Oct 2017 (s 2(1) item 16)	sch 2 (items 38(7), 39(7), 40), sch 10 (item 2), sch 11 (item 5), sch 12 (items 19, 37), sch 14 (items 2, 8, 13, 24, 26)
Competition and Consumer Amendment (Abolition of Limited Merits Review) Act 2017 (C2017A00116)	116, 2017	30 Oct 2017	31 Oct 2017 (s 2(1) item 1)	sch 1 (items 5, 6)
Corporations Amendment (Asia Region Funds Passport) Act 2018 (C2018A00061)	61, 2018	29 June 2018	sch 2A (items 1, 2): 18 Sept 2018 (s 2(1) item 2)	—

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Treasury Laws Amendment (2018 Measures No. 3) Act 2018 (C2018A00093)	93, 2018	31 Aug 2018	sch 1-3: 1 Sept 2018 (s 2(1) items 2, 3)	sch 3 (item 7)
Treasury Laws Amendment (Australian Consumer Law Review) Act 2018 (C2018A00132)	132, 2018	25 Oct 2018	sch 1, sch 2 (items 3-6), sch 3-6, sch 7 (items 2, 3), sch 8, 9, sch 12 (item 2): 26 Oct 2018 (s 2(1) item 1)	sch 1 (item 4), sch 2 (item 6), sch 6 (item 4), sch 7 (item 3)
Treasury Laws Amendment (Gift Cards) Act 2018 (C2018A00133)	133, 2018	25 Oct 2018	26 Oct 2018 (s 2(1) item 1)	—
Treasury Laws Amendment (2018 Measures No. 4) Act 2019 (C2019A00008)	8, 2019	1 Mar 2019	sch 8 (items 21, 22): 1 Apr 2019 (s 2(1) item 11)	sch 8 (item 22)
Treasury Laws Amendment (2018 Measures No. 5) Act 2019 (C2019A00015)	15, 2019	12 Mar 2019	sch 4: 12 Sept 2019 (s 2(1) item 5) sch 5 (items 7, 8): 13 Mar 2019 (s 2(1) item 6)	sch 5 (item 8)
Treasury Laws Amendment (2019 Measures No. 1) Act 2019 (C2019A00049)	49, 2019	5 Apr 2019	sch 4 (items 6-12, 65): 6 Apr 2019 (s 2(1) item 11)	sch 4 (item 65)
Treasury Laws Amendment (Consumer Data Right) Act 2019 (C2019A00063)	63, 2019	12 Aug 2019	sch 1 (items 1-3, 11-77): 13 Aug 2019 (s 2(1) item 1)	sch 1 (items 2, 3)

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Treasury Laws Amendment (2019 Measures No. 2) Act 2019 (C2019A00094)	94, 2019	28 Oct 2019	sch 3: 3 Feb 2020 (s 2(1) item 4) sch 4: 29 Oct 2019 (s 2(1) item 5)	sch 3 (items 34, 35)
Treasury Laws Amendment (Prohibiting Energy Market Misconduct) Act 2019 (C2019A00115)	115, 2019	10 Dec 2019	sch 1 (items 1-14): 10 June 2020 (s 2(1) item 2) sch 2: 10 Dec 2019 (s 2(1) item 3)	sch 1 (item 14)
Communications Legislation Amendment (Deregulation and Other Measures) Act 2019 (C2019A00120)	120, 2019	12 Dec 2019	sch 3 (items 1-27), sch 5 (item 2): 12 Dec 2019 (s 2(1) item 1)	—
Telecommunications Legislation Amendment (Competition and Consumer) Act 2020 (C2020A00047)	47, 2020	25 May 2020	sch 1 (items 1-23), sch 4 (items 1A-1D): 26 May 2020 (s 2(1) items 2, 7) sch 2 (items 11-14): 25 Aug 2020 (s 2(1) item 3) sch 3 (items 1-4): 1 July 2020 (s 2(1) item 5)	—
Treasury Laws Amendment (2019 Measures No. 3) Act 2020 (C2020A00064)	64, 2020	22 June 2020	sch 3 (items 10-18): 23 June 2020 (s 2(1) item 4)	—

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Competition and Consumer Amendment (Australian Consumer Law—Country of Origin Representations) Act 2020 (C2020A00094)	94, 2020	10 Nov 2020	sch 1: 1 Oct 2020 (s 2(1) item 2)	—
National Emergency Declaration (Consequential Amendments) Act 2020 (C2020A00129)	129, 2020	15 Dec 2020	sch 1 (items 15-18): 16 Dec 2020 (s 2(1) item 2)	—
Financial Sector Reform (Hayne Royal Commission Response) Act 2020 (C2020A00135)	135, 2020	17 Dec 2020	sch 5 (items 3-6): 5 Oct 2021 (s 2(1) item 7)	—
Treasury Laws Amendment (2020 Measures No. 6) Act 2020 (C2020A00141)	141, 2020	17 Dec 2020	sch 2 (items 1-29), sch 4 (items 30-39): 18 Dec 2020 (s 2(1) items 3, 6) sch 2 (items 30-45): 28 Feb 2021 (s 2(1) item 4)	sch 2 (item 45)
Radiocommunications Legislation Amendment (Reform and Modernisation) Act 2020 (C2020A00151)	151, 2020	17 Dec 2020	sch 9 (items 98-100, 107, 108): 17 June 2021 (s 2(1) item 12)	sch 9 (items 107, 108)
Territories Legislation Amendment Act 2020 (C2020A00154)	154, 2020	17 Dec 2020	sch 2 (items 67-79): 18 Dec 2020 (s 2(1) item 6)	—

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Federal Circuit and Family Court of Australia (Consequential Amendments and Transitional Provisions) Act 2021 (C2021A00013)	13, 2021	1 Mar 2021	sch 2 (items 203-230): 1 Sept 2021 (s 2(1) item 5)	—
Treasury Laws Amendment (News Media and Digital Platforms Mandatory Bargaining Code) Act 2021 (C2021A00021)	21, 2021	2 Mar 2021	3 Mar 2021 (s 2(1) items 1, 2)	—
Competition and Consumer Amendment (Motor Vehicle Service and Repair Information Sharing Scheme) Act 2021 (C2021A00054)	54, 2021	24 June 2021	sch 1 (items 1-25): 1 July 2022 (s 2(1) item 2)	—
Fuel Security (Consequential and Transitional Provisions) Act 2021 (C2021A00066)	66, 2021	29 June 2021	sch 1 (items 1, 19): 30 June 2021 (s 2(1) item 2)	sch 1 (item 19)
Treasury Laws Amendment (2021 Measures No. 6) Act 2021 (C2021A00111)	111, 2021	13 Sept 2021	sch 2, 4: 14 Sept 2021 (s 2(1) items 3, 5)	sch 2 (item 2), sch 4 (items 9-11)
Telstra Corporation and Other Legislation Amendment Act 2021 (C2021A00140)	140, 2021	13 Dec 2021	sch 2 (items 1-19): 1 Jan 2023 (s 2(1) item 3)	—

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
as amended by				
Telecommunications Legislation Amendment (Information Disclosure, National Interest and Other Measures) Act 2023 (C2023A00017)	17, 2023	11 Apr 2023	sch 1 (item 16): 13 Dec 2021 (s 2(1) item 4)	—
Treasury Laws Amendment (More Competition, Better Prices) Act 2022 (C2022A00054)	54, 2022	9 Nov 2022	sch 1: 10 Nov 2022 (s 2(1) item 2) sch 2 (items 1, 5-26, 41, 42, 45-48, 53-55, 59-68, 76-78, 80): 9 Nov 2023 (s 2(1) item 3)	sch 1 (item 106), sch 2 (items 76, 80)
as amended by				
Treasury Laws Amendment (Delivering an Efficient and Trusted Tax System) Act 2026 (C2026A00058)	58, 2026	30 June 2026	sch 3 (item 1): 1 July 2026 (s 2(1) item 3)	—
Treasury Laws Amendment (Energy Price Relief Plan) Act 2022 (C2022A00096)	96, 2022	16 Dec 2022	sch 1: 17 Dec 2022 (s 2(1) item 1)	sch 1 (item 3)

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Treasury Laws Amendment (Modernising Business Communications and Other Measures) Act 2023 (C2023A00069)	69, 2023	14 Sept 2023	sch 1 (items 69-72), sch 4 (items 13-15, 22, 23): 15 Sept 2023 (s 2(1) items 2, 5) sch 1 (items 82-86): 1 Jan 2024 (s 2(1) item 3)	sch 1 (item 72), sch 4 (item 15)
Statute Law Amendment (Prescribed Forms and Other Updates) Act 2023 (C2023A00074)	74, 2023	20 Sept 2023	sch 1 (items 17-19): 20 Mar 2024 (s 2(1) item 2)	sch 1 (item 19)
Treasury Laws Amendment (2023 Measures No. 3) Act 2023 (C2023A00075)	75, 2023	20 Sept 2023	sch 3 (items 12-22): 21 Sept 2023 (s 2(1) item 9) sch 3 (items 23-25): 20 Oct 2023 (s 2(1) item 10)	—
Treasury Laws Amendment (2023 Law Improvement Package No. 1) Act 2023 (C2023A00076)	76, 2023	20 Sept 2023	sch 3 (item 3): 9 Nov 2023 (s 2(1) item 3) sch 6 (items 11-14, 20-22): 21 Sept 2023 (s 2(1) item 22)	—
Water Amendment (Restoring Our Rivers) Act 2023 (C2023A00111)	111, 2023	7 Dec 2023	sch 6 (items 1-5): 1 July 2025 (s 2(1) item 12) sch 6 (items 11-16): 1 July 2026 (s 2(1) item 13)	—

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Public Health (Tobacco and Other Products) (Consequential Amendments and Transitional Provisions) Act 2023 (C2023A00119)	119, 2023	14 Dec 2023	sch 1 (items 12-15): 1 Apr 2024 (s 2(1) item 2)	—
Competition and Consumer Amendment (Fair Go for Consumers and Small Business) Act 2024 (C2024A00016)	16, 2024	8 Apr 2024	1 May 2024 (s 2(1) item 1)	—
Digital ID (Transitional and Consequential Provisions) Act 2024 (C2024A00026)	26, 2024	30 May 2024	sch 2 (item 5): 30 Nov 2024 (s 2(1) item 1)	—
Telecommunications Legislation Amendment (Enhancing Consumer Safeguards and Other Measures) Act 2024 (C2024A00036)	36, 2024	31 May 2024	sch 1 (items 1-4): 1 June 2024 (s 2(1) item 1)	—
Administrative Review Tribunal (Consequential and Transitional Provisions No. 1) Act 2024 (C2024A00038)	38, 2024	31 May 2024	sch 1 (items 14, 15, 57): 14 Oct 2024 (s 2(1) item 2)	—
Treasury Laws Amendment (Consumer Data Right) Act 2024 (C2024A00075)	75, 2024	26 Aug 2024	sch 1: 27 Aug 2024 (s 2(1) items 2, 3)	sch 1 (items 87, 135, 163, 183, 185)

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Privacy and Other Legislation Amendment Act 2024 (C2024A00128)	128, 2024	10 Dec 2024	sch 1 (items 74-77): 11 Dec 2024 (s 2(1) item 6)	—
Treasury Laws Amendment (Fairer for Families and Farmers and Other Measures) Act 2024 (C2024A00136)	136, 2024	10 Dec 2024	sch 2 (items 1-28): 11 Dec 2024 (s 2(1) items 5, 6) sch 4 (items 1-7): 1 Apr 2025 (s 2(1) item 9)	sch 4 (item 6)
Treasury Laws Amendment (Mergers and Acquisitions Reform) Act 2024 (C2024A00137)	137, 2024	10 Dec 2024	sch 1 (item 1), sch 2 (items 5-13): 11 Dec 2024 (s 2(1) items 2, 6) sch 1 (items 2-79): 1 July 2025 (s 2(1) item 3) sch 1 (items 97-99), sch 2 (items 1-4): 1 Jan 2026 (s 2(1) items 4, 5)	sch 2 (items 4, 9, 12)
Administrative Review Tribunal (Miscellaneous Measures) Act 2025 (C2025A00014)	14, 2025	20 Feb 2025	sch 3 (items 3-6): 21 Feb 2025 (s 2(1) item 4)	—
Scams Prevention Framework Act 2025 (C2025A00015)	15, 2025	20 Feb 2025	sch 1 (items 1, 5-12): 21 Feb 2025 (s 2(1) item 1)	—
Treasury Laws Amendment (Payments System Modernisation) Act 2025 (C2025A00046)	46, 2025	19 Sept 2025	sch 1 (items 123-126): 19 Dec 2025 (s 2(1) item 1)	—

Endnotes

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Treasury Laws Amendment (Payday Superannuation) Act 2025 (C2025A00057)	57, 2025	6 Nov 2025	sch 1 (items 66, 181, 183): 1 July 2026 (s 2(1) item 1)	sch 1 (items 181, 183)
Competition and Consumer Amendment (Australian Energy Regulator Separation) Act 2025 (C2025A00059)	59, 2025	6 Nov 2025	sch 1 (items 1-36), sch 2 (items 1-6): 1 July 2026 (s 2(1) item 1)	sch 2 (items 1-6)
Treasury Laws Amendment (Strengthening Financial Systems and Other Measures) Act 2025 (C2025A00072)	72, 2025	4 Dec 2025	sch 4 (items 1-10), sch 5 (items 1-9), sch 6 (items 1, 2): 5 Dec 2025 (s 2(1) items 4, 7, 9)	—
Treasury Laws Amendment (Doubling Penalties for ACCC Enforcement) Act 2026 (C2026A00019)	19, 2026	27 Mar 2026	28 Mar 2026 (s 2(1) item 1)	sch 1 (item 7)
Competition and Consumer Amendment (Responding to Exceptional Circumstances) Act 2026 (C2026A00048)	48, 2026	26 May 2026	sch 1 (items 1-7), sch 2: 27 May 2026 (s 2(1) item 2)	sch 2 (item 7)
Competition and Consumer Amendment (Unfair Trading Practices) Act 2026 (C2026A00064)	64, 2026	6 July 2026	<u>1 July 2027 (s 2(1) item 1)</u>	<u>sch 1 (item 21)</u>

Endnote 3—Legislation history

Act (Register ID)	Number and year	Assent	Commencement	Application, saving and transitional provisions
Cash Distribution Framework (Consequential Amendments and Transitional Provisions) Act 2026 (C2026A00069)	69, 2026	26 Aug 2026	sch 1 (items 1-9), sch 2: 27 Aug 2026 (s 2(1) item 1)	Sch 2
News Journalism Payments (Consequential Amendments) Act 2026 (C2026A00076)	76, 2026	26 Aug 2026	27 Aug 2026 (s 2(1) item 2)	—

Name	Registration	Commencement	Application, saving and transitional provisions
Workplace Relations Amendment (Work Choices) (Consequential Amendments) Regulations 2006 (No. 1) (SLI No. 50, 2006)	17 Mar 2006 (F2006L00820)	sch 15: 27 Mar 2006 (r 2(b))	—

Endnotes

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Title.....	am No 103, 2010
Chapter 1	
Chapter 1 heading.....	ad No 137, 2024 ed C159
Part I	
s 1.....	am No 103, 2010
s 2.....	rep No 81, 1977 ad No 88, 1995
s 2A.....	ad No 81, 1977 am No 34, 1989; No 88, 1995; No 134, 2003; No 108, 2004
s 2B.....	ad No 88, 1995 am No 58, 1997; No 61, 1999; No 111, 2009; No 83, 2014; No 115, 2019; No 21, 2021; No 137, 2024
s 2BA.....	ad No 131, 2006 am No 137, 2024
s 2C.....	ad No 88, 1995 am No 131, 2006
s 2D.....	ad No 88, 1995 rep No 131, 2006
s 4.....	am No 88, 1976; No 157, 1976; No 81, 1977; No 206, 1978; No 17, 1986; No 8, 1988; No 70, 1990; No 104, 1992; No 222, 1992; No 88, 1995; No 60, 1996; No 48, 1998; No 55, 2001; No 108, 2004; No 113, 2004; No 131, 2006; No 45, 2007; No 159, 2007; No 60, 2008; No 17, 2009; No 59, 2009; No 44, 2010; No 103, 2010; No 140, 2010; No 46, 2011; No 119, 2011; No 169, 2012; No 13, 2013; No 9, 2016; No 114, 2017; No 63, 2019; No 94, 2019; No 154, 2020; No 13, 2021; No 54, 2021; No 140, 2021; No 54, 2022; No 96, 2022; No 69, 2023; No 75, 2023; No 16, 2024; No 75, 2024; No 137, 2024; No 15, 2025; No 69, 2026
s 4A.....	ad No 81, 1977

Endnote 4—Amendment history

Provision affected	How affected
	am No 88, 1995; No 131, 2006; No 137, 2024
s 4B.....	ad No 81, 1977
	am No 151, 1977; No 17, 1986; No 88, 1995
	rs No 141, 2020
	am No 69, 2023
s 4C.....	ad No 81, 1977
	am No 88, 1995
s 4D.....	ad No 81, 1977
	am No 206, 1978; No 17, 1986
	rep No 114, 2017
s 4E.....	ad No 81, 1977
	am No 70, 1990
s 4F.....	ad No 81, 1977
	am No 60, 1996; No 114, 2017
s 4G.....	ad No 81, 1977
s 4H.....	ad No 81, 1977
s 4J.....	ad No 81, 1977
s 4K.....	ad No 81, 1977
s 4KA.....	ad No 113, 2004
	rs No 103, 2010
s 4KB.....	ad No 44, 2010
	rep No 103, 2010
s 4KC.....	ad No 44, 2010
	rep No 103, 2010
s 4L.....	ad No 81, 1977
	am No 17, 1986; No 44, 2010; No 103, 2010; No 96, 2022
s 4M.....	ad No 81, 1977
	am No 54, 2021
s 4N.....	ad No 101, 1998
	am No 17, 2006; No 92, 2006; No 117, 2008; No 154, 2020

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 5.....	am No 17, 1986; No 70, 1990; No 222, 1992; No 106, 1998; No 61, 1999; No 31, 2001; No 59, 2009; No 111, 2009; No 44, 2010; No 103, 2010; No 114, 2017; No 115, 2019; No 21, 2021; No 54, 2021; No 137, 2024
s 6.....	am No 88, 1976; No 81, 1977; No 206, 1978; No 207, 1978; No 73, 1980; No 17, 1986; No 70, 1990; No 106, 1992; No 222, 1992; No 98, 1993; No 88, 1995; No 60, 1996; No 58, 1997; No 106, 1998; No 61, 1999; No 69, 2000; No 31, 2001 (as am by No 63, 2002); No 117, 2001; No 134, 2003; No 131, 2006; No 126, 2008; No 59, 2009; No 111, 2009; No 44, 2010; No 103, 2010 (as am by No 184, 2011); No 185, 2011; No 103, 2013; No 83, 2014; No 9, 2016; No 114, 2017; No 137, 2024; <u>No 64, 2026</u>
s 6AA.....	ad No 146, 2001 am No 59, 2009; No 103, 2010
Part II	
Heading to Part II	rs No 88, 1995
s 6A.....	ad No 81, 1977 am No 88, 1995; No 148, 2010; No 62, 2014; No 59, 2025
s 7.....	rs No 81, 1977 am No 88, 1995; No 106, 1998; No 108, 2004 am No 92, 2017; No 94, 2019
s 8.....	am No 81, 1977; No 88, 1995
s 8A.....	ad No 81, 1977 am No 88, 1995; No 131, 2006; No 92, 2017; No 114, 2017; No 63, 2019; No 64, 2020; No 96, 2022; No 76, 2023
s 8AB.....	ad No 108, 2004 am No 92, 2017; No 94, 2019 rep No 59, 2025
s 9.....	am No 81, 1977; No 88, 1995
s 10.....	am No 81, 1977; No 88, 1995; No 159, 2007; No 116, 2008
s 11.....	am No 88, 1976; No 17, 1986; No 88, 1995; No 159, 2007; No 46, 2011
s 12.....	am No 88, 1976; No 81, 1977

Endnote 4—Amendment history

Provision affected	How affected
	rs No 122, 1991
	am No 146, 1999
s 13.....	am No 88, 1976
	rs No 81, 1977
	am No 206, 1978; No 88, 1995; No 92, 2017
s 14.....	rs No 81, 1977
	am No 88, 1995; No 92, 2017
s 15.....	am No 81, 1977; No 88, 1995
s 16.....	am No 88, 1995
s 17.....	am No 88, 1976; No 81, 1977
	rs No 17, 1986
	am No 88, 1995
	rs No 92, 2017
s 17A.....	ad No 92, 2017
s 18.....	am No 17, 1986; No 88, 1995; No 159, 2007
s 19.....	am No 88, 1995; No 159, 2007; No 63, 2019; No 64, 2020; No 96, 2022; No 26, 2024; No 137, 2024; No 69, 2026
s 20.....	rep No 81, 1977
	ad No 88, 1995
	rep No 152, 1997
s 21.....	rep No 81, 1977
s 22.....	rep No 81, 1977
s 23.....	rep No 81, 1977
s 24.....	am No 88, 1976
	rep No 81, 1977
s 25.....	am No 58, 1997; No 52, 1999; No 134, 2003; No 69, 2004; No 119, 2005; No 131, 2006; No 138, 2007; No 23, 2011; No 114, 2017; No 63, 2019; No 96, 2022; No 76, 2023
s 26.....	am No 81, 1977
	rep No 65, 1985
	ad No 48, 1998

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 31, 2001; No 55, 2001; No 103, 2010; No 63, 2019; No 75, 2023
s 27.....	am No 63, 1984; No 88, 1995; No 146, 1999
s 27A.....	ad No 88, 1995
s 28.....	am No 88, 1976; No 81, 1977; No 88, 1995; No 69, 2023
s 28A.....	ad No 59, 2025
s 29.....	am No 88, 1976; No 81, 1977; No 17, 1986; No 88, 1995; No 58, 1997; No 123, 2000; No 134, 2003; No 103, 2010; No 115, 2019; No 21, 2021; No 54, 2021; No 96, 2022; No 137, 2024
Part IIA	
Part IIA	ad No 88, 1995
s 29AA.....	ad No 60, 2006
	rep No 45, 2007
s 29A.....	ad No 88, 1995
	am No 92, 2017
s 29B.....	ad No 88, 1995
	am No 101, 1998; No 60, 2006; No 45, 2007
s 29BA	ad No 60, 2006
	am No 45, 2007
s 29BB	ad No 60, 2006
	am No 45, 2007
s 29BC	ad No 60, 2006
	am No 45, 2007
s 29C.....	ad No 88, 1995
s 29D.....	ad No 88, 1995
s 29E.....	ad No 88, 1995
	am No 46, 2011
s 29F.....	ad No 88, 1995
s 29G.....	ad No 88, 1995
	am No 146, 1999
s 29H.....	ad No 88, 1995

Endnote 4—Amendment history

Provision affected	How affected
	am No 92, 2017
s 29I	ad No 88, 1995
s 29J	ad No 88, 1995
	am No 134, 2003
s 29K	ad No 88, 1995
	rep No 92, 2017
s 29L	ad No 88, 1995
s 29LA	ad No 102, 2010
s 29M	ad No 88, 1995
	am No 146, 1999
s 29N	ad No 88, 1995
s 29O	ad No 88, 1995
	am No 92, 2006; No 92, 2017; No 114, 2017
Part III	
Heading to Part III	rs No 88, 1995
s 29P	ad No 131, 2006
	rep No 114, 2017
s 30	am No 88, 1995
s 31	am No 81, 1977; No 88, 1995
s 31A	ad No 111, 1977
	am No 88, 1995
s 32	am No 88, 1995
s 33	rs No 88, 1976
	am No 81, 1977
	rs No 111, 1977
	am No 73, 1984; No 88, 1995; No 43, 1996
s 34	am No 80, 1982; No 106, 1998; No 46, 2011
s 35	am No 81, 1977; No 61, 1981; No 88, 1995
s 36	am No 88, 1995
s 37	rs No 137, 2024
s 39	am No 131, 2006

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 40.....	rs No 17, 1986 am No 123, 2000
s 43.....	am No 88, 1995
s 43A.....	ad No 88, 1995
s 43B.....	ad No 88, 1995
s 44.....	am No 81, 1977; No 88, 1995; No 146, 1999
s 44A.....	ad No 206, 1978 am No 88, 1995; No 146, 1999; No 46, 2011
Part IIIAA	
Part IIIAA.....	ad No 108, 2004
Division 1	
s 44AB.....	ad No 108, 2004 am No 60, 2006; No 45, 2007; No 94, 2019; No 59, 2025
s 44AC.....	ad No 108, 2004
s 44AD.....	ad No 108, 2004
Division 2	
s 44AE.....	ad No 108, 2004 am No 62, 2014; No 59, 2025
s 44AF.....	ad No 108, 2004
s 44AG.....	ad No 108, 2004 am No 94, 2019
Division 3	
s 44AH.....	ad No 108, 2004 am No 45, 2007; No 115, 2019
s 44AI.....	ad No 108, 2004 am No 119, 2011; No 116, 2017; No 59, 2025
s 44AIA.....	ad No 116, 2017 am No 59, 2025
s 44AJ.....	ad No 108, 2004 am No 119, 2011; No 59, 2025
s 44AK.....	ad No 108, 2004

Endnote 4—Amendment history

Provision affected	How affected
	am No 119, 2011; No 59, 2025
s 44AL	ad No 108, 2004
	am No 119, 2011
Division 4	
Subdivision A	
s 44AM	ad No 108, 2004
	am No 94, 2019; No 59, 2025
s 44AN	ad No 108, 2004
	rep No 94, 2019
s 44AO	ad No 108, 2004
	am No 46, 2011
	rs No 94, 2019
s 44AP	ad No 108, 2004
	am No 94, 2019; No 59, 2025
s 44AQ	ad No 108, 2004
	am No 46, 2011
	rs No 94, 2019
s 44AR	ad No 108, 2004
	am No 94, 2019
s 44ARA	ad No 94, 2019
s 44ARB	ad No 94, 2019
s 44AS	ad No 108, 2004
	am No 46, 2011
	rs No 94, 2019
s 44AT	ad No 108, 2004
	am No 94, 2019
s 44AU	ad No 108, 2004
	am No 94, 2019
s 44AV	ad No 108, 2004
s 44AW	ad No 108, 2004
s 44AX	ad No 108, 2004

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 44AY	ad No 108, 2004 am No 92, 2017; No 59, 2025
s 44AZ	ad No 108, 2004 am No 94, 2019
s 44AAB	ad No 108, 2004
Subdivision B	
Subdivision B	rs No 59, 2025
s 44AAC	ad No 108, 2004 rs No 59, 2025
s 44AACA	ad No 59, 2025
s 44AACB.....	ad No 59, 2025
Subdivision C	
s 44AAD	ad No 108, 2004 am No 94, 2019
s 44AAE	ad No 108, 2004 am No 94, 2019
s 44AAEA.....	ad No 45, 2007 am No 59, 2025
Subdivision CA	
Subdivision CA.....	ad No 94, 2019
s 44AAEB.....	ad No 94, 2019
s 44AAEC.....	ad No 94, 2019 am No 59, 2025
Subdivision D	
s 44AAF.....	ad No 108, 2004 am No 17, 2009; No 132, 2011; No 93, 2018; No 115, 2019; No 59, 2025
s 44AAFA.....	ad No 115, 2019 am No 59, 2025
s 44AAFB.....	ad No 115, 2019
s 44AAFC.....	ad No 115, 2019

Endnote 4—Amendment history

Provision affected	How affected
s 44AAG	ad No 108, 2004 am No 59, 2025
s 44AAGA	ad No 60, 2006
s 44AAH	ad No 108, 2004 am No 46, 2011; No 59, 2025
s 44AAI	ad No 108, 2004 am No 59, 2025
s 44AAJ	ad No 108, 2004 rep No 8, 2019
s 44AAK	ad No 108, 2004
Part IIIAB	ad No 62, 2014 rep No 59, 2025
s 44AAL	ad No 62, 2014 rep No 59, 2025
Chapter 2	
Chapter 2 heading	ad No 137, 2024
Part IIIA	
Part IIIA	ad No 88, 1995
Division 1	
s 44AA	ad No 92, 2006
s 44B	ad No 88, 1995 am No 28, 1997; No 55, 2001; No 134, 2003; No 92, 2006; No 45, 2007; No 60, 2008; No 17, 2009; No 102, 2010; No 114, 2017
s 44C	ad No 88, 1995
s 44CA	ad No 114, 2017
s 44D	ad No 88, 1995 am No 102, 2010; No 114, 2017
s 44DA	ad No 101, 1998 am No 102, 2010
s 44E	ad No 88, 1995

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 2	
Subdivision A	
s 44F	ad No 88, 1995 am No 92, 2006; No 102, 2010; No 114, 2017
s 44FA.....	ad No 102, 2010 am No 114, 2017
s 44G.....	ad No 88, 1995 am No 101, 1998; No 60, 2006; No 92, 2006; No 45, 2007; No 102, 2010 rs No 114, 2017
s 44GA.....	ad No 92, 2006 rs No 102, 2010 am No 69, 2023
s 44GB.....	ad No 92, 2006 am No 102, 2010
s 44GC.....	ad No 92, 2006
Subdivision B	
s 44H.....	ad No 88, 1995 am No 101, 1998; No 60, 2006; No 92, 2006; No 45, 2007; No 102, 2010; No 114, 2017
s 44HA.....	ad No 92, 2006
s 44I.....	ad No 88, 1995 am No 102, 2010
s 44J.....	ad No 88, 1995 am No 92, 2006; No 102, 2010; No 114, 2017
s 44JA.....	ad No 92, 2006 rep No 102, 2010
s 44K.....	ad No 88, 1995 am No 92, 2006; No 102, 2010
s 44KA.....	ad No 102, 2010
s 44KB.....	ad No 102, 2010

Endnote 4—Amendment history

Provision affected	How affected
s 44L	ad No 88, 1995
	am No 92, 2006; No 102, 2010
Heading to sub div C of..... div 2 of Part IIIA	rep No 92, 2006
Division 2AA	
div 2AA of Part IIIA.....	ad No 102, 2010
Subdivision A	
s 44LA	ad No 102, 2010
Subdivision B	
s 44LB.....	ad No 102, 2010
	am No 114, 2017
s 44LC.....	ad No 102, 2010
s 44LD	ad No 102, 2010
	am No 69, 2023
s 44LE.....	ad No 102, 2010
s 44LF	ad No 102, 2010
Subdivision C	
s 44LG	ad No 102, 2010
	am No 114, 2017
s 44LH	ad No 102, 2010
Subdivision D	
s 44LI.....	ad No 102, 2010
	am No 114, 2017
Subdivision E	
s 44LJ.....	ad No 102, 2010
s 44LK	ad No 102, 2010
Subdivision F	
s 44LL.....	ad No 102, 2010
Division 2A	
Heading to div 2A of..... Part IIIA	ad No 92, 2006

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision A	
Heading to sub div A of..... div 2A of Part IIIA	ad No 92, 2006
s 44M	ad No 88, 1995 am No 101, 1998; No 60, 2006; No 92, 2006; No 45, 2007; No 102, 2010
s 44MA	ad No 102, 2010
Subdivision B	
Heading to sub div B of..... div 2A of Part IIIA	ad No 92, 2006
s 44N	ad No 88, 1995 am No 101, 1998; No 60, 2006; No 92, 2006; No 45, 2007; No 102, 2010
Subdivision C	
sub div C of div 2A of	ad No 92, 2006
Part IIIA	
s 44NA	ad No 92, 2006 am No 102, 2010
s 44NAA	ad No 102, 2010
s 44NB	ad No 92, 2006 am No 102, 2010
Subdivision CA	
Subdivision CA.....	ad No 114, 2017
s 44NBA	ad No 114, 2017
s 44NBB	ad No 114, 2017
s 44NBC	ad No 114, 2017
Subdivision D	
sub div D of div 2A of	ad No 92, 2006
Part IIIA	
s 44NC	ad No 92, 2006 rs No 102, 2010 am No 114, 2017; No 69, 2023

Endnote 4—Amendment history

Provision affected	How affected
s 44ND	ad No 92, 2006 rep No 102, 2010
s 44NE	ad No 92, 2006 am No 102, 2010; No 114, 2017
s 44NF	ad No 92, 2006 am No 114, 2017
s 44NG	ad No 92, 2006 am No 114, 2017
Subdivision E	
Heading to sub div E of div 2A of Part IIIA	ad No 92, 2006
s 44O	ad No 88, 1995 am No 92, 2006; No 102, 2010; No 114, 2017
Subdivision F	
Heading to sub div F of div 2A of Part IIIA	ad No 92, 2006
s 44P	ad No 88, 1995 am No 101, 1998
Division 2B	
div 2B of Part IIIA	ad No 92, 2006
s 44PA	ad No 92, 2006 am No 102, 2010; No 126, 2015
s 44PAA	ad No 102, 2010
s 44PB	ad No 92, 2006 am No 126, 2015
s 44PC	ad No 92, 2006
s 44PD	ad No 92, 2006 rs No 102, 2010
s 44PE	ad No 92, 2006 am No 102, 2010
s 44PF	ad No 92, 2006

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 44PG.....	ad No 92, 2006 am No 102, 2010
s 44PH.....	ad No 92, 2006 am No 102, 2010
Division 2C	
Heading to div 2C of Part IIIA	ad No 92, 2006
s 44Q.....	ad No 88, 1995 am No 101, 1998; No 92, 2006; No 102, 2010
Division 3	
Subdivision A	
s 44R	ad No 88, 1995
Subdivision B	
s 44S	ad No 88, 1995
s 44T	ad No 88, 1995 am No 92, 2006; No 75, 2023
Subdivision C	
s 44U.....	ad No 88, 1995
s 44V	ad No 88, 1995 am No 92, 2006; No 102, 2010; No 126, 2015; No 114, 2017
s 44W	ad No 88, 1995 am No 92, 2006; No 102, 2010; No 114, 2017
s 44X.....	ad No 88, 1995 am No 92, 2006; No 114, 2017
s 44XA.....	ad No 92, 2006 rs No 102, 2010
s 44Y	ad No 88, 1995 am No 92, 2006
s 44YA.....	ad No 102, 2010
Subdivision D	
s 44Z	ad No 88, 1995

Endnote 4—Amendment history

Provision affected	How affected
s 44ZA	ad No 88, 1995
s 44ZB.....	ad No 88, 1995
s 44ZC.....	ad No 88, 1995
s 44ZD	ad No 88, 1995
s 44ZE.....	ad No 88, 1995
s 44ZF	ad No 88, 1995
	am No 69, 2023
s 44ZG	ad No 88, 1995
s 44ZH	ad No 88, 1995
s 44ZI.....	ad No 88, 1995
s 44ZJ.....	ad No 88, 1995
s 44ZK	ad No 88, 1995
s 44ZL.....	ad No 88, 1995
s 44ZM.....	ad No 88, 1995
s 44ZN	ad No 88, 1995
s 44ZNA	ad No 92, 2006
	am No 126, 2015
Subdivision DA	
sub div DA of div 3 of.....	ad No 92, 2006
Part IIIA	
s 44ZNB.....	ad No 92, 2006
	am No 126, 2015
Subdivision E	
s 44ZO	ad No 88, 1995
	am No 92, 2006
s 44ZOA	ad No 92, 2006
Subdivision F	
Heading to sub div F of	rs No 92, 2006
div 3 of Part IIIA	
s 44ZP	ad No 88, 1995
	am No 92, 2006; No 102, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 44ZQ	ad No 88, 1995 am No 92, 2006
s 44ZR.....	ad No 88, 1995
s 44ZS	ad No 88, 1995
s 44ZT	ad No 88, 1995
Subdivision G	
Heading to sub div G of..... div 3 of Part IIIA	rs No 92, 2006
s 44ZU	ad No 88, 1995 am No 92, 2006
s 44ZUA	ad No 92, 2006
Division 4	
s 44ZV	ad No 88, 1995
s 44ZW	ad No 88, 1995 am No 92, 2006
s 44ZX	ad No 88, 1995 am No 92, 2006; No 102, 2010
s 44ZY	ad No 88, 1995
Division 5	
s 44ZZ.....	ad No 88, 1995
Division 6	
Heading to div 6 of..... Part IIIA	rs No 92, 2006
Subdivision A	
Heading to sub div A of..... div 6 of Part IIIA	ad No 92, 2006
s 44ZZA.....	ad No 88, 1995 am No 28, 1997; No 69, 2000; No 92, 2006; No 102, 2010
s 44ZZAAA	ad No 102, 2010
s 44ZZAAB	ad No 102, 2010
s 44ZZAA	ad No 28, 1997

Endnote 4—Amendment history

Provision affected	How affected
	am No 108, 2004; No 92, 2006; No 102, 2010
s 44ZZAB	ad No 108, 2004
	am No 102, 2010
s 44ZZB	ad No 88, 1995
	rep No 92, 2006
Subdivision B	
sub div B of div 6 of Part IIIA	ad No 92, 2006
s 44ZZBA	ad No 92, 2006
	am No 102, 2010
Subdivision C	
sub div C of div 6 of Part IIIA	ad No 92, 2006
s 44ZZBB	ad No 92, 2006
	am No 102, 2010
Subdivision D	
sub div D of div 6 of Part IIIA	ad No 92, 2006
s 44ZZBC	ad No 92, 2006
	rs No 102, 2010
s 44ZZBCA.....	ad No 102, 2010
s 44ZZBD	ad No 92, 2006
	am No 102, 2010
s 44ZZBE.....	ad No 92, 2006
Subdivision E	
sub div E of div 6 of Part IIIA	ad No 92, 2006
s 44ZZBF	ad No 92, 2006
	am No 102, 2010
Subdivision F	
Heading to sub div F of div 6 of Part IIIA	ad No 92, 2006

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 44ZZC	ad No 88, 1995 rs No 28, 1997 am No 92, 2006; No 102, 2010
Division 6A	
div 6A of Part IIIA.....	ad No 92, 2006
s 44ZZCA	ad No 92, 2006
Division 6B	
Heading to div 6B of Part IIIA	rs No 102, 2010
div 6B of Part IIIA.....	ad No 92, 2006
s 44ZZCB	ad No 92, 2006 am No 126, 2015
s 44ZZCBA.....	ad No 102, 2010
s 44ZZCC	ad No 92, 2006
s 44ZZCD	ad No 92, 2006
Division 7	
s 44ZZD	ad No 88, 1995
s 44ZZE	ad No 88, 1995
s 44ZZF.....	ad No 88, 1995
s 44ZZG.....	ad No 88, 1995
s 44ZZH.....	ad No 88, 1995
s 44ZZI	ad No 88, 1995
s 44ZZJ	ad No 88, 1995 am No 69, 2000; No 92, 2006
s 44ZZK.....	ad No 88, 1995
Division 8	
s 44ZZL	ad No 88, 1995
s 44ZZM	ad No 88, 1995 rs No 101, 1998; No 134, 2003 am No 116, 2017
s 44ZZMAA	ad No 116, 2017

Endnote 4—Amendment history

Provision affected	How affected
s 44ZZMA	ad No 134, 2003 am No 119, 2011
s 44ZZMB.....	ad No 134, 2003
s 44ZZN	ad No 88, 1995
s 44ZZNA	ad No 28, 1997 am No 137, 2024
s 44ZZO	ad No 88, 1995
s 44ZZOAAA	ad No 102, 2010 am No 114, 2017
s 44ZZOAA	ad No 102, 2010
s 44ZZOA	ad No 101, 1998 rep No 134, 2003 ad No 92, 2006 rs No 102, 2010 am No 69, 2023
s 44ZZP.....	ad No 88, 1995 am No 45, 2007
s 44ZZQ	ad No 88, 1995
s 44ZZR	ad No 45, 2007
Chapter 3	
Chapter 3 heading.....	ad No 137, 2024
Part IV	
Division 1	
Division 1	ad No 59, 2009
Subdivision A	
s 44ZZRA	ad No 59, 2009 renum No 114, 2017
s 45AA (prev s 44ZZRA)	
s 44ZZRB	ad No 59, 2009 renum No 114, 2017
s 45AB (prev s 44ZZRB).....	am No 54, 2022

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 44ZZRC	ad No 59, 2009 renum No 114, 2017
s 45AC (prev s 44ZZRC)	
s 44ZZRD	ad No 59, 2009 am No 114, 2017 renum No 114, 2017
s 45AD (prev s 44ZZRD)	
s 44ZZRE.....	ad No 59, 2009 renum No 114, 2017
s 45AE (prev s 44ZZRE).....	am No 54, 2022
Subdivision B	
s 44ZZRF	ad No 59, 2009 renum No 114, 2017
s 45AF (prev s 44ZZRF)	am No 54, 2022; No 19, 2026
s 44ZZRG	ad No 59, 2009 renum No 114, 2017
s 45AG (prev s 44ZZRG)	am No 54, 2022; No 19, 2026
s 44ZZRH	ad No 59, 2009 renum No 114, 2017
s 45AH (prev s 44ZZRH)	
s 44ZZRI.....	ad No 59, 2009 renum No 114, 2017
s 45AI (prev s 44ZZRI)	
s 45AIA.....	ad No 54, 2022
Subdivision C	
s 44ZZRJ.....	ad No 59, 2009 renum No 114, 2017
s 45AJ (prev s 44ZZRJ)	
s 44ZZRK	ad No 59, 2009 renum No 114, 2017
s 45AK (prev s 44ZZRK)	

Endnote 4—Amendment history

Provision affected	How affected
Subdivision D	
s 44ZZRL.....	ad No 59, 2009 renum No 114, 2017
s 45AL (prev s 44ZZRL)	
s 44ZZRM.....	ad No 59, 2009 renum No 114, 2017
s 45AM (prev s 44ZZRM)	
s 45AMA	ad No 137, 2024
s 44ZZRN	ad No 59, 2009 renum No 114, 2017
s 45AN (prev s 44ZZRN)	
s 44ZZRO	ad No 59, 2009 am No 114, 2017 renum No 114, 2017
s 45AO (prev s 44ZZRO)	
s 44ZZRP	ad No 59, 2009 am No 114, 2017 renum No 114, 2017
s 45AP (prev s 44ZZRP)	
s 44ZZRQ	ad No 59, 2009 rep No 114, 2017
s 44ZZRR	ad No 59, 2009 am No 114, 2017 renum No 114, 2017
s 45AQ (prev s 44ZZRR)	
s 44ZZRS.....	ad No 59, 2009 am No 114, 2017 renum No 114, 2017
s 45AR (prev s 44ZZRS)	
s 44ZZRT.....	ad No 59, 2009 am No 114, 2017

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	renum No 114, 2017
s 45AS (prev s 44ZZRT)	
s 44ZZRU	ad No 59, 2009
	renum No 114, 2017
s 45AT (prev s 44ZZRU).....	am No 137, 2024
s 44ZZRV	ad No 59, 2009
	renum No 114, 2017
s 45AU (prev s 44ZZRV)	
Division 1A	
Division 1A.....	ad No 185, 2011
	rep No 114, 2017
	ad No 137, 2024
Subdivision A	
s 45AV	ad No 137, 2024
Subdivision B	
s 45AW	ad No 137, 2024
s 45AX	ad No 137, 2024
s 45AY	ad No 137, 2024
s 45AZ	ad No 137, 2024
Subdivision C	
s 45AZA	ad No 137, 2024
Subdivision D	
s 45AZB.....	ad No 137, 2024
s 44ZZS.....	ad No 185, 2011
	rep No 114, 2017
s 44ZZT	ad No 185, 2011
	rep No 114, 2017
s 44ZZU	ad No 185, 2011
	rep No 114, 2017
s 44ZZV	ad No 185, 2011
	rep No 114, 2017

Endnote 4—Amendment history

Provision affected	How affected
s 44ZZW	ad No 185, 2011 rep No 114, 2017
s 44ZZX	ad No 185, 2011 rep No 114, 2017
s 44ZZY	ad No 185, 2011 rep No 114, 2017
s 44ZZZ	ad No 185, 2011 rep No 114, 2017
s 44ZZZA	ad No 185, 2011 rep No 114, 2017
s 44ZZZB.....	ad No 185, 2011 rep No 114, 2017
Division 2	
Heading to div 2 of Part IV	ad No 59, 2009
s 45.....	rs No 81, 1977 am No 17, 1986; No 222, 1992; No 88, 1995; No 131, 2006; No 59, 2009; No 114, 2017; No 76, 2023; No 137, 2024
s 45A.....	ad No 81, 1977 am No 206, 1978; No 88, 1995; No 131, 2006 rep No 59, 2009
s 45B.....	ad No 81, 1977 am No 88, 1995; No 169, 2012 rep No 114, 2017
s 45C.....	ad No 81, 1977 am No 17, 1986; No 88, 1995 rep No 114, 2017
s 45D.....	ad No 81, 1977 am No 207, 1978; No 73, 1980; No 176, 1981 rs No 98, 1993; No 60, 1996 am No 114, 2017
s 45DA.....	ad No 60, 1996

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 114, 2017
s 45DB	ad No 60, 1996
	am No 114, 2017
s 45DC	ad No 60, 1996
s 45DD	ad No 60, 1996
	am SLI 2006 No 50; No 54, 2009
s 45E	ad No 73, 1980
	rep No 98, 1993
	ad No 60, 1996
	am No 114, 2017
s 45EA	ad No 60, 1996
	am No 114, 2017
s 45EB.....	ad No 60, 1996
s 46.....	rs No 81, 1977
	am No 17, 1986; No 222, 1992; No 131, 2006; No 159, 2007; No 116, 2008
	rs No 87, 2017
s 46A.....	ad No 70, 1990
	am No 222, 1992; No 131, 2006; No 114, 2017
s 46B	ad No 70, 1990
s 47	am No 88, 1976
	rs No 81, 1977
	am No 206, 1978; No 88, 1995; No 131, 2006; No 169, 2012; No 114, 2017
s 48.....	am No 114, 2017
s 49.....	am No 81, 1977
	rep No 88, 1995
	ad No 131, 2006
	am No 114, 2017
s 50.....	rs No 81, 1977

Endnote 4—Amendment history

Provision affected	How affected
	am No 8, 1986; No 17, 1986; No 168, 1986; No 49, 1991; No 222, 1992; No 63, 2001; No 131, 2006; No 184, 2011; No 114, 2017; No 76, 2023; No 137, 2024
s 50A.....	ad No 17, 1986
	am No 22, 1992; No 222, 1992; No 137, 2024
s 51.....	am No 63, 1975; No 88, 1976; No 81, 1977; No 73, 1980; No 17, 1986; No 28, 1989; No 70, 1990; No 98, 1993; No 88, 1995; No 60, 1996; No 63, 2002; No 46, 2011; No 114, 2017; No 15, 2019; No 137, 2024
s 51AAA.....	ad No 88, 1995
Part IVA	
Part IVA.....	ad No 222, 1992
	rep No 103, 2010
	ad No 137, 2024
Division 1	
Subdivision A	
s 51ABA.....	ad No 137, 2024
Subdivision B	
s 51ABB.....	ad No 137, 2024
s 51ABC.....	ad No 137, 2024
s 51ABD.....	ad No 137, 2024
Subdivision C	
s 51ABE.....	ad No 137, 2024
s 51ABF.....	ad No 137, 2024
s 51ABG.....	ad No 137, 2024
s 51ABH.....	ad No 137, 2024
s 51ABI.....	ad No 137, 2024
Subdivision D	
s 51ABJ.....	ad No 137, 2024
s 51ABK.....	ad No 137, 2024
Subdivision E	
s 51ABL.....	ad No 137, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 51ABM.....	ad No 137, 2024
s 51ABN	ad No 137, 2024
Division 2	
Subdivision A	
s 51ABO	ad No 137, 2024
	rs No 72, 2025
s 51ABP	ad No 137, 2024
	am No 72, 2025
s 51ABQ	ad No 137, 2024
	am No 72, 2025
s 51ABR	ad No 137, 2024
	am No 72, 2025
s ABRA.....	ad No 72, 2025
s ABRB.....	ad No 72, 2025
Subdivision B	
s 51ABS	ad No 137, 2024
s 51ABT	ad No 137, 2024
Subdivision C	
s 51ABU	ad No 137, 2024
s 51ABV	ad No 137, 2024
Division 3	
Subdivision A	
s 51ABW	ad No 137, 2024
s 51ABX	ad No 137, 2024
Subdivision B	
s 51ABY	ad No 137, 2024
s 51ABZ.....	ad No 137, 2024
s 51ABZA.....	ad No 137, 2024
s 51ABZB.....	ad No 137, 2024
s 51ABZC.....	ad No 137, 2024

Endnote 4—Amendment history

Provision affected	How affected
Subdivision C	
s 51ABZD	ad No 137, 2024
Division 4	
Subdivision A	
s 51ABZE	ad No 137, 2024
s 51ABZF	ad No 137, 2024
s 51ABZG	ad No 137, 2024
Subdivision B	
s 51ABZH	ad No 137, 2024
Subdivision C	
s 51ABZI	ad No 137, 2024
s 51ABZJ	ad No 137, 2024
s 51ABZK	ad No 137, 2024
s 51ABZL	ad No 137, 2024
s 51ABZM	ad No 137, 2024
s 51ABZN	ad No 137, 2024
s 51ABZO	ad No 137, 2024
Division 5	
Subdivision A	
s 51ABZP	ad No 137, 2024
Subdivision B	
s 51ABZQ	ad No 137, 2024
s 51ABZR	ad No 137, 2024
s 51ABZS	ad No 137, 2024
s 51ABZT	ad No 137, 2024
s 51ABZU	ad No 137, 2024
Subdivision C	
s 51ABZV	ad No 137, 2024
Subdivision D	
s 51ABZW	ad No 137, 2024
s 51ABZX	ad No 137, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision E	
s 51ABZY	ad No 137, 2024
Subdivision F	
s 51ABZZ	ad No 137, 2024
s 51ABZZA	ad No 137, 2024
s 51ABZZB.....	ad No 137, 2024
Division 6	
Subdivision A	
s 51ABZZC.....	ad No 137, 2024
s 51ABZZD	ad No 137, 2024
s 51ABZZE.....	ad No 137, 2024
s 51ABZZF	ad No 137, 2024
s 51ABZZG	ad No 137, 2024
Subdivision B	
s 51ABZZH	ad No 137, 2024
s 51ABZZI.....	ad No 137, 2024
Subdivision C	
s 51ABZZJ.....	ad No 137, 2024
s 51ABZZK	ad No 137, 2024
Subdivision D	
s 51ABZZL.....	ad No 137, 2024
s 51ABZZM.....	ad No 137, 2024
s 51ABZZN	ad No 137, 2024
s 51ABZZO	ad No 137, 2024
s 51ABZZP.....	ad No 137, 2024
Subdivision E	
s 51ABZZQ	ad No 137, 2024
Subdivision F	
s 51ABZZR.....	ad No 137, 2024
s 51ABZZS.....	ad No 137, 2024
	am No 72, 2025

Endnote 4—Amendment history

Provision affected	How affected
s 51ABZZT	ad No 137, 2024
s 51ABZZU	ad No 137, 2024
Chapter 4	
Chapter 4 heading	ad No 137, 2024
s 51AAB	ad No 48, 1998 rep No 103, 2010
s 51AA	ad No 222, 1992 am No 36, 1998 rep No 103, 2010
s 51AB (formerly s 52A)	No 222, 1992 am No 116, 2008 rep No 103, 2010
s 51AC	ad No 36, 1998 am No 63, 2001; No 159, 2007; No 116, 2008 rep No 103, 2010
s 51ACAA	ad No 63, 2001 rep No 103, 2010
Part IVB	
Part IVB	ad No 36, 1998
Division 1	
Heading to div 1 of	ad No 103, 2010
Part IVB	
s 51ACA	ad No 36, 1998 am No 103, 2010; No 107, 2014; No 111, 2021
s 51ACAA	ad No 111, 2021
Division 2	
Heading to div 2 of	ad No 103, 2010
Part IVB	
s 51AD	ad No 36, 1998 renum No 107, 2014
s 51ACB (prev s 51AD)	

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 2A	
Division 2A.....	ad No 107, 2014
s 51ACC	ad No 107, 2014
s 51ACD	ad No 107, 2014
s 51ACE.....	ad No 107, 2014
s 51ACF	ad No 107, 2014
	rs No 136, 2024
	am No 48, 2026
s 51ACG	ad No 107, 2014
s 51ACH	ad No 107, 2014
s 51ACI.....	ad No 107, 2014
s 51ACJ.....	ad No 107, 2014
Division 3	
div 3 of Part IVB	ad No 103, 2010
s 51ADA	ad No 103, 2010
Division 4	
div 4 of Part IVB	ad No 103, 2010
s 51ADB	ad No 103, 2010
s 51ADC	ad No 103, 2010
Division 5	
div 5 of Part IVB	ad No 103, 2010
s 51ADD	ad No 103, 2010
s 51ADE	ad No 103, 2010
	am No 49, 2019; No 64, 2020
s 51ADF.....	ad No 103, 2010
s 51ADG	ad No 103, 2010
Division 6	
Heading to div 6 of.....	ad No 103, 2010
Part IVB	
s 51AE	ad No 36, 1998

Endnote 4—Amendment history

Provision affected	How affected
	am No 107, 2014; No 115, 2019; No 111, 2021; No 54, 2022; No 136, 2024; No 48, 2026
s 51AEAA.....	ad No 111, 2021
s 51AEA	ad No 63, 2001
s 51AF.....	ad No 48, 1998
	am No 55, 2001; No 123, 2001
	rep No 103, 2010
	ad No 111, 2021
s 51A.....	ad No 17, 1986
	rep No 103, 2010
s 52.....	am No 81, 1977; No 106, 1998
	rep No 103, 2010
s 52A.....	ad No 17, 1986
	am No 222, 1992; No 76, 2026
Renumbered s 51AB.....	No 222, 1992
Part IVBA	
Part IVBA	ad No 21, 2021
Division 1	
s 52A.....	ad No 21, 2021
	am No 15, 2025
s 52B	ad No 21, 2021
s 52C	ad No 21, 2021
s 52D.....	ad No 21, 2021
Division 2	
s 52E	ad No 21, 2021
Division 3	
s 52F	ad No 21, 2021
s 52G.....	ad No 21, 2021
s 52H.....	ad No 21, 2021
s 52I	ad No 21, 2021
s 52J	ad No 21, 2021

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 52K.....	ad No 21, 2021
s 52L.....	ad No 21, 2021
s 52M.....	ad No 21, 2021
s 52N.....	ad No 21, 2021
s 52O.....	ad No 21, 2021
s 52P.....	ad No 21, 2021
s 52PA.....	ad No 76, 2026
Division 4	
Subdivision A	
s 52Q.....	ad No 21, 2021
Subdivision B	
s 52R.....	ad No 21, 2021
s 52S.....	ad No 21, 2021
s 52V.....	ad No 21, 2021
s 52W.....	ad No 21, 2021
Subdivision C	
s 52X.....	ad No 21, 2021
Subdivision D	
s 52Y.....	ad No 21, 2021
s 52Z.....	ad No 21, 2021
Subdivision E	
s 52ZA.....	ad No 21, 2021
s 52ZB.....	ad No 21, 2021
Division 5	
s 52ZC.....	ad No 21, 2021
Division 6	
Subdivision A	
s 52ZD.....	ad No 21, 2021
s 52ZE.....	ad No 21, 2021
Subdivision B	
s 52ZF.....	ad No 21, 2021

Endnote 4—Amendment history

Provision affected	How affected
s 52ZG	ad No 21, 2021
s 52ZH	ad No 21, 2021
s 52ZI	ad No 21, 2021
Subdivision BA	
s 52ZIA	ad No 21, 2021
s 52ZIB	ad No 21, 2021
s 52ZIC	ad No 21, 2021
Subdivision C	
s 52ZJ	ad No 21, 2021
Division 7	
Subdivision A	
s 52ZK	ad No 21, 2021
Subdivision B	
s 52ZL	ad No 21, 2021
s 52ZM	ad No 21, 2021
s 52ZN	ad No 21, 2021
s 52ZO	ad No 21, 2021
s 52ZP	ad No 21, 2021
s 52ZQ	ad No 21, 2021
Subdivision C	
s 52ZR	ad No 21, 2021
s 52ZS	ad No 21, 2021
s 52ZT	ad No 21, 2021
s 52ZU	ad No 21, 2021
s 52ZV	ad No 21, 2021
s 52ZW	ad No 21, 2021
s 52ZX	ad No 21, 2021
s 52ZXA	ad No 21, 2021
s 52ZY	ad No 21, 2021
s 52ZZ	ad No 21, 2021
s 52ZZA	ad No 21, 2021

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 52ZZB	ad No 21, 2021
s 52ZZC	ad No 21, 2021
s 52ZZD	ad No 21, 2021
Subdivision D	
s 52ZZE	ad No 21, 2021
Division 8	
s 52ZZF	ad No 21, 2021
s 52ZZG	ad No 21, 2021
	am No 136, 2024
s 52ZZH	ad No 21, 2021
Division 9	
s 52ZZI	ad No 21, 2021
s 52ZZJ	ad No 21, 2021
s 52ZZK	ad No 21, 2021
s 52ZZL	ad No 21, 2021
s 52ZZM	ad No 21, 2021
Division 10	
s 52ZZN	ad No 21, 2021
s 52ZZO	ad No 21, 2021
Division 11	
s 52ZZP	ad No 21, 2021
s 52ZZQ	ad No 21, 2021
s 52ZZR	ad No 21, 2021
s 52ZZS	ad No 21, 2021
Part IVBB	
Part IVBB	ad No 96, 2022
Division 1	
Subdivision A	
s 53	am No 81, 1977; No 17, 1986; No 20, 1988; No 106, 1998
	rep No 103, 2010
	ad No 96, 2022

Endnote 4—Amendment history

Provision affected	How affected
s 53A.....	ad No 81, 1977 am No 206, 1978; No 17, 1986 rep No 103, 2010 ad No 96, 2022
Subdivision B	
s 53B.....	ad No 206, 1978 rs No 17, 1986 rep No 103, 2010 ad No 96, 2022
s 53C.....	ad No 17, 1986 rs No 126, 2008 rep No 103, 2010 ad No 96, 2022
s 53D.....	ad No 96, 2022
Subdivision C	
s 53E.....	ad No 96, 2022
s 53F.....	ad No 96, 2022
s 53G.....	ad No 96, 2022
s 53H.....	ad No 96, 2022
Subdivision D	
s 53J.....	ad No 96, 2022
s 53K.....	ad No 96, 2022
Division 2	
Subdivision A	
s 53L.....	ad No 96, 2022
s 53M.....	ad No 96, 2022
s 53N.....	ad No 96, 2022
Subdivision B	
s 53P.....	ad No 96, 2022
s 53Q.....	ad No 96, 2022
s 53R.....	ad No 96, 2022

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 53S	ad No 96, 2022
s 53T	ad No 96, 2022
s 53U	ad No 96, 2022
s 53V	ad No 96, 2022
s 53W	ad No 96, 2022
Subdivision C	
s 53X	ad No 96, 2022
s 53Y	ad No 96, 2022
Subdivision D	
s 53Z	ad No 96, 2022
s 53ZA	ad No 96, 2022
s 53ZB	ad No 96, 2022
s 53ZC	ad No 96, 2022
s 53ZD	ad No 96, 2022
	am No 38, 2024
s 53ZE	ad No 96, 2022
Subdivision E	
s 53ZF	ad No 96, 2022
s 53ZG	ad No 96, 2022
s 53ZH	ad No 96, 2022
s 53ZI	ad No 96, 2022
Division 3	
Subdivision A	
s 53ZJ	ad No 96, 2022
Subdivision B	
s 53ZK	ad No 96, 2022
Subdivision C	
s 53ZL	ad No 96, 2022
s 53ZM	ad No 96, 2022
s 53ZN	ad No 96, 2022

Endnote 4—Amendment history

Provision affected	How affected
Subdivision D	
s 53ZO	ad No 96, 2022
s 53ZP	ad No 96, 2022
Subdivision E	
s 53ZQ	ad No 96, 2022
s 53ZR.....	ad No 96, 2022
s 53ZS	ad No 96, 2022
Division 4	
s 53ZT.....	ad No 96, 2022
s 53ZU	ad No 96, 2022
s 53ZV	ad No 96, 2022
s 53ZW	ad No 96, 2022
s 53ZX	ad No 96, 2022
Division 5	
s 53ZY	ad No 96, 2022
s 53ZZ.....	ad No 96, 2022
s 53ZZA.....	ad No 96, 2022
s 53ZZB	ad No 96, 2022
s 53ZZC	ad No 96, 2022
s 54.....	am No 81, 1977
	rep No 103, 2010
Part IVC	
Part IVC.....	ad No 9, 2016
Division 1	
s 55.....	rep No 103, 2010
	ad No 9, 2016
s 55A.....	ad No 81, 1977
	rep No 103, 2010
	ad No 9, 2016
	am No 46, 2025

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 2	
s 55B	ad No 9, 2016 am No 46, 2025
Division 3	
s 55C	ad No 9, 2016
s 55D	ad No 9, 2016
s 55E	ad No 9, 2016
Division 4	
s 55F	ad No 9, 2016
s 55G	ad No 9, 2016
s 55H	ad No 9, 2016
s 55J	ad No 9, 2016
s 55K	ad No 9, 2016
s 55L	ad No 9, 2016
s 55M	ad No 9, 2016
s 55N	ad No 9, 2016
s 56	am No 81, 1977; No 17, 1986; No 31, 2001 rep No 103, 2010
Part IVD	
Part IVD	ad No 63, 2019
Division 1	
Subdivision A	
s 56AA	ad No 63, 2019 am No 75, 2024
s 56AB	ad No 63, 2019 am No 75, 2024
Subdivision B	
Subdivision B heading	rs No 75, 2024
s 56AC	ad No 63, 2019 am No 141, 2020; No 75, 2024
s 56ACA	ad No 75, 2024

Endnote 4—Amendment history

Provision affected	How affected
s 56AD	ad No 63, 2019 am No 141, 2020; No 75, 2024
s 56AE	ad No 63, 2019 rs No 141, 2020 am No 75, 2024
s 56AEA	ad No 141, 2020 am No 75, 2024
s 56AF	ad No 63, 2019 am No 75, 2024
s 56AG	ad No 63, 2019 rep No 141, 2020
s 56AH	ad No 63, 2019 am No 141, 2020; No 75, 2024
Subdivision C	
s 56AI	ad No 63, 2019 am No 141, 2020; No 75, 2024
s 56AJ	ad No 63, 2019 am No 141, 2020; No 75, 2024
s 56AK	ad No 63, 2019 am No 75, 2024
s 56AL	ad No 63, 2019
s 56AM	ad No 63, 2019 am No 141, 2020
s 56AMA	ad No 75, 2024
s 56AMB	ad No 75, 2024
s 56AMC	ad No 75, 2024
s 56AMD	ad No 75, 2024
Subdivision D	
s 56AN	ad No 63, 2019 am No 75, 2024
s 56AO	ad No 63, 2019

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 75, 2024
s 56AP.....	ad No 63, 2019
Subdivision E	
s 56AQ.....	ad No 63, 2019
s 56AR.....	ad No 63, 2019
	am No 141, 2020; No 75, 2024
s 56AS.....	ad No 63, 2019
	am No 75, 2024
s 56AT.....	ad No 63, 2019
Subdivision F	
Subdivision F.....	ad No 141, 2020
s 56AU.....	ad No 141, 2020
	am No 75, 2024
Division 2	
Subdivision A	
s 56BA.....	ad No 63, 2019
	am No 141, 2020; No 75, 2024
s 56BAA.....	ad No 94, 2019
	am No 75, 2024
s 56BB.....	ad No 63, 2019
	am No 75, 2024
s 56BC.....	ad No 63, 2019
	am No 94, 2019; No 75, 2024
s 56BD.....	ad No 63, 2019
	am No 141, 2020; No 75, 2024
s 56BE.....	ad No 63, 2019
s 56BF.....	ad No 63, 2019
s 56BG.....	ad No 63, 2019
s 56BGA.....	ad No 75, 2024
s 56BH.....	ad No 63, 2019

Endnote 4—Amendment history

Provision affected	How affected
	am No 38, 2024; No 75, 2024; No 14, 2025 (amds never applied (sch 3 (items 3, 4)))
s 56BHA	ad No 75, 2024
	am No 14, 2025
s 56BI	ad No 63, 2019
	am No 75, 2024
s 56BJ	ad No 63, 2019
	am No 94, 2019; No 141, 2020; No 38, 2024; No 75, 2024
s 56BK	ad No 63, 2019
	am No 75, 2024
Subdivision B	
s 56BL	ad No 63, 2019
s 56BM	ad No 63, 2019
s 56BN	ad No 63, 2019
	am No 54, 2022; No 75, 2024
s 56BO	ad No 63, 2019
	am No 75, 2024
Subdivision C	
Subdivision C	rs No 141, 2020
s 56BP	ad No 63, 2019
	rs No 141, 2020
	am No 75, 2024
s 56BQ	ad No 63, 2019
	rs No 141, 2020
	am No 75, 2024
s 56BR	ad No 63, 2019
	rs No 141, 2020
	am No 75, 2024
s 56BS	ad No 63, 2019
	rs No 141, 2020
s 56BT	ad No 63, 2019

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rs No 141, 2020
s 56BTA.....	ad No 141, 2020
Subdivision D	
s 56BU	ad No 63, 2019
	am No 75, 2024
s 56BV	ad No 63, 2019
	rs No 75, 2024
s 56BW	ad No 63, 2019
	rep No 75, 2024
s 56BX	ad No 63, 2019
	rep No 75, 2024
s 56BY	ad No 63, 2019
	rep No 75, 2024
Subdivision E	
Subdivision E.....	ad No 75, 2024
s 56BZA.....	ad No 75, 2024
s 56BZB.....	ad No 75, 2024
s 56BZC.....	ad No 75, 2024
s 56BZD.....	ad No 75, 2024
s 56BZE.....	ad No 75, 2024
Subdivision F	
Subdivision F.....	ad No 75, 2024
s 56BZF	ad No 75, 2024
s 56BZG.....	ad No 75, 2024
s 556BZH.....	ad No 75, 2024
Subdivision G	
Subdivision G	ad No 75, 2024
s 56BZI	ad No 75, 2024
s 56BZJ	ad No 75, 2024

Endnote 4—Amendment history

Provision affected	How affected
Division 3	
Subdivision A	
s 56CA	ad No 63, 2019 am No 75, 2024
s 56CB	ad No 63, 2019 am No 38, 2024; No 75, 2024
s 56CC	ad No 63, 2019 am No 54, 2022 rep No 75, 2024
s 56CD	ad No 63, 2019 rep No 75, 2024
Subdivision B	
s 56CE.....	ad No 63, 2019
s 56CF.....	ad No 63, 2019
Subdivision C	
Subdivision C heading.....	rs No 75, 2024
s 56CG	ad No 63, 2019 am No 75, 2024
s 56CH	ad No 63, 2019 am No 75, 2024
s 56CI.....	ad No 63, 2019 am No 75, 2024
s 56CJ	ad No 63, 2019 am No 75, 2024
Subdivision D	
s 56CK	ad No 63, 2019
s 56CL.....	ad No 63, 2019
s 56CM	ad No 63, 2019
s 56CN	ad No 63, 2019
Division 4	
s 56DA	ad No 63, 2019

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 141, 2020; No 75, 2024
Division 5	
Subdivision A	
s 56EA	ad No 63, 2019
	am No 141, 2020; No 75, 2024
s 56EB.....	ad No 63, 2019
s 56EC.....	ad No 63, 2019
	am No 141, 2020; No 75, 2024
Subdivision B	
s 56ED	ad No 63, 2019
	am No 141, 2020; No 75, 2024
s 56EE.....	ad No 63, 2019
	am No 141, 2020
Subdivision C	
s 56EF	ad No 63, 2019
	rs No 75, 2024
s 56EG	ad No 63, 2019
	rs No 75, 2024
s 56EH	ad No 63, 2019
	am No 141, 2020; No 75, 2024
Subdivision D	
s 56EI.....	ad No 63, 2019
s 56EJ.....	ad No 63, 2019
s 56EK	ad No 63, 2019
s 56EL.....	ad No 63, 2019
s 56EM.....	ad No 63, 2019
	am No 75, 2024
Subdivision E	
s 56EN	ad No 63, 2019
	am No 141, 2020; No 75, 2024
s 56EO	ad No 63, 2019

Endnote 4—Amendment history

Provision affected	How affected
Subdivision F	
s 56EP	ad No 63, 2019 am No 75, 2024
Subdivision G	
s 56EQ	ad No 63, 2019
s 56ER.....	ad No 63, 2019 am No 141, 2020; No 75, 2024
s 56ES	ad No 63, 2019 am No 75, 2024
s 56ET	ad No 63, 2019 am No 141, 2020; No 75, 2024; No 128, 2024
s 56EU	ad No 63, 2019 am No 13, 2021; No 75, 2024
s 56EV	ad No 63, 2019 am No 54, 2022
s 56EW	ad No 63, 2019 am No 13, 2021
s 56EX	ad No 63, 2019 am No 13, 2021
s 56EY	ad No 63, 2019 am No 13, 2021
s 56EZ.....	ad No 63, 2019
Division 6	
Subdivision A	
s 56FA.....	ad No 63, 2019 am No 75, 2024
s 56FB.....	ad No 63, 2019 am No 75, 2024
s 56FC.....	ad No 63, 2019
s 56FD.....	ad No 63, 2019 am No 75, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 56FE	ad No 63, 2019
Subdivision B	
s 56FF	ad No 63, 2019
s 56FG.....	ad No 63, 2019
s 56FH.....	ad No 63, 2019
s 56FI	ad No 63, 2019
Subdivision C	
s 56FJ.....	ad No 63, 2019
s 56FK.....	ad No 63, 2019
Subdivision D	
s 56FL	ad No 63, 2019
s 56FM.....	ad No 63, 2019
s 56FN.....	ad No 63, 2019
s 56FO.....	ad No 63, 2019
s 56FP	ad No 63, 2019
s 56FQ.....	ad No 63, 2019
s 56FR.....	ad No 63, 2019
s 56FS	ad No 63, 2019
Division 7	
s 56GA	ad No 63, 2019
	am No 141, 2020
s 56GAA	ad No 141, 2020
	am No 75, 2024
s 56GAB	ad No 141, 2020
	rs No 75, 2024
s 56GB	ad No 63, 2019
	am No 75, 2024
s 56GC	ad No 63, 2019
	am No 75, 2024
s 56GD	ad No 63, 2019
	am No 38, 2024; No 75, 2024

Endnote 4—Amendment history

Provision affected	How affected
s 56GE	ad No 63, 2019
	am No 75, 2024
s 56GF	ad No 63, 2019
	rs No 75, 2024
s 56GG	ad No 63, 2019
s 56GH	ad No 63, 2019
Part IVE	
Part IVE	ad No 54, 2021
Division 1	
s 57AA	ad No 54, 2021
s 57AB	ad No 54, 2021
Division 2	
s 57BA	ad No 54, 2021
s 57BB	ad No 54, 2021
s 57BC	ad No 54, 2021
s 57BD	ad No 54, 2021
s 57BE	ad No 54, 2021
s 57BF	ad No 54, 2021
s 57BG	ad No 54, 2021
Division 3	
s 57CA	ad No 54, 2021
s 57CB	ad No 54, 2021
s 57CC	ad No 54, 2021
s 57CD	ad No 54, 2021
Division 4	
s 57DA	ad No 54, 2021
s 57DB	ad No 54, 2021
s 57DC	ad No 54, 2021
s 57DD	ad No 54, 2021
s 57DE	ad No 54, 2021

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 5	
s 57EA	ad No 54, 2021
s 57EB.....	ad No 54, 2021
s 57EC.....	ad No 54, 2021
s 57ED	ad No 54, 2021
s 57EE.....	ad No 54, 2021
s 57EF	ad No 54, 2021
s 57EG	ad No 54, 2021
s 57EH	ad No 54, 2021
Division 6	
s 57FA.....	ad No 54, 2021
	am No 69, 2023
s 57FB.....	ad No 54, 2021
Division 7	
s 57GA	ad No 54, 2021
	am No 54, 2022
s 57GB	ad No 54, 2021
s 57GC	ad No 54, 2021
s 57GD.....	ad No 54, 2021
s 57GE	ad No 54, 2021
Part IVF	
Part IVF	ad No 15, 2025
Division 1	
Subdivision A	
s 58AA	ad No 15, 2025
s 58AB	ad No 15, 2025
Subdivision B	
s 58AC	ad No 15, 2025
s 58AD.....	ad No 15, 2025
s 58AE	ad No 15, 2025
s 58AF.....	ad No 15, 2025

Endnote 4—Amendment history

Provision affected	How affected
Subdivision C	
s 58AG	ad No 15, 2025
s 58AH	ad No 15, 2025
s 58AI	ad No 15, 2025
Subdivision D	
s 58AJ	ad No 15, 2025
Subdivision E	
s 58AK	ad No 15, 2025
Division 2	
Subdivision A	
s 58BA	ad No 15, 2025
s 58BB	ad No 15, 2025
Subdivision B	
s 58BC	ad No 15, 2025
s 58BD	ad No 15, 2025
s 58BE	ad No 15, 2025
s 58BF	ad No 15, 2025
s 58BG	ad No 15, 2025
s 58BH	ad No 15, 2025
Subdivision C	
s 58BI	ad No 15, 2025
s 58BJ	ad No 15, 2025
s 58BK	ad No 15, 2025
Subdivision D	
s 58BL	ad No 15, 2025
s 58BM	ad No 15, 2025
s 58BN	ad No 15, 2025
s 58BO	ad No 15, 2025
s 58BP	ad No 15, 2025
Subdivision E	
s 58BQ	ad No 15, 2025

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 58BR	ad No 15, 2025
s 58BS	ad No 15, 2025
s 58BT	ad No 15, 2025
s 58BU	ad No 15, 2025
s 58BV	ad No 15, 2025
Subdivision F	
s 58BW	ad No 15, 2025
s 58BX	ad No 15, 2025
s 58BY	ad No 15, 2025
s 58BZ	ad No 15, 2025
s 58BZA	ad No 15, 2025
Subdivision G	
s 58BZB	ad No 15, 2025
s 58BZC	ad No 15, 2025
s 58BZD	ad No 15, 2025
s 58BZDA	ad No 15, 2025
s 58BZE	ad No 15, 2025
s 58BZF	ad No 15, 2025
s 58BZG	ad No 15, 2025
s 58BZH	ad No 15, 2025
Division 3	
s 58CA	ad No 15, 2025
s 58CB	ad No 15, 2025
s 58CC	ad No 15, 2025
s 58CD	ad No 15, 2025
Division 4	
s 58DA	ad No 15, 2025
s 58DB	ad No 15, 2025
s 58DC	ad No 15, 2025
s 58DD	ad No 15, 2025
s 58DE	ad No 15, 2025

Endnote 4—Amendment history

Provision affected	How affected
Division 5	
Subdivision A	
s 58EA	ad No 15, 2025
Subdivision B	
s 58EB.....	ad No 15, 2025
	am No 72, 2025
s 58EC.....	ad No 15, 2025
	am No 72, 2025
s 58ED	ad No 15, 2025
	am No 72, 2025
s 58EE.....	ad No 15, 2025
	am No 72, 2025
s 58EF	ad No 15, 2025
s 58EFA	ad No 15, 2025
Subdivision C	
s 58EG	ad No 15, 2025
s 58EH	ad No 15, 2025
s 58EI.....	ad No 15, 2025
s 58EJ.....	ad No 15, 2025
Division 6	
Subdivision A	
s 58FA.....	ad No 15, 2025
s 58FB.....	ad No 15, 2025
s 58FC.....	ad No 15, 2025
s 58FD.....	ad No 15, 2025
Subdivision B	
s 58FE	ad No 15, 2025
s 58FF	ad No 15, 2025
s 58FG.....	ad No 15, 2025
s 58FH.....	ad No 15, 2025
s 58FI	ad No 15, 2025

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision C	
s 58FJ.....	ad No 15, 2025
s 58FK.....	ad No 15, 2025
s 58FL.....	ad No 15, 2025
s 58FM.....	ad No 15, 2025
Subdivision D	
s 58FN.....	ad No 15, 2025
s 58FO.....	ad No 15, 2025
s 58FP.....	ad No 15, 2025
s 58FQ.....	ad No 15, 2025
s 58FR.....	ad No 15, 2025
s 58FS.....	ad No 15, 2025
s 58FT.....	ad No 15, 2025
s 58FU.....	ad No 15, 2025
Subdivision E	
s 58FV.....	ad No 15, 2025
Subdivision F	
s 58FW.....	ad No 15, 2025
s 58FX.....	ad No 15, 2025
s 58FY.....	ad No 15, 2025
s 58FZ.....	ad No 15, 2025
s 58FZA.....	ad No 15, 2025
s 58FZB.....	ad No 15, 2025
Subdivision G	
s 58FZC.....	ad No 15, 2025
s 58FZD.....	ad No 15, 2025
s 58FZE.....	ad No 15, 2025
s 58FZF.....	ad No 15, 2025
s 58FZG.....	ad No 15, 2025
s 58FZH.....	ad No 15, 2025
s 58FZI.....	ad No 15, 2025

Endnote 4—Amendment history

Provision affected	How affected
s 58FZJ	ad No 15, 2025
s 58FZK	ad No 15, 2025
Subdivision H	
s 58FZL.....	ad No 15, 2025
Subdivision I	
s 58FZM	ad No 15, 2025
Subdivision J	
s 58FZN	ad No 15, 2025
Subdivision K	
s 58FZO	ad No 15, 2025
Subdivision L	
s 58FZP.....	ad No 15, 2025
s 58FZQ	ad No 15, 2025
Division 7	
s 58GA	ad No 15, 2025
s 58GB	ad No 15, 2025
s 58GC	ad No 15, 2025
s 58GD	ad No 15, 2025
Part V	
Part V	rep No 103, 2010 ad No 83, 2014
Division 1	
s 57.....	rep No 103, 2010
s 58.....	rs No 17, 1986 rep No 103, 2010
s 59.....	am No 81, 1977; No 17, 1986 rep No 103, 2010
s 60.....	rs No 17, 1986 rep No 103, 2010 ad No 83, 2014
s 60AA	ad No 83, 2014

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 60A	ad No 83, 2014; No 76 2023
s 60B	ad No 83, 2014
Division 2	
s 60C	ad No 83, 2014
s 60CA	ad No 83, 2014
s 60D	ad No 83, 2014
s 60E	ad No 83, 2014
s 60F	ad No 83, 2014
Division 2A	
s 60FA	ad No 83, 2014
s 60FB	ad No 83, 2014
s 60FC	ad No 83, 2014
Division 2B	
s 60FD	ad No 83, 2014
Division 2C	
s 60FE	ad No 83, 2014
Division 3	
s 60G	ad No 83, 2014
s 60H	ad No 83, 2014
s 60J	ad No 83, 2014
Division 4	
s 60K	ad No 83, 2014
Division 5	
s 60L	ad No 83, 2014
s 60M	ad No 83, 2014
s 60N	ad No 83, 2014
s 60P	ad No 83, 2014
s 60Q	ad No 83, 2014
	am No 92, 2017
s 60R	ad No 83, 2014
s 61	am No 17, 1986; No 88, 1995

Endnote 4—Amendment history

Provision affected	How affected
	rep No 128, 2002
s 62.....	am No 63, 1975; No 81, 1977; No 206, 1978
	rep No 17, 1986
s 63.....	am No 63, 1975; No 81, 1977
	rep No 17, 1986
s 63AA.....	ad No 151, 1977
	rep No 17, 1986
s 63A.....	ad No 63, 1975
	am No 81, 1977; No 17, 1986; No 168, 1986; No 123, 2001
	rep No 103, 2010
s 64.....	am No 56, 1975; No 81, 1977; No 17, 1986; No 88, 1995
	rep No 103, 2010
s 65.....	am No 17, 1986; No 88, 1995
	rep No 103, 2010
s 65A.....	ad No 165, 1984
	am No 180, 1991; No 105, 1992
	rep No 103, 2010
div 1AAA of Part V.....	ad No 128, 2002
	rep No 103, 2010
s 65AAA.....	ad No 128, 2002
	rep No 103, 2010
s 65AAB.....	ad No 128, 2002
	rep No 103, 2010
s 65AAC.....	ad No 128, 2002
	rep No 103, 2010
s 65AAD.....	ad No 128, 2002
	rep No 103, 2010
s 65AAE.....	ad No 128, 2002
	rep No 103, 2010
div 1AA of Part V.....	ad No 106, 1998
	rep No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 65AA	ad No 106, 1998 am No 31, 2001; No 21, 2003 rep No 103, 2010
65AB	ad No 106, 1998 am No 31, 2001; No 21, 2003 rep No 103, 2010
s 65AC	ad No 106, 1998 am No 31, 2001; No 21, 2003 rep No 103, 2010
s 65AD	ad No 106, 1998 am No 31, 2001; No 21, 2003 rep No 103, 2010
s 65AE	ad No 106, 1998 rep No 103, 2010
s 65AF	ad No 106, 1998 rep No 103, 2010
s 65AG	ad No 106, 1998 rep No 103, 2010
s 65AH	ad No 106, 1998 rep No 103, 2010
s 65AJ	ad No 106, 1998 rep No 103, 2010
s 65AK	ad No 106, 1998 rep No 103, 2010
s 65AL	ad No 106, 1998 rep No 103, 2010
s 65AM	ad No 106, 1998 rep No 103, 2010
s 65AN	ad No 106, 1998 am No 31, 2001; No 21, 2003 rep No 103, 2010

Endnote 4—Amendment history

Provision affected	How affected
div 1A of Part V.....	ad No 17, 1986 rep No 103, 2010
s 65B.....	ad No 17, 1986 rep No 103, 2010
s 65C.....	ad No 17, 1986 rep No 103, 2010
s 65D.....	ad No 17, 1986 rep No 103, 2010
s 65E.....	ad No 17, 1986 am No 63, 2002; No 126, 2008 rep No 103, 2010
s 65F.....	ad No 17, 1986 am No 141, 1994; No 31, 2001; No 63, 2001; No 63, 2002 rep No 103, 2010
s 65G.....	ad No 17, 1986 rep No 103, 2010
s 65H.....	ad No 17, 1986 rep No 103, 2010
s 65J.....	ad No 17, 1986 am No 88, 1995 rep No 103, 2010
s 65K.....	ad No 17, 1986 rep No 103, 2010
s 65L.....	ad No 17, 1986 rep No 103, 2010
s 65M.....	ad No 17, 1986 rep No 103, 2010
s 65N.....	ad No 17, 1986 rep No 103, 2010
s 65P.....	ad No 17, 1986 rep No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 65Q.....	ad No 17, 1986 am No 168, 1986; No 141, 1994; No 31, 2001 rep No 103, 2010
s 65R.....	ad No 17, 1986 am No 141, 1994; No 31, 2001; No 63, 2001; No 63, 2002 rep No 103, 2010
s 65S.....	ad No 17, 1986 rep No 103, 2010
s 65T.....	ad No 17, 1986 am No 146, 1999 rep No 103, 2010
s 65U.....	ad No 17, 1986 rep No 20, 1988
s 66.....	rep No 103, 2010
s 66A.....	ad No 141, 1987 rep No 103, 2010
s 67.....	rep No 103, 2010
s 68.....	am No 206, 1978; No 17, 1986 rep No 103, 2010
s 68A.....	ad No 151, 1977 rep No 103, 2010
s 68B.....	ad No 146, 2002 rep No 103, 2010
s 69.....	am No 88, 1995 rep No 103, 2010
s 70.....	am No 81, 1977 rep No 103, 2010
s 71.....	am No 81, 1977; No 88, 1995 rep No 103, 2010
s 72.....	am No 81, 1977 rep No 103, 2010

Endnote 4—Amendment history

Provision affected	How affected
s 73.....	rs No 17, 1986 am No 48, 1998; No 55, 2001 rep No 103, 2010
s 73A.....	ad No 17, 1986 rep No 103, 2010
s 73B.....	ad No 17, 1986 rep No 103, 2010
s 74.....	am No 81, 1977; No 17, 1986; No 88, 1995; No 118, 2004 rep No 103, 2010
div 2A of Part V.....	ad No 206, 1978 rep No 103, 2010
s 74A.....	ad No 206, 1978 am No 17, 1986 rep No 103, 2010
s 74B.....	ad No 206, 1978 am No 17, 1986 rep No 103, 2010
s 74C.....	ad No 206, 1978 am No 17, 1986 rep No 103, 2010
s 74D.....	ad No 206, 1978 am No 17, 1986; No 168, 1986 rep No 103, 2010
s 74E.....	ad No 206, 1978 am No 17, 1986 rep No 103, 2010
s 74F.....	ad No 206, 1978 am No 17, 1986; No 88, 1995 rep No 103, 2010
s 74G.....	ad No 206, 1978 am No 17, 1986

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rep No 103, 2010
s 74H.....	ad No 206, 1978
	rep No 103, 2010
s 74J.....	ad No 206, 1978
	am No 17, 1986; No 11, 1990; No 113, 2004
	rep No 103, 2010
s 74K.....	ad No 206, 1978
	rep No 103, 2010
s 74L.....	ad No 206, 1978
	rep No 103, 2010
s 74M.....	ad No 113, 2004
	rep No 103, 2010
s 75.....	am No 88, 1995
	rep No 103, 2010
s 75A.....	ad No 81, 1977
	am No 88, 1995
	rep No 103, 2010
Part VA.....	ad No 106, 1992
	rep No 103, 2010
s 75AA.....	ad No 106, 1992
	rep No 103, 2010
s 75AB.....	ad No 106, 1992
	rep No 103, 2010
s 75AC.....	ad No 106, 1992
	rep No 103, 2010
s 75AD.....	ad No 106, 1992
	rep No 103, 2010
s 75AE.....	ad No 106, 1992
	rep No 103, 2010
s 75AF.....	ad No 106, 1992
	rep No 103, 2010

Endnote 4—Amendment history

Provision affected	How affected
s 75AG	ad No 106, 1992 rep No 103, 2010
s 75AH	ad No 106, 1992 rep No 103, 2010
s 75AI	ad No 106, 1992 rep No 103, 2010
s 75AJ	ad No 106, 1992 rep No 103, 2010
s 75AK	ad No 106, 1992 rep No 103, 2010
s 75AL	ad No 106, 1992 rep No 103, 2010
s 75AM	ad No 106, 1992 rep No 103, 2010
s 75AN	ad No 106, 1992 rep No 103, 2010
s 75AO	ad No 106, 1992 am No 113, 2004 rep No 103, 2010
s 75AP	ad No 106, 1992 rep No 103, 2010
s 75AQ	ad No 106, 1992 am No 88, 1995 rep No 103, 2010
s 75AR	ad No 106, 1992 am No 88, 1995 rep No 103, 2010
s 75AS	ad No 106, 1992 am No 106, 1998; No 194, 1999 rep No 103, 2010
Part VB	ad No 61, 1999

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rep No 111, 2009
s 75AT	ad No 61, 1999
	am No 176, 1999; No 101, 2006
	rep No 111, 2009
s 75AU	ad No 61, 1999
	am No 176, 1999
	rep No 111, 2009
s 75AV	ad No 61, 1999
	rep No 111, 2009
s 75AW	ad No 61, 1999
	rep No 111, 2009
75AX	ad No 61, 1999
	rep No 111, 2009
s 75AY	ad No 61, 1999
	am No 146, 2001
	rep No 111, 2009
s 75AYA	ad No 69, 2000
	rep No 111, 2009
s 75AZ	ad No 61, 1999
	rep No 111, 2009
Part VC	ad No 31, 2001
	rep No 103, 2010
s 75AZA	ad No 31, 2001
	am No 55, 2001; No 123, 2001
	rep No 103, 2010
s 75AZAA	ad No 126, 2008
	rep No 103, 2010
s 75AZB	ad No 31, 2001
	rep No 103, 2010
s 75AZC	ad No 31, 2001
	am No 117, 2001

Endnote 4—Amendment history

Provision affected	How affected
	rep No 103, 2010
s 75AZD	ad No 31, 2001
	am No 117, 2001
	rep No 103, 2010
s 75AZE	ad No 31, 2001
	am No 117, 2001
	rep No 103, 2010
s 75AZF	ad No 31, 2001
	am No 117, 2001; No 126, 2008
	rep No 103, 2010
s 75AZG	ad No 31, 2001
	am No 117, 2001
	rep No 103, 2010
s 75AZH	ad No 31, 2001
	am No 117, 2001
	rep No 103, 2010
s 75AZI	ad No 31, 2001
	am No 117, 2001
	rep No 103, 2010
s 75AZJ	ad No 31, 2001
	am No 117, 2001
	rep No 103, 2010
s 75AZK	ad No 31, 2001
	am No 117, 2001
	rep No 103, 2010
s 75AZL	ad No 31, 2001
	am No 117, 2001
	rep No 103, 2010
s 75AZM	ad No 31, 2001
	am No 117, 2001
	rep No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 75AZN	ad No 31, 2001 am No 117, 2001 rep No 103, 2010
s 75AZO	ad No 31, 2001 am No 117, 2001 rs No 128, 2002 rep No 103, 2010
s 75AZP	ad No 31, 2001 am No 117, 2001 rep No 103, 2010
s 75AZQ	ad No 31, 2001 am No 117, 2001 rep No 103, 2010
s 75AZR.....	ad No 31, 2001 rep No 103, 2010
s 75AZS	ad No 31, 2001 am No 117, 2001; No 126, 2008 rep No 103, 2010
s 75AZT	ad No 31, 2001 am No 117, 2001; No 126, 2008 rep No 103, 2010
s 75AZU	ad No 31, 2001 am No 117, 2001 rep No 103, 2010
Chapter 5	
Chapter 5 heading.....	ad No 137, 2024
Part VI	
Division 1	
Division 1 heading.....	ad No 137, 2024
s 75B	ad No 81, 1977

Endnote 4—Amendment history

Provision affected	How affected
	am No 23, 1987; No 222, 1992; No 36, 1998; No 61, 1999; No 69, 2000; No 31, 2001; No 131, 2006; No 111, 2009; No 103, 2010 (as am by No 184, 2011); No 83, 2014; No 9, 2016; No 114, 2017; No 63, 2019; No 21, 2021; No 54, 2021; No 96, 2022; No 75, 2024
Division 2	
Division 2 heading.....	ad No 137, 2024
s 76.....	am No 88, 1976; No 81, 1977; No 207, 1978; No 73, 1980; No 222, 1992; No 98, 1993; No 60, 1996; No 58, 1997; No 61, 1999; No 69, 2000; No 131, 2006; No 59, 2009; No 111, 2009; No 44, 2010; No 103, 2010; No 83, 2014; No 107, 2014; No 9, 2016; No 114, 2017; No 63, 2019; No 115, 2019; No 21, 2021; No 54, 2021; No 54, 2022; No 96, 2022; No 75, 2023; No 75, 2024; No 137, 2024; No 19, 2026
s 76A.....	ad No 69, 2000
	am No 131, 2006; No 111, 2009; No 114, 2017
s 76B.....	ad No 69, 2000
	am No 131, 2006; No 59, 2009; No 111, 2009; No 114, 2017; No 63, 2019; No 75, 2024
s 76C.....	ad No 131, 2006
	rep No 114, 2017
s 76D.....	ad No 131, 2006
	rep No 59, 2009
s 76E.....	ad No 44, 2010
	rep No 103, 2010
s 76F.....	ad No 44, 2010
	rep No 103, 2010
s 77.....	am No 88, 1976; No 88, 1995; No 44, 2010; No 103, 2010
s 77A.....	ad No 131, 2006
	am No 44, 2010; No 103, 2010; No 83, 2014
s 77B.....	ad No 131, 2006
s 77C.....	ad No 131, 2006
Division 3	
Division 3	ad No 137, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 77D.....	ad No 137, 2024
Division 4	
Division 4 heading.....	ad No 137, 2024
s 78.....	am No 61, 1999; No 69, 2000; No 31, 2001; No 59, 2009; No 111, 2009; No 103, 2010 (as am by No 184, 2011)
s 79.....	am No 81, 1977; No 17, 1986; No 222, 1992; No 31, 2001; No 63, 2001; No 59, 2009; No 4, 2010; No 103, 2010; No 114, 2017
Division 5	
Division 5 heading.....	ad No 137, 2024
s 79A.....	ad No 17, 1986 am No 31, 2001; No 131, 2006; No 59, 2009; No 103, 2010; No 63, 2019; No 115, 2019; No 75, 2024
s 79B.....	ad No 63, 2001 am No 63, 2001 (as am by No 63, 2002); No 59, 2009; No 44, 2010; No 103, 2010; No 63, 2019; No 96, 2022; No 75, 2024
s 80.....	am No 88, 1976; No 81, 1977; No 39, 1983; No 17, 1986; No 222, 1992; No 88, 1995; No 60, 1996; No 36, 1998; No 61, 1999; No 69, 2000; No 31, 2001; No 59, 2009; No 111, 2009; No 44, 2010; No 103, 2010; No 83, 2014; No 9, 2016; No 63, 2019; No 115, 2019; No 21, 2021; No 54, 2021; No 96, 2022; No 75, 2023; No 75, 2024; No 137, 2024
s 80A.....	ad No 81, 1977 am No 39, 1983; No 17, 1986; No 222, 1992; No 88, 1995; No 36, 1998 rep No 63, 2001 ad No 83, 2014
s 80AA.....	ad No 73, 1980 am No 39, 1983; No 87, 1988 (as am by No 108, 1990) rep No 98, 1993 ad No 60, 1996 rep SLI 2006 No 50
s 80AB.....	ad No 60, 1996 am SLI 2006 No 50

Endnote 4—Amendment history

Provision affected	How affected
s 80AC	ad No 131, 2006 am No 114, 2017
s 80AD	ad No 137, 2024
s 80B	ad No 61, 1999 rep No 111, 2009
s 81	am No 88, 1976 rs No 81, 1977 am No 17, 1986; No 222, 1992; No 88, 1995; No 131, 2006
s 81A	ad No 131, 2006 am No 114, 2017
s 81B	ad No 137, 2024
s 82	rs No 81, 1977 am No 17, 1986; No 222, 1992; No 36, 1998; No 63, 2001; No 103, 2004; No 113, 2004; No 118, 2004; No 11, 2006; No 103, 2010 (as am by No 184, 2011); No 83, 2014; No 9, 2016; No 15, 2019; No 63, 2019; No 21, 2021; No 54, 2021; No 96, 2022; No 75, 2024
s 83	rs No 81, 1977 am No 222, 1992; No 36, 1998; No 31, 2001; No 63, 2001; No 59, 2009; No 44, 2010; No 103, 2010 (as am by No 184, 2011); No 83, 2014; No 9, 2016 ed C105 rs No 114, 2017 am No 63, 2019; No 21, 2021; No 54, 2021; No 96, 2022; No 75, 2024
s 84	rs No 17, 1986 am No 70, 1990; No 222, 1992; No 36, 1998; No 61, 1999; No 31, 2001; No 146, 2001; No 59, 2009; No 111, 2009; No 44, 2010; No 103, 2010; No 185, 2011; No 83, 2014; No 9, 2016; No 114, 2017; No 63, 2019; No 115, 2019; No 21, 2021; No 54, 2021; No 96, 2022; No 75, 2024
s 85	am No 81, 1977; No 17, 1986; No 88, 1995; No 31, 2001; No 128, 2002; No 44, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rs No 103, 2010
	am No 83, 2014
s 86.....	rs No 23, 1987
	am No 222, 1992; No 36, 1998; No 106, 1998; No 194, 1999; No 57, 2000; No 23, 2006; No 116, 2008; No 59, 2009; No 44, 2010; No 103, 2010 (as am by No 184, 2011); No 13, 2013; No 9, 2016; No 63, 2019; No 13, 2021; No 54, 2021; No 96, 2022; No 75, 2024
s 86AA.....	ad No 194, 1999
	am No 161, 2000; No 23, 2006; No 103, 2010; No 13, 2013; No 13, 2021
s 86A.....	ad No 23, 1987
	am No 222, 1992; No 36, 1998; No 106, 1998; No 44, 2010; No 103, 2010; No 9, 2016; No 63, 2019; No 54, 2021; No 96, 2022; No 75, 2024
s 86B.....	ad No 8, 1988
	am No 222, 1992; No 106, 1998; No 44, 2010
	rep No 103, 2010
s 86C.....	ad No 63, 2001
	am No 63, 2001; No 131, 2006; No 59, 2009; No 111, 2009; No 103, 2010; No 83, 2014; No 9, 2016; No 114, 2017; No 63, 2019; No 21, 2021; No 54, 2021; No 96, 2022; No 75, 2024
s 86D.....	ad No 63, 2001
	am No 63, 2001; No 59, 2009; No 44, 2010; No 103, 2010; No 63, 2019; No 75, 2024
s 86DA.....	ad No 44, 2010
	rep No 103, 2010
s 86E.....	ad No 131, 2006
	am No 59, 2009; No 44, 2010; No 103, 2010; No 63, 2019; No 54, 2021; No 96, 2022; No 75, 2023; No 111, 2023; No 75, 2024

Endnote 4—Amendment history

Provision affected	How affected
s 86F	ad No 59, 2009 am No 63, 2019; No 96, 2022
s 87.....	am No 81, 1977; No 39, 1983; No 17, 1986; No 168, 1986; No 222, 1992; No 49, 1994; No 88, 1995; No 36, 1998; No 31, 2001; No 63, 2001; No 113, 2004; No 118, 2004; No 11, 2006; No 59, 2009; No 44, 2010; No 103, 2010 (as am by No 184, 2011; No 136, 2012); No 83, 2014; No 9, 2016; No 114, 2017; No 63, 2019; No 21, 2021; No 54, 2021; No 96, 2022; No 75, 2024
s 87AAA	ad No 44, 2010 am No 44, 2010 rep No 103, 2010
s 87AAB	ad No 44, 2010 rep No 103, 2010
s 87A.....	ad No 17, 1986 am No 222, 1992; No 31, 2001; No 146, 2001; No 44, 2010 rep No 103, 2010
s 87AA.....	ad No 60, 1996 am SLI 2006 No 50; No 54, 2009
s 87AB	ad No 118, 2004 rep No 103, 2010
s 87AC	ad No 44, 2010 rep No 103, 2010
s 87B.....	ad No 222, 1992 am No 131, 2006; No 114, 2017; No 63, 2019; No 96, 2022; No 69, 2026
s 87C.....	ad No 141, 1994 am No 5, 2011
s 87CA	ad No 63, 2001
s 87CAA	ad No 113, 2004 rep No 103, 2010
Part VIA	
Part VIA.....	ad No 103, 2004

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 87CB	ad No 103, 2004 am No 103, 2010
s 87CC	ad No 103, 2004
s 87CD	ad No 103, 2004
s 87CE	ad No 103, 2004
s 87CF	ad No 103, 2004
s 87CG	ad No 103, 2004
s 87CH	ad No 103, 2004
s 87CI	ad No 103, 2004
Part VIB	
Part VIB	ad No 113, 2004
Division 1	
s 87D	ad No 113, 2004 am No 59, 2009; No 103, 2010; No 119, 2023
s 87E	ad No 113, 2004 am No 103, 2010
Division 2	
s 87F	ad No 113, 2004
s 87G	ad No 113, 2004
s 87H	ad No 113, 2004
s 87J	ad No 113, 2004
s 87K	ad No 113, 2004
Division 3	
s 87L	ad No 113, 2004
s 87M	ad No 113, 2004
s 87N	ad No 113, 2004 am No 4, 2016
s 87P	ad No 113, 2004
s 87Q	ad No 113, 2004
s 87R	ad No 113, 2004
s 87S	ad No 113, 2004

Endnote 4—Amendment history

Provision affected	How affected
s 87T	ad No 113, 2004
Division 4	
s 87U	ad No 113, 2004
s 87V	ad No 113, 2004
Division 5	
s 87W	ad No 113, 2004
s 87X	ad No 113, 2004
Division 6	
s 87Y	ad No 113, 2004 am No 103, 2013; No 126, 2015
s 87Z	ad No 113, 2004 am No 57, 2025
s 87ZA	ad No 113, 2004
s 87ZB	ad No 113, 2004
Division 7	
s 87ZC	ad No 113, 2004
Part VIC	ad No 44, 2010 rep No 103, 2010
s 87ZD	ad No 44, 2010 rep No 103, 2010
s 87ZE	ad No 44, 2010 rep No 103, 2010
s 87ZF	ad No 44, 2010 rep No 103, 2010
s 87ZG	ad No 44, 2010 rep No 103, 2010
s 87ZH	ad No 44, 2010 rep No 103, 2010
s 87ZI	ad No 44, 2010 rep No 103, 2010
s 87ZJ	ad No 44, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rep No 103, 2010
s 87ZK	ad No 44, 2010
	rep No 103, 2010
Part VID.....	ad No 44, 2010
	rep No 103, 2010
s 87ZL.....	ad No 44, 2010
	rep No 103, 2010
s 87ZM.....	ad No 44, 2010
	rep No 103, 2010
s 87ZN	ad No 44, 2010
	rep No 103, 2010
s 87ZO	ad No 44, 2010
	rep No 103, 2010
Chapter 6	
Chapter 6 heading.....	ad No 137, 2024
Part VII	
Part VII heading.....	am No 81, 1977; No 206, 1978 rs No 131, 2006; No 114, 2017
Division 1	
Division 1 heading.....	rs No 131, 2006; No 114, 2017
s 87D.....	ad No 101, 1998 renum No 113, 2004
s 87ZD (prev s 87D)	am No 131, 2006 renum No 44, 2010
s 87ZP (prev s 87ZD)	am No 114, 2017; No 76, 2023; No 48, 2026
s 88.....	rs No 81, 1977 am No 206, 1978; No 207, 1978; No 73, 1980; No 17, 1986; No 222, 1992; No 98, 1993; No 88, 1995; No 60, 1996; No 101, 1998; No 131, 2006; No 59, 2009; No 185, 2011 rs No 114, 2017 am No 137, 2024

Endnote 4—Amendment history

Provision affected	How affected
s 89.....	am No 88, 1976; No 81, 1977; No 17, 1986; No 222, 1992; No 88, 1995; No 101, 1998; No 131, 2006; No 103, 2010; No 114, 2017; No 76, 2023
s 90.....	am No 88, 1976; No 81, 1977; No 206, 1978; No 73, 1980; No 17, 1986; No 11, 1990; No 222, 1992; No 98, 1993; No 88, 1995; No 60, 1996; No 108, 2004; No 131, 2006; No 59, 2009; No 185, 2011; No 114, 2017; No 49, 2019; No 129, 2020; No 141, 2020; No 76, 2023; No 137, 2024; No 48, 2026
s 90A.....	ad No 81, 1977 am No 17, 1986; No 88, 1995; No 61, 2016; No 114, 2017; No 76, 2023
s 90B.....	ad No 108, 2004 am No 60, 2006; No 114, 2017
s 91.....	am No 81, 1977; No 17, 1986; No 101, 1998; No 114, 2017; No 49, 2019; No 76, 2023
s 91A.....	ad No 101, 1998 am No 108, 2004; No 131, 2006; No 59, 2009; No 185, 2011; No 114, 2017; No 76, 2023
s 91B.....	ad No 101, 1998 am No 108, 2004; No 131, 2006; No 59, 2009; No 185, 2011; No 114, 2017; No 76, 2023
s 91C.....	ad No 101, 1998 am No 108, 2004; No 131, 2006; No 59, 2009; No 185, 2011; No 114, 2017; No 76, 2023
s 92.....	ad No 114, 2017
Division 1A	
Division 1A.....	ad No 48, 2026
s 92A.....	ad No 48, 2026
s 92B.....	ad No 48, 2026
s 92C.....	ad No 48, 2026
s 92D.....	ad No 48, 2026
s 92E.....	ad No 48, 2026
s 92F.....	ad No 48, 2026

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 92G.....	ad No 48, 2026
s 92H.....	ad No 48, 2026
Division 2	
Division 2 heading.....	rs No 81, 1977 am No 206, 1978
s 92.....	rep No 81, 1977
Subdivision A	
Subdivision A heading.....	ad No 131, 2006 rs No 185, 2011; No 114, 2017
s 93.....	rs No 81, 1977 am No 206, 1978; No 17, 1986; No 88, 1995; No 131, 2006; No 185, 2011; No 114, 2017; No 76, 2023
s 93AAA	ad No 114, 2017
Subdivision B	
Subdivision B	ad No 131, 2006
s 93AA	ad No 131, 2006 am No 59, 2009; No 114, 2017
s 93AB	ad No 131, 2006 am No 54, 2009; No 59, 2009; No 114, 2017; No 64, 2020
s 93AC	ad No 131, 2006 am No 59, 2009; No 114, 2017
s 93ACA	ad No 114, 2017
s 93AD	ad No 131, 2006 am No 114, 2017
s 93AE	ad No 131, 2006
s 93AEA	ad No 59, 2009
s 93AF.....	ad No 131, 2006 am No 59, 2009
s 93AG.....	ad No 114, 2017
Subdivision C	
Subdivision C heading.....	ad No 131, 2006

Endnote 4—Amendment history

Provision affected	How affected
s 93A.....	ad No 81, 1977 am No 88, 1995; No 131, 2006; No 59, 2009; No 61, 2016; No 114, 2017
s 94.....	rep No 81, 1977
Subdivision D	
Subdivision D heading.....	ad No 131, 2006
s 95.....	rs No 81, 1977 am No 17, 1986; No 222, 1992; No 88, 1995; No 36, 1998; No 131, 2006; No 103, 2010; No 114, 2017
Division 3	
Division 3	ad No 131, 2006 rs No 114, 2017
s 95AA.....	ad No 131, 2006 rs No 114, 2017 am No 49, 2019; No 137, 2024
s 95AB	ad No 131, 2006 rs No 114, 2017
s 95AC	ad No 131, 2006 rep No 114, 2017 ad No 48, 2026
s 95AD.....	ad No 131, 2006 rep No 114, 2017 ad No 48, 2026
s 95AE	ad No 131, 2006 rep No 114, 2017
s 95AF.....	ad No 131, 2006 rep No 114, 2017
s 95AG.....	ad No 131, 2006 am No 8, 2010 rep No 114, 2017
s 95AH.....	ad No 131, 2006

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rep No 114, 2017
s 95AI	ad No 131, 2006
	rep No 114, 2017
s 95AJ	ad No 131, 2006
	rep No 114, 2017
s 95AK	ad No 131, 2006
	rep No 114, 2017
s 95AL	ad No 131, 2006
	rep No 114, 2017
s 95AM	ad No 131, 2006
	rep No 114, 2017
s 95AN	ad No 131, 2006
	rep No 114, 2017
s 95AO	ad No 131, 2006
	rep No 114, 2017
s 95AP	ad No 131, 2006
	rep No 114, 2017
s 95AQ	ad No 131, 2006
	rep No 114, 2017
s 95AR	ad No 131, 2006
	am No 8, 2010
	rep No 114, 2017
s 95AS	ad No 131, 2006
	am No 8, 2010
	rep No 114, 2017
s 95AT	ad No 131, 2006
	rep No 114, 2017
s 95AU	ad No 131, 2006
	rep No 114, 2017
s 95AV	ad No 131, 2006
	rep No 114, 2017

Endnote 4—Amendment history

Provision affected	How affected
s 95AW	ad No 131, 2006 rep No 114, 2017
s 95AX	ad No 131, 2006 rep No 114, 2017
s 95AY	ad No 131, 2006 am No 8, 2010 rep No 114, 2017
s 95AZ	ad No 131, 2006 rep No 114, 2017
s 95AZA	ad No 131, 2006 rep No 114, 2017
s 95AZC	ad No 131, 2006 rep No 114, 2017
s 95AZD	ad No 131, 2006 rep No 114, 2017
s 95AZE	ad No 131, 2006 rep No 114, 2017
s 95AZEA	ad No 131, 2006 rep No 114, 2017
s 95AZF	ad No 131, 2006 rep No 114, 2017
s 95AZFA	ad No 131, 2006 rep No 114, 2017
s 95AZG	ad No 131, 2006 rep No 114, 2017
s 95AZH	ad No 131, 2006 rep No 114, 2017
s 95AZI	ad No 131, 2006 rep No 114, 2017
s 95AZJ	ad No 131, 2006 rep No 114, 2017

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 95AZK	ad No 131, 2006 rep No 114, 2017
s 95AZL	ad No 131, 2006 am No 8, 2010 rep No 114, 2017
s 95AZM	ad No 131, 2006 am No 8, 2010 rep No 114, 2017
s 95AZN	ad No 131, 2006 rep No 114, 2017
Division 4	
Division 4	ad No 48, 2026
s 95AE	ad No 48, 2026
s 95AF	ad No 48, 2026
Part VIIA	
Part VIIA	ad No 134, 2003
Division 1	
s 95A	ad No 134, 2003 am No 154, 2020
s 95B	ad No 134, 2003
s 95C	ad No 134, 2003 am No 154, 2020
s 95D	ad No 134, 2003
s 95E	ad No 134, 2003
s 95F	ad No 134, 2003
Division 2	
s 95G	ad No 134, 2003
Division 3	
Subdivision A	
s 95H	ad No 134, 2003
s 95J	ad No 134, 2003

Endnote 4—Amendment history

Provision affected	How affected
s 95K.....	ad No 134, 2003
s 95L.....	ad No 134, 2003
	am No 49, 2019
s 95M.....	ad No 134, 2003
s 95N.....	ad No 134, 2003
	am No 4, 2016
Subdivision B	
s 95P.....	ad No 134, 2003
s 95Q.....	ad No 134, 2003
	am No 4, 2016
Subdivision C	
s 95R.....	ad No 134, 2003
s 95S.....	ad No 134, 2003
s 95T.....	ad No 134, 2003
	am No 4, 2016
s 95U.....	ad No 134, 2003
s 95V.....	ad No 134, 2003
s 95W.....	ad No 134, 2003
Division 4	
s 95X.....	ad No 134, 2003
s 95Y.....	ad No 134, 2003
s 95Z.....	ad No 134, 2003
	am No 4, 2016
s 95ZA.....	ad No 134, 2003
s 95ZB.....	ad No 134, 2003
s 95ZC.....	ad No 134, 2003
	am No 38, 2024
s 95ZD.....	ad No 134, 2003
Division 5	
s 95ZE.....	ad No 134, 2003
s 95ZF.....	ad No 134, 2003

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 95ZG	ad No 134, 2003
Division 6	
s 95ZH	ad No 134, 2003
s 95ZI	ad No 134, 2003
s 95ZJ	ad No 134, 2003
s 95ZK	ad No 134, 2003
	am No 4, 2016; No 64, 2020
s 95ZL	ad No 134, 2003
s 95ZM	ad No 134, 2003
s 95ZN	ad No 134, 2003
s 95ZO	ad No 134, 2003
s 95ZP	ad No 134, 2003
	am No 4, 2016
s 95ZPA	ad No 91, 2017
	am No 66, 2021
s 95ZQ	ad No 134, 2003
	am No 4, 2016
Part VIII	
s 96	am No 88, 1995; No 114, 2017
s 96A	ad No 88, 1995
s 97	am No 88, 1995
s 100	am No 88, 1976; No 88, 1995
Part IX	
Part IX heading	am No 137, 2024
Division 1A	
Division 1A	ad No 137, 2024
s 100A	ad No 137, 2024
s 100B	ad No 137, 2024
Division 1B	
Division 1B	ad No 137, 2024

Endnote 4—Amendment history

Provision affected	How affected
Subdivision A	
s 100C	ad No 137, 2024
s 100D	ad No 137, 2024
s 100E	ad No 137, 2024
s 100F	ad No 137, 2024
s 100G	ad No 137, 2024
s 100H	ad No 137, 2024
s 100J	ad No 137, 2024
s 100K	ad No 137, 2024
s 100L	ad No 137, 2024
s 100M	ad No 137, 2024
Subdivision B	
s 100N	ad No 137, 2024
s 100P	ad No 137, 2024
s 100Q	ad No 137, 2024
s 100R	ad No 137, 2024
s 100S	ad No 137, 2024
s 100T	ad No 137, 2024
Division 1	
Division 1 heading.....	rs No 131, 2006; No 114, 2017 am No 137, 2024
s 101	am No 88, 1976; No 81, 1977; No 17, 1986; No 88, 1995; No 101, 1998; No 131, 2006; No 59, 2009; No 185, 2011; No 114, 2017; No 76, 2023; No 137, 2024
s 101A	ad No 81, 1977 am No 88, 1995; No 131, 2006; No 114, 2017
s 101B	ad No 114, 2017
s 102	rs No 81, 1977 am No 222, 1992; No 88, 1995; No 101, 1998; No 131, 2006; No 114, 2017; No 76, 2023

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 2	
s 102A.....	ad No 131, 2006 rep No 114, 2017 ad No 137, 2024
s 103.....	am No 131, 2006
s 104.....	am No 88, 1995; No 137, 2024 ed C159
s 108.....	am No 76, 2023
s 109.....	am No 81, 1977; No 88, 1995; No 131, 2006; No 114, 2017; No 76, 2023; No 137, 2024
s 110.....	am No 88, 1976
s 111.....	am No 88, 1976 rep No 34, 1989 ad No 131, 2006 rep No 114, 2017 ad No 137, 2024
s 112.....	rep No 34, 1989 ad No 131, 2006 rep No 114, 2017 ad No 137, 2024
s 113.....	rep No 34, 1989 ad No 131, 2006 rep No 114, 2017 ad No 137, 2024
Division 3	ad No 131, 2006 rep No 114, 2017
s 114.....	rep No 34, 1989 ad No 131, 2006 rep No 114, 2017
s 115.....	rep No 34, 1989 ad No 131, 2006

Endnote 4—Amendment history

Provision affected	How affected
	rep No 114, 2017
s 116.....	rep No 34, 1989
	ad No 131, 2006
	rep No 114, 2017
s 117.....	rep No 34, 1989
	ad No 131, 2006
	rep No 114, 2017
s 118.....	rep No 34, 1989
	ad No 131, 2006
	rep No 114, 2017
s 119.....	rep No 34, 1989
	ad No 131, 2006
	rep No 114, 2017
Part X	
Part X.....	rs No 34, 1989
Division 1	
s 10.01.....	ad No 34, 1989
	am No 123, 2000
s 10.01A.....	ad No 123, 2000
	am No 59, 2009
s 10.02.....	ad No 34, 1989
	am No 173, 1991; No 123, 2000
s 10.02A.....	ad No 123, 2000
	am No 109, 2006
s 10.03.....	ad No 34, 1989
	am No 123, 2000; No 109, 2006
Division 2	
s 10.04.....	ad No 34, 1989
s 10.05.....	ad No 34, 1989
	rep No 123, 2000

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 3	
s 10.06.....	ad No 34, 1989 am No 123, 2000
s 10.07.....	ad No 34, 1989 am No 123, 2000
s 10.08.....	ad No 34, 1989 am No 123, 2000; No 59, 2009; No 114, 2017
s 10.09.....	ad No 34, 1989
Division 4	
s 10.10.....	ad No 34, 1989
s 10.11.....	ad No 34, 1989 am No 123, 2000
s 10.12.....	ad No 34, 1989
s 10.13.....	ad No 34, 1989 am No 123, 2000
Division 5	
Subdivision A	
s 10.14.....	ad No 34, 1989 rs No 123, 2000
s 10.15.....	ad No 34, 1989 am No 123, 2000
s 10.15A.....	ad No 123, 2000 rep No 123, 2000
s 10.16.....	ad No 34, 1989 am No 123, 2000
s 10.17.....	ad No 34, 1989 am No 123, 2000; No 59, 2009
s 10.17A.....	ad No 173, 1991 rs No 123, 2000 am No 59, 2009
s 10.18.....	ad No 34, 1989

Endnote 4—Amendment history

Provision affected	How affected
	am No 123, 2000
s 10.18A.....	ad No 173, 1991
	rs No 123, 2000
Subdivision B	
s 10.19.....	ad No 34, 1989
	am No 123, 2000; No 59, 2009
s 10.20.....	ad No 34, 1989
	am No 123, 2000
s 10.21.....	ad No 34, 1989
s 10.21A.....	ad No 123, 2000
	rep No 123, 2000
sub div C of div 5 of.....	rep No 123, 2000
Part X	
s 10.22.....	ad No 34, 1989
	rep No 123, 2000
s 10.23.....	ad No 34, 1989
	rep No 123, 2000
Subdivision D	
s 10.24.....	ad No 34, 1989
	am No 123, 2000; No 59, 2009
s 10.24A.....	ad No 123, 2000
	am No 7, 2003; No 59, 2009
Division 6	
Subdivision A	
s 10.25.....	ad No 34, 1989
s 10.26.....	ad No 34, 1989
s 10.27.....	ad No 34, 1989
	am No 173, 1991; No 123, 2000
s 10.27A.....	ad No 123, 2000
s 10.28.....	ad No 34, 1989
	am No 123, 2000

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 10.29.....	ad No 34, 1989 am No 123, 2000
Subdivision B	
s 10.30.....	ad No 34, 1989
s 10.31.....	ad No 34, 1989
s 10.32.....	ad No 34, 1989 am No 173, 1991
s 10.33.....	ad No 34, 1989 am No 123, 2000
Subdivision C	
s 10.34.....	ad No 34, 1989
s 10.35.....	ad No 34, 1989
s 10.36.....	ad No 34, 1989
s 10.37.....	ad No 34, 1989 am No 123, 2000
s 10.38.....	ad No 34, 1989
Subdivision D	
s 10.39.....	ad No 34, 1989 am No 173, 1991
s 10.40.....	ad No 34, 1989 am No 123, 2000
Division 7	
s 10.41.....	ad No 34, 1989 am No 123, 2000
s 10.42.....	ad No 34, 1989 am No 173, 1991
s 10.43.....	ad No 34, 1989 am No 123, 2000
Division 8	
s 10.44.....	ad No 34, 1989 am No 123, 2000

Endnote 4—Amendment history

Provision affected	How affected
s 10.45.....	ad No 34, 1989 am No 123, 2000; No 59, 2009
s 10.46.....	ad No 34, 1989 am No 123, 2000
s 10.47.....	ad No 34, 1989 am No 123, 2000
s 10.48.....	ad No 34, 1989 am No 123, 2000
s 10.49.....	ad No 34, 1989
s 10.49A.....	ad No 123, 2000 am No 137, 2024
Division 9	
s 10.50–10.53.....	ad No 34, 1989 am No 123, 2000
Division 10	
s 10.54.....	ad No 34, 1989
s 10.55.....	ad No 34, 1989 am No 123, 2000
s 10.56.....	ad No 34, 1989 am No 123, 2000
s 10.57.....	ad No 34, 1989
s 10.58.....	ad No 34, 1989 am No 123, 2000
s 10.59.....	ad No 34, 1989
s 10.60.....	ad No 34, 1989 am No 137, 2024
Division 11	
s 10.61.....	ad No 34, 1989
s 10.62.....	ad No 34, 1989 am No 123, 2000
s 10.63.....	ad No 34, 1989

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 123, 2000
s 10.64.....	ad No 34, 1989
	am No 123, 2000
s 10.65.....	ad No 34, 1989
	am No 137, 2024
s 10.66.....	ad No 34, 1989
	am No 123, 2000
s 10.67.....	ad No 34, 1989
	am No 123, 2000
Division 12	
s 10.68.....	ad No 34, 1989
	am No 4, 2016; No 61, 2016
s 10.69.....	ad No 34, 1989
s 10.70.....	ad No 34, 1989
s 10.71.....	ad No 34, 1989
s 10.72.....	ad No 34, 1989
Division 12A	
div 12A of Part X.....	ad No 123, 2000
s 10.72A.....	ad No 123, 2000
	am No 123, 2000; No 109, 2006; No 126, 2015
s 10.72B.....	ad No 123, 2000
s 10.72C.....	ad No 123, 2000
s 10.72D.....	ad No 123, 2000
Division 13	
s 10.73.....	ad No 34, 1989
s 10.74.....	ad No 34, 1989
s 10.75.....	ad No 34, 1989
s 10.76.....	ad No 34, 1989
Division 14	
s 10.77.....	ad No 34, 1989
s 10.78.....	ad No 34, 1989

Endnote 4—Amendment history

Provision affected	How affected
s 10.79.....	ad No 34, 1989
s 10.80.....	ad No 34, 1989
	am No 146, 1999
s 10.81.....	ad No 34, 1989
	am No 123, 2000
s 10.82.....	ad No 34, 1989
Division 14A	
div 14A of Part X.....	ad No 123, 2000
s 10.82A.....	ad No 123, 2000
s 10.82B.....	ad No 123, 2000
s 10.82C.....	ad No 123, 2000
Division 14B	
div 14B of Part X.....	ad No 123, 2000
s 10.82D.....	ad No 123, 2000
s 10.82E.....	ad No 123, 2000
s 10.82F.....	ad No 123, 2000
s 10.82G.....	ad No 123, 2000
Division 15	
s 10.83.....	ad No 34, 1989
s 10.84.....	ad No 34, 1989
	am No 38, 2024
s 10.85.....	ad No 34, 1989
	am No 38, 2024
s 10.86.....	ad No 34, 1989
	ed C105
s 10.87.....	ad No 34, 1989
	am No 123, 2000
s 10.88.....	ad No 34, 1989
	am No 123, 2000
s 10.89.....	ad No 34, 1989
s 10.90.....	ad No 34, 1989

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 173, 1991; No 123, 2000
s 10.91.....	ad No 34, 1989
	am No 131, 2006
s 10.92.....	ad No 34, 1989
	rep No 123, 2000
s 10.93.....	ad No 34, 1989
	rep No 123, 2000
s 120.....	rep No 34, 1989
s 121.....	rep No 34, 1989
s 122.....	rep No 34, 1989
s 123.....	rep No 34, 1989
s 124.....	rep No 34, 1989
s 125.....	rep No 34, 1989
s 126.....	rep No 34, 1989
s 127.....	rep No 34, 1989
s 128.....	rep No 34, 1989
s 129.....	rep No 34, 1989
Part XI	
Part XI.....	rep No 88, 1995
	ad No 44, 2010
	rs No 103, 2010
Division 1	
s 130.....	rep No 34, 1989
	ad No 44, 2010
	rs No 103, 2010
	am No 24, 2016; No 13, 2021; No 119, 2023
s 130A.....	ad No 103, 2010
Division 2	
Subdivision A	
s 131.....	rep No 34, 1989
	ad No 44, 2010

Endnote 4—Amendment history

Provision affected	How affected
	rs No 103, 2010
	am No 184, 2011; No 114, 2017; No 132, 2018
s 131A.....	ad No 103, 2010
	am No 133, 2018
s 131B.....	ad No 103, 2010
s 131C.....	ad No 103, 2010
Subdivision B	
s 131D.....	ad No 103, 2010
s 131E.....	ad No 103, 2010
	am No 126, 2015; No 136, 2024
s 131F.....	ad No 103, 2010
s 131G.....	ad No 103, 2010
Division 3	
Subdivision A	
s 132.....	rep No 34, 1989
	ad No 44, 2010
	rs No 103, 2010
s 132A.....	ad No 103, 2010
s 132B.....	ad No 103, 2010
s 132C.....	ad No 103, 2010
s 132D.....	ad No 103, 2010
Subdivision B	
s 132E.....	ad No 103, 2010
s 132F.....	ad No 103, 2010
s 132G.....	ad No 103, 2010
Subdivision C	
s 132H.....	ad No 103, 2010
Subdivision D	
s 132J.....	ad No 103, 2010
s 132K.....	ad No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 4	
Subdivision A	
s 133.....	rep No 34, 1989 ad No 44, 2010 rs No 103, 2010
s 133A.....	ad No 103, 2010 am No 74, 2023
Subdivision B	
s 133B.....	ad No 103, 2010
s 133C.....	ad No 103, 2010
Subdivision C	
s 133D.....	ad No 103, 2010 am No 132, 2018
s 133E.....	ad No 103, 2010
s 133F.....	ad No 103, 2010
s 133G.....	ad No 103, 2010
Subdivision D	
s 133H.....	ad No 103, 2010
s 133J.....	ad No 103, 2010
Division 5	
s 134.....	rep No 34, 1989 ad No 44, 2010 rs No 103, 2010 am No 136, 2024 ed C156
s 134A.....	ad No 103, 2010 am No 133, 2018; <u>No 64, 2026</u>
s 134B.....	ad No 103, 2010
s 134C.....	ad No 103, 2010 am No 133, 2018; <u>No 64, 2026</u>
s 134D.....	ad No 103, 2010

Endnote 4—Amendment history

Provision affected	How affected
s 134E	ad No 103, 2010
s 134F	ad No 103, 2010
s 134G	ad No 103, 2010
Division 6	
Subdivision A	
s 135	rep No 34, 1989
	ad No 44, 2010
	rs No 103, 2010
s 135A	ad No 103, 2010
s 135B	ad No 103, 2010
s 135C	ad No 103, 2010
s 135D	ad No 103, 2010
s 135E	ad No 103, 2010
s 135F	ad No 103, 2010
s 135G	ad No 103, 2010
Subdivision B	
s 135H	ad No 103, 2010
s 135J	ad No 103, 2010
Subdivision C	
s 135K	ad No 103, 2010
s 135L	ad No 103, 2010
s 135M	ad No 103, 2010
s 135N	ad No 103, 2010
s 135P	ad No 103, 2010
Subdivision D	
s 135Q	ad No 103, 2010
s 135R	ad No 103, 2010
Subdivision E	
s 135S	ad No 103, 2010
s 135T	ad No 103, 2010
s 135U	ad No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 135V	ad No 103, 2010
s 135W	ad No 103, 2010
s 135X	ad No 103, 2010
s 135Y	ad No 103, 2010
Subdivision F	
s 135Z	ad No 103, 2010
s 136.....	rep No 34, 1989
	ad No 44, 2010
	rs No 103, 2010
s 136A.....	ad No 103, 2010
Subdivision G	
s 136B	ad No 103, 2010
Division 7	
s 137.....	am No 88, 1976
	rep No 34, 1989
	ad No 44, 2010
	rs No 103, 2010
	am No 154, 2020
s 137A.....	ad No 103, 2010
s 137B	ad No 103, 2010
s 137C	ad No 103, 2010
s 137D.....	ad No 103, 2010
	am No 147, 2015
	rs No 54, 2022
s 137E	ad No 103, 2010
s 137F	ad No 103, 2010
	am No 147, 2015; No 54, 2022
s 137G.....	ad No 103, 2010
s 137H.....	ad No 103, 2010
	am No 132, 2018; No 54, 2022

Endnote 4—Amendment history

Provision affected	How affected
Division 8	
s 138.....	rep No 34, 1989 ad No 44, 2010 rs No 103, 2010 am No 13, 2013; No 13, 2021
s 138A.....	ad No 103, 2010 am No 13, 2013; No 13, 2021
s 138B.....	ad No 103, 2010 am No 114, 2017
s 138C.....	ad No 103, 2010 am No 114, 2017
s 138D.....	ad No 103, 2010 am No 114, 2017
s 138E.....	ad No 103, 2010 am No 114, 2017; No 13, 2021
Division 9	
s 139.....	rep No 34, 1989 ad No 44, 2010 rs No 103, 2010
s 139A.....	ad No 103, 2010
s 139B.....	ad No 103, 2010
s 139C.....	ad No 103, 2010 am No 136, 2012
s 139D.....	ad No 103, 2010
s 139DA.....	ad No 103, 2010
s 139E.....	ad No 103, 2010
s 139F.....	ad No 103, 2010
s 139G.....	ad No 103, 2010 am No 147, 2015; No 54, 2022
Part XIAA	
Part XIAA.....	ad No 61, 1999

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rep No 111, 2009
	ad No 103, 2010
s 140.....	am No 88, 1976
	rep No 34, 1989
	ad No 44, 2010
	rs No 103, 2010
s 140A.....	ad No 103, 2010
s 140B.....	ad No 103, 2010
s 140C.....	ad No 103, 2010
s 140D.....	ad No 103, 2010
s 140E.....	ad No 103, 2010
s 140F.....	ad No 103, 2010
s 140G.....	ad No 103, 2010
s 140H.....	ad No 103, 2010
s 140J.....	ad No 103, 2010
s 140K.....	ad No 103, 2010
s 141.....	rep No 34, 1989
	ad No 44, 2010
	rep No 103, 2010
s 142.....	rep No 34, 1989
	ad No 44, 2010
	rep No 103, 2010
s 143.....	rep No 34, 1989
	ad No 44, 2010
	rep No 103, 2010
s 144.....	rep No 34, 1989
s 145.....	rep No 34, 1989
s 146.....	rep No 34, 1989
s 147.....	rep No 88, 1995
s 148.....	rep No 88, 1995
s 149.....	am No 88, 1976; No 81, 1977

Endnote 4—Amendment history

Provision affected	How affected
	rep No 88, 1995
s 150.....	rep No 173, 1991
Part XIA	
Part XIA.....	ad No 88, 1995
s 150A.....	ad No 88, 1995
	am No 61, 1999; No 131, 2006; No 44, 2010
s 150B.....	ad No 88, 1995
s 150C.....	ad No 88, 1995
	am No 137, 2024
s 150D.....	ad No 88, 1995
	am No 57, 2000
s 150E.....	ad No 88, 1995
s 150F.....	ad No 88, 1995
	rs No 131, 2006
s 150FA.....	ad No 131, 2006
	am No 137, 2024
s 150FAA.....	ad No 137, 2024
s 150FB.....	ad No 131, 2006
s 150G.....	ad No 88, 1995
s 150H.....	ad No 88, 1995
s 150I.....	ad No 88, 1995
s 150J.....	ad No 88, 1995
	am No 131, 2006; No 114, 2017; No 137, 2024
s 150K.....	ad No 88, 1995
s 150L.....	ad No 61, 1999
	rep No 111, 2009
s 150M.....	ad No 61, 1999
	rep No 111, 2009
s 150N.....	ad No 61, 1999
	rep No 111, 2009
s 150O.....	ad No 61, 1999

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 57, 2000
	rep No 111, 2009
s 150P	ad No 61, 1999
	rep No 111, 2009
s 150Q	ad No 61, 1999
	rep No 111, 2009
s 150R	ad No 61, 1999
	rep No 111, 2009
s 150S	ad No 61, 1999
	rep No 111, 2009
s 150T	ad No 61, 1999
	rep No 111, 2009
s 151	rep No 173, 1991
Chapter 7	
Chapter 7 heading	ad No 137, 2024
Part XIB	
Part XIB	ad No 58, 1997
Division 1	
s 151AA	ad No 58, 1997
	am No 52, 1999; No 140, 2002; No 120, 2019
s 151AB	ad No 58, 1997
	am No 52, 1999; No 140, 2002; No 45, 2005; No 23, 2011; No 120, 2019; No 15, 2025
s 151AC	ad No 58, 1997
	am No 33, 2016
s 151AD	ad No 58, 1997
s 151AE	ad No 58, 1997
s 151AF	ad No 58, 1997
	am No 140, 2010
s 151AG	ad No 58, 1997
s 151AH	ad No 58, 1997

Endnote 4—Amendment history

Provision affected	How affected
	am No 159, 2007
s 151AI	ad No 58, 1997
	am No 137, 2024
Division 2	
s 151AJ	ad No 58, 1997
	am No 200, 1997; No 52, 1999; No 131, 2006; No 159, 2007; No 59, 2009; No 140, 2010; No 23, 2011; No 87, 2017
s 151AK	ad No 58, 1997
	am No 137, 2024
Division 3	
Subdivision A	
s 151AKA	ad No 52, 1999
	am No 140, 2002; No 140, 2010
s 151AL	ad No 58, 1997
	am No 200, 1997; No 52, 1999
s 151AM	ad No 58, 1997
	am No 200, 1997
s 151AN	ad No 58, 1997
	am No 200, 1997; No 52, 1999
s 151AO	ad No 58, 1997
	am No 52, 1999
s 151AOA	ad No 52, 1999
s 151AOB	ad No 52, 1999
s 151AP	ad No 58, 1997
	am No 140, 2002
s 151AQ	ad No 58, 1997
s 151AQA	ad No 52, 1999
	am No 194, 1999; No 13, 2013; No 13, 2021
s 151AQB	ad No 52, 1999
	am No 46, 2001; No 140, 2002
s 151AR	ad No 58, 1997

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision B	
s 151AS.....	ad No 58, 1997
s 151AT	ad No 58, 1997
s 151AU	am No 140, 2002
s 151AV	ad No 58, 1997
s 151AW	ad No 58, 1997
s 151AX.....	ad No 58, 1997
s 151AY	ad No 58, 1997
	am No 131, 2006; No 59, 2009
s 151AZ	ad No 58, 1997
s 151BA	ad No 58, 1997
s 151BB	ad No 58, 1997
s 151BC	ad No 58, 1997
	am No 169, 2012; No 87, 2017
s 151BD	ad No 58, 1997
s 151BE.....	ad No 58, 1997
s 151BF.....	ad No 58, 1997
s 151BG	ad No 58, 1997
s 151BH	ad No 58, 1997
s 151BI.....	ad No 58, 1997
	rep No 146, 2001
Subdivision C	
s 151BJ	ad No 58, 1997
Division 4	rep No 120, 2019
s 151BK	ad No 58, 1997
	rep No 120, 2019
s 151BL.....	ad No 58, 1997
	rep No 120, 2019
s 151BM	ad No 58, 1997
	rep No 120, 2019
s 151BN	ad No 58, 1997

Endnote 4—Amendment history

Provision affected	How affected
	rep No 120, 2019
s 151BO	ad No 58, 1997
	rep No 120, 2019
s 151BP	ad No 58, 1997
	rep No 120, 2019
s 151BQ	ad No 58, 1997
	rep No 120, 2019
s 151BR	ad No 58, 1997
	rep No 120, 2019
s 151BS	ad No 58, 1997
	rep No 146, 2001
s 151BT	ad No 58, 1997
	rep No 120, 2019
Division 5	rep No 120, 2019
s 151BTA	ad No 58, 1997
	am No 146, 2001; No 140, 2010
	rep No 120, 2019
Division 6	
Heading to div 6 of	rs No 52, 1999
Part XIB	
s 151BU	ad No 58, 1997
	am No 52, 1999; No 23, 2011; No 120, 2019; No 47, 2020; No 140, 2021; No 76 2023
s 151BUAA	ad No 140, 2002
	am No 46, 2011; No 10, 2015; No 126, 2015
s 151BUAAA	ad No 140, 2002
	rep No 140, 2010
s 151BUAB	ad No 140, 2002
s 151BUA	ad No 52, 1999
	am No 52, 1999; No 146, 2001; No 23, 2011; No 46, 2011; No 4, 2016; No 47, 2020; No 140, 2021

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 151BUB	ad No 52, 1999 am No 52, 1999; No 146, 2001; No 23, 2011; No 46, 2011; No 4, 2016; No 47, 2020; No 140, 2021
s 151BUC	ad No 52, 1999 am No 52, 1999; No 146, 2001; No 23, 2011; No 46, 2011; No 4, 2016; No 47, 2020; No 140, 2021
s 151BUD	ad No 52, 1999 am No 46, 2011; No 103, 2013; No 126, 2015
s 151BUDA	ad No 140, 2002 am No 46, 2011; No 4, 2016
s 151BUDB.....	ad No 140, 2002 am No 46, 2011; No 4, 2016
s 151BUDC.....	ad No 140, 2002 am No 46, 2011; No 4, 2016
s 151BUE.....	ad No 52, 1999 am No 8, 2010
s 151BUF.....	ad No 52, 1999
s 151BV	ad No 58, 1997 am No 146, 2001; No 4, 2016
Division 7	
Division 7 heading.....	rs No 52, 1999; No 120, 2019
s 151BW	ad No 58, 1997 am No 52, 1999; No 120, 2019
s 151BX	ad No 58, 1997 am No 52, 1999; No 119, 2005; No 120, 2019; No 54, 2022; No 19, 2026
s 151BY	ad No 58, 1997 am No 52, 1999
s 151BZ.....	ad No 58, 1997 am No 52, 1999; No 146, 2001; No 59, 2009; No 120, 2019
s 151CA.....	ad No 58, 1997

Endnote 4—Amendment history

Provision affected	How affected
	am No 52, 1999; No 120, 2019
s 151CB	ad No 58, 1997
	am No 52, 1999
s 151CC	ad No 58, 1997
	am No 52, 1999
s 151CD	ad No 58, 1997
	am No 120, 2019
s 151CE.....	ad No 58, 1997
	am No 52, 1999
s 151CF.....	ad No 58, 1997
Division 8	
s 151CG	ad No 58, 1997
Division 9	
s 151CH	ad No 58, 1997
Division 10	
s 151CI.....	ad No 58, 1997
	am No 52, 1999; No 120, 2019
s 151CJ	ad No 58, 1997
	am No 140, 2002; No 120, 2019
s 151CK	ad No 58, 1997
Division 11	
s 151CL.....	ad No 58, 1997
	am No 120, 2019
Division 12	
s 151CM	ad No 58, 1997
	am No 52, 1999; No 46, 2001; No 111, 2009; No 38, 2015; No 120, 2019
Division 12A	
div 12A of Part XIB.....	ad No 52, 1999
s 151CMA.....	ad No 52, 1999
	am No 10, 2015

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 151CMB.....	ad No 52, 1999 am No 10, 2015
s 151CMC.....	ad No 52, 1999 am No 10, 2015
Division 13	rep No 109, 2014
s 151CN	ad No 58, 1997 rep No 109, 2014
Division 14	
Division 14	ad No 119, 2005 rep No 140, 2010 rs <u>No 140, 2010</u>
s 151CP.....	ad No 119, 2005 rep No 140, 2010 rs <u>No 140, 2010</u>
Division 15	
Division 15 heading.....	am No 140, 2021
Division 15	ad No 140, 2010
s 151CMD.....	ad No 140, 2021
s 151CQ	ad No 140, 2010 am No 140, 2021
Division 16	
div 16 of Part XIB	ad No 23, 2011
s 151DA	ad No 23, 2011
s 151DB	ad No 23, 2011 am No 76 2023
s 151DC	ad No 23, 2011 rep No 109, 2014
s 151DD.....	ad No 23, 2011 rep No 109, 2014
s 152.....	rep No 173, 1991

Endnote 4—Amendment history

Provision affected	How affected
Part XIC	
Part XIC	ad No 58, 1997
Division 1	
s 152AA	ad No 58, 1997 am No 140, 2002; No 140, 2010; No 23, 2011
s 152AB	ad No 58, 1997 am No 119, 2005
s 152AC	ad No 58, 1997 am No 52, 1999; No 140, 2002; No 45, 2005; No 119, 2005; No 140, 2010; No 23, 2011; No 109, 2014; No 47, 2020; No 15, 2025
s 152AD	ad No 58, 1997
s 152AE	ad No 58, 1997 am No 33, 2016
s 152AF	ad No 58, 1997 am No 140, 2010
s 152AG	ad No 58, 1997 am No 23, 2011
s 152AGA	ad No 23, 2011 am No 136, 2012 rep No 47, 2020
s 152AH	ad No 58, 1997
s 152AI	ad No 58, 1997 rep No 140, 2002 ad No 140, 2010
s 152AJ	ad No 58, 1997
s 152AK	ad No 58, 1997 am No 137, 2024
Division 2	
s 152AL	ad No 58, 1997

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 140, 2002; No 7, 2008; No 23, 2011; No 126, 2015; No 47, 2020
s 152ALA	ad No 140, 2002
	am No 7, 2008; No 140, 2010; No 23, 2011; No 126, 2015; No 47, 2020
s 152AM	ad No 58, 1997
	am No 140, 2002; No 45, 2005; No 140, 2010; No 23, 2011
s 152AN	ad No 58, 1997
	am No 52, 1999; No 140, 2002; No 23, 2011
s 152AO	ad No 58, 1997
	am No 140, 2002; No 119, 2005; No 23, 2011; No 47, 2020
s 152AP	ad No 58, 1997
	rep No 140, 2002
s 152AQ	ad No 58, 1997
	am No 140, 2002; No 140, 2010; No 23, 2011
s 152AQA	ad No 124, 2001
	am No 140, 2002
	rep No 140, 2010
s 152AQB	ad No 140, 2002
	am No 45, 2005
	rep No 140, 2010
s 152AQC	ad No 7, 2008
Division 3	
Subdivision A	
Heading to sub div A of..... div 3 of Part XIC	ad No 23, 2011
s 152AR	ad No 58, 1997
	am No 140, 2002; No 140, 2010; No 23, 2011; No 46, 2011; No 126, 2015; No 140, 2021
s 152ARA	ad No 23, 2011
	rep No 47, 2020

Endnote 4—Amendment history

Provision affected	How affected
s 152ARB	ad No 23, 2011 rep No 47, 2020
s 152AS.....	ad No 58, 1997 am No 140, 2002; No 119, 2005 rep No 140, 2010
s 152ASA.....	ad No 140, 2002 am No 119, 2005; No 140, 2010; No 23, 2011
s 152AT	ad No 58, 1997 am No 140, 2002; No 119, 2005; No 8, 2010 rep No 140, 2010
s 152ATA	ad No 140, 2002 am No 119, 2005; No 8, 2010; No 140, 2010; No 23, 2011
s 152AU	ad No 58, 1997 am No 140, 2002; No 119, 2005; No 140, 2010
s 152AV	ad No 58, 1997 am No 140, 2002 rep No 140, 2010
s 152AW	ad No 58, 1997 rs No 140, 2002 am No 8, 2010 rep No 140, 2010
s 152AX.....	ad No 58, 1997 am No 140, 2002 rep No 140, 2010
s 152AXA	ad No 140, 2002 am No 140, 2010
Subdivision B	
sub div B of div 3 of..... Part XIC	ad No 23, 2011
s 152AXB	ad No 23, 2011
s 152AXC	ad No 23, 2011

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 152AXD	ad No 23, 2011
Subdivision C	
Heading to sub div C of..... div 3 of Part XIC	ad No 23, 2011
s 152AY	ad No 58, 1997 rs No 140, 2010
s 152AYA	ad No 52, 1999
s 152AZ	ad No 58, 1997 am No 52, 1999; No 23, 2011; No 47, 2020
s 152BA	ad No 58, 1997 am No 52, 1999; No 23, 2011; No 47, 2020
s 152BB	ad No 58, 1997 am No 52, 1999; No 119, 2005; No 23, 2011; No 47, 2020
s 152BBAA.....	ad No 119, 2005 am No 140, 2010
s 152BBA	ad No 52, 1999
s 152BBB.....	ad No 52, 1999
s 152BBC.....	ad No 52, 1999 am No 140, 2010
s 152BBD	ad No 124, 2001 am No 23, 2011
Division 4	
div 4 of Part XIC	rs No 140, 2010
Subdivision A	
sub div A of div 4 of..... Part XIC	rep No 140, 2002 ad No 140, 2010
s 152BC	ad No 58, 1997 rep No 140, 2002 ad No 140, 2010 am No 23, 2011; No 136, 2012; No 47, 2020
s 152BCA	ad No 140, 2010

Endnote 4—Amendment history

Provision affected	How affected
s 152BCB.....	ad No 140, 2010 am No 23, 2011; No 47, 2020; No 140, 2021
s 152BCC.....	ad No 140, 2010
s 152BCCA.....	ad No 140, 2010 am No 140, 2021
s 152BCCB.....	ad No 47, 2020 am No 36, 2024
s 152BCD	ad No 140, 2010
s 152BCE.....	ad No 140, 2010
s 152BCF	ad No 140, 2010 am No 23, 2011
s 152BCG	ad No 140, 2010
s 152BCGA.....	ad No 140, 2010
Subdivision B	
Heading to sub div B of.....	rep No 140, 2002
div 4 of Part XIC	ad No 140, 2010
s 152BCH	ad No 140, 2010
s 152BCI	ad No 140, 2010
s 152BCJ	ad No 140, 2010
s 152BCK	ad No 140, 2010 am No 23, 2011
Subdivision C	
sub div C of div 4 of.....	rep No 140, 2002
Part XIC	ad No 140, 2010
s 152BCN	ad No 140, 2010
Subdivision D	
Heading to sub div D of.....	rep No 140, 2002
div 4 of Part XIC	ad No 140, 2010
s 152BCO	ad No 140, 2010
s 152BCP	ad No 140, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision E	
s 52BCQ	ad No 140, 2010
s 52BCR.....	ad No 140, 2010
s 52BCS	ad No 140, 2010
s 52BCT	ad No 140, 2010
s 52BCU	ad No 140, 2010
s 52BCV	ad No 140, 2010
Subdivision F	
s 152BCW.....	ad No 140, 2010
Division 4A	
div 4A of Part XIC.....	ad No 140, 2010
Subdivision A	
s 152BD	ad No 58, 1997 rep No 140, 2002 ad No 140, 2010 am No 23, 2011
s 152BDAA	ad No 140, 2010
s 152BDA	ad No 140, 2010 am No 23, 2011; No 47, 2020; No 140, 2021
s 152BDB	ad No 140, 2010
s 152BDC	ad No 140, 2010
s 152BDCA.....	ad No 140, 2010 am No 140, 2021
s 152BDCB.....	ad No 47, 2020 am No 36, 2024
s 152BDD	ad No 140, 2010
s 152BDE.....	ad No 140, 2010
s 152BDEA.....	ad No 140, 2010
Subdivision B	
s 152BDF	ad No 140, 2010
s 152BDG	ad No 140, 2010

Endnote 4—Amendment history

Provision affected	How affected
Subdivision C	
s 152BDH	ad No 140, 2010
s 152BDI.....	ad No 140, 2010
s 152BDJ.....	ad No 140, 2010
s 152BDK	ad No 140, 2010
s 152BDL.....	ad No 140, 2010
s 152BDM.....	ad No 140, 2010
Subdivision D	
s 152BDN	ad No 140, 2010
Division 4B	
div 4B of Part XIC.....	ad No 140, 2010
s 152BE.....	ad No 58, 1997
	rep No 140, 2002
	ad No 140, 2010
	am No 23, 2011; No 47, 2020
s 152BEA.....	ad No 140, 2010
	rs No 109, 2014
s 152BEB.....	ad No 140, 2010
	rs No 109, 2014
s 152BEBA	ad No 23, 2011
s 152BEBB	ad No 23, 2011
s 152BEBC	ad No 23, 2011
s 152BEBD.....	ad No 23, 2011
s 152BEBE	ad No 23, 2011
	rep No 47, 2020
s 152BEBF.....	ad No 23, 2011
	rep No 47, 2020
s 152BEBG.....	ad No 23, 2011
	rep No 47, 2020
s 152BEBH.....	ad No 47, 2020
	am No 36, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 152BEBI.....	ad No 47, 2020
s 152BEC.....	ad No 140, 2010 am No 23, 2011; No 47, 2020
s 152BED.....	ad No 140, 2010 am No 23, 2011; No 47, 2020
s 152BF.....	ad No 58, 1997 rep No 140, 2002
s 152BG.....	ad No 58, 1997 rep No 140, 2002
s 152BH.....	ad No 58, 1997 rep No 140, 2002
s 152BI.....	ad No 58, 1997 rep No 140, 2002
s 152BJ.....	ad No 58, 1997 rs No 140, 2002 rep No 140, 2010
s 152BK.....	ad No 58, 1997 am No 140, 2002 rep No 140, 2010
s 152BL.....	ad No 58, 1997 am No 140, 2002 rep No 140, 2010
s 152BM.....	ad No 58, 1997 am No 140, 2002; No 45, 2005 rep No 140, 2010
s 152BN.....	ad No 58, 1997 am No 140, 2002; No 45, 2005 rep No 140, 2010
s 152BO.....	ad No 58, 1997 rep No 140, 2002
s 152BP.....	ad No 58, 1997

Endnote 4—Amendment history

Provision affected	How affected
	rep No 140, 2002
s 152BQ	ad No 58, 1997
	rep No 140, 2002
s 152BR	ad No 58, 1997
	am No 140, 2002
	rep No 140, 2010
Division 5	
Heading to sub div A of.....	ad No 140, 2002
div 5 of Part XIC	rep No 140, 2010
sub div A of div 5 of.....	rep No 140, 2010
Part XIC	
s 152BS.....	ad No 58, 1997
	am No 140, 2002
	rep No 140, 2010
s 152BT.....	ad No 58, 1997
	am No 140, 2002; No 119, 2005
	rep No 140, 2010
s 152BU	ad No 58, 1997
	am No 140, 2002; No 119, 2005; No 8, 2010
	rep No 140, 2010
s 152BV	ad No 58, 1997
	am No 140, 2002
	rep No 140, 2010
s 152BW	ad No 58, 1997
	am No 140, 2002
	rep No 140, 2010
s 152BX	ad No 58, 1997
	am No 140, 2002
	rep No 140, 2010
s 152BY	ad No 58, 1997
	am No 140, 2002; No 119, 2005; No 8, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rep No 140, 2010
s 152BZ.....	ad No 58, 1997
	am No 140, 2002; No 119, 2005
	rep No 140, 2010
s 152CA	ad No 58, 1997
	am No 140, 2002
	rep No 140, 2010
s 152CB	ad No 58, 1997
	am No 140, 2002
	rep No 140, 2010
Subdivision B	
sub div B of div 5 of.....	ad No 140, 2002
Part XIC	
s 152CBA	ad No 140, 2002
	am No 140, 2010; No 23, 2011
s 152CBAA.....	ad No 140, 2010
s 152CBB.....	ad No 140, 2002
	am No 119, 2005
s 152CBC.....	ad No 140, 2002
	am No 119, 2005; No 8, 2010; No 140, 2010
s 152CBCA.....	ad No 140, 2010
s 152CBD	ad No 140, 2002
	am No 140, 2010; No 23, 2011
s 152CBDA.....	ad No 140, 2010
s 152CBE.....	ad No 140, 2002
s 152CBF	ad No 140, 2002
	am No 23, 2011
s 152CBG	ad No 140, 2002
	am No 119, 2005; No 8, 2010; No 140, 2010
s 152CBH	ad No 140, 2002
	am No 119, 2005

Endnote 4—Amendment history

Provision affected	How affected
s 152CBI	ad No 140, 2002 am No 23, 2011
s 152CBIA	ad No 140, 2010
s 152CBIB	ad No 140, 2010
s 152CBIC	ad No 140, 2010
s 152CBID	ad No 47, 2020 am No 36, 2024
s 152CBJ	ad No 140, 2002
Subdivision C	
Heading to sub div C of..... div 5 of Part XIC	ad No 140, 2002
s 152CC	ad No 58, 1997 am No 140, 2010
s 152CD	ad No 58, 1997 am No 140, 2002
s 152CDA	ad No 119, 2005
s 152CE.....	ad No 58, 1997 am No 140, 2002 rep No 140, 2010
s 152CF.....	ad No 58, 1997 rs No 140, 2002 am No 8, 2010 rep No 140, 2010
s 152CG	ad No 58, 1997 am No 140, 2002 rep No 140, 2010
s 152CGA	ad No 140, 2002 rep No 140, 2010
s 152CGB	ad No 140, 2002 rep No 140, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Division 6	
s 152CH	ad No 58, 1997 am No 140, 2002; No 140, 2010; No 103, 2013
s 152CI	ad No 58, 1997 am No 140, 2002; No 140, 2010
s 152CJ	ad No 58, 1997 am No 140, 2010
Division 6A	
div 6A of Part XIC	ad No 23, 2011
s 152CJA	ad No 23, 2011
s 152CJB	ad No 23, 2011
s 152CJC	ad No 23, 2011
s 152CJD	ad No 23, 2011
s 152CJE	ad No 23, 2011
s 152CJF	ad No 23, 2011
s 152CJG	ad No 23, 2011
Division 6B	
div 6B of Part XIC	ad No 23, 2011
s 152CJH	ad No 23, 2011 am No 23, 2011; No 47, 2020
Division 7	
s 152CK	ad No 58, 1997 am No 140, 2002; No 23, 2011
div 8 of Part XIC	rep No 140, 2010
s 152CL	ad No 58, 1997 am No 52, 1999 rep No 140, 2010
s 152CLA	ad No 124, 2001 am No 140, 2002; No 119, 2005; No 8, 2010 rep No 140, 2010
s 152CM	ad No 58, 1997

Endnote 4—Amendment history

Provision affected	How affected
	rep No 140, 2010
s 152CN	ad No 58, 1997
	am No 52, 1999; No 124, 2001
	rep No 140, 2010
s 152CO	ad No 58, 1997
	rep No 140, 2010
s 152CP	ad No 58, 1997
	rep No 140, 2010
s 152CPA	ad No 52, 1999
	am No 124, 2001; No 119, 2005
	rep No 140, 2010
s 152CQ	ad No 58, 1997
	am No 140, 2002
	rep No 140, 2010
s 152CR	ad No 58, 1997
	am No 52, 1999
	rep No 140, 2010
s 152CRA	ad No 124, 2001
	rep No 140, 2010
s 152CS	ad No 58, 1997
	rep No 140, 2010
s 152CT	ad No 58, 1997
	am No 200, 1997; No 52, 1999
	rep No 140, 2010
s 152CU	ad No 58, 1997
	rep No 140, 2010
s 152CV	ad No 58, 1997
	am No 52, 1999; No 124, 2001
	rep No 140, 2010
s 152CW	ad No 58, 1997
	rs No 124, 2001

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rep No 140, 2010
s 152CWA	ad No 46, 2001
	rs No 124, 2001
	rep No 140, 2010
s 152CX	ad No 58, 1997
	am No 124, 2001
	rep No 140, 2010
s 152CY	ad No 58, 1997
	rep No 140, 2010
s 152CZ.....	ad No 58, 1997
	am No 124, 2001
	rep No 140, 2010
s 152DA	ad No 58, 1997
	rep No 140, 2010
s 152DB	ad No 58, 1997
	am No 124, 2001; No 119, 2005
	rep No 140, 2010
s 152DBA	ad No 124, 2001
	rep No 140, 2010
s 152DC	ad No 58, 1997
	rep No 140, 2010
s 152DD	ad No 58, 1997
	rep No 140, 2010
s 152DE	ad No 58, 1997
	am No 146, 2001
	rep No 140, 2010
s 152DF.....	ad No 58, 1997
	am No 146, 2001
	rep No 140, 2010
s 152DG	ad No 58, 1997
	am No 146, 2001

Endnote 4—Amendment history

Provision affected	How affected
	rep No 140, 2010
s 152DH	ad No 58, 1997
	rep No 140, 2010
s 152DI	ad No 58, 1997
	rep No 140, 2010
s 152DJ	ad No 58, 1997
	rep No 140, 2010
s 152DK	ad No 58, 1997
	am No 119, 2005
	rep No 140, 2010
s 152DL	ad No 58, 1997
	rep No 140, 2010
s 152DM	ad No 58, 1997
	rep No 140, 2010
s 152DMA	ad No 124, 2001
	am No 119, 2005
	rep No 140, 2010
s 152DN	ad No 58, 1997
	rs No 52, 1999
	am No 140, 2002
	rep No 140, 2010
s 152DNA	ad No 52, 1999
	am No 124, 2001; No 140, 2002; No 8, 2010
	rep No 140, 2010
s 152DNB	ad No 52, 1999
	am No 194, 1999
	rep No 140, 2010
s 152DNC	ad No 140, 2002
	rep No 140, 2010
sub div F of div 8 of.....	rep No 140, 2002
Part XIC	

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 152DO	ad No 58, 1997 am No 52, 1999; No 124, 2001 rep No 140, 2002
s 152DOA	ad No 124, 2001 rep No 140, 2002
s 152DP	ad No 58, 1997 rep No 140, 2002
s 152DPA	ad No 124, 2001 rep No 140, 2002
s 152DQ	ad No 58, 1997 rep No 140, 2002
s 152DR	ad No 58, 1997 rs No 124, 2001 rep No 140, 2002
s 152DS	ad No 58, 1997 rep No 140, 2002
s 152DT	ad No 58, 1997 am No 52, 1999 rep No 140, 2010
s 152DU	ad No 58, 1997 am No 52, 1999 rep No 140, 2010
s 152DV	ad No 58, 1997 rep No 140, 2010
s 152DW	ad No 58, 1997 rep No 140, 2010
s 152DX	ad No 58, 1997 rep No 140, 2010
s 152DY	ad No 58, 1997 rep No 140, 2010
s 152DZ	ad No 58, 1997

Endnote 4—Amendment history

Provision affected	How affected
	rep No 140, 2010
s 152EA	ad No 58, 1997
	rep No 140, 2010
s 152EAA	ad No 124, 2001
	rep No 140, 2010
s 152EB.....	ad No 58, 1997
	rep No 140, 2010
div 9 of Part XIC	rep No 140, 2010
s 152EC.....	ad No 58, 1997
	rep No 140, 2010
s 152ED	ad No 58, 1997
	rep No 140, 2010
s 152EE.....	ad No 58, 1997
	rep No 140, 2010
Division 10	
Heading to div 10 of	rs No 140, 2002
Part XIC	
s 152EF	ad No 58, 1997
	am No 140, 2002; No 140, 2010
s 152EG	ad No 58, 1997
	am No 140, 2002
s 152EH	ad No 58, 1997
s 152EI.....	ad No 58, 1997
s 152EJ.....	ad No 58, 1997
s 152EK	ad No 58, 1997
s 152EL.....	ad No 58, 1997
Division 10A	
div 10A of Part XIC.....	ad No 119, 2005
s 152ELA.....	ad No 119, 2005
	am No 140, 2010; No 126, 2015
s 152ELB.....	ad No 119, 2005

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 8, 2010
	rep No 120, 2019
s 152ELC	ad No 119, 2005
	am No 8, 2010; No 126, 2015
Division 11	
s 152ELD.....	ad No 140, 2010
s 152EM.....	ad No 58, 1997
s 152EN	ad No 58, 1997
s 152EO	ad No 58, 1997
s 152EOA	ad No 140, 2010
	am No 23, 2011
	rep No 120, 2019
s 152EP.....	ad No 58, 1997
s 152EPA	ad <u>No 140, 2010</u>
s 152EQ	ad No 119, 2005
	rs No 140, 2010 (<u>sch 1 (item 59)</u>)
s 152EQA	ad No 140, 2021
s 152ER.....	ad No 140, 2010
	am No 140, 2021
s 153.....	rep No 173, 1991
Part XICA	
Part XICA	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
Division 1	
s 153A.....	ad No 115, 2019
	am No 72, 2025
	exp <u>1 Jan 2031 (s 153B(a))</u>
s 153B.....	ad No 115, 2019
	am No 72, 2025
	exp <u>1 Jan 2031 (s 153B(a))</u>
s 153C	ad No 115, 2019

Endnote 4—Amendment history

Provision affected	How affected
	exp <u>1 Jan 2031 (s 153B(a))</u>
s 153D	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
Division 2	
s 153E	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
s 153F	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
s 153G	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
s 153H	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
s 153J	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
s 153K	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
Division 3	
Subdivision A	
s 153L	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
s 153M	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
Subdivision B	
s 153N	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
Division 4	
Subdivision A	
s 153P	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>
s 153Q	ad No 115, 2019
	exp <u>1 Jan 2031 (s 153B(a))</u>

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision B	
s 153R	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
s 153S	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
s 153T	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
s 153U	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
s 153V	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
Division 5	
Subdivision A	
s 153W	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
s 153X	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
s 153Y	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
Subdivision B	
s 153Z	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
Division 6	
s 153ZA	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
s 153ZB	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
s 153ZBA	ad No 115, 2019 exp <u>1 Jan 2031 (s 153B(a))</u>
Division 7	
s 153ZC	ad No 115, 2019

Endnote 4—Amendment history

Provision affected	How affected
	exp 1 Jan 2031 (s 153B(a))
s 153ZD	ad No 115, 2019
	exp 1 Jan 2031 (s 153B(a))
Part XICB	
Part XICB	ad No 75, 2023
Division 1	
s 153ZEA.....	ad No 75, 2023
s 153ZEB.....	ad No 75, 2023
	am No 75, 2023
s 153ZEC.....	ad No 75, 2023
s 153ZED.....	ad No 75, 2023
s 153ZEE.....	ad No 75, 2023
Division 2	
s 153ZEF.....	ad No 75, 2023
s 153ZEG.....	ad No 75, 2023
Division 3	
s 153ZEH.....	ad No 75, 2023
s 153ZEI	ad No 75, 2023
s 153ZEJ	ad No 75, 2023
s 153ZEK.....	ad No 75, 2023
s 153ZEL	ad No 75, 2023
Division 4	
s 153ZEM	ad No 75, 2023
s 153ZEN.....	ad No 75, 2023
Division 5	
s 153ZEO.....	ad No 75, 2023
s 153ZEP.....	ad No 75, 2023
s 153ZEQ.....	ad No 75, 2023
s 153ZER.....	ad No 75, 2023
s 153ZES.....	ad No 75, 2023
s 153ZET	ad No 75, 2023

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 153ZEU.....	ad No 75, 2023
Division 6	
s 153ZEV.....	ad No 75, 2023
s 153ZEW.....	ad No 75, 2023
s 153ZEX.....	ad No 75, 2023
Division 7	
s 153ZEY.....	ad No 75, 2023
s 153ZEZ.....	ad No 75, 2023
Division 8	
s 153ZFA.....	ad No 75, 2023
Division 9	
s 153ZFB.....	ad No 75, 2023
s 153ZFC.....	ad No 75, 2023
Division 10	
s 153ZFD.....	ad No 75, 2023
s 153ZFE.....	ad No 75, 2023
Chapter 8	
Chapter 8 heading.....	ad No 137, 2024
Part XID	
Part XID.....	ad No 131, 2006
Division 1	
s 154.....	rep No 34, 1989 ad No 131, 2006 am No 63, 2019; No 96, 2022; No 111, 2023
s 154A.....	ad No 131, 2006 am No 59, 2009; No 63, 2019; No 96, 2022; No 111, 2023
Division 2	
s 154B.....	ad No 131, 2006
s 154C.....	ad No 131, 2006 am No 74, 2023

Endnote 4—Amendment history

Provision affected	How affected
Division 3	
s 154D	ad No 131, 2006
	am No 159, 2007
s 154E	ad No 131, 2006
s 154F	ad No 131, 2006
s 154F	ad No 131, 2006
	am No 59, 2009
Division 4	
Subdivision A	
s 154G	ad No 131, 2006
	am No 59, 2009; No 141, 2020
s 154GA	ad No 59, 2009
s 154H	ad No 131, 2006
	am No 59, 2009
s 154J	ad No 131, 2006
Subdivision B	
s 154K	ad No 131, 2006
s 154L	ad No 131, 2006
	am No 59, 2009
Subdivision C	
s 154M	ad No 131, 2006
s 154N	ad No 131, 2006
Subdivision D	
s 154P	ad No 131, 2006
s 154Q	ad No 131, 2006
s 154R	ad No 131, 2006
	am No 59, 2009
s 154RA	ad No 59, 2009
Subdivision E	
s 154S	ad No 131, 2006
s 154T	ad No 131, 2006

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 59, 2009
s 154U	ad No 131, 2006
	am No 59, 2009
s 154V	ad No 131, 2006
	am No 59, 2009; No 63, 2019; No 141, 2020; No 96, 2022; No 111, 2023
s 154W	ad No 131, 2006
Subdivision F	
s 154X	ad No 131, 2006
	am No 59, 2009
s 154Y	ad No 131, 2006
s 154Z	ad No 131, 2006
Subdivision G	
s 154ZA	ad No 131, 2006
Division 5	
s 154ZB	ad No 131, 2006
s 154ZC	ad No 131, 2006
Part XIE	
Part XIE	ad No 16, 2024
Division 1	
s 154ZD	ad No 16, 2024
s 154ZE	ad No 16, 2024
Division 2	
s 154ZF	ad No 16, 2024
s 154ZG	ad No 16, 2024
s 154ZH	ad No 16, 2024
s 154ZJ	ad No 16, 2024
s 154ZK	ad No 16, 2024
s 154ZL	ad No 16, 2024
s 154ZM	ad No 16, 2024
s 154ZN	ad No 16, 2024

Endnote 4—Amendment history

Provision affected	How affected
Division 3	
s 154ZP	ad No 16, 2024
s 154ZQ	ad No 16, 2024
s 154ZR.....	ad No 16, 2024
s 154ZS.....	ad No 16, 2024
s 154ZT.....	ad No 16, 2024
s 154ZU	ad No 16, 2024
s 154ZV	ad No 16, 2024
s 154ZW	ad No 16, 2024
s 154ZX	ad No 16, 2024
Division 4	
s 154ZY	ad No 16, 2024
s 154ZZ.....	ad No 16, 2024
Part XII	
s 155.....	am No 81, 1977; No 17, 1986; No 70, 1990; No 88, 1995; No 58, 1997; No 52, 1999; No 146, 2001; No 128, 2002; No 134, 2003; No 131, 2006; No 68, 2007; No 138, 2007; No 159, 2007; No 116, 2008; No 139, 2008; No 59, 2009; No 23, 2011; No 114, 2017; No 132, 2018; No 49, 2019; No 63, 2019; No 94, 2019; No 115, 2019; No 151, 2020; No 21, 2021; No 96, 2022; No 137, 2024; No 15, 2025; No 59, 2025; No 69, 2026
s 155AAAA	ad No 137, 2024
s 155AAA	ad No 85, 2007
	am No 68, 2007; No 139, 2008; No 103, 2010; No 140, 2010; No 102, 2011; No 132, 2011; No 44, 2012; No 83, 2014; No 38, 2015; No 63, 2019; No 115, 2019; No 151, 2020; No 21, 2021; No 54, 2021; No 96, 2022; No 75, 2023; No 111, 2023; No 137, 2024; No 15, 2025; No 59, 2025; No 69, 2026
s 155AA	ad No 88, 1995
	am No 61, 1999; No 131, 2006; No 85, 2007; No 111, 2009
s 155AB	ad No 58, 1997
	am No 52, 1999; No 140, 2002; No 131, 2006
	rep No 85, 2007

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 155A.....	ad No 70, 1990 am No 88, 1995; No 159, 2007
s 155B.....	ad No 70, 1990 am No 88, 1995; No 146, 2001
s 156.....	am No 70, 1990; No 88, 1995; No 76, 2023
s 157.....	am No 81, 1977; No 17, 1986; No 101, 1998; No 63, 2001; No 131, 2006; No 59, 2009; No 44, 2010; No 103, 2010; No 114, 2017; No 54, 2022; No 96, 2022; No 76, 2023; No 137, 2024
s 157AA.....	ad No 131, 2006 rep No 114, 2017
s 157A.....	ad No 108, 2004 am No 63, 2019; No 96, 2022; No 59, 2025
s 157AAA.....	ad No 69, 2026
s 157AA.....	ad No 63, 2019 am No 141, 2020; No 75, 2024
s 157B.....	ad No 59, 2009
s 158C.....	ad No 59, 2009
s 157D.....	ad No 59, 2009
s 158.....	am No 81, 1977; No 88, 1995
s 158A.....	ad No 69, 2023
s 158B.....	ad No 69, 2023 am No 59, 2025
s 159.....	am No 81, 1977; No 88, 1995; No 59, 2009
s 160.....	am No 81, 1977; No 17, 1986; No 88, 1995; No 146, 2001
s 161.....	am No 81, 1977; No 17, 1986; No 88, 1995; No 146, 2001
s 162.....	rs No 81, 1977 am No 17, 1986; No 88, 1995; No 58, 1997; No 146, 2001; No 108, 2004; No 103, 2010
s 162A.....	ad No 17, 1986 am No 146, 2001; No 108, 2004

Endnote 4—Amendment history

Provision affected	How affected
s 163.....	am No 88, 1976; No 17, 1986; No 20, 1988; No 70, 1990; No 106, 1998; No 57, 2000; No 131, 2006; No 59, 2009; No 5, 2011; No 114, 2017; No 63, 2019; No 115, 2019; No 75, 2024
s 163A.....	ad No 88, 1976 am No 81, 1977; No 39, 1983; No 88, 1995; No 58, 1997; No 61, 1999; No 57, 2000; No 63, 2001; No 108, 2004; No 59, 2009; No 111, 2009; No 103, 2010; No 136, 2012; No 83, 2014; No 63, 2019; No 96, 2022; No 75, 2024
s 164.....	rep No 81, 1977
s 165.....	am No 17, 1986; No 59, 2009; No 114, 2017; No 76, 2023
s 166.....	am No 88, 1976; No 81, 1977; No 114, 2017
s 167.....	am No 70, 1990; No 88, 1995; No 108, 2004; No 76, 2023
s 168.....	rep No 81, 1977
s 169.....	rs No 88, 1976 rep No 81, 1977
s 170.....	am No 88, 1976; No 81, 1977; No 61, 1981; No 17, 1986; No 106, 1992; No 88, 1995; No 36, 1998; No 146, 1999; No 131, 2006; No 103, 2010; No 114, 2017; No 76, 2023
s 171.....	am No 88, 1976; No 88, 1995; No 63, 2001; No 92, 2006; No 131, 2006; No 103, 2010; No 92, 2017; No 16, 2024; No 137, 2024
s 171A.....	ad No 136, 1991
s 171B.....	ad No 58, 1997 am No 140, 2010
s 172.....	am No 81, 1977; No 136, 1991; No 141, 1994; No 88, 1995; No 108, 2004; No 131, 2006; No 45, 2007; No 103, 2010; No 114, 2017
s 173.....	ad No 106, 1998
Part XIII	
Part XIII.....	ad No 59, 2009
Division 1	
s 174.....	ad No 59, 2009 am No 114, 2017
s 175.....	ad No 59, 2009

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 176.....	ad No 59, 2009
s 177.....	ad No 59, 2009
s 178.....	ad No 59, 2009
Division 2	
div 2 of Part XIII	ad No 184, 2011
s 179.....	ad No 184, 2011
Division 3	
Division 3	ad No 114, 2017
s 180.....	ad No 114, 2017
s 181.....	ad No 114, 2017
s 182.....	ad No 114, 2017
s 183.....	ad No 114, 2017
s 184.....	ad No 114, 2017
s 185.....	ad No 114, 2017
Division 4	
Division 4	ad No 15, 2019
s 186.....	ad No 15, 2019
Division 5	
Division 5	ad No 54, 2022
s 187.....	ad No 54, 2022
Division 6	
Division 6	ad No 137, 2024
s 188.....	ad No 137, 2024
s 189.....	ad No 137, 2024
	am No 72, 2025
s 190.....	ad No 137, 2024
s 191.....	ad No 137, 2024
s 192.....	ad No 137, 2024
Division 7	
Division 7	ad No 19, 2026
s 193.....	ad No 19, 2026

Endnote 4—Amendment history

Provision affected	How affected
Schedule 1	
Heading to Schedule	rs No 61, 1999 am No 111, 2009
Renumbered Schedule 1	No 44, 2010
Schedule.....	ad No 88, 1995
Part 1	
Part 1 heading	ad No 61, 1999
Division 1	
Division 1	ad No 59, 2009
Subdivision A	
s 44ZZRA	ad No 59, 2009 renum No 114, 2017
s 45AA (prev s 44ZZRA)	
s 44ZZRB	ad No 59, 2009 renum No 114, 2017
s 45AB (prev s 44ZZRB).....	am No 54, 2022
s 44ZZRC	ad No 59, 2009 renum No 114, 2017
s 45AC (prev s 44ZZRC)	
s 44ZZRD	ad No 59, 2009 am No 114, 2017 renum No 114, 2017
s 45AD (prev s 44ZZRD)	
s 44ZZRE.....	ad No 59, 2009 renum No 114, 2017
s 45AE (prev s 44ZZRE).....	am No 54, 2022
Subdivision B	
s 44ZZRF	ad No 59, 2009 renum No 114, 2017
s 45AF (prev s 44ZZRF)	am No 54, 2022; No 19, 2026
s 44ZZRG	ad No 59, 2009

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	renum No 114, 2017
s 45AG (prev s 44ZZRG)	am No 54, 2022; No 19, 2026
s 44ZZRH	ad No 59, 2009
	renum No 114, 2017
s 45AH (prev s 44ZZRH)	
s 44ZZRI	ad No 59, 2009
	renum No 114, 2017
s 45AI (prev s 44ZZRI)	
s 45AIA	ad No 54, 2022
Subdivision C	
s 44ZZRJ	ad No 59, 2009
	renum No 114, 2017
s 45AJ (prev s 44ZZRJ)	
s 44ZZRK	ad No 59, 2009
	renum No 114, 2017
s 45AK (prev s 44ZZRK)	
Subdivision D	
s 44ZZRL	ad No 59, 2009
	renum No 114, 2017
s 45AL (prev s 44ZZRL)	
s 44ZZRM	ad No 59, 2009
	renum No 114, 2017
s 45AM (prev s 44ZZRM)	
s 45AMA	ad No 137, 2024
s 44ZZRN	ad No 59, 2009
	renum No 114, 2017
s 45AN (prev s 44ZZRN)	
s 44ZZRO	ad No 59, 2009
	am No 114, 2017
	renum No 114, 2017
s 45AO (prev s 44ZZRO)	

Endnote 4—Amendment history

Provision affected	How affected
s 44ZZRP	ad No 59, 2009 am No 114, 2017 renum No 114, 2017
s 45AP (prev s 44ZZRP)	
s 44ZZRQ	ad No 59, 2009 rep No 114, 2017
s 44ZZRR	ad No 59, 2009 am No 114, 2017 renum No 114, 2017
s 45AQ (prev s 44ZZRR)	
s 44ZZRS	ad No 59, 2009 am No 114, 2017 renum No 114, 2017
s 45AR (prev s 44ZZRS)	
s 44ZZRT	ad No 59, 2009 am No 114, 2017 renum No 114, 2017
s 45AS (prev s 44ZZRT)	
s 44ZZRU	ad No 59, 2009 renum No 114, 2017
s 45AT (prev s 44ZZRU)	am No 137, 2024
s 44ZZRV	ad No 59, 2009 renum No 114, 2017
s 45AU (prev s 44ZZRV)	
Division 1A	
Division 1A	ad No 185, 2011 rep No 114, 2017 ad No 137, 2024
Subdivision A	
s 45AV	ad No 137, 2024

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision B	
s 45AW	ad No 137, 2024
s 45AX	ad No 137, 2024
s 45AY	ad No 137, 2024
s 45AZ	ad No 137, 2024
Subdivision C	
s 45AZA	ad No 137, 2024
Subdivision D	
s 45AZB.....	ad No 137, 2024
s 44ZZS.....	ad No 185, 2011
	rep No 114, 2017
s 44ZZT	ad No 185, 2011
	rep No 114, 2017
s 44ZZU	ad No 185, 2011
	rep No 114, 2017
s 44ZZV	ad No 185, 2011
	rep No 114, 2017
s 44ZZW	ad No 185, 2011
	rep No 114, 2017
s 44ZZX	ad No 185, 2011
	rep No 114, 2017
s 44ZZY	ad No 185, 2011
	rep No 114, 2017
s 44ZZZ	ad No 185, 2011
	rep No 114, 2017
s 44ZZZA	ad No 185, 2011
	rep No 114, 2017
s 44ZZZB.....	ad No 185, 2011
	rep No 114, 2017
Division 2	
Division 2 heading.....	ad No 59, 2009

Endnote 4—Amendment history

Provision affected	How affected
s 45.....	ad No 88, 1995 am No 131, 2006; No 59, 2009; No 114, 2017; No 76, 2023; No 137, 2024
s 45A.....	ad No 88, 1995 am No 131, 2006 rep No 59, 2009
s 45B.....	ad No 88, 1995 am No 169, 2012 rep No 114, 2017
s 45C.....	ad No 88, 1995 rep No 114, 2017
s 45D.....	ad No 88, 1995 rs No 60, 1996 am No 114, 2017; No 76, 2023
s 45DA.....	ad No 60, 1996 am No 103, 2010; No 114, 2017
s 45DC.....	ad No 60, 1996
s 45DD.....	ad No 60, 1996 am No 54, 2009
s 45E.....	ad No 60, 1996 am No 114, 2017
s 45EA.....	ad No 60, 1996 am No 114, 2017
s 45EB.....	ad No 60, 1996
s 46.....	ad No 88, 1995 am No 131, 2006; No 159, 2007; No 116, 2008 rs No 87, 2017
s 47.....	ad No 88, 1995 am No 131, 2006; No 169, 2012; No 114, 2017
s 48.....	ad No 88, 1995 am No 114, 2017

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 49.....	ad No 131, 2006 am No 114, 2017
s 50.....	ad No 88, 1995 am No 63, 2001; No 131, 2006; No 184, 2011; No 114, 2017; No 76, 2023; No 137, 2024
s 51.....	ad No 88, 1995 am No 88, 1995; No 60, 1996; No 63, 2002; No 103, 2010; No 46, 2011; No 114, 2017; No 15, 2019; No 137, 2024 ed C159
Part 2.....	ad No 61, 1999 rep No 111, 2009
s 75AT	ad No 61, 1999 am No 176, 1999 rep No 111, 2009
s 75AU.....	ad No 61, 1999 am No 176, 1999 rep No 111, 2009
s 75AV	ad No 61, 1999 rep No 111, 2009
s 75AW	ad No 61, 1999 rep No 111, 2009
s 75AX.....	ad No 61, 1999 rep No 111, 2009
s 75AY	ad No 61, 1999 rep No 111, 2009
s 75AYA.....	ad No 69,2000 rep No 111, 2009
s 75AZ	ad No 61, 1999 rep No 111, 2009
Schedule 2	
Schedule 2.....	ad No 44, 2010

Endnote 4—Amendment history

Provision affected	How affected
	rs No 103, 2010
Chapter 1	
s 1.....	ad No 44, 2010
	rs No 103, 2010
s 2.....	ad No 44, 2010
	rs No 103, 2010
	am No 46, 2011; No 147, 2015; No 5, 2017; No 93, 2018; No 132, 2018; No 133, 2018; No 54, 2022; No 136, 2024; <u>No 64, 2026</u>
s 3.....	ad No 44, 2010
	rs No 103, 2010
	am No 133, 2018
s 4.....	ad No 44, 2010
	rs No 103, 2010
s 5.....	ad No 44, 2010
	rs No 103, 2010
s 6.....	ad No 103, 2010
s 7.....	ad No 44, 2010
	rs No 103, 2010
s 8.....	ad No 44, 2010
	rs No 103, 2010
s 9.....	ad No 103, 2010
s 10.....	ad No 103, 2010
s 11.....	ad No 103, 2010
s 12.....	ad No 103, 2010
s 13.....	ad No 103, 2010
s 14.....	ad No 103, 2010
s 15.....	ad No 103, 2010
s 16.....	ad No 103, 2010
s 17.....	ad No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Chapter 2	
Part 2-1	
s 18.....	ad No 103, 2010
s 19.....	ad No 103, 2010 am No 109, 2014
Part 2-2	
s 20.....	ad No 103, 2010 am No 184, 2011
s 21.....	ad No 103, 2010 rs No 184, 2011 am No 132, 2018
s 22.....	ad No 103, 2010 rs No 184, 2011
s 22A.....	ad No 184, 2011
Part 2-3	
s 23.....	ad No 103, 2010 am No 147, 2015; No 54, 2022
s 24.....	ad No 103, 2010 am No 147, 2015
s 25.....	ad No 103, 2010 am No 147, 2015
s 26.....	ad No 103, 2010 am No 147, 2015; No 54, 2022
s 27.....	ad No 103, 2010 am No 54, 2022; <u>No 64, 2026</u>
s 28.....	ad No 103, 2010 am No 147, 2015; No 54, 2022
s 28A.....	ad No 54, 2022 am No 76, 2023 ed C147

Endnote 4—Amendment history

Provision affected	How affected
Part 2-4	
Part 2-4	ad <u>No 64, 2026</u>
s 28B	ad <u>No 64, 2026</u>
Chapter 3	
Part 3-1	
Division 1	
s 29	ad No 103, 2010
s 30	ad No 103, 2010
s 31	ad No 103, 2010
s 32	ad No 103, 2010
s 33	ad No 103, 2010
s 34	ad No 103, 2010
s 35	ad No 103, 2010
s 36	ad No 103, 2010
s 37	ad No 103, 2010
s 38	ad No 103, 2010
Division 2	
s 39	ad No 103, 2010
s 40	ad No 103, 2010
	am No 132, 2018
s 41	ad No 103, 2010
s 42	ad No 103, 2010
	am No 132, 2018
s 43	ad No 103, 2010
Division 3	
s 44	ad No 103, 2010
s 45	ad No 103, 2010
s 46	ad No 103, 2010
Division 4	
s 47	ad No 103, 2010
s 48	ad No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 104, 2013; No 132, 2018
s 48A.....	ad <u>No 64, 2026</u>
Division 4A	
Subdivision A	
s 48B.....	ad <u>No 64, 2026</u>
s 48C.....	ad <u>No 64, 2026</u>
Subdivision B	
s 48D.....	ad <u>No 64, 2026</u>
s 48E.....	ad <u>No 64, 2026</u>
Subdivision C	
s 48F.....	ad <u>No 64, 2026</u>
Subdivision D	
s 48G.....	ad <u>No 64, 2026</u>
s 48H.....	ad <u>No 64, 2026</u>
Division 5	
s 49.....	ad No 103, 2010
s 50.....	ad No 103, 2010
Part 3-2	
Division 1	
Subdivision A	
s 51.....	ad No 103, 2010
s 52.....	ad No 103, 2010
s 53.....	ad No 103, 2010
s 54.....	ad No 103, 2010
s 55.....	ad No 103, 2010
s 56.....	ad No 103, 2010
s 57.....	ad No 103, 2010
s 58.....	ad No 103, 2010
s 59.....	ad No 103, 2010
Subdivision B	
s 60.....	ad No 103, 2010

Endnote 4—Amendment history

Provision affected	How affected
s 61.....	ad No 103, 2010
s 62.....	ad No 103, 2010
s 63.....	ad No 103, 2010
	am No 132, 2018
Subdivision C	
s 64.....	ad No 103, 2010
s 64A.....	ad No 103, 2010
Subdivision D	
s 65.....	ad No 103, 2010
s 66.....	ad No 103, 2010
s 67.....	ad No 103, 2010
s 68.....	ad No 103, 2010
Division 2	
Subdivision A	
s 69.....	ad No 103, 2010
	am No 132, 2018
s 70.....	ad No 103, 2010
s 71.....	ad No 103, 2010
s 72.....	ad No 103, 2010
Subdivision B	
s 73.....	ad No 103, 2010
s 74.....	ad No 103, 2010
s 75.....	ad No 103, 2010
s 76.....	ad No 103, 2010
s 77.....	ad No 103, 2010
Subdivision C	
s 78.....	ad No 103, 2010
s 79.....	ad No 103, 2010
s 80.....	ad No 103, 2010
s 81.....	ad No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
Subdivision D	
s 82.....	ad No 103, 2010 am No 114, 2017
s 83.....	ad No 103, 2010
s 84.....	ad No 103, 2010
s 85.....	ad No 103, 2010 am No 114, 2017
s 86.....	ad No 103, 2010 am No 114, 2017
s 87.....	ad No 103, 2010
s 88.....	ad No 103, 2010
Subdivision E	
s 89.....	ad No 103, 2010
s 90.....	ad No 103, 2010
s 91.....	ad No 103, 2010
s 92.....	ad No 103, 2010
s 93.....	ad No 103, 2010
s 94.....	ad No 103, 2010
s 95.....	ad No 103, 2010 am No 61, 2018; No 135, 2020
Division 3	
s 96.....	ad No 103, 2010 am No 130, 2012
s 97.....	ad No 103, 2010 am No 130, 2012
s 98.....	ad No 103, 2010 am No 130, 2012
s 99.....	ad No 103, 2010
Division 3A	
Division 3A.....	ad No 133, 2018

Endnote 4—Amendment history

Provision affected	How affected
Subdivision A	
s 99A.....	ad No 133, 2018
Subdivision B	
s 99B.....	ad No 133, 2018
s 99C.....	ad No 133, 2018
s 99D.....	ad No 133, 2018
s 99E.....	ad No 133, 2018
s 99F.....	ad No 133, 2018
Subdivision C	
s 99G.....	ad No 133, 2018
Division 4	
s 100.....	ad No 103, 2010
s 101.....	ad No 103, 2010
s 102.....	ad No 103, 2010
s 103.....	ad No 103, 2010
	am No 130, 2012
Part 3-3	
Division 1	
s 104.....	ad No 103, 2010
	am No 136, 2024
s 105.....	ad No 103, 2010
	am No 46, 2011
	rep No 136, 2024
s 106.....	ad No 103, 2010
s 107.....	ad No 103, 2010
s 108.....	ad No 103, 2010
	rs No 136, 2024
s 108A.....	ad No 136, 2024
Division 2	
Subdivision A	
s 109.....	ad No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 110.....	ad No 103, 2010
s 111.....	ad No 103, 2010
s 112.....	ad No 103, 2010
s 113.....	ad No 103, 2010
Subdivision B	
s 114.....	ad No 103, 2010
s 115.....	ad No 103, 2010
s 116.....	ad No 103, 2010
s 117.....	ad No 103, 2010
Subdivision C	
s 118.....	ad No 103, 2010
s 119.....	ad No 103, 2010
Subdivision D	
s 120.....	ad No 103, 2010
s 121.....	ad No 103, 2010
Division 3	
Subdivision A	
s 122.....	ad No 103, 2010
s 123.....	ad No 103, 2010
s 124.....	ad No 103, 2010
s 125.....	ad No 103, 2010
s 126.....	ad No 103, 2010
s 127.....	ad No 103, 2010
Subdivision B	
s 128.....	ad No 103, 2010
Division 4	
s 129.....	ad No 103, 2010
s 130.....	ad No 103, 2010
Division 5	
s 131.....	ad No 103, 2010
s 132.....	ad No 103, 2010

Endnote 4—Amendment history

Provision affected	How affected
s 132A.....	ad No 103, 2010 am No 114, 2017
Division 6	
s 133.....	ad No 103, 2010
Part 3-4	
s 134.....	ad No 103, 2010 am No 136, 2024 ed C156
s 135.....	ad No 103, 2010 am No 46, 2011 rep No 136, 2024
s 136.....	ad No 103, 2010 am No 136, 2024
s 137.....	ad No 103, 2010 am No 136, 2024
s 137AA.....	ad No 136, 2024
s 137A.....	ad No 93, 2018
s 137B.....	ad No 136, 2024
Part 3-5	
Division 1	
s 138.....	ad No 103, 2010
s 139.....	ad No 103, 2010
s 140.....	ad No 103, 2010
s 141.....	ad No 103, 2010
s 142.....	ad No 103, 2010
Division 2	
s 143.....	ad No 103, 2010
s 144.....	ad No 103, 2010
s 145.....	ad No 103, 2010
s 146.....	ad No 103, 2010
s 147.....	ad No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 148.....	ad No 103, 2010
s 149.....	ad No 103, 2010
Division 3	
s 150.....	ad No 103, 2010
Chapter 4	
Part 4-1	
Division 1	
s 151.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 152.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 153.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 154.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 155.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 156.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 157.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 158.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 159.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 160.....	ad No 103, 2010
Division 2	
s 161.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 162.....	ad No 103, 2010 am No 93, 2018; No 132, 2018; No 54, 2022; No 19, 2026

Endnote 4—Amendment history

Provision affected	How affected
s 163.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
Division 3	
s 164.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
Division 4	
s 165.....	ad No 103, 2010
s 166.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
Division 5	
s 167.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 168.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
Part 4-2	
Division 1	
s 169.....	ad No 103, 2010
Division 2	
Subdivision A	
s 170.....	ad No 103, 2010
s 171.....	ad No 103, 2010
s 172.....	ad No 103, 2010
s 173.....	ad No 103, 2010
Subdivision B	
s 174.....	ad No 103, 2010
s 175.....	ad No 103, 2010
s 176.....	ad No 103, 2010
s 177.....	ad No 103, 2010
Subdivision C	
s 178.....	ad No 103, 2010
s 179.....	ad No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	am No 114, 2017
s 180.....	ad No 103, 2010
s 181.....	ad No 103, 2010
Subdivision D	
s 182.....	ad No 103, 2010
s 183.....	ad No 103, 2010
s 184.....	ad No 103, 2010
s 185.....	ad No 103, 2010
s 186.....	ad No 103, 2010
s 187.....	ad No 103, 2010
	am No 61, 2018; No 135, 2020
Division 3	
s 188.....	ad No 103, 2010
	am No 130, 2012
s 189.....	ad No 103, 2010
	am No 130, 2012
s 190.....	ad No 103, 2010
	am No 130, 2012
s 191.....	ad No 103, 2010
	am No 130, 2012
Division 3A	
Division 3A.....	ad No 133, 2018
s 191A.....	ad No 133, 2018
s 191B.....	ad No 133, 2018
s 191C.....	ad No 133, 2018
s 191D.....	ad No 133, 2018
s 191E.....	ad No 133, 2018
Division 4	
s 192.....	ad No 103, 2010
s 193.....	ad No 103, 2010

Endnote 4—Amendment history

Provision affected	How affected
Part 4-3	
Division 1	
s 194.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 195.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 196.....	ad No 103, 2010 am No 136, 2024
Division 2	
s 197.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 198.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
Division 3	
s 199.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 200.....	ad No 103, 2010
s 201.....	ad No 103, 2010
Division 4	
s 202.....	ad No 103, 2010
Part 4-4	
s 203.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
s 204.....	ad No 103, 2010 am No 93, 2018; No 54, 2022; No 19, 2026
Part 4-5	
s 205.....	ad No 103, 2010
s 206.....	ad No 103, 2010
Part 4-6	
s 207.....	ad No 103, 2010
s 208.....	ad No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 209.....	ad No 103, 2010
s 210.....	ad No 103, 2010
s 211.....	ad No 103, 2010
Part 4-7	
s 212.....	ad No 103, 2010
s 213.....	ad No 103, 2010
s 214.....	ad No 103, 2010
s 215.....	ad No 103, 2010
s 216.....	ad No 103, 2010
s 217.....	ad No 103, 2010
Chapter 5	
Part 5-1	
Division 1	
s 218.....	ad No 103, 2010
Division 2	
s 219.....	ad No 103, 2010
s 220.....	ad No 103, 2010
s 221.....	ad No 103, 2010
s 222.....	ad No 103, 2010
Division 3	
s 223.....	ad No 103, 2010
Part 5-2	
Division 1	
s 224.....	ad No 103, 2010 am No 93, 2018; No 133, 2018; No 54, 2022; No 136, 2024; No 19, 2026; <u>No 64, 2026</u>
s 225.....	ad No 103, 2010
s 226.....	ad No 103, 2010
s 227.....	ad No 103, 2010
s 228.....	ad No 103, 2010
s 229.....	ad No 103, 2010

Endnote 4—Amendment history

Provision affected	How affected
s 230.....	ad No 103, 2010
Division 2	
s 232.....	ad No 103, 2010 am No 147, 2015; No 54, 2022
s 233.....	ad No 103, 2010
s 234.....	ad No 103, 2010
s 235.....	ad No 103, 2010
Division 3	
s 236.....	ad No 103, 2010
Division 4	
Division 4 heading.....	am No 54, 2022
Subdivision A heading.....	rep No 54, 2022
s 237.....	ad No 103, 2010 am No 147, 2015; No 54, 2022
s 238.....	ad No 103, 2010 am No 147, 2015; No 54, 2022
Subdivision B heading.....	am No 54, 2022 rep No 54, 2022
s 239.....	ad No 103, 2010 am No 147, 2015; No 54, 2022
s 240.....	ad No 103, 2010 am No 54, 2022
s 241.....	ad No 103, 2010 am No 54, 2022
Subdivision C heading.....	rep No 54, 2022
s 242.....	ad No 103, 2010 am No 147, 2015 rep No 54, 2022
s 243.....	ad No 103, 2010
s 243A.....	ad No 54, 2022
s 243B.....	ad No 54, 2022

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 244.....	ad No 103, 2010 rep No 54, 2022
s 245.....	ad No 103, 2010 rs No 54, 2022
Division 5	
s 246.....	ad No 103, 2010 am No 132, 2018
s 247.....	ad No 103, 2010 am No 54, 2022; <u>No 64, 2026</u>
s 248.....	ad No 103, 2010 am No 54, 2022; <u>No 64, 2026</u>
s 249.....	ad No 103, 2010
s 250.....	ad No 103, 2010 rs No 147, 2015 am No 54, 2022
Division 6	
s 251.....	ad No 103, 2010 am <u>No 64, 2026</u>
s 252.....	ad No 103, 2010
s 253.....	ad No 103, 2010
Part 5-3	
s 254.....	ad No 103, 2010
s 255.....	ad No 103, 2010 am No 5, 2017; No 94, 2020
s 256.....	ad No 103, 2010 rep No 5, 2017
s 257.....	ad No 103, 2010 rep No 5, 2017
s 258.....	ad No 103, 2010

Endnote 4—Amendment history

Provision affected	How affected
Part 5-4	
Division 1	
Subdivision A	
s 259.....	ad No 103, 2010
s 260.....	ad No 103, 2010
	am No 141, 2020
s 261.....	ad No 103, 2010
s 262.....	ad No 103, 2010
s 263.....	ad No 103, 2010
s 264.....	ad No 103, 2010
s 265.....	ad No 103, 2010
s 266.....	ad No 103, 2010
Subdivision B	
s 267.....	ad No 103, 2010
s 268.....	ad No 103, 2010
	am No 141, 2020
s 269.....	ad No 103, 2010
s 270.....	ad No 103, 2010
Division 2	
s 271.....	ad No 103, 2010
s 272.....	ad No 103, 2010
s 273.....	ad No 103, 2010
Division 3	
s 274.....	ad No 103, 2010
s 275.....	ad No 103, 2010
s 276.....	ad No 103, 2010
s 276A.....	ad No 103, 2010
s 277.....	ad No 103, 2010
Part 5-5	
Division 1	
s 278.....	ad No 103, 2010

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 279.....	ad No 103, 2010
s 280.....	ad No 103, 2010
s 281.....	ad No 103, 2010
s 281.....	ad No 103, 2010
s 283.....	ad No 103, 2010
s 284.....	ad No 103, 2010
s 285.....	ad No 103, 2010
s 286.....	ad No 103, 2010
Division 2	
s 287.....	ad No 103, 2010
Chapter 6	
Chapter 6.....	ad No 130, 2012
Part 1	
s 288.....	ad No 130, 2012
s 289.....	ad No 130, 2012
s 290.....	ad No 130, 2012
Part 1A	
Part 1A.....	ad No 147, 2015
s 290A.....	ad No 147, 2015
Part 2	
Part 2.....	ad No 114, 2017
s 291.....	ad No 114, 2017
s 292.....	ad No 114, 2017
Part 3	
Part 3.....	ad No 93, 2018
s 295.....	ad No 93, 2018
Part 4	
Part 4.....	ad No 132, 2018
s 296.....	ad No 132, 2018
s 297.....	ad No 132, 2018
s 298.....	ad No 132, 2018

Endnote 4—Amendment history

Provision affected	How affected
s 299.....	ad No 132, 2018
s 300.....	ad No 132, 2018
s 301.....	ad No 132, 2018
Part 5	
Part 5.....	ad No 133, 2018
s 302.....	ad No 133, 2018
Part 6	
Part 6.....	ad No 141, 2020
s 303.....	ad No 141, 2020
	am No 54, 2022
Part 7	
Part 7.....	ad No 54, 2022
s 304.....	ad No 54, 2022
s 305.....	ad No 54, 2022
Part 8	
Part 8.....	ad No 136, 2024
s 306.....	ad No 136, 2024
s 307.....	ad No 136, 2024
s 308.....	ad No 136, 2024
s 309.....	ad No 136, 2024
Part 10	
s 311.....	ad <u>No 64, 2026</u>
s 312.....	ad <u>No 64, 2026</u>
s 313.....	ad <u>No 64, 2026</u>